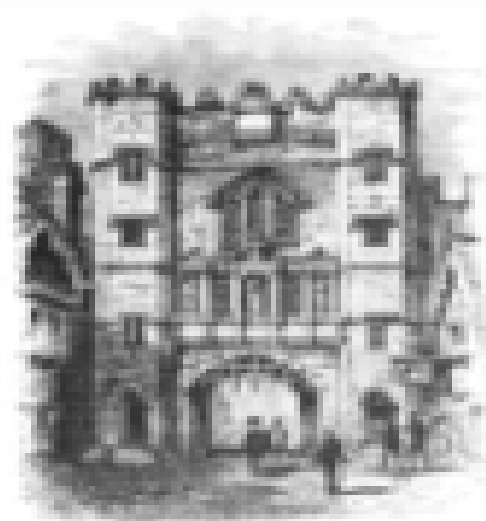


THE CHRONICLES OF NEWGATE

BY
ARTHUR GRIFFITHS

MAJOR LATE ARMY REGIMENT; ONE OF H. M. INSPECTORS OF PRISONS;
AUTHOR OF "THE MEMORIALS OF MILLBANK" ETC., ETC.



IN TWO VOLUMES.—VOL. II.

LONDON: CHAPMAN AND HALL

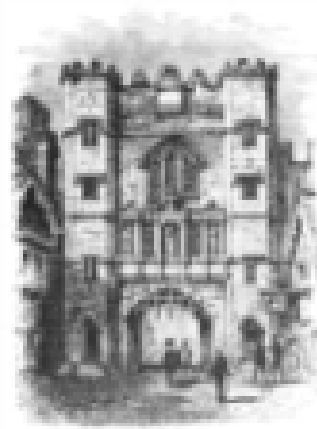
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1884

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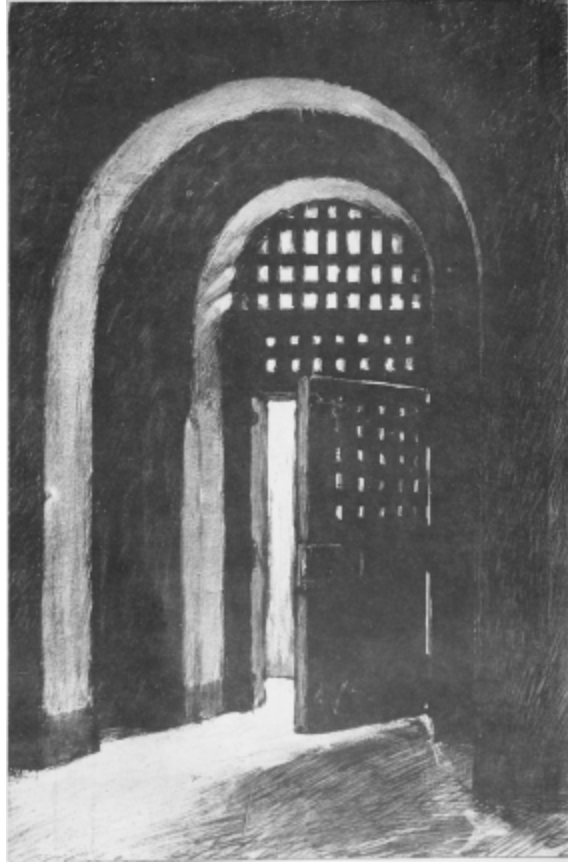
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(etext transcriber's note)





An Inner Gate.

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LONDON: CHAPMAN AND HALL

(LIMITED)

1884

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CHRONICLES OF NEWGATE.

CHAPTER I.

CRIMES AND CRIMINALS.

State of crime on opening new gaol—Newgate full—Executions very numerous—Ruthless penal code—Forgery punished with death—Its frequency—How fostered—Some notable forgers—The first forgery of Bank of England notes—Gibson—Bolland—The two Perreaus—Dr. Dodd—Charles Price, *alias* Old Patch—Clipping still largely practised—John Clarke hanged for it—Also William Guest, a clerk in Bank of England—His elaborate apparatus for filing guineas—Coining—Forty or fifty private mints for making counterfeits—Always at work—Town and country orders regularly executed—650 prosecutions for coining in seven years—Offences against life and property—Streets unsafe—High roads infested by robbers—No regular police—Inefficiency of watchmen—Assaults on the weaker sex—Renwick Williams “the monster”—Daring Robberies at *lévées*—The Duke of Beaufort robbed by gentleman Harry—George Barrington, the gentleman thief, frequents Ranelagh, the Palace, the Opera House—His depredations—He aids authorities to suppress a mutiny, turns police officer and becomes chief constable of New South Wales before he dies—Gentlemen of the road ubiquitous and always busy—Highwaymen put down by the horse patrol—Horse patrol described—Executions still numerous, but transportation now adopted as a secondary punishment for lesser offenders—Some of these described—“Long firm” swindlers—Alexander Day, *alias* Marmaduke Davenport, Esq.—Female Sharpers—Elizabeth Grieve pretends to sell places under the Crown—So does David James Dignam—Traffic in places flourished in this corrupt age—Mrs. Clarke and the Duke of York—Other forms of swindling—Jacques defrauds Warden of the Fleet—Juvenile depravity—Increased by committing the young to Newgate—Various youthful crimes—A girl for sale—Prize-fighting—Writers in gaol—The North Briton—Wilkes—The Press oppressed—Mr. Walter of the ‘Times’ in Newgate—Sir Francis Burdett and Mr. John Gale Jones—William Cobbett in Newgate—Also the Marquis of Sligo.

IN the years immediately following the erection of the new gaol, crime was once more greatly in the ascendant. After the peace which gave independence to the United States, the country was overrun with discharged soldiers and sailors. They were mostly in dire poverty, and took to depredation almost as a matter of course. The calendars were particularly heavy. At the September Sessions of the Old Bailey in 1783, fifty-eight were convicted for capital offences. The Deputy Recorder, in passing sentence, remarked that it gave him inexpressible pain, and that it was truly alarming “to behold a bar so crowded with persons whose wickedness and imprudence had induced them to commit such enormous crimes as the laws of their country justly and necessarily punish with death. Those laws,” he added, being thoroughly imbued with the ferocious spirit of the times, “while they are founded in equity, and executed with lenity, (!) impartiality, and rectitude, are written in blood.” The exemplary punishment of so many

failed to have a very deterrent effect. In the December Sessions following the number of trials was greater, although there were not so many capital convictions. Twenty-four received sentence of death, and ninety were convicted of single felonies. "Two such sessions," says a contemporary writer, "were never known before in London." The same depravity, dealt with in the same ruthless manner, prevailed throughout England. In the Lent Assizes of 1785 the judges on every circuit dealt out death with a liberal hand. At Kingston there were twenty-one capital sentences, and nine executions. At Lincoln twelve of the former, and at Gloucester sixteen, with, in both cases, nine executions; seven executions at Warwick, six at Exeter, Winchester, and Salisbury, five at Shrewsbury, and so on. The total number of capital sentences in England alone was two hundred and forty-two, of whom one hundred and three suffered, and only at Stafford, Oakham, and Ludlow was there a "maiden assize," or no capital conviction. At this date there were forty-nine persons lying in Newgate under sentence of death, one hundred and eighty under sentence of transportation, and prisoners of other categories, making the total prison population up to nearly six hundred souls.

Speaking of those times, Mr. Townshend, a veteran Bow Street runner, in his evidence before a Parliamentary Committee in 1816,^[1] declared that in the years 1781-7 as many as twelve, sixteen, or twenty were hanged at one execution; twice he saw forty hanged at one time. In 1783 there were twenty at two consecutive executions. He had known, he said, as many as two hundred and twenty tried at one sessions. He had himself obtained convictions of from thirteen to twenty-five for returning from transportation. Upon the same authority we are told that in 1783 the Secretary of State advised the King to punish with all severity. The enormity of the offences was so great, says Mr. Townshend, and "plunder had got to such an alarming pitch," that a letter was circulated among judges and recorders then sitting, to the effect that His Majesty would dispense with the recorders' reports, and that the worst criminals should be picked out and at once ordered for execution.

The penal code was at this period still ruthlessly severe. There were some two hundred capital felonies upon the statute book. Almost any member of parliament eager to do his share in legislation could "create a capital felony." A story is told of Edmund Burke, that he was leaving his house one day in a hurry, when a messenger called him back on a matter

which would not detain him a minute: “Only a felony without benefit of clergy.” Burke also told Sir James Mackintosh, that although scarcely entitled to ask a favour of the ministry, he thought he had influence enough to create a capital felony.^[2] It is true that of the two hundred, not more than five-and-twenty sorts of felonies actually entailed execution. It is true too that some of the most outrageous and ridiculous reasons for its infliction had disappeared. It was no longer death to take a falcon’s egg from the nest, nor was it a hanging matter to be thrice guilty of exporting live sheep. But a man’s life was still appraised at five shillings. Stealing from the person, or in a dwelling, or in a shop, or on a navigable river, to that amount, was punished with death. “I think it not right nor justice,” wrote Sir Thomas More in 1516, “that the loss of money should cause the loss of man’s life; for mine opinion is that all the goods in the world are not able to countervail man’s life.” Three hundred years was still to pass before the strenuous efforts of Sir Samuel Romilly bore fruit in the amelioration of the penal code. In 1810 he carried a bill through the House of Commons, which was, however, rejected by the Lords, to abolish capital punishment for stealing to the amount of five shillings in a shop. His most bitter opponents were the great lawyers of the times, Lords Ellenborough, Eldon, and others, Lords Chancellors and Lords Chief Justice, who opposed dangerous innovations, and viewed with dismay any attempt “to alter laws which a century had proved to be necessary.” Lord Eldon on this occasion said that he was firmly convinced of the wisdom of the principles and practice of our criminal code. Romilly did not live to see the triumph of his philanthropic endeavours. He failed to procure the repeal of the cruel laws against which he raised his voice, but he stopped the hateful legislation which multiplied capital felonies year by year, and his illustrious example found many imitators. Within a few years milder and more humane ideas very generally prevailed. In 1837 the number of offences to which the extreme penalty could be applied was only seven, and in that year only eight persons were executed, all of them for murders of an atrocious character.^[3]

Forgery, at the period of which I am now treating, was an offence especially repugnant to the law. No one guilty of it could hope to escape the gallows. The punishment was so certain, that as milder principles gained ground, many benevolent persons gladly withdrew from prosecution where they could. Instances were known in which bankers and other opulent people compromised with the delinquent rather than be responsible for

taking away a fellow-creature's life.^[4] The prosecutor would sometimes pretend his pockets had been picked of the forged instrument, or he destroyed it, or refused to produce it. An important witness sometimes kept out of the way. Persons have gone so far as to meet forged bills of exchange, and to a large amount. In one case it was pretty certain they would not have advanced the money had the punishment been short of death, because the culprit had already behaved disgracefully, and they had no desire he should escape a lesser retribution. Prosecutors have forfeited their recognizances sooner than appear, and have even, when duly sworn, withheld a portion of their testimony.

But at the time of which I am now writing the law generally took its course. In the years between 1805 and 1818 there had been two hundred and seven executions for forgery; more than for either murder, burglary, or robbery from the person. It may be remarked here that the Bank of England was by far the most bitter and implacable as regards prosecutions for forgery. Of the above-mentioned two hundred and seven executions for this crime, no less than seventy-two were the victims of proceedings instituted by the Bank. Forgeries upon this great monetary corporation had been much more frequent since the stoppage of specie payments, which had been decreed by Parliament in 1797 to save the Bank from collapse. Alarms of invasion had produced such a run upon it, that on one particular day little more than a million in cash or bullion remained in the cellars, which had already been drained of specie for foreign subsidies and subventions. Following the cessation of cash payments to redeem its paper in circulation, the Bank had commenced the issue of notes to the value of less than five pounds, and it was soon found that these, especially the one-pound notes, were repeatedly forged. In the eight years preceding 1797 but few prosecutions had been instituted by the Bank; but in the eight immediately following there were one hundred and forty-six convictions for the offence. At last, about 1818, a strong and general feeling of dissatisfaction grew rife against these prosecutions. The crime had continued steadily to increase, in spite of the awful penalties conviction entailed. It was proved, moreover, that note forgery was easily accomplished. Detection, too, was most difficult. The public were unable to distinguish between the good and bad notes. Bank officials were themselves often deceived, and cases were known where the clerks had refused payment of the genuine article. Juries began to decline to convict on the evidence of inspectors and clerks, unless

substantiated by the revelation of the private mark, a highly inconvenient practice, which the Bank itself naturally discountenanced. Efforts were made to improve the quality of the note, so as to defy imitation; but this could not well be done at the price, and, as the only effective remedy, specie payments were resumed, and the one-pound note withdrawn from circulation.^[5] But execution for forgery continued to be the law for many more years. Fauntleroy suffered for it in 1824;^[6] Joseph Hunton, the Quaker linen-draper, in 1828; and Maynard, the last, in the following year.

I am, however, anticipating somewhat, and must retrace my steps, and indicate briefly one or two of the early forgers who passed through Newgate and suffered for the crime. The first case I find recorded is that of Richard Vaughan, a linen-draper of Stafford, who was committed to Newgate in March, 1758, for counterfeiting Bank of England notes. He employed several artists to engrave the notes in various parts, one of whom informed against him. The value of the note he himself added. Twenty which he had thus filled up he had deposited in the hands of a young lady to whom he was paying his addresses, as a guarantee of his wealth. Vaughan no doubt suffered, although I see no record of the fact in the Newgate Calendar.

Mr. Gibson's was a curious case. He was a prisoner in Newgate for eighteen months between conviction and execution, the jury having found a special verdict, subject to the determination of the twelve judges. As Gibson remained so long in gaol, it was the general opinion that no further notice would be taken of the case. The prisoner himself must have been buoyed up with this hope, as he petitioned repeatedly for judgment. He had been sentenced in Sept. 1766, and in 1768, at Hilary Term, the judges decided that his crime came within the meaning of the law. Gibson had been a solicitor's clerk, who gave so much satisfaction that he was taken into partnership. The firm was doing a large business, and among other large affairs was intrusted with a Chancery case, respecting an estate for which an *ad interim* receiver had been appointed. Gibson's way of life was immoral and extravagant. He had urgent need of funds, and in an evil hour he forged the signature of the Accountant-General to the Court of Chancery, and so obtained possession of some of the rents of the above-mentioned estate. The fraud was presently discovered; Gibson was arrested, and eventually, as already stated, condemned. "After sentence," says the Calendar, "his behaviour was in every way becoming his awful situation; ... he appeared rational, serious, and devout. His behaviour was so pious, so resigned, and

in all respects so admirably adapted to his unhappy situation, that the tears of the commiserating multitude accompanied his last ejaculation. He was carried to execution in a mourning coach,” an especial honour reserved for malefactors of aristocratic antecedents and gentle birth.

James Bolland, who was executed in 1772, deserved and certainly obtained less sympathy. Bolland long filled the post of a sheriff's officer, and as such became the lessee of a spunging-house, where he practised boundless extortion. He was a man of profligate life, whose means never equalled his extravagant self-indulgence, and he was put to all manner of shifts to get money. More than once he arrested debtors, was paid all claims in full, and appropriated the money to his own use, yet escaped due retribution for his fraud. He employed bullies, spies, and indigent attorneys to second his efforts, some of whom were arrested and convicted of other crimes with the clothes Bolland provided them still on their backs. His character was so infamous, that when he purchased the situation of upper city marshal for £2400, the court of aldermen would not approve of the appointment. He tried also to succeed to a vacancy as Sergeant-at-mace, and met with the same objection. The deposit-money paid over in both these affairs was attached by his sureties, and he was driven to great necessities for funds. When called upon to redeem a note of hand he had given, he pleaded that he was short of cash, and offered another man's bill, which, however, was refused unless endorsed. Bolland then proceeded to endorse it with his own name, but it was declared unnegotiable, owing to the villanous character it bore. Whereupon Bolland erased all the letters after the capital, and substituted the letters “anks,” the name of Banks being that of a respectable victualler of Rathbone Place, in a large way of trade. When the bill became due, Banks repudiated his signature, and Bolland, who sought too late to meet it and hush up the affair, was arrested for the forgery. He was tried and executed in due course.

The case of the twin brothers Perreau in 1776 was long the talk of the town. It evoked much public sympathy, as they were deemed to be the dupes of a certain Mrs. Rudd, who lived with Daniel Perreau, and passed as his wife. Daniel was a man of reputed good means, with a house in Harley Street, which he kept up well. His brother, Robert Perreau, was a surgeon enjoying a large practice, and residing in Golden Square. The forged deed was a bond for £7500, purporting to be signed by William Adair, a well-known agent. Daniel Perreau handed this to Robert Drummond Perreau,

who carried it to the Bank, where its validity was questioned, and the brothers, with Mrs. Rudd, were arrested on suspicion of forgery. Daniel on his trial solemnly declared that he had received the instrument from Mrs. Rudd; Robert's defence was that he had no notion the document was forged. Both were, however, convicted of knowingly uttering the counterfeit bond. It was, however, found impossible to prove Mrs. Rudd's complicity in the transaction, and she was acquitted. The general feeling was, however, so strong that she was the guilty person, that the unfortunate Perreaus became a centre of interest. Strenuous efforts were made to obtain a reprieve for them. Robert Perreau's wife went in deep mourning, accompanied by her three children, to sue for pardon on their knees from the Queen. Seventy-two leading bankers and merchants signed a petition in his favour, which was presented to the King two days before the execution. But all to no purpose. Both brothers suffered the extreme penalty at Tyburn on the 17th January, 1776, before an enormous multitude estimated at 30,000. They asserted their innocence to the last.

In the following year a clergyman, who had at one time achieved some eminence, also fell a victim to the vindictive laws regarding forgery. Dr. Dodd was the son of a clergyman. He had been a wrangler at Cambridge, and was early known as a litterateur of some repute. While still on his promotion, and leading a gay life in London, he made a foolish marriage, and united himself to the daughter of one of Sir John Dolben's servants, a young lady largely endowed with personal attractions, but certainly deficient in birth and fortune. This sobered him, and he took orders in the year that his 'Beauties of Shakespeare' was published. He became a zealous curate at West Ham; thence he went to St. James', Garlick Hill, and took an active part in London church and charitable work. He was one of the promoters of the Magdalen Hospital, also of the Humane Society, and in 1763, twelve years after ordination, he was appointed chaplain in ordinary to the King. About the same time he was presented to a prebend's stall in Brecon Cathedral, and was recommended to Lord Chesterfield as tutor to his son. He hoped to succeed to the rectory of West Ham, but being disappointed he now came to London, and launched out into extravagance. He had a town house, and a country house at Ealing, and he exchanged his chariot for a coach. Having won a prize of £1000 in a lottery, he became interested in two proprietary chapels, but could not make them pay. But just then he was presented with a living, that of Hockliffe, in Bedfordshire,

which he held with the vicarage of Chalgrove, and his means were still ample. They were not sufficient, however, for his expenditure, and in an evil moment he attempted to obtain the valuable cure of St. George's, Hanover Square, by back-stair influence. The living was in the gift of the Crown, and Dodd was so ill advised as to write to a great lady at Court, offering her £3000 if he were presented. The letter was forthwith passed on to the Lord Chancellor, and the King, George III., hearing what had happened, ordered Dr. Dodd's name to be struck off the list of his chaplains. The story was made public, and Dodd was satirized in the press and on the stage.

Dodd was now greatly encumbered by debts, from which the presentation to a third living, that of Winge, in Buckinghamshire, could not relieve him. He was in such straits that, according to his biographer, "he descended so low as to become the editor of a newspaper," and he tried to obtain relief in bankruptcy, but failed. At length, so sorely pressed was he by creditors that he resolved to do a dishonest deed. He forged the name of his old pupil, now Lord Chesterfield, who had since become his patron, to a bond for £4200. He applied to certain usurers, in the name of a young nobleman who was seeking an advance. The business was refused by many, because Dr. Dodd declared that they could not be present at the execution of the bond. A Mr. Robertson proved more obliging, and to him Dr. Dodd, in due course, handed a bond for £4200 executed by Lord Chesterfield, and witnessed by himself. A second witness being necessary, Mr. Robertson signed his name beneath Dr. Dodd's. The bond was no sooner presented for payment, and referred to Lord Chesterfield, than it was repudiated. Robertson was forthwith arrested, and soon afterwards Dr. Dodd. The latter at once, in the hope of saving himself, returned £3000; he gave a cheque upon his bankers for £700, a bill of sale on his furniture worth £400 more, and the whole sum was made up by another hundred from the brokers. Nevertheless Dr. Dodd was taken before the Lord Mayor and charged with the forgery. Lord Chesterfield would not stir a finger to help his old tutor, although the poor wretch had made full restitution. Dr. Dodd, when arraigned, declared that he had no intention to defraud, that he had only executed the bond as a temporary resource to meet some pressing claims. The jury after consulting only five minutes found him guilty, and he was regularly sentenced to death. Still greater exertions were made to obtain a reprieve for Dr. Dodd than in the case of the Perreaus. The newspapers were

filled with letters pleading for him. All classes of people strove to help him; the parish officers went in mourning from house to house, asking subscriptions to get up a petition to the King, and this petition, when eventually drafted, filled twenty-three skins of parchment. Petitions from Dodd and his wife, both drawn up by Dr. Johnson, were laid before the King and Queen. Even the Lord Mayor and Common Council went in a body to St. James's Palace to beg mercy from the King. As, however, clemency had been denied to the Perreaus, it was deemed inadvisable to extend it to Dr. Dodd.^[7] The concourse at his execution, which took place at Tyburn, was immense. It has been stated erroneously that Dr. Dodd preached his own funeral sermon. He only delivered an address to his fellow-prisoners in the prison chapel by the permission of Mr. Villette, the ordinary. The text he chose was Psalm li. 3, "I acknowledge my faults; and my sin is ever before me." It was delivered some three weeks before the Doctor's execution, and subsequently printed. It is a curious fact that among other published works of Dr. Dodd, is a sermon on the injustice of capital punishments. He was, however, himself the chief witness against a highwayman, who was hanged for stopping him. Among other spectators at the execution of Dr. Dodd was the Rev. James Hackman, who afterwards murdered Miss Reay.^[8]

It is said that a scheme was devised to procure Dodd's escape from Newgate. He was treated with much consideration by Mr. Akerman, allowed to have books, papers, and a reading-desk. Food and other necessaries were brought him from outside by a female servant daily. This woman was found to bear a striking resemblance to the Doctor, which was the more marked when she was dressed up in a wig and gown. She was asked if she would co-operate in a scheme for taking the Doctor's place in gaol, and consented. It was arranged that on a certain day, Dr. Dodd's irons having been previously filed, he was to change clothes with the woman. She was to seat herself at the reading-desk while Dr. Dodd, carrying a bundle under his arm, coolly walked out of the prison. The plan would probably have succeeded, but Dodd would not be a party to it. He was so buoyed up with the hope of reprieve that he would not risk the misconstruction which would have been placed upon the attempt to escape had it failed. In his own profession Dr. Dodd was not very highly esteemed. Dr. Newton, Bishop of Bristol, is said to have observed that Dodd deserved pity, because he was hanged for the least crime he had committed.

One of the most notorious depredators in this line, whose operations long eluded detection, was Charles Price, commonly called Old Patch. He forged bank-notes wholesale. His plans were laid with the utmost astuteness, and he took extraordinary precautions to avoid discovery. He did everything for himself; made his own paper, with the proper water-mark, engraved his own plates, and manufactured his own ink. His method of negotiating the forged notes was most artful. He had three homes; at one he was Price, properly married, at a second he lived under



CHARLES PRICE, alias OLD PATCH.

another name with a woman who helped him in his schemes, at a third he did the actual business of passing his notes. This business was always effected in disguise; none of his agents or instruments saw him except in disguise, and when his work was over he put it off to return home. One favourite personation of his was that of an infirm old man, wearing a long black camlet cloak, with a broad cape fastened up close to his chin. With this he wore a big, broad-brimmed slouch hat, and often green spectacles or a green shade. Sometimes his mouth was covered up with red flannel, or his corpulent legs and gouty feet were swathed in flannel. His natural appearance as Price was a compact middle-aged man, inclined to stoutness, erect, active, and not bad-looking, with a beaky nose, keen grey eyes, and a nutcracker chin. His schemes were very ingenious. On one occasion he pretended, in one disguise, to expose a swindler (himself in another disguise), whom a respectable city merchant inveigled into his house in order to give him up to the police. The swindler proposed to buy himself off

for £500; the offer was accepted, the money paid by a thousand-pound note, for which the swindler got change. The note, of course, was forged. He victimized numbers of tradesmen. Disguised as an old man, he passed six forged fifty-pound notes on a grocer, and then as Price backed up his victim in an action brought against the bank which refused payment of the counterfeits. But his cleverest coup was that organized against the lottery offices. Having in one of his disguises engaged a boy to serve him, he sent the lad, dressed in livery, round the town to buy lottery tickets, paying for them in large (forged) notes, for which change was always required. By these means hundreds and hundreds of pounds were obtained upon the counterfeits. The boy was presently arrested, and a clever plot was laid to nab the old man his master, but Price by his vigilance outwitted the police. Another dodge was to hire boys to take forged notes to the Bank, receive the tickets from the teller, and carry them back to him (Price). He forthwith altered the figures, passed them on by the same messenger to the Bank cashier, and obtained payment for the larger amount.

These wholesale forgeries produced something like consternation at the Bank. It was supposed that they were executed by a large gang, well organized and with numerous ramifications, although Price, as I have said, really worked single-handed. The notes poured in day after day, and still no clue was obtained as to the culprits. The Bow Street officials were hopelessly at fault. "Old Patch" was advertised for, described in his various garbs. It was now discovered that he had a female accomplice. This was a Mrs. Poultney, alias Hickeringill, his wife's aunt, a tall, rather genteel woman of thirty, with a downcast look, thin face and person, light hair, and pitted with the small-pox. Fate at last unexpectedly overtook Old Patch. One of many endorsements upon a forged note was traced to a pawnbroker, who remembered to have had the note from one Powel. The runners suspected that Powel was Price, and that he was a member of Old Patch's gang. A watch was set at the pawnbroker's, and the next time Powel called he was arrested, identified as Price, searched, and found to have upon his person a large number of notes, with a quantity of white tissue-paper, which he declared he had bought to make into air-balloons for his children. Price was committed to prison, and a close inquiry made into his antecedents. He was found to be the man who had decoyed Foote the actor into a partnership in a brewery, and decamped with the profits, leaving Foote to pay liabilities to the extent of £500. Then, he had started an illicit still, and

had been arrested and sent to Newgate till he had paid a fine of £1600. He was released through the intercession of Lord Littleton and Foote, and forgiven the fine. He next set up as a fraudulent lottery office keeper, and bolted with a big prize. After this he elaborated his system of forgery, which ended in the way I have said. Price was alert and cunning to the last. One of his first acts was to pass out a clandestine letter to Mrs. Poultney, briefly telling her to “destroy everything.” This she effected by burning the whole of his disguises in the kitchen fire, on the pretence that the clothes were infected by the plague. The engraving press was disposed of; the copper plates heated red hot, then smashed into pieces and thrown with the watermark wires on to a neighbouring dust-heap, where they were subsequently discovered. Price attempted to deny his identity, but to no purpose, and when he saw the grip of the law tightening upon him, he committed suicide to avoid the extreme penalty. He was found hanging behind the door of his cell, suspended from two hat-screws, strengthened by gimlets. Price’s depredations, it was said, amounted to £200,000; but how he disposed of his ill-gotten gains, seeing that he always lived obscurely, and neither gambled nor drank, remained an inscrutable secret to the last.

Two deliberate cases of forging Bank of England notes about this time may be mentioned, although neither of the criminals passed through Newgate. One was James Elliot, who suffered at Maidstone in 1777, the other Joshua Crompton, who was executed at Gangle Green, near Guildford, in 1778.

The circulation of counterfeit paper was not the only kind of monetary fraud in vogue. The coinage of the realm still suffered. Clipping could not be quite put down by act of Parliament. The punishment was still capital, and generally inflicted without hope of reprieve. It was a crime affected more particularly by workers in the precious metals. Thus John Clarke, in 1767, was a London watch-case maker of good repute, who was in the habit of working alone in a private closet. His apprentice, jealously suspecting him to be engaged in some secret branch of his trade, bored a hole through the wainscot, and caught his master filing guineas. The apprentice immediately informed; Clarke was arrested, convicted, and soon afterwards hanged.

Persons in a higher station, however, succumbed to special temptations. William Guest was the son of a clergyman living at Worcester, who had sufficient interest to get him a clerkship in the Bank of England. The

constant handling of piles of gold was too much for Guest's integrity, and he presently resolved to turn his opportunities to account. Taking a house in Broad Street Buildings, he devoted the upper part of it to his nefarious trade. He abstracted guineas from his drawer in the Bank, carried them home, filed them, then remilled them in a machine he had designed for the purpose, and returned them—now light weight—to the Bank. The filings he converted into ingots and disposed of to the trade. No suspicion of his malpractices transpiring, he was in due course advanced to the post of teller. But a fellow-teller having observed him one day picking out new guineas from a bag, watched him, and found that he did this constantly. On another occasion he was seen to pay away guineas some of which, on examination, proved to have been recently filed. They were weighed, and found short weight. To test Mr. Guest still further, his money-bags were opened one night after hours, and the contents counted and examined. The number was short, and several guineas found which appeared to have been recently filed, and which on weighing proved to be light.

A descent was forthwith made upon Guest's house, and in the upper rooms the whole apparatus for filing was laid bare. In a nest of drawers were found vice, files, the milling machine, two bags of gold filings, and a hundred guineas. A flap in front of the nest of drawers could be let down, and inside was a skin fastened to the back of the flap, with a hole in it to button on to the waistcoat, and equip the workman after the method of jewellers. More evidence was soon forthcoming against Guest. His fellow-teller had seen him in possession of a substantial bar of gold; jewellers and others swore to having bought ingots from him, and an assayer at Guest's trial deposed to their being of the same standard as the guinea coinage. His guilt was clearly made out to the jury, and he was sentenced to death. A petition signed by a number of influential persons was forwarded to the Crown, praying for mercy, but it was decided that the law ought to take its course. As his crime amounted to high treason, he went to Tyburn on a sledge, but he suffered no other penalty than hanging.

The flagitious trade of coining was in a most flourishing condition during the last decades of the eighteenth and the early part of the nineteenth centuries. The condition of the national coinage was at this time far from creditable to the Mint. A great part of both the silver and copper money in circulation was much worn and defaced. Imitation thus became much easier than with coins comparatively fresh and new. Hence the nefarious practice

multiplied exceedingly. There were as many as forty or fifty private mints constantly at work, either in London or in the principal country towns. The process was rapid, not too laborious, and extremely profitable. A couple of hands could turn out in a week base silver coins worth nominally two or three hundred pounds. The wages of a good workman were as much as a couple of guineas a day. Much capital was invested by large dealers in the trade, who must have made enormous sums. One admitted that his transactions in seven years amounted to the production of £200,000 in counterfeit half-crowns and other silver coins. So systematic was the traffic, that orders for town and country were regularly executed by the various manufacturers. Boxes and parcels of base coin were despatched every morning by coach and waggon to all parts of the kingdom, like any other goods. The trade extended to foreign countries.^[9] The law, until it was rectified by the 37 Geo. III. cap. 126, did not punish the counterfeiting of foreign money, and French louis-d'or, Spanish dollars, German florins, and Turkish sequins were shipped abroad in great quantities. Our Indian possessions even did not escape, and a manufactory of spurious gold or silver pagodas was at one time most active in London, whence they were exported to the East. The number of persons employed in London as capitalists and agents for distribution alone amounted to one hundred and twenty at one time; and besides there was a strong force of skilful handicraftsmen, backed up by a whole army of "utterers" or "smashers," constantly busy in passing the base money into the currency. The latter comprised hawkers, peddlers, market-women, hackney-coach drivers, all of whom attended the markets held by the dealers in the manufactured article, and bought wholesale to distribute retail by various devices, more particularly in giving change. They obtained the goods at an advantage of about one hundred per cent. When the base money lost its veneer, the dealers were ready to repurchase it in gross, and after a repetition of the treatment, issue it afresh at the old rates.

Gold coins were not so much counterfeited as silver and copper, but there were bad guineas in circulation. The most dexterous method of coining them was by mixing a certain amount of alloy with the pure metal. They were the proper weight, and had some semblance of the true ring, but their intrinsic value was not more than thirteen or fourteen shillings, perhaps only eight or nine. The fabrication was, however, limited by the expense and the nicety required in the process. To counterfeit silver was a

simpler operation. Of base silver money there were five kinds; viz. flats, plated goods, plain goods, castings, and fig things. The *flats* were cut out of prepared flattened plates composed of silver and blanchéd copper. When cut out the coins were turned in a lathe, stamped in a press with the proper die, and subjected to rubbing with various materials, including aquafortis to bring the silver to the surface, sand-paper, cork, cream of tartar, and last of all blacking to give the appearance of age. *Plated goods* were prepared from copper; the coins cut the proper size and plated, the stamping being done afterwards. As these coins were most like silver, they generally evaded detection. *Plain goods* consisted of copper blanks the size of a shilling, turned out from a lathe, then given the colour and lustre of metal buttons, after which they were rubbed with cream of tartar and blacking. *Castings*, as the word implies, were coins made of blanchéd copper, cast in moulds of the proper die; they were then silvered and treated like the rest. It was very common to give this class of base money a crooked appearance, by which means they seemed genuine, and got into circulation without suspicion. The *figs*, or *fig things*, were the lowest and meanest class, and was confined chiefly to sixpences. Copper counterfeit money was principally of two kinds, stamped and plain, made out of base metal; the profit on them being about a hundred per cent. They were mostly halfpennies; but farthings were also largely manufactured, the material being real copper, but the fraud was in their being of light weight, and very thin.

The prosecutions for coining were very numerous. The register of the solicitor to the Mint recorded as many as 650 in a period of seven years. The offence of making or uttering, till a very recent date, constituted petty treason, and met with the usual penalties. These, in the case of female offenders, included hanging and burning at a stake. The last woman who suffered in this way was burnt before the debtors' door, in front of Newgate, in 1788, having been previously strangled. In the following year, as I have already said, the 30 Geo. III. cap. 48 was passed, which abolished the practice of burning women convicted of petty treason.^[10] Persons guilty of only selling or dealing in base money were more leniently dealt with. The offence was long only a misdemeanour, carrying with it a sentence of imprisonment for a year and a day, which the culprit passed not unpleasantly in Newgate, while his friends or relations kept the business going outside, and supplied him regularly with ample funds.

There was as yet little security for life and property in town or country. The streets of London were still unsafe; high roads and bye roads leading to it were still infested by highway robbers. The protection afforded to the public by the police continued very inefficient. It was still limited to parochial effort; the watchmen were appointed by the vestries, and received a bare pittance,—twelve and sixpence a week in summer, seventeen and sixpence in winter,—which they often eked out by taking bribes from the women of the town, or by a share in a burglar's "swag," to whose doings they were conveniently blind. These watchmen were generally middle-aged, often old and feeble men, who were appointed either from charitable motives, to give them employment, or save them from being inmates of the workhouse and a burthen to the parish. Their hours of duty were long, from night-fall to sunrise, during which, when so disposed, they patrolled the streets, calling the hour, the only check on their vigilance being the occasional rounds of the parish beadle, who visited the watchmen on their various beats. In spite of this the watchmen were often invisible; not to be found when most wanted, and even when present, powerless to arrest or make head against disorderly or evilly-disposed persons.

Besides the watchmen there were the parish constables, nominated by the court of burgesses, or court leet. The obligation of serving in the office of constable might fall upon any householder in turn, but he was at liberty to escape it by buying a substitute or purchasing a "Tyburn ticket," of which more directly. The parish constables were concerned with pursuit rather than prevention, with crime after rather than before the fact. In this duty they were assisted by the police constables, although there was no love lost between the two classes of officer. The police constables are most familiar to us under the name of "Bow Street runners," but they were attached to all the police offices, and not to Bow Street alone. They were nominated from Whitehall by the Secretary of State, the minister now best known as the Home Secretary. The duties of the "runners" were mainly those of detection and pursuit, in which they were engaged in London and in the country, at home and abroad. Individuals or public bodies applied to Bow Street, or some other office, for the services of a runner. These officers took charge of poaching cases, of murders, burglaries, or highway robberies. Some were constantly on duty at the Court, as depredations were frequently committed in the royal palaces, or the royal family were "teased by lunatics." The runners were remunerated by a regular salary of a guinea a week; but

special services might be recognized by a share in the private reward offered, or, in case of conviction, by a portion of the public parliamentary reward of £40, which might be granted by the bench.^[11]

The policy of making these grants was considered questionable. It tended to tempt officers of justice “to forswear themselves for the lucre of the reward,” and the thirst for “blood-money,” as it was called, was aggravated till it led many to sell the lives of their fellow-creatures for gain. There were numerous cases of this. Jonathan Wild was one of the most notorious of the dishonest thief-takers. In 1755 several scoundrels of the same kidney were convicted of having obtained the conviction of innocent people, simply to pocket the reward. Their offence did not give under penal statute, so they were merely exposed in the pillory, where, however, the mob pelted one to death and nearly killed another. Again, in 1816, a police officer named Vaughan was guilty of inciting to crime, in order to betray his victims and receive the blood-money. On the other hand, when conviction was doubtful the offender enjoyed long immunity from arrest. Officers would not arrest him until he “weighed his weight,” as the saying was, or until they were certain of securing the £40 reward. Another form of remuneration was the bestowal on conviction of a “Tyburn ticket”; in other words, of an exemption from service in parish offices. This the officer sold for what it would fetch, the price varying in different parishes from £12 or £14 to £30 or £40.

It was not to be wondered at that a weak and inadequate police force, backed up by such uncertain and injudicious incentives to activity, should generally come off second-best in its struggles with the hydra-headed criminality of the day. Robberies and burglaries were committed almost under the eyes of the police. It was calculated that the value of the property stolen in the city in one month (*circa* 1808) amounted to £15,000, and none of the parties were even known or apprehended, although sought after night and day.^[12] Such cases as the following were of frequent occurrence. “Seven ruffians, about eight o’clock at night, knocked at the door of Mrs. Abercrombie in Charlotte Street, Rathbone Place, calling out ‘Post!’ and on its being opened, rushed in and took from Mrs. A. her jewels and fifty or sixty guineas in money, with all the clothes and linen they could get. The neighbourhood was alarmed, and a great crowd assembled, but the robbers sallied forth, and with swords drawn and pistols presented, threatened destruction to any who opposed them. The mob tamely suffered them to

escape with their booty without making any resistance.” The officers of justice were openly defied. There were streets, such as Duck Lane, Gravel Lane, or Cock Lane, in which it was unsafe for any one to venture without an escort of five or six of his fellows. “They (the ruffians) would have cut him to pieces if he was alone.”

Still more dastardly were the wanton outrages perpetrated upon unprotected females, often in broad daylight, and in the public streets. These at one time increased to an alarming extent. Ladies were attacked and wounded without warning, and apparently without cause. The injuries were often most serious. On one occasion a young lady was stabbed in the face by means of an instrument concealed in a bouquet of flowers which a ruffian had begged her to smell. When consternation was greatest, however, it was reported that the cowardly assailant was in custody. He proved to be one Renwick Williams, now generally remembered as “the monster.” The assault for which he was arrested was made in St. James’s Street, about midnight, upon a young lady, Miss Porter, who was returning from a ball to her father’s house. Renwick struck at her with a knife, and wounded her badly through her clothes, accompanying the blow with the grossest language. The villain at the time escaped, but Miss Porter recognized him six months later in St. James’s Park. He was followed by a Mr. Coleman to his quarters at No. 52, Jermyn Street, and brought to Miss Porter’s house. The young lady, crying “That is the wretch!” fainted away at the sight of him. The prisoner indignantly repudiated that he was “the monster” who was advertised for, but he was indicted at the Old Bailey, and the jury found him guilty without hesitation. His sentence was two years’ imprisonment in Newgate, and he was bound over in £400 to be of good behaviour.

Gentlemen, some of the highest station, going or returning from court, were often the victims of the depredations committed in the royal precincts. In 1792 a gang of thieves dressed in court suits smuggled themselves into a drawing-room of St. James’s Palace, and tried to hustle and rob the Prince of Wales. The Duke of Beaufort, returning from a levee, had his “George,” pendant to his ribbon of the Garter, stolen from him in the yard of St. James’s Palace. The order was set with brilliants, worth a very large sum of money. The duke called out to his servants, who came up and seized a gentlemanly man dressed in black standing near. The “George” was found in this gentleman’s pocket. He proved to be one Henry Sterne, commonly called Gentleman Harry,^[13] who, being of good address and genteel

appearance, easily got admission to the best company, upon whom he levied his contributions.

George Barrington, the notorious pickpocket, also found it to his advantage to attend levees and drawing-rooms. Barrington, or Waldron, which was his real name, began crime early. When one of a strolling company in Ireland, he recruited the empty theatrical treasury and supplemented meagre receipts by stealing watches and purses, the proceeds being divided among the rest of the actors. He found thieving so much more profitable than acting that he abandoned the latter in favour of the former profession, and set up as a gentleman pickpocket. Having worked Dublin well, his native land became too hot to hold him, and came to London. At Ranelagh one night he relieved both the Duke of Leinster and Sir William Draper of considerable sums. He visited also the principal watering places, including Bath, but London was his favourite hunting-ground. Disguised as a clergyman, he went to court on drawing-room days, and picked pockets or removed stars and decorations from the breasts of their wearers. At Covent Garden Theatre one night he stole a gold snuff-box set with brilliants, and worth £30,000, belonging to Prince Orloff, of which there had been much talk, and which, with other celebrated jewels, Barrington had long coveted. The Russian prince felt the thief's hand in his pocket, and immediately seized Barrington by the throat, on which the latter slipped back the snuff-box. But Barrington was arrested and committed for trial, escaping this time because Prince Orloff would not prosecute. He was, however, again arrested for picking a pocket in Drury Lane Theatre, and sentenced to three years' hard labour on board the hulks in the Thames.

From this he was released prematurely through the good offices of a gentleman who pitied him, only to be reimprisoned, but in Newgate, not the hulks, for fresh robberies at the Opera House, Pantheon, and other places of public resort. Once more released, he betook himself to his old evil courses, and having narrowly escaped capture in London, wandered through the northern counties in various disguises, till he was at length taken at Newcastle-on-Tyne. Another narrow escape followed, through the absence of a material witness; but he was finally arrested for picking a pocket on Epsom Downs, and sentenced to seven years' transportation. He made an affecting speech at his trial, urging, in extenuation of his offence, that he had never had a fair chance of earning an honest livelihood. He may have been sincere, and he certainly took the first opportunity of trying to do well.

On the voyage out to New South Wales there was a mutiny on board the convict ship, which would have been successful but for Barrington's aid on the side of authority. He kept the passage to the quarter-deck single-handed, and the mob of convicts at bay with a marline-spike, till the captain and crew were able to get arms and make head against the revolt. As a reward for his conduct, Barrington was appointed to a position of trust, in charge of other prisoners at Paramatta. Within a year or two he was advanced to the more onerous and responsible post of chief constable, and was complimented by the governor of the colony for his faithful performance of the duty. He fell away in health, however, and retiring eventually upon a small pension, died before he was fifty years of age.

The gentlemen of the highway continued to harass and rob all travellers. All the roads were infested. Two or three would be heard of every morning; some on Hounslow Heath, some on Finchley Common, some on Wimbledon Common, some on the Romford Road. Townshend, the Bow Street runner, declared that on arriving at the office of a morning people came in one after the other to give information of such robberies. "Messrs. Mellish, Bosanquet, and Pole, merchants of the city," says a contemporary chronicle, "were stopped by three highwaymen on Hounslow Heath. After robbing them, without resistance, of their money and their watches, one of the robbers wantonly fired into the chaise and mortally wounded Mr. Mellish." The first successful effort made to put down this levying of blackmail upon the king's highway was the establishment of the police horse patrol in 1805. It was organized by the direction of the chief magistrate at Bow Street, then Sir Nathaniel Conant, and under the immediate orders of a conductor, Mr. Day. This force consisted of mounted constables, who every night regularly patrolled all the roads leading into the metropolis. They worked singly between two stations, each starting at a fixed time from each end, halting midway to communicate, then returning. The patrol acted on any information received *en route*, making themselves known as they rode along to all persons riding horses or in carriages, by calling out in a loud tone "Bow Street Patrol." They arrested all known offenders whom they met with,



and were fully armed for their own and the public protection. The members of this excellent force were paid eight-and-twenty shillings a week, with turnpike tolls and forage for their horses, which, however, they were obliged to groom and take care of. Marked and immediate results obtained from the establishment of this patrol. Highway robbery ceased almost entirely, and in the rare cases which occurred before it quite died out, the guilty parties were invariably apprehended.

There was as yet no very marked diminution in the number of executions, but other forms of punishment were growing into favour. Already transportation beyond the seas had grown into a system. Since the settlement of New South Wales as a penal colony in 1780, convicts were sent out regularly, and in increasingly large batches. The period between conviction and embarkation was spent in Newgate, thus adding largely to its criminal population, with disastrous consequences to the health and convenience of the place. Besides these, the most heinous criminals, there were other lesser offenders, for whom various terms of imprisonment was deemed a proper and sufficient penalty. Hence gaols were growing much more crowded, Newgate more especially, as I shall presently show. For the present I propose to give the reader some of the types of persons who became lodgers in Newgate, not temporarily, as in the case of all who passed quickly from the condemned cells to the gallows, but who remained

there for longer periods, whether awaiting removal as transports, or working out a sentence of imprisonment in the course of law.

As London, increased in size and life, became more complex, chances multiplied for rogues and sharpers, who tried with chicane and stratagem to prey upon society. Swindling was carried out more systematically and upon a wider scale than in the days of Jenny Diver or the sham German Princess. [14] A woman named Robinson was arrested in 1801, who, under the pretence of being a rich heiress, had obtained goods fraudulently from tradesmen to the value of £20,000. Again, some years later, a gang resembling somewhat the “long firms” of modern days carried on a fictitious trade, and obtained goods from city merchants worth £50,000. There were many varieties of the professional swindler in those days. Some did business under the guise of licensed and outwardly respectable pawnbrokers, who *sub rosâ* were traffickers in stolen goods. Others roamed the country as hawkers, general dealers, and peddlers, distributing exciseable articles which had been smuggled into the country, carrying on fraudulent raffles, purchasing stolen horses in one county and disposing of them in another. The “duffer” went from door to door in the town, offering for sale smuggled tobacco, muslins, or other stuffs, and, if occasion served, passing forged notes or bad money as small change.

Where the swindler possessed such qualifications as a pleasing manner and a gentlemanly address, with a small capital to start with, he flew at higher game. Alexander Day, alias Marmaduke Davenport, Esq., was one of the first of a long line of impostors who made a great show, in a fine house in a fashionable neighbourhood, with sham footmen in smart liveries, and a grand carriage and pair. The latter he got in on approval, taking care while he used them to be driven to the Duke of Montague’s and other aristocratic mansions. In the carriage too he called on numbers of tradesmen and gave large orders for goods: yards of Spanish point-lace, a gold “equipage” or dinner-service, silks in long pieces, table and other linen enough to furnish several houses. By clever excuses he postponed payment, or made off with the property by a second door. Among other things ordered was a gold chain for his squirrel, which already wore a silver one. The goldsmith recognized the silver chain as one he had recently sold to a lady, and his suspicions were aroused. On reference to her she denounced Day as a swindler, who had cheated her out of a large sum of money. Day was forthwith arrested and sent to Newgate. At his trial he declared that he

meant to pay for everything he had ordered, that he owned an estate in Durham worth £1200 a year, but that it was heavily mortgaged. The case occupied some time, but in the end Day was sentenced to two years' imprisonment in Newgate, to stand twice in the pillory, find security for his good behaviour, and pay a fine of £200.

The cleverest swindles were often effected by the softer sex. Female sharpers infested all places of public resort. They dressed in the best clothes, and personating ladies of the highest fashion, attended entertainments and masquerades; they even succeeded in gaining admission to St. James's Palace, where they got into the general circle and pilfered right and left. One woman, the wife of a notorious Chevalier d'Industrie, was known to have been at court at the King's birthday (George III.). Her costume was in irreproachable good taste; her husband attended her in the garb of a dignitary of the Church. Between them they managed to levy contributions to the extent of £1700, and made off before these thefts were discovered or suspected. A notable female sharper was Elizabeth Harriet Grieve, whose line of business was to pretend that she possessed great influence at court, and promise preferment. She gave out that she was highly connected: Lord North was her first cousin, the Duke of Grafton her second; she was nearly related to Lady Fitz-Roy, and most intimate with Lord Guildford and other peers. In those days places were shamelessly bought and sold, and tradesmen retiring from business, or others who had amassed a little property, invested their savings in a situation under the Crown. When the law at length laid hands on the Hon. Elizabeth Harriet, as she styled herself, a great number of cases were brought against her. A coach-carver, whose trade was declining, had paid her £36 to obtain him a place as clerk in the Victualling Office. Another man gave her £30 down, with a conditional bond for £250, to get the place of a "coast" or "tide"-waiter. Both were defrauded. There were many more proved against her, and she was eventually sentenced to transportation.

She was only one of many who followed the same trade. David James Dignum was convicted in 1777 of pretending to sell places under Government, and sentenced to hard labour on the Thames. Dignum's was a barefaced kind of imposition. He went the length of handing his victims, in exchange for the fees, which were never less than a hundred guineas, a stamped parchment duly signed by the head of the public department, with seals properly attached. In one case he got £1000 for pretending to secure a

person the office of “writer of the ‘London Gazette.’ ” Of course the signatures to these instruments were forged, and the seals had been removed from some legal warrant. When the time came for Dignum’s departure for the hulks, he resolved to go to Woolwich in state, and travelled down in a post-chaise, accompanied by his negro servant. But on reaching the ballast lighter on which Dignum was to work, his valet was refused admittance, and the convict was at once “put to the duty of the wheelbarrow.” He made a desperate effort to get off by forging a cheque on Drummonds, which he got others to cash. They were arrested, but their innocence was clearly shown. Dignum had hoped to be brought up to London for examination. He had thought to change his lot, to exchange the hulks for Newgate, even at the risk of winding up at Tyburn. But in this he was foiled, as the authorities thought it best to institute no prosecution, but leave him to work out his time at the hulks.

That the dishonest and evilly-disposed should thus try to turn the malversation of public patronage to their own advantage was not strange. The traffic in places long flourished unchecked in a corrupt age, and almost under the very eyes of careless, not to say culpable, administrators. The evil practice culminated in the now nearly forgotten case of Mrs. Mary Ann Clarke, who undoubtedly profited liberally by her pernicious influence over the Duke of York when commander-in-chief of the army. The scandal was brought prominently before the public by Colonel Wardle, M.P., who charged her with carrying on a traffic in military commissions, not only with the knowledge, but the participation, of the Duke of York. A long inquiry followed, at which extraordinary disclosures were made. Mrs. Clarke was proved to have disposed of both military and ecclesiastical patronage. She gave her own footman a pair of colours, and procured for an Irish clergyman the honour of preaching before the King. Her brokership extended to any department of state, and her lists of applicants included numbers of persons in the best classes of society. The Duke of York was exonerated from the charge of deriving any pecuniary benefit from this disgraceful traffic; but it was clear that he was cognizant of Mrs. Clarke’s proceedings, and that he knowingly permitted her to barter his patronage for filthy lucre. Mrs. Clarke was examined in person at the bar of the house. In the end a vote acquitted the duke of personal corruption, and the matter was allowed to drop. But a little later Colonel Wardle was sued by an upholsterer for furniture supplied at his order to Mrs. Clarke, and the

disinterestedness of the colonel's exposure began to be questioned. In 1814 Mrs. Clarke was sentenced to nine months' imprisonment for a libel on the Irish Chancellor of the Exchequer.

A clever scheme of deception which went very near success was that perpetrated by Robert Jaques. Jaques filled the post of "clerk of the papers" to the warden of the Fleet, a place which he had himself solicited, on the plea that he was a man of experience, able to guard the warden against the tricks incident to his trust. Jaques admitted that his own antecedents were none of the best, that he had been frequently in gaol, but he pleaded that "men like himself, who had been guilty of the worst offences, had afterwards become the best officers." No sooner was Jaques appointed than he began to mature a plot against his employer. The warden of the Fleet by his office became responsible for the debt of any prisoner in his custody who might escape. Jaques at once cast about for some one whom he might through a third party cause to be arrested, brought to the Fleet on a sham action, and whom he would assist to escape. The third party's business would then be to sue the warden for the amount of the evaded debt. Jaques applied to a friend, Mr. Tronson, who had been a servant, an apothecary, a perfumer, and a quack doctor. Tronson found him one Shanley, a needy Irishman, short of stature and of fair complexion, altogether a person who might well be disguised as a woman. Jaques next arranged that a friend should get a warrant against Shanley for £450. Upon this, Shanley, who was easily found, being a "dressy young gentleman, fond of blue and gold," was arrested and carried to a spunging-house. While there a second writ was served upon Shanley for £850, at the suit of another friend of Jaques. Shanley was next transferred to the Fleet on a Habeas, applied for by a fictitious attorney. The very next Sunday, Jaques gave a dinner-party, at which his wife, a brother, Mr. John Jaques, and his wife, with some of the parties to the suits, and of course Shanley, were present. Later in the day Shanley exchanged clothes with Mrs. John Jaques, and, personating her, walked out of the prison. It was at a time when an under turnkey was on duty at the gate, and he let the disguised prisoner pass without question. By-and-by Mrs. Jaques got back her clothes, and also left. Shanley had meanwhile proceeded post haste to Dover, and so reached the continent.

As soon as the escape was discovered, suspicion fell on Jaques's friends, who were openly taxed with connivance. The matter looked worse for them when they laid claim to the money considered forfeited by the

disappearance of the debtor, and the law stepped in to prosecute inquiry. The head turnkey, tracking Shanley to Calais, went in pursuit. At the same time a correspondence which was in progress between the conspirators on either side of the Channel was intercepted by order of the Secretary of State, and the letters handed over to the warden's solicitors. From these the whole plot was discovered, and the guilt of the parties rendered the more sure by the confession of Shanley. Jaques was arrested, tried, and convicted at the Old Bailey, receiving the sentence of three years' imprisonment, with one public exposure on the pillory at the Royal Exchange. A curious accident, however, helped to obtain the premature release of Jaques from Newgate. A Sir James Saunderson having been robbed of a large sum in cash and notes, portion of the stolen property was brought into Newgate by some of the thieves, who were arrested on another charge. The notes were intrusted to Jaques, who pretended he could raise money on them. Instead of this, he gave immediate notice to their rightful owner that he had them in his possession. Jaques afterwards petitioned Sir James Saunderson to interest himself in his behalf, and through this gentleman's good offices he escaped the exposure upon the pillory, and was eventually pardoned.

A peculiar feature in the criminal records of the early part of the present century was the general increase in juvenile depravity. This was remarked and commented upon by all concerned in the administration of justice: magistrates of all categories, police officers, gaolers, and philanthropists. It was borne out, moreover, by the statistics of the times. There were in the various London prisons, in the year 1816, three thousand inmates under twenty years of age. Nearly half of this number were under seventeen, and a thousand of these alone were convicted of felony. Many of those sent to prison were indeed of tender years. Some were barely nine or ten. Children began to steal when they could scarcely crawl. Cases were known of infants of barely six charged in the courts with crimes. This deplorable depravity was attributable to various causes: to the profligacy prevailing in the parish schools; the cruel and culpable neglect of parents who deserted their offspring, leaving them in a state of utter destitution, or were guilty of the no less disgraceful wickedness of using them as instruments for their nefarious designs; the artfulness of astute villains—prototypes of old Fagin—who trained the youthful idea in their own devious ways. The last-named was a fruitful source of juvenile crime. Children were long permitted to commit small thefts with impunity. The offence would have been death to

those who used them as catspaws; for them capital punishment was humanely nearly impossible; moreover, the police officers ignored them till they “weighed their weight,” or had been guilty of a forty-pound crime.^[15] The education in iniquity continued steadily. They went from bad to worse, and ere long became regular inmates of “flash houses,” where both sexes mixed freely with vicious companions of their own age, and the most daring enjoyed the hero-worship of their fellows. When thus assembled, they formed themselves into distinct parties or gangs, each choosing one of their number as captain, and dividing themselves into reliefs to work certain districts, one by day and by night. When they had “collared their swag,” they returned to divide their plunder, having gained sometimes as much as three or four hundred pounds. A list of these horrible dens prepared about this date showed that there were two hundred of them, frequented by six thousand boys and girls, who lived solely by this way, or were the associates of thieves. These haunts were situated in St. Giles, Drury Lane, Chick Lane, Saffron Hill, the Borough, and Ratcliffe Highway. Others that were out of luck crowded the booths of Covent Garden, where all slept promiscuously amongst the rotting garbage of the stalls. During the daytime all were either actively engaged in thieving, or were revelling in low amusements. Gambling was a passion with them, indulged in without let or hindrance in the open streets; and from tossing buttons there they passed on to playing in the low public-houses at such games as “put,” or “the rocks of Scylla,” “bumble puppy,” “tumble tumble,” or “nine holes.”

Still more demoralizing than the foregoing was the pernicious habit, commonly, but happily not invariably followed, of committing these young thieves to Newgate. Here these tyros were at once associated with the veterans and great leaders in crime. Old house-breakers expatiated upon their own deeds, and found eager and willing pupils among their youthful listeners. The elder and more evilly experienced boys soon debased and corrupted their juniors. One with twenty previous convictions against him, who had been in Newgate as often, would have alongside him an infant of seven or eight, sent to gaol for the first time for stealing a hearth-broom. It was as bad or worse for the females. Girls of twelve or thirteen were mixed up with the full-grown felons; one of the latter, as in a known case, who was what we should style in these days an habitual criminal, and who had been committed thirty times to Newgate, residing there generally nine

months out of every twelve, was the wardswoman or prisoner-officer, with nearly unlimited power.

The crying evils of the system had moved private philanthropy to do something in remedy. Charitable schools, the forerunners of our modern reformatories, or the germ and nucleus of time-honoured institutions still flourishing, and worthy all praise, were started. I shall refer to these more particularly in a later chapter.^[16] Other well-meaning people, each with their own pet scheme, began to theorize and propose the construction of juvenile penitentiaries, economical imitations mostly of the great penitentiary which was nearly completed at Millbank. But juvenile crime still grew and flourished, the offences were as numerous as ever, and their character was mostly the same. The most favourite pastime was that of picking pockets. Boys then as now were especially skilful at this in a crowd; short, active little chaps, they slipped through quickly with their booty, and passed it on to the master who was directing the operations. Shop-lifting, again, was much practised, the dodge being to creep along on hands and feet to the shop fronts of haberdashers and linen-draper, and snatch what they could. Again, there were clever young thieves who could “starr” a pane in a window, and so get their hands through the glass. But there were boys convicted of highway robbery, like Joseph Wood and Thomas Underwood, one fourteen and the other twelve, both of whom were hanged. Another boy, barely sixteen, was executed for setting his master’s house on fire. The young incendiary was pot-boy at a public-house, and having been reprimanded for neglect, vowed revenge. Another boy was condemned for forming one of a gang of boys and girls in a street robbery, who fell upon a man in liquor. The girls attacked him, and the boys stripped him of all he had.

Perhaps the most astounding precocity in crime was that displayed by a boy named Leary, who was tried and sentenced to death at thirteen years of age for stealing a watch and chain from some chambers in the Temple. He began at the early age of eight, and progressed regularly from stealing apples to burglary and household robbery. He learnt the trade first from a companion at school. After exacting toll from the tart-shops, he took to stealing bakers’ loaves, then money from shop counters and tills, or breaking shop windows and drawing their contents through. He often appeared at school with several pounds in his pocket, the proceeds of his depredations. He soon became captain of a gang known as Leary’s gang,

who drove about, armed with pistols, in a cart, watching for carriages with the trunks fastened outside, which they could cut away. In these excursions the gang was often out for a week or more, Leary's share of the profits amounting sometimes to £100. Once, the result of several robberies in and about London, he amassed some £350, but the money was partly stolen from him by older thieves, or he squandered it in gambling, or in the flash houses. After committing innumerable depredations, he was captured in a gentleman's dining-room in the act of abstracting a quantity of plate. He was found guilty, but out of compassion committed to the Philanthropic School. He was recaptured, however, and eventually sentenced to transportation for life.

The prevailing tastes of the populace were in these times low and depraved. Their amusements were brutal, their manners and customs disreputable, their morality at the lowest ebb. It is actually on record that little more than a hundred years ago a man and his wife were convicted of offering their niece, "a fine young girl, apparently fourteen years of age," for sale





WHIPPING AT THE OLD BAILEY.

at the Royal Exchange. Mr. and Mrs. Crouch were residents of Bodmin, Cornwall, to which remote spot came a report that “maidens were very scarce in London, and that they sold there for a good price.” They accordingly travelled up to town by road, two hundred and thirty-two miles, and on arrival hawked the poor girl about the streets. At length they “accosted an honest captain of a ship, who instantly made known the base proposal they had made to him.” The Crouches were arrested and tried; the man was sentenced to six months’ imprisonment in Newgate, but his wife, as having acted under his influence, was acquitted.

Traffic in dead bodies was more actively prosecuted. The wretches who gained the name of Resurrection men despoiled graveyards to purvey subjects for the dissecting knife. There were dealers who traded openly in these terrible goods, and, as has been seen in the chapter on executions, their agents haggled for corpses at the foot of the gallows. Sometimes the culprits were themselves the guardians of the sacred precincts. I find that the grave-digger of St. George’s, Bloomsbury, was convicted, with a female accomplice, of stealing a dead body, and sentenced to imprisonment. They

were also “whipped twice on their bare backs from the end of King’s Gate Street, Holborn, to Dyot Street, St. Giles, being half a mile.” To this crime, and its development in the persons of Burke and Hare, I shall recur on a later page.

Disorderly gatherings for the prosecution of the popular sports were of constant occurrence. The vice of gambling was openly practised in the streets. It was also greatly fostered by the metropolitan fairs, of which there were eighty annually, lasting from Easter to September, when Bartholomew Fair was held. These fairs were the resort of the idle and the profligate, and most of the desperate characters in London were included in the crowd. Another favourite amusement was bull-baiting or bullock-hunting. Sunday morning was generally chosen for this pastime. A subscription was made to pay the hire of an animal from some drover or butcher, which was forthwith driven through the most populous parts of the town; often across churchyards when divine service was in progress, pursued by a yelling mob, who goaded the poor brute to madness with sharp pointed sticks, or thrust peas into its ears. When nearly dead the poor beast rejoined its herd, and was driven on to Smithfield market. A system of bull-baits was introduced at Westminster by two notorious characters known as Caleb Baldwin and Hubbersfield, otherwise Slender Billy, which attracted great crowds, and led to drunkenness and scenes of great disorder.

Towards the close of the eighteenth century a still lower and more debasing amusement sprang suddenly into widespread popularity. The patronage of pugilism or prize-fighting was no doubt supposed by many to be the glorification of the national virtues of courage and endurance. It was also greatly due to the gradual disuse of the practice of carrying side-arms, when it was thought that quarrels would be fought out with fists instead of swords. Hence the “noble art of self-defence,” as it was styled magniloquently, found supporters in every class of society. Prize-fights first became fashionable about 1788, following a great encounter between two noted pugilists, named Richard Humphreys and Daniel Mendoza, a Jew. Sporting papers were filled with accounts of the various fights, which peer and pickpocket attended side by side, and which even a Royal Prince did not disdain to honour. These professional bruisers owned many noble patrons. Besides, the Prince of Wales, the Dukes of Clarence and York, the Duke of Hamilton, Lords Barrymore and others, attended prize-fights and sparring matches at theatres and public places. A well-known pugilist, who

was summoned for an assault at Covent Garden Theatre, brought forward in his defence the terms of intimacy he was on with noted people; the very day on which he was charged, that he had dined at the Piazza Coffee House with General Gwynne, Colonel McDouel, Captains Barkley and Hanbury, after which they had all gone to the theatre. These aristocratic friends were, moreover, ready to be useful at a pinch, and would bail out a pugilist in trouble, or give him their countenance and support. At the trial of one William Ward, who had killed a man in a fight, the pugilist was attended by his patrons in court. The case was a bad one. Ward, on his way to see a fight in the country, had been challenged by a drunken blacksmith, and proved to him after a few rounds that he was no match for the trained bruiser. The blacksmith did not like his "punishment," and tried to escape into the bar, when his antagonist followed him, and actually beat him to death. At the trial Ward was found guilty of manslaughter, fined one shilling, and only sentenced to be imprisoned three months in Newgate. Yet the judge who inflicted this light punishment condemned boxing as an inhuman and disgraceful practice, a disgrace to any civilized nation.

To the foregoing categories of undoubted criminals must be added another pretty numerous class of offenders, who were at least so deemed by contemporary codes, and who now frequently found themselves relegated to Newgate. These were days when the press had far from achieved its present independence; when writers, chafing under restraints and reckless of consequence, were tempted into licence from sheer bravado and opposition; when others far more innocent were brought under the same ban of the law, and suffered imprisonment and fine for a hardly unwarrantable freedom of speech. It is to be feared that the frequent prosecutions instituted had often their origin in political antipathy. While ministerial prints might libel and revile the opponents of the governments, journals which did not spare the party in power were humiliated and brow-beaten, difficulties were thrown in the way of their obtaining intelligence, and if they dared to express their opinions freely, "an information *ex officio*," as it was styled, was issued by the Attorney-General. Prosecution followed, protracted to the bitter end. Even what seems to us the harmless practice of parliamentary reporting was deemed a breach of privilege; it was tolerated, but never expressly permitted. Offending journalists were often reprimanded at the bar of the House, and any member who felt aggrieved at the language attributed to him was at liberty to claim the protection of the House. When

legislators and executive were so sensitive, it was hardly likely that the great ones, the supposed salt of the earth, should be less thin-skinned. Any kind of criticism upon princes of the blood was looked upon as rank blasphemy; the morals of a not blameless or too reputable aristocracy were guaranteed immunity from attack, while the ecclesiastical hierarchy was apparently not strong enough to vindicate its tenets or position without having recourse to the secular arm.

As time passed, the early martyrs to freedom of speech, such men as Prynne Bastwick and Daniel Defoe, were followed by many victims to similar oppression. One of the first to suffer after Defoe was the nonjuring clergyman Lawrence Howell, who died in Newgate. He was prosecuted about 1720 for writing a pamphlet in which he denounced George I. as a usurper. He was tried at the Old Bailey, convicted, and sentenced to pay a fine of £500 to the king, to find sureties for an additional sum, to be imprisoned in Newgate for three years, and during that term to be twice whipped. He was also to be degraded and stripped of his gown by the common executioner. Howell asked indignantly of his judges, "Who will whip a clergyman?" "We pay no deference to your cloth," replied the court, "because you are a disgrace to it, and have no right to wear it." The validity of his ordination was also denied by the court, and as Howell continued to protest, the hangman was ordered to tear off his gown as he stood there at the bar. The public whipping was not inflicted, but Howell died soon afterwards in Newgate.

Next came Nathaniel Mist, who was sentenced in 1721 to stand in the pillory, to pay a fine, and suffer imprisonment for reflecting upon the action of George I. as regards the Protestants in the Palatinate. His paper, the 'Weekly Journal' or 'Saturday's Post,' was notoriously Jacobite in its views. Soon afterwards he came under the displeasure of the House of Commons for instituting comparisons between the times of the '15 rebellion and those which followed, and was committed to Newgate for uttering a "false, malicious, and scandalous libel." This interference by the House with Mist's publications in a matter which did not concern its privileges is characterized by Hallam as an extraordinary assumption of parliamentary power. Tom Paine, whose rationalist writings gained him much obloquy later on, was one of the next in point of time to feel the arm of the law. In 1724 he was convicted of three libels on the Government, fined £100, and imprisoned for a year. A clergyman, William Rowland, was put in the pillory in 1729 for

commenting too freely in print on two magistrates who had failed to convict and punish prisoners charged with unnatural crimes. Mr. Rowland was pilloried in his canonical habit, and preached all the time to the multitude, complaining of the injustice of his sentence, “whereupon the people, and amongst them were several women, made a collection for him.”

About 1730, newspapers were especially established for purposes of political party warfare, and each side libelled or prosecuted the other in turn. The ‘Craftsman’ about this date sprang into the first rank for wit and invective. Its editors were constantly in trouble; the statesmen who supported it had to defend their bantling with their swords. In 1738 the printer, Henry Haines, was sentenced to two years’ imprisonment for producing the paper. In 1759 Dr. Shebbeare was fined, put in the pillory, and imprisoned for three years, his offence being the publication of what was deemed a scandalous libel in his ‘Sixth Letter to the English People.’ Four years later, John Wilkes, M.P., started the ‘North Briton,’ a Liberal print, in opposition to Smollet’s ‘Briton,’ a Tory paper, which was subsidized and supported by Lord Bute, then in power. John Wilkes was no doubt assisted by Lord Temple and John Churchill the satirist. The ‘North Briton’ had been intended to assail Lord Bute’s government, but it was not until its forty-fifth number that the dash and boldness of its contributors attracted general attention. In this number a writer rashly accused the king of falsehood.^[17] The matter was at once taken up; proceedings were instituted against printer and publisher, who were arrested, as was also Wilkes. These arrests subsequently formed the subject of lengthy lawsuits; they were in the end declared illegal, and all three got heavy damages. Wilkes was, however, expelled from the House, by whose order the offending numbers of the ‘North Briton’ were burnt by the common hangman. But these measures did not extinguish the ‘North Briton,’ which was continued as far as the two hundred and seventeenth number, when Mr. William Bingley, a bookseller, who at that time owned it, was committed to Newgate, and kept there a couple of years for refusing to reply to interrogatories connected with an earlier number of the paper. Wilkes, who had fled to France to escape imprisonment, next fell under the displeasure of the House of Lords. The ‘London Evening Post,’ a paper which had already come into collision with the Commons for presuming to publish reports of debates, committed the seemingly venial offence of inserting a letter from Wilkes, in which he commented rather freely upon a peer of the

realm at that time British Ambassador in Paris. The House of Lords could not touch Wilkes, but they took proceedings against the printer for breach of privilege in presuming to mention the name of one of its members,^[18] and fined him £100. The precedent soon became popular, and in succeeding sessions printers were constantly fined whenever they mentioned, even by accident, the name of a peer.

Journalism was in these days an ill-used profession. The reign of George III. must always be remembered as a time when newspapers and those who wrote them were at the mercy of the people in power. Grant^[19] declares that the despotic and tyrannical treatment of the press during the several administrations under George III. had no parallel in English history. The executive was capriciously sensitive to criticism, and readily roused to extreme measures. No newspaper indeed was safe; the editors of Liberal prints, or their contributors, who touched on political subjects were at the mercy of the Attorney-General. Any morning's issue might be made the subject of a prosecution, and every independent writer on the wrong side went in daily dread of fine, the pillory, or committal to Newgate.^[20] Among the early records of the great organ which custom has long honoured with the title of the "leading journal," are several instances of the dangers journalists ran. The 'Daily Universal Register,' started by the first Mr. John Walter in 1785, became the 'Times' in 1788. On the 11th July, 1789, the publisher—at that time Mr. Walter himself—of the paper was tried and convicted of alleged libels on three royal dukes, York, Gloucester, and Cumberland, whose joy at the recovery of the king the 'Times' dared to characterize as "insincere." The sentence decreed and inflicted was a fine of £50, imprisonment in Newgate for one year, and exposure on the pillory at Charing Cross. A second prosecution followed, intended to protect, and if possible rehabilitate, the Prince of Wales, and Mr. Walter, having been brought from Newgate for the trial, was sentenced to a further fine of £100, and a like sum for a libel on the Duke of Clarence. Mr. Walter remained in Newgate for eighteen months, and was released in March 1791, having been pardoned at the instance of the Prince of Wales.

Nor was the law invoked in favour of our own princes alone. A few years later a foreign monarch obtained equal protection, and the editor, printer, and publisher of the 'Courier' were fined and imprisoned for stigmatizing the Czar of Russia as a tyrant among his own subjects, and ridiculous to the rest of Europe. The House of Peers, including the Bench of Bishops,

continued very sensitive. In 1799 the printer of the 'Cambridge Intelligence' was brought to the bar of the House, charged for reflecting on the speech of the Bishop of Llandaff concerning the union with Ireland. Lord Grenville moved that the printer should be fined £100 and committed to Newgate; Lord Holland protested, but it was justified by Lord Kenyon, and the motion was carried. Lord Kenyon did not spare the unfortunates arraigned before him for libel. One Thomas Spence, who published a pamphlet called 'Spence's Restorer of Society,' in which the abolition of private ownership of land was advocated, and its investment in parishes for the good of the public at large, was brought before Lord Kenyon, and sentenced by him to twelve months' imprisonment and a fine of £50. Another peer, Lord Ellenborough, who prosecuted Messrs. White and Hart for a libel in 1808, obtained a conviction against them, and a sentence of three years' imprisonment.

In 1810 the House of Commons distinguished itself by a prosecution which led to rather serious consequences. At a debate on the Walcheren expedition, a member, Mr. Yorke, had insisted from day to day upon the exclusion of strangers, and another, Mr. Windham, had inveighed violently against press reporting. Upon this a question was discussed at a debating society known as the "British Forum," as to whether Mr. Yorke's or Mr. Windham's conduct was the greater outrage on the public feeling. The decision was given against Mr. Yorke, and the result announced in a placard outside. This placard was constituted a breach of privilege, "comment upon the proceedings of the House being deemed a contravention of the Bill of Rights." A Mr. John Gale Jones confessing himself the author of the placard, he was forthwith committed to Newgate. Sir Francis Burdett took Jones' part, and published his protest, signed, in Cobbett's 'Weekly Register.' The House on this ordered the Sergeant-at-arms to arrest Sir Francis and take him to the Tower. Sir Francis resisted, and was carried off by force.^[21] A riot occurred *en route*, the crowd attacked the escort, and the troops fired, with fatal consequences, upon the crowd. Sir Francis appealed to the law courts, which in the end refused to take cognizance of the questions at issue, and he was released, returning home in triumph. Mr. John Gale Jones claimed to be tried, and refused to leave Newgate without it; but he was got out by a stratagem, loudly complaining that he had been illegally imprisoned, and illegally thrust out. Jones was sentenced in the autumn of the same year to twelve months' imprisonment in Coldbath

Fields Gaol. Another and a better known writer found himself in Newgate about this time. In 1810 William Cobbett was tried for animadverting too openly upon the indignity of subjecting English soldiers to corporal punishment, for which he was sentenced to two years' imprisonment in Newgate, and a fine of £1000. This was not his first prosecution, but it was by far the most serious. Shorter sentences of imprisonment were imposed on his printers and publishers, Messrs. Hansard, Budd, and Bagshaw.

Some other notable criminals found themselves in Newgate about this date. In 1809 it became the place of punishment for two Government officials who were convicted of embezzlement on a large scale. The first, Mr. Alexander Davison, was employed to purchase barrack-stores for the Government on commission. He was intrusted with this duty by the barrack-master general, as a person of extensive mercantile experience, to avoid the uncertainty of trusting to contractors. Mr. Davison was to receive a commission of 2½ per cent. Instead of buying in the best and cheapest markets, he himself became the seller, thus making a profit on the goods and receiving the commission as well; or, in the words of Mr. Justice Grose, Davison, when "receiving a stipend to check the frauds of others, and insure the best commodities at the cheapest rate, became the tradesman and seller of the article, and had thereby an interest to increase his own profit, and to commit that fraud it was his duty to prevent." Davison disgorged some £18,000 of his ill-won profits, and this was taken into consideration in his sentence, which was limited to imprisonment in Newgate for twenty-one months. The other delinquent was Mr. Valentine Jones, who had been appointed commissary-general and superintendent of forage and provisions in the West Indies in 1795. A large British force was at that time stationed in the West Indian Islands, which entailed vast disbursements from the public exchequer. The whole of this money passed through the hands of Mr. Jones. His career of fraud began directly he took over his duties. Mr. Higgins, a local merchant, came to him proposing to renew contracts for the supply of the troops, but Mr. Jones would only consent to their renewal on condition that he shared Mr. Higgins' profits. Higgins protested, but at length yielded. Within three years the enormous sum of £87,000 sterling was paid over to Jones as his share in this nefarious transaction. Mr. Jones was tried at the King's Bench and sentenced to three years' imprisonment in Newgate.

Soon afterwards a person of very high rank was committed to Newgate. This was the Marquis of Sligo, who was convicted of enticing British men-

of-war's men to desert, and sentenced to imprisonment, with a fine of £5000. Lord Sligo went to Malta soon after leaving College, and there hired a brig, the 'Pylades,' intending to make a yachting tour in the Grecian Archipelago. The admiral at Malta and other naval officers helped Lord Sligo to fit out the 'Pylades,' and he was welcomed on board the various king's ships. From one of these several trusty seamen were shortly afterwards missing. Their captain trusted to Lord Sligo's honour that he had not decoyed these men, and that he would not receive them; but at that moment the deserters were actually on board the 'Pylades,' having been enticed from the service by Lord Sligo's servants. The 'Pylades' then went on her cruise along the Mediterranean. Suspicion seems to have still rested on Lord Sligo, and after leaving Palermo the 'Pylades' was chased and brought to by H.M.S. 'Active.' A boat boarded the 'Pylades,' her crew was mustered and examined, but the deserters had been securely hidden in the after hold, and were not discovered. A little later Lord Sligo sailed for Patmos, where some of the crew landed and were left behind; among them were the men-of-war's-men, through whom the whole affair was brought to light. Lord Sligo was arrested on his return to England, and tried at the Old Bailey. The evidence was conclusive. In the course of the trial a letter was put in from Lord Sligo, to the effect that if the business was brought into court he should do his best to defend himself; if he did not succeed, he had an ample fortune, and could pay the fines. No money, however, could save him from incarceration, and in accordance with the sentence of Sir William Scott, who was supported on the bench by Lord Ellenborough and Mr. Baron Thompson, the Marquis of Sligo was sent to Newgate for four months.

CHAPTER II.

NEWGATE DOWN TO 1818.

Newgate still overcrowded—Some statistics—Description of interior—The various “sides” and wards—Their dimensions and uses—Debtors in Middlesex, generally paltry debts and colossal costs—Various debtors’ prisons in London described—The King’s Bench—The Fleet—The Marshalsea—The Compters, Ludgate, Giltspur Street, and Borough—Debtors in Newgate—Fees extorted—Garnish—Scanty food—Little bedding—Squalor and wretchedness prevail throughout—Constant quarrels and fighting—Discipline maintained only by prisoner wardsmen—Their tyranny and extortion—A new debtors’ prison indispensable—Building of Whitecross Street—The criminal side—Indiscriminate association of all classes—The middle yard greatly crowded with transports awaiting deportation, and with whom mere children were constantly mixed—Deterioration rapid—Mock courts for trials of new-comers who would not adopt the ways of the gaol—Case of a decent man completely ruined—Greater ease in the master felons’ side—Fees—The best accommodation was in the state side, and open to all who could pay—High fees charged—Cobbett in state side, and the Marquis of Sligo—The press yard—Recklessness of the condemned—Cashman—The condemned cells—Summary of glaring defects in Newgate—Scanty diet—Irons—Visitors admitted in crowds, including low females—Crimes constantly being hatched in Newgate—The Corporation roused to reform Newgate—Appoint committee to examine other gaols—Its report, and many useful recommendations—Few are carried out.

UNDER the conditions referred to in the previous chapter, with criminals and misdemeanants of all shades crowding perpetually into its narrow limits, the latter state of Newgate was worse than the first. The new gaol fell as far short of the demands made on it as did the old. The prison population fluctuated a great deal, but it was almost always in excess of the accommodation available, and there were times when the place was full to overflowing. Neild^[22] gives some figures which well illustrate this. On the 14th June, 1800, there were 199 debtors and 289 felons in the prison. On the 27th April, in the following year, these numbers had risen to 275 and 375 respectively, or 650 in all. For two more years these high figures were steadily maintained, and in 1803 the total rose to 710. After that they fell as steadily, till, 1808, the lowest point was touched of 197 debtors and 182 felons, or 379 in all. The numbers soon increased, however, and by 1811 had again risen to 629; and Mr. Neild was told that there had been at one time 300 debtors and 900 criminals in Newgate, or 1200 prisoners in all. Previous to that date there had been 700 or 800 frequently, and once, in Mr. Akerman’s time, 1000. Trustworthy evidence is forthcoming to the effect that these high figures were constantly maintained for many months at a

time. The inadequacy of the gaol was noticed and reported upon again and again by the grand juries of the city of London, who seldom let a session go by without visiting Newgate. In 1813 the grand jury made a special presentment to the Court of Common Council, pointing out that on the debtors' side, which was intended for only 100, no less than 340 were crowded, to the great inconvenience and danger of the inmates. On the female side matters were much worse; "the apartments set apart for them, being built to accommodate 60 persons, now contain about 120." Returns laid before the House of Commons showed that 6439 persons had been committed to Newgate in the three years between 1813 and 1816, and this number did not include the debtors, a numerous class, who were still committed to Newgate pending the completion of the White Cross Street prison.

In order to realize the evils entailed by incarceration in Newgate in these days, it is necessary to give some account of its interior as it was occupied and appropriated in 1810. Full details of the arrangements are to be found in Mr. Neild's 'State of Prisons in England, Scotland, and Wales,' published in 1812. The gaol at that date was divided into eight separate and more or less distinct departments, each of which had its own wards and yard. These were —

- i. The male debtors' side.
- ii. The female debtors' side.
- iii. The chapel yard.
- iv. The middle yard.
- v. The master felons' side.
- vi. The female felons' side.
- vii. The state side.
- viii. The press yard.

i. The male debtors' side consisted of a yard forty-nine feet by thirty-one, leading to thirteen wards on various floors, and a day room. Of these wards, three were appropriated to the "cabin side," so called because they each contained four small rooms or "cabins" seven feet square, intended to accommodate a couple of prisoners apiece, but often much more crowded. [23] Two other wards were appropriated to the master's side debtors; they were each twenty-three feet by fourteen and a half, and supposed to

accommodate twenty persons. The eight remaining wards were for the common side debtors, long narrow rooms—one thirty-six feet, six twenty-three feet, and the eighth eighteen, the whole about fifteen feet wide. The various wards were all about eleven feet in height, and were occupied as a rule by ten to fifteen people when the prison was not crowded, but double the number was occasionally placed in them. The day room was fitted with benches and settles after the manner of the tap in a public-house.

ii. The female debtors' side consisted of a court-yard forty-nine by sixteen feet, leading to two wards, one of which was thirty-six feet by fifteen, and the other eighteen by fifteen; and they nominally held twenty-two persons. A high wall fifteen feet in height divided the females' court-yard from the men's.

iii. The chapel yard was about forty-three feet by twenty-five. It had been for some time devoted principally to felons of the worst types, those who were the oldest offenders, sentenced to transportation, and who had narrowly escaped the penalty of death. This arrangement was, however, modified after 1811, and the chapel yard was allotted to misdemeanants and prisoners awaiting trial. The wards in this part were five in number, all in dimensions twenty feet by fifteen, with a sixth ward fifteen feet square. These wards were all fitted with barrack-beds, but no bedding was supplied. The chapel yard led to the chapel, and on the staircase were two rooms frequently set apart for the king's witnesses, those who had turned king's evidence, whose safety might have been imperilled had they been lodged with the men against whom they had informed. But these king's witnesses were also put at times into the press yard among the capital convicts, seemingly a very dangerous proceeding, or they lodged with the gatesmen, the prisoner officers who had charge of the inner gates.

iv. The middle yard was at first given up to the least heinous offenders. After 1812 it changed functions with the chapel yard. It was fifty feet by twenty-five, and had five wards each thirty-eight by fifteen. At one end of the yard was an arcade, directly under the chapel, in which there were three cells, used either for the confinement of disorderly and refractory prisoners, or female convicts ordered for execution.

v. The master felons' side consisted of a yard the same size as the preceding, appropriated nominally to the most decent and better-behaved prisoners, but really kept for the few who had funds sufficient to gain them

admission to these more comfortable quarters. Here were also lodged the gatesmen, the prisoners who had charge of the inner gates, and who were intrusted with the duty of escorting visitors from the gates to the various wards their friends occupied.

vi. The state side was the part stolen from the female felons' side. It was large and comparatively commodious, being maintained on a better footing than any other part of the prison. The inmates were privileged, either by antecedents or the fortunate possession of sufficient funds to pay the charges of the place. Neild takes it for granted that the former rather than the latter prevailed in the selection, and tells us that in the state side "such prisoners were safely associated whose manners and conduct evince a more liberal style of education, and who are therefore lodged apart from all other districts of the gaol." The state side contained twelve good-sized rooms, from twenty-one by eighteen feet to fifteen feet square, which were furnished with bedsteads and bedding.

vii. The press yard was that part set aside for the condemned. Its name and its situation were the same as those of the old place of carrying out the terrible sentence inflicted on accused persons who stood mute.^[24] The long narrow yard still remained as we saw it in Jacobite times, and beyond it was now a day room for the capital convicts or those awaiting execution. Beyond the press yard were three stories, condemned cells, fifteen in all, with vaulted ceilings nine feet high to the crown of the arch. The ground floor cells were nine feet by six; those on the first floor were rather larger on account of a set-off in the wall; and the uppermost were the largest, for the same reason. Security was provided for in these condemned cells by lining the substantial stone walls with planks studded with broad-headed nails; they were lighted by a double-grated window two feet nine inches by fourteen inches; and in the doors, which were four inches thick, a circular aperture had been let in to give ventilation and secure a free current of air. In each cell there was a barrack bedstead on the floor without bedding.

viii. The female felons were deprived of part of the space which the architect had intended for them. More than half their quadrangle had been partitioned off for another purpose, and what remained was divided into a master's and a common side for female felons. The two yards were adjoining, that for the common side much the largest. There were nine wards in all on the female side, one of them in the attic, with four casements and two fireplaces, being allotted for a female infirmary, and the rest being

provided with barrack beds, and in dimensions varying from thirty feet by fifteen to fifteen feet by ten.

The eight courts above enumerated were well supplied with water; they had dust-bins, sewers, and so forth, “properly disposed,”^[25] and the city scavenger paid periodical visits to the prison. The prisoners had few comforts, beyond the occasional use of a bath at some distance, situated in the press yard, to which access was granted rarely and as a great favour. But they were allowed the luxury of drink—if they could pay for it. A recent reform had closed the tap kept by the gaoler within the precincts, but there was still a “convenient room” which served, and “near it a grating through which the debtors receive their beer from the neighbouring public-houses. The felons’ side has a similar accommodation, and this mode of introducing the beverage is adopted because no publican as such can be permitted to enter the interior of this prison.”^[26] The tap-room and bar were just behind the felons’ entrance lodge, and beyond it was a room called the “wine room,” because formerly used for the sale of wine, but in which latterly a copper had been fixed for the cooking of provisions sent in by charitable persons. “On the top of the gaol,” continues Neild, “are a watch-house and a sentry-box, where two or more guards, with dogs and firearms, watch all night. Adjoining the felons’ side lodge is the keeper’s office, where the prison books are kept, and his clerk, called the clerk of the papers, attends daily.”^[27]

Having thus briefly described the plan and appropriation of the prison, I propose to deal now with the general condition of the inmates, and the manner of their life. Of these the debtors, male and female, formed a large proportion. The frequency and extent of processes against debtors seventy or eighty years ago will appear almost incredible in an age when insolvent acts and bankruptcy courts do so much to relieve the impecunious, and imprisonment for debt has almost entirely disappeared.^[28] But at the time of which I am writing the laws were relentless against all who failed to meet their engagements. The number of processes against debtors annually was extraordinary. Neild gives, on the authority of Mr. Burchell, the under sheriff of Middlesex, a table showing the figures for the year ending Michaelmas 1802. In that period upwards of 200,000 writs had been issued for the arrests of debtors in the kingdom, for sums varying from fourpence to £500 and upwards. Fifteen thousand of these were issued in Middlesex alone, which at that time was reckoned as only a fifteenth of Great Britain.

The number of arrests actually made was 114,300 for the kingdom, and 7020 for Middlesex. Barely half of these gave bail bonds on arrests, and the remainder went to prison. Quite half of the foregoing writs and arrests applied to sums under £30. Neild also says that in 1793, 5719 writs and executions for debts between £10 and £20 were issued in Middlesex, and the aggregate amount of debts sued for was £81,791. He also makes the curious calculation that the costs of these actions if undefended would have amounted to £68,728, and if defended, £285,950; in other words, that to recover eighty odd thousand pounds, three times the amount would be expended.

An elaborate machinery planned for the protection of the trader, and altogether on his side, had long existed for the recovery of debts. Alfred the Great established the Court Baron, the Hundred Court, and the County Court, which among other matters entertained pleas for debt. The County Court was the sheriff's, who sat there surrounded by the bishop and the magnates of the county; but as time passed, difficulties and delays in obtaining judgment led to the removal of causes to the great Court of King's Bench, and the disuse of the inferior courts. So much inconvenience ensued, that in 1518 the Corporation obtained from Parliament an act empowering two aldermen and four common councilmen to hold Courts of Requests, or Courts of Conscience, to hear and determine all causes of debt under 40s. arising within the city. These courts were extended two centuries later to several large provincial towns, and all were in full activity when Neild wrote, and indeed supplied the bulk of the poor debtors committed to prison. These courts were open to many and grave objections. The commissioners who presided were "little otherwise than self-elected,^[29] and when once appointed continued to serve *sine die*;"^[30] they were generally near in rank to the parties whose causes they decided. Often a commissioner had to leave the bench because he was himself a party to the suit that was *sub judice*. The activity as well as the futility of these courts may be estimated from the statement given by Neild, that 1312 debtors were committed by them to Newgate between 1797 and 1808, and that no more than 197 creditors recovered debts and costs. The latter indeed hung like millstones round the neck of the unhappy insolvent wretches who found themselves in limbo. Costs were the gallons of sack to the pennyworth of debt. Neild found at his visit to Newgate in 1810, fourteen men and women who had lain there ten, eleven, and thirteen years for debts of a few

shillings, weighted by treble the amount of costs. Thus, amongst others, Thomas Blackburn had been committed on October 15th for a debt of 1s. 5d., for which the costs were 6s. 10d. Thomas Dobson, on 22nd August, 1799, for 1s., with costs of 8s. 10d.; and Susannah Evans, in October the same year, for 2s., with costs of 6s. 8d. Other cases are recorded elsewhere, as at the Giltspur Street Compter, where in 1805 Mr. Neild found a man named William Grant detained for 1s. 9d., with costs of 5s., and John Lancaster for 1s. 8d., with costs of 7s. 6d. “These surely, I thought,” says Mr. Neild, “were bad enough! But it was not so.” He recites another most outrageous and extraordinary case, in which one John Bird, a market porter, was arrested and committed at the suit of a publican for the paltry sum of 4d., with costs of 7s. 6d. Bird was, however, discharged within three days by a subscription raised among his fellow-prisoners.

Mr. Buxton, in his ‘Inquiry into the System of Prison Discipline,’ quotes a case which came within his own knowledge of a boy sent to prison for non-payment of one penny. The lad in question was found in Coldbath Fields prison, to which he had been sent for a month in default of paying a fine of forty shillings. He had been in the employ of a corn-chandler at Islington, and went into London with his master’s cart and horse. There was in the City Road a temporary bar, with a collector of tolls who was sometimes on the spot and sometimes not. The boy declared he saw no one, and accordingly passed through without paying the toll of a penny. For this he was summoned before a magistrate, and sentenced as already stated. The lad was proved to be of good character and the son of respectable parents. Mr. Buxton’s friends at once paid the forty shillings, and the boy was released.

The costs in heavier debts always doubled the sum; if the arrest was made in the country it trebled it. Neild gives a list of the various items charged upon a debt of £10, which included instructions to sue, affidavit of debt, drawing *præcipe* (£1 5s.), *capias*, fee to officer on arrest, affidavit of service, and many more, amounting in all to twenty-seven, and costing £11 15s. 8d., within ten days.^[31]

Before dealing with the debtors in Newgate, I may refer incidentally to those in other London prisons, for Newgate was not the only place of durance for these unfortunate people. There were also the King’s Bench, the Fleet, and the Marshalsea prisons especially devoted to them, whilst Ludgate, the Giltspur Street, and Borough Compters also received them—

the latter two being also a prison for felons and vagrants arrested within certain limits.

The King's Bench was a national prison, in which were confined all debtors arrested for debt or for contempt of the court of the King's Bench. The population generally amounted to from five hundred to seven hundred, the accommodation being calculated for two hundred. Every new-comer was entitled to a "chummage" ticket, but did not always get it, being often obliged to pay a high rent for a bed at the coffee-house or in some room which was vacated by its regular occupant. No fixed rates or rules governed the hiring out of rooms or parts of a room, and all sorts of imposition was practised. The best, or at least the most influential prisoners, got lodging in the State House, which contained "eight large handsome rooms." Besides those actually resident within the walls, another two hundred more or less took advantage of "the rules," and lived outside within a circumference of two miles and a half. In these cases security was given for the amount of the debt, and a heavy fee at the rate of £8 per £100, with £4 for every additional hundred. Besides these, a number had the privilege of a "run on the key," which allowed a prisoner to go into the rules for the day. The foregoing rentals and payments for privileges, together with fees exacted on commitment and discharge, went to the marshal or keeper of the prison, whose net annual income thus entirely derived from the impecunious amounted to between three and four thousand pounds. The office of marshal had been hereditary, but in the 27th Geo. II. the right of presentation was bought by the Crown for £10,500. The marshal was supposed to be resident either within the prison or the rules. He seems to have felt no responsibility as to the welfare or comfort of those in charge, and out of whom he made all his money. The prison was always in "the most filthy state imaginable."^[32] The half or wholly starved prisoners fished for alms or food at the gratings. When they were sick no more notice was taken of them than of a dog. A man dying of liver complaint lay on the cold stones without a bed or food to eat. Dissolute habits prevailed on all sides; drunkenness was universal, gambling perpetual. The yards were taken up with rackets and five courts, and here and there were "bumble puppy grounds," a game in which the players rolled iron balls into holes marked with numbers. How to make most profit out of the wretched denizens of the gaol was the marshal's only care. He got a rent for the coffee-house and the bake-house; the keeper of the large tap-room called the Brace, because it was once kept

by two brothers named Partridge, also paid him toll. The sale of spirits was forbidden, but gin could always be had at the whistling shops, where it was known as Moonshine, Sky Blue, Mexico, and was consumed at the rate of a hogshead per week.

The Fleet, which stood in Farringdon Street, was a prison for debtors and persons committed for contempt by the courts of Chancery, Exchequer, and Common Pleas. It was so used for the date of the abolition of the Star Chamber in the 16th Charles I. The shameful malpractices of Bambridge, the warden of the Fleet at the commencement of the eighteenth century, are too well known to need more than a passing reference. A committee of the House of Commons investigated the charges against Bambridge, who was proved to have connived at the escape of some debtors, and to have been guilty of extortion to others. One Sir William Rich, Bart., he had loaded with heavy irons. In consequence of these disclosures, both Bambridge and Huggin, his predecessor in the office, were committed to Newgate, and many reforms instituted. But the condition of the prison and its inmates remained unsatisfactory to the last. It contained generally from six to seven hundred inmates,^[33] while another hundred more or less resided in the rules outside. The principle of “chummage” prevailed as in the King’s Bench, but a number of rooms, fifteen more or less, were reserved for poor debtors under the name of Bartholomew Fair. The rentals of rooms and fees went to the warden, whose income was £2372. The same evils of overcrowding, uncleanness, want of medical attendance, absence or neglect of divine service, were present as in the King’s Bench, but in an exaggerated form. The Committee on Gaols^[34] reported that “although the house of the warden looked into the court, and the turnkeys slept in the prison, yet scenes of riot, drunkenness, and disorder were most prevalent.” The state of morals was disgraceful. Any woman obtained admission if sober, and if she got drunk she was not turned out. There was no distinct place for the female debtors, who lived in the same galleries as the men. Disturbances were frequent, owing to the riotous conduct of intoxicated women. Twice a week there was a wine and beer club held at night, which lasted till two or three in the morning. In the yard behind the prison were places set apart for skittles, fives, and tennis, which strangers frequented as any other place of public amusement.

Matters were rather better at the Marshalsea. This very ancient prison, which stood in the High Street, Southwark, was used for debtors arrested

for the lowest sums within twelve miles of the palace of Whitehall; also for prisoners committed by the Admiralty Court. At one time the Marshalsea was the receptacle of pirates, but none were committed to it after 1789. The court of the Marshalsea was instituted by Charles I. in the sixth year of his reign, to be held before the steward of the royal household, the knight marshal, and the steward of the court, with jurisdiction to hold pleas in all actions within the prescribed limits. The court was chiefly used for the recovery of small debts under £10, but its business was much reduced by the extension of the Courts of Conscience. The prison was a nest of abuses, like its neighbour the King's Bench, and came under the strong animadversion of the Gaol Committee of 1729. As the business of the Marshalsea Court declined, the numbers in its prison diminished. The population, as reported by the committee in 1814, averaged about sixty, and the prison, although wives and children resided within the walls, was not overcrowded. Their conduct too was orderly on the whole. Drunkenness was not common, chiefly because liquor was not to be had freely, although the tapster paid a rent of two guineas a week for permission to sell it. The inmates, who euphemistically styled themselves "collegians," were governed by rules which they themselves had framed, and under which subscriptions were levied and fines imposed for conduct disapproved of by the "college." A court of the collegians was held every Monday to manage its affairs, at which all prisoners were required to attend. A committee of collegians was elected to act as the executive, also a secretary or accountant to receive monies and keep books, and a master of the ale-room, who kept this the scene of their revels clean, and saw that boiling water was provided for grog. Bad language, quarrelling, throwing water over one another was forbidden on pain of fine and being sent to Coventry; but the prevailing moral tone may be guessed from the penalty inflicted upon persons singing obscene songs *before* nine p.m. Yet the public opinion of the whole body seems to have checked dissipation. The poorer prisoners were not in abject want, as in other prisons, owing to many charitable gifts and bequests, which included annual donations from the Archbishop of Canterbury, the Lord Steward of the Household, the steward and officers of the Marshalsea Court, and others. Legacies had also been left to free a certain number of debtors, notably that of £100 per annum left by a Mr. Henry Allnutt, who was long a prisoner in the Marshalsea, and came into a fortune while there. His bequest, which was charged upon his manor at Goring, Oxon, and

hence called the Oxford Charity, was applied only to the release of poor debtors whom £4 each could free. The supreme control of the Marshalsea was vested in the marshal of the royal household; but although he drew a salary of £500 a year, he did nothing beyond visiting the prison occasionally, and left the administration to the deputy marshal. The latter's salary, with fees, the rent of the tap and of the chandler's shop, amounted to about £600 a year.

The compters of Ludgate, Giltspur Street, and the Borough were discontinued as debtors' prisons (as was Newgate also) on the opening of Whitecross prison for debtors in 1815. Ludgate to the last was the debtors' prison for freemen of the city of London, clergymen, proctors, attorneys, and persons specially selected by the Corporation. At one time the Ludgate debtors, accompanied by the keeper, went outside and beyond the prison to call on their creditors, and try to arrange their debts, but this practice was discontinued. There were fifteen rooms of various sizes, and as the numbers imprisoned rarely exceeded five-and-twenty, the place was never overcrowded, while the funds of several bequests and charities were applied in adding to the material comfort of the prisoners. The Giltspur Street Compter received sheriffs' debtors, also felons, vagrants, and night charges. It was generally crowded, as debtors who would have gone to the Poultry Compter were sent to Giltspur Street when the former was condemned as unfit to receive prisoners.^[35] The demands for fees were excessive in Giltspur Street. Those who could not pay were thrown into the wards with the night charges, and denied admission to the "charity wards," which partook of all the benefits of bequests and donations to poor debtors. The Borough Compter was in a disgraceful state to the last. The men's ward had an earth, or rather a mud, floor, and was so unfit to sleep on that it had not been used for many years, so that the men and women associated together indiscriminately. The rooms had no fireplaces, so it mattered little that no coals were allowed. There were no beds or bedding, no straw even. In one room Mr. Neild found a woman ill of a flux shut up with three men; the latter raised eighteenpence among them to pay for a truss of straw for the poor woman to lie on. Neild found the prisoners in the Borough Compter ragged, starving, and dirty.

I come now to the debtors in Newgate. The quarters they occupied were divided, as I have said,^[36] into three principal divisions—the master's side, the cabin side, and the common side. Payment of a fee of 3s. gained the

debtor admission to the two first named; those who could pay nothing went, as a matter of course, to the common side; a further fee was, however, demanded from the new-comer before he was made free of either the master's or the cabin side. This was the reprehensible claim for "garnish," which had already been abolished in all well-conducted prisons, but which still was demanded in Newgate. Garnish on the cabin side was a guinea at entrance for coals, candles, brooms, &c., and a gallon of beer on discharge; on the master's side it was thirteen and fourpence, and a gallon of beer on entrance, although Mr. Newman, in his evidence in 1814, said it was more, and gave the garnish for the common side at that sum, which is five shillings more than Mr. Neild says was extorted on the common side. Numerous tyrannies were practised on all who would not and could not pay the garnish. They were made to wash and swab the ward, or they were shut out from the ward fireplace, and forbidden to pass a chalked line drawn on the floor, and so were unable either to warm themselves or to cook their food. Besides these fees, legitimate and illegitimate, there were others which must be paid before release. The sheriff demanded 4s. 6d. for his liberate, the gaoler 6s. 10d. more, and the turnkey 2s.; and thus when the debtor's debt had been actually paid, or when he had abandoned his property to the creditors, and, almost destitute, looked forward to his liberty, he was still delayed until he had paid a new debt arising "only out of a satisfaction of all his former debts." The fees were not always extorted, it is true; nor was non-payment made a pretext for further imprisonment, thanks to the humanity of the gaoler, or the funds provided by various charities.

There was this much honest forbearance in Newgate in these days, that debtors who could afford the cabin and master's side were not permitted to share in the prison charities. These were lumped together into a general fund, and a calculation made as to the amount that might be expended per week from the whole sum, so that the latter might last out the year. It generally ran to about six pounds per week. The money, which at one time had been distributed quarterly, and all went in drink, was after 1807, through the exertions of the keeper^[37] of the gaol, spent in the purchase of necessaries. But this weekly pittance did not go far when the debtors' side was crowded, as it often was; notably as when numbers filled Newgate in anticipation of Lord Redesdale's bill for insolvent debtors, and there were as many as three hundred and fifty prisoners in at one time. The city also allowed the poor debtors fourteen ounces of bread daily, and their share of

eight stone of meat, an allowance which never varied, issued once a week, and divided as far as it would go—a very precarious and uncertain ration. The bread was issued every alternate day; and while some prisoners often ate their whole allowance at once, others who arrived just after the time of distribution were often forty-eight hours without food. The latter might also be six days without meat. Share in the weekly allowance of meat might also be denied to debtors who had not paid “garnish,” as well as in the weekly grant from the charitable fund. Hence starvation stared many in the face,^[38] unless friends from outside came to their assistance, or the keeper made them a special grant of 6*d.* per diem out of the common stock; or the sixpenny allowance was claimed for the creditors, which seldom happened, owing to the expense the process entailed. The poor debtors were not supplied with beds. Those who could pay the price might hire them from each other, or from persons who made a trade of it, or they might bring their beds with them into the prison. Failing any of these methods, seeing that straw was forbidden for fear of fire, they had to be satisfied with a couple of the rugs provided by the city, the supply of which was, however, limited, and there were not always enough to give bedding to all. The stock was diminished by theft; female visitors carried them out of the prisons, or the debtors destroyed them when the weather was warm, and they were not in great demand, in order to convert them into mop-heads or cleaning-rags. Sometimes rugs were urgently required and not forthcoming; a severe winter set in, the new stock had not been supplied by the contractors, and the poor debtors perished of cold. Again, there was no regular allowance of fuel. Coals were purchased out of the garnish money and the charitable fund; so were candles, salt, pepper, mops and brooms. But the latter could have been of little service. Dirt prevailed everywhere; indeed the place, with its oak floors caulked with pitch, and smoked ceilings, could not be made even to look clean while there was no obligation of personal cleanliness on individuals, who often came into the prison in filthy rags. Only now and again, in extreme cases, an unusually nasty companion was stripped, haled to the pump, and left under it in a state of nature until he was washed clean.

The squalor and uncleanness of the debtors’ side was intensified by constant overcrowding. Prisoners were committed to it quite without reference to its capacity. No remonstrance was attended to, no steps taken to reduce the number of committals, and the governor was obliged to utilize

the chapel as a day and night room. Besides this, although the families of debtors were no longer permitted to live with them inside the gaol, hundreds of women and children came in every morning to spend the day there, and there was no limitation whatever to the numbers of visitors admitted to the debtors' side. Friends arrived about nine a.m., and went out at nine p.m., when as many as two hundred visitors have been observed leaving the debtors' yards at one time. The day passed in revelry and drunkenness. Although spirituous liquors were forbidden, wine and beer might be had in any quantity, the only limitation being that not more than one bottle of wine or one quart of beer could be issued at one time. No account was taken of the amount of liquors admitted in one day, and debtors might practically have as much as they liked, if they could only pay for it. No attempt was made to check drunkenness, beyond the penalty of shutting out friends from any ward in which a prisoner exceeded. Quarrelling among the debtors was not unfrequent. Blows were struck, and fights often ensued. For this and other acts of misconduct there was the discipline of the refractory ward, or "strong room" on the debtors' side. Bad cases were removed to a cell on the felons' side, and here they were locked in solitary confinement for three days at a time.

Order throughout the debtors' side was preserved and discipline maintained by a system open to grave abuses, and which had the prescription of long usage, and which was never wholly rooted out for many years to come. This was the pernicious plan of governing by prisoners, or of setting a favoured few in authority over the many. The head of the debtors' prison was a prisoner called the steward, who was chosen by the whole body from six whom the keeper nominated. This steward was practically supreme. All the allowances of food passed through his hands; he had the control of the poor-box for chance charities, he collected the garnish money, and distributed the weekly grant from the prison charitable fund. In the latter duties he was, however, supervised by three auditors, freely chosen by the prisoners among themselves. The auditors were paid a shilling each for their services each time the poor-box was opened. The steward was also remunerated for his trouble. He had a double allowance of bread, deducted, of course, from the already too limited portion of the rest, and no doubt made the meat also pay toll. Under the steward there were captains of wards, chosen in the same way, and performing analogous duties. These subordinate chiefs were also rewarded out of the scanty prison

rations. The same system was extended to the criminal side, and cases were on record of the place of wardsman being sold for considerable sums. So valuable were they deemed, that as much as fifty guineas was offered to the keeper for the post.

Enough has been said, probably, to prove that there was room for improvement in the condition and treatment of debtors in the prisons of the city of London. This gradually was forced upon the consciousness of the Corporation, and about 1812 application was made to Parliament for funds to build a new debtors' prison. Authority was given to raise money on the Orphans' Fund to the extent of £90,000. A site was purchased between Red Lion and White Cross streets, and a new prison planned, which would accommodate the inmates of Newgate and of the three compters, Ludgate, Giltspur Street, and the Poultry, or about four hundred and seventy-six in all. The evils of association for these debtors were perpetuated, although the plan provided for the separation of the various contingents committed to it. There was no lack of air and light for the new gaol, and several exercising yards. The completion of this very necessary building was, however, much delayed for want of funds, and it was not ready to relieve Newgate till late in 1815. The reforms which were to be attempted in that prison, more particularly as regarded the classification of prisoners, and which were dependent on the space to be gained by the removal of the debtors, could not be carried out till then. It is to be feared that long after the opening of White Cross Street prison, Newgate continued to be a reproach to those responsible for its management.

I pass now to the criminal side of Newgate, which consisted of the six quarters or yards already enumerated and described.^[39] The inmates of this part, as distinguished from the debtors, were comprised in four classes:— (1) those awaiting trial; (2) persons under sentence of imprisonment for a fixed period, or until they shall have paid certain fines; (3) transports awaiting removal to the colonies, and (4) capital convicts, condemned to death and awaiting execution. At one time the whole of these different categories were thrown together pell-mell, young and old, the untried with the convicted. An imperfect attempt at classification was, however, made in 1812, and a yard was as far as possible set apart for the untried, or class (1), with whom, under the imperious demand for accommodation, were also associated the misdemeanants, or class (2). This was the chapel yard, with its five wards, which were calculated to hold seventy prisoners, but often

held many more. A further sub-classification was attempted by separating at night those charged with misdemeanours from those charged with felony, but all mingled freely during the day in the yard. The sleeping accommodation in the chapel-yard wards, and indeed throughout the prison, consisted of a barrack bed, which was a wooden flooring on a slightly inclined plane, with a beam running across the top to serve as a pillow. No beds were issued, only two rugs per prisoner. When each sleeper had the full lateral space allotted to him, it amounted to one foot and a half on the barrack bed; but when the ward was obliged to accommodate double the ordinary number, as was frequently the case, the sleepers covered the entire floor, with the exception of a passage in the middle. All the misdemeanants, whatever their offence, were lodged in this chapel ward. As many various and, according to our ideas, heinous crimes came under this head, in the then existing state of the law, the man guilty of a common assault found himself side by side with the fraudulent, or others who had attempted abominable crimes. In this heterogeneous society were also thrown the unfortunate journalists to whom I have already referred,^[40] and on whom imprisonment in Newgate was frequently adjudged for so-called libels, or too out-spoken comments in print. It was particularly recommended by the Committee on Gaols in 1814 that some other and less mixed prison should be used for the confinement of persons convicted of libels. But this suggestion was ignored. Indeed the partial classification attempted seems to have been abandoned within a year or two. The Hon. H. G. Bennet, who visited Newgate in 1817, saw in one yard, in a total of seventy-two prisoners, thirty-five tried and thirty-seven untried. Of the former, three were transports for life, four for fourteen years, and three of them persons sentenced to fines or short imprisonment—one for little more than a month. Two of the untried were for murder, and several for house-breaking and highway robbery. Nor were the misdemeanants and bail prisoners any longer separated from those whose crimes were of a more serious character. Mr. Bennet refers to a gentleman confined for want of bail, who occupied a room with five others—two committed by the Bankruptcy Commissioner, one for perjury, and two transports. Persons convicted of publishing libels were still immured in the same rooms with transports and felons.

The middle yard, as far as its limits would permit, was appropriated to felons and transports. The wards here were generally very crowded. Each ward was calculated to hold twenty-four, allowing each individual one foot

and a half; “a common-sized man,” says the keeper, Mr. Newman, “can turn in nineteen inches.”^[41] These twenty-four could just sleep on the barrack bed; when the number was higher, and it often rose to forty, the surplus had to sleep on the floor. The crowding was in consequence of the delay in removing transports. These often remained in Newgate for six months, sometimes a year, in some cases longer; in one, for seven years—that of a man sentenced to death, for whom great interest had been made, but whom it was not thought right to pardon. Occasionally the transports made themselves so useful in the gaol that they were passed over. Mr. Newman admitted that he had petitioned that certain “trusty men” might be left in the gaol. Constantly associated with these convicted felons were numbers of juveniles, infants of tender years. There were frequently in the middle yard seven or eight children, the youngest barely nine, the oldest only twelve or thirteen, exposed to all the contaminating influences of the place. Mr. Bennet mentions also the case of young men of better stamp, clerks in city offices, and youths of good parentage, “in this dreadful situation,” who had been rescued from the hulks through the kindness and attention of the Secretary of State. “Yet they had been long enough,” he goes on to say, “in the prison associated with the lowest and vilest criminals, with convicts of all ages and characters, to render it next to impossible but that, with the obliteration of all sense of self-respect, the inevitable consequence of such a situation, their morals must have been destroyed; and though distress or the seduction of others might have led to the commission of this their first offence, yet the society they were driven to live in, the language they daily heard, and the lessons they were taught in this academy, must have had a tendency to turn them into the world hardened and accomplished in the ways of vice and crime.”

Mr. Buxton, in the work already quoted, instances another grievous case of the horrors of indiscriminate association in Newgate. It was that of a person “who practised in the law, and who was connected by marriage with some very respectable families. Having been committed to Clerkenwell, he was sent on to Newgate in a coach, handcuffed to a noted house-breaker, who was afterwards cast for death. The first night in Newgate, and for the subsequent fortnight, he slept in the same bed with a highwayman on one side, and a man charged with murder on the other. Spirits were freely introduced, and although he at first abstained, he found he must adopt the manners of his companions, or that his life would be in danger. They

viewed him with some suspicion, as one of whom they knew nothing. He was in consequence put out of the protection of their internal law.” Their code was a subject of some curiosity. When any prisoner committed an offence against the community or against an individual, he was tried by a court in the gaol. A prisoner, generally the oldest and most dexterous thief, was appointed judge, and a towel tied in knots was hung on each side in imitation of a wig. The judge sat in proper form; he was punctiliously styled “my lord.” A jury having been selected and duly sworn, the culprit was then arraigned. Justice, however, was not administered with absolute integrity. A bribe to the judge was certain to secure acquittal, and the neglect of the formality was as certainly followed by condemnation. Various punishments were inflicted, the heaviest of which was standing in the pillory. This was carried out by putting the criminal’s head through the legs of a chair, and stretching out his arms and tying them to the legs. The culprit was then compelled to carry the chair about with him. But all punishments might readily be commuted into a fine to be spent in gin for judge and jury.

The prisoner mentioned above was continually persecuted by trials of this kind. The most trifling acts were magnified into offences. He was charged with moving something which should not be touched, with leaving a door open, or coughing maliciously to the disturbance of his companions. The evidence was invariably sufficient to convict, and the judge never hesitated to inflict the heaviest penalties. The unfortunate man was compelled at length to adopt the habits of his associates; “by insensible degrees he began to lose his repugnance to their society, caught their flash terms and sung their songs, was admitted to their revels, and acquired, in place of habits of perfect sobriety, a taste for spirits.” His wife visited him in Newgate, and wrote a pitiable account of the state in which she found her husband. He was an inmate of the same ward with others of the most dreadful sort, “whose language and manners, whose female associates of the most abandoned description, and the scenes consequent with such lost wretches, prevented me from going inside but seldom, and I used to communicate with him through the bars from the passage.” One day he was too ill to come down and meet her. She went up to the ward and found him lying down, “pale as death, very ill, and in a dreadfully dirty state, the wretches making game of him, and enjoying my distress; and I learned he had been up with the others the whole night. Though they could not force him to gamble, he was compelled to drink, and I was obliged afterwards to

let him have five shillings to pay his share, otherwise he would have been stripped of his clothes.”

Felons who could pay the price were permitted, irrespective of their character or offences, to purchase the greater ease and comfort of the master’s side. The entrance fee was at least 13s. 6d. a head, with half-a-crown a week more for bed and bedding, the wards being furnished with barrack bedsteads, upon which each prisoner had the regulation allowance of sleeping room, or about a foot and a half laterally. These fees were in reality a substantial contribution towards the expenses of the gaol; without them the keeper declared that he could not pay the salaries of turnkeys and servants, nor keep the prison going at all. Besides the gaol fees, there was garnish of half-a-guinea, collected by the steward, and spent in providing coals, candles, plates, knives, and forks; while all the occupants of this part of the prison supported themselves; they had the ration of prison bread only, but they had no share in the prison meat or other charities, and they or their friends found them in food. All who could scrape together the cash seem to have gladly availed themselves of the privilege of entering the master’s side. It was the only way to escape the horrors, the distress, penury, and rags of the common yards. Idleness was not so universally the rule in this part of the gaol. Artizans and others were at liberty to work at their trades, provided they were not dangerous. Tailoring and shoemaking was permitted, but it was deemed unsafe to allow a carpenter or blacksmith to have his tools. All the money earned by prisoners was at their own disposal, and was spent almost habitually in drink, chambering, and wantonness.

The best accommodation the gaol could offer was reserved for the prisoners on the state side, from whom still higher fees were exacted, with the same discreditable idea of swelling the revenues of the prison. To constitute this the aristocratic quarter, unwarrantable demands were made upon the space properly allotted to the female felons,^[42] and no lodger was rejected, whatever his status, who offered himself and could bring grist to the mill. The luxury of the state side was for a long time open to all who could pay—the convicted felon, the transport awaiting removal, the lunatic whose case was still undecided,^[43] the misdemeanant tried or untried, the debtor who wished to avoid the discomfort of the crowded debtors’ side, the outspoken newspaper editor, or the daring reporter of parliamentary debates. The better class of inmate complained bitterly of this enforced companionship with the vile, association at one time forbidden by custom,

but which greed and rapacity long made the rule. The fee for admission to the state side, as fixed by the table of fees, was three guineas, but Mr. Newman declared that he never took more than two. Ten and sixpence a week more was charged as rent for a single bed; where two or more slept in a bed the rent was seven shillings a week each. Prisoners who could afford it sometimes paid for four beds, at the rate of twenty-eight shillings, and so secured the luxury of a private room. A Mr. Lundy, charged with forgery, was thus accommodated on the state side for upwards of five years. But the keeper protested that no single prisoner could thus monopolize space if the state side was crowded. The keeper went still further in his efforts to make money. He continued the ancient practice of letting out a portion of his own house, and by a poetical fiction treated it as an annexe of the state side. Mr. Davison, sent to Newgate for embezzlement, and whose case is given in the preceding chapter, was accommodated with a room in Mr. Newman's house at the extravagant rental of thirty guineas per week; Mr. Cobbett was also a lodger of Mr. Newman's; and so were any members of the aristocracy, if they happened to be in funds—among whom was the Marquis of Sligo in 1811.

The female felons' wards I shall describe at length in the next chapter, which will deal with Mrs. Fry's philanthropic exertions at this period in this particular part of the prison. These wards were always full to overflowing; sometimes double the number the rooms could accommodate were crowded into them. There was a master's side for females who could pay the usual fees, but they associated with the rest in the one narrow yard common to all. The tried and the untried, young and old, were herded together; sometimes girls of thirteen, twelve, even ten or nine years of age, were exposed to "all the contagion and profligacy which prevailed in this part of the prison." There was no separation even for the women under sentence of death, who lived in a common and perpetually crowded ward. Only when the order of execution came down were those about to suffer placed apart in one of the rooms in the arcade of the middle ward.

I have kept till the last that part of the prison which was usually the last resting-place of so many. The old press yard has been fully described in a previous chapter.^[44] The name still survived in the new press yard, which was the receptacle of the male condemned prisoners. It was generally crowded, like the rest of the prison. Except in murder cases, where the execution was generally very promptly performed, strange and

inconceivable delay occurred in carrying out the extreme sentence. Hence there was a terrible accumulation of prisoners in the condemned cells. Once, during the long illness of George III., as many as one hundred were there waiting the “Report,” as it was called. At another time there were fifty, one of whom had been under sentence a couple of years. Mr. Bennet speaks of thirty-eight capital convicts he found in the press yard in February 1817, five of whom had been condemned the previous July, four in September, and twenty-nine in October. This procrastination bred certain callousness. Few realizing that the dreadful fate would overtake them, dismissed the prospect of death, and until the day was actually fixed, spent the time in roystering, swearing, gambling, or playing at ball. Visitors were permitted access to them without stint; unlimited drink was not denied them provided it was obtained in regulated quantities at one time. These capital convicts, says Mr. Bennet, “lessened the ennui and despair of their situation by unbecoming merriment, or sought relief in the constant application of intoxicating stimulants. I saw Cashman^[45] a few hours before his execution, smoking and drinking with the utmost unconcern and indifference.” Those who were thus reckless reacted upon the penitent who knew their days were numbered, and their gibes and jollity counteracted the ordinary’s counsels or the independent preacher’s earnest prayers. For while Roman Catholics and Dissenters were encouraged to see ministers of their own persuasion, a number of amateurs were ever ready to give their gratuitous ministrations to the condemned.

The prisoners in the press yard had free access during the day to the yard and large day room; at night they were placed in the fifteen cells, two, three, or more together, according to the total number to be accommodated. They were never left quite alone for fear of suicide, and for the same reason they were searched for weapons or poisons. But they nevertheless frequently managed to secrete the means of making away with themselves, and accomplished their purpose. Convicted murderers were kept continuously in the cells on bread and water, in couples, from the time of sentence to that of execution, which was about three or four days generally, from Friday to Monday, so as to include one Sunday, on which day there was a special service for the condemned in the prison chapel. This latter was an ordeal which all dreaded, and many avoided by denying their faith. The condemned occupied an open pew in the centre of the chapel, hung with black; in front of them, upon a table, was a black coffin in full view. The

chapel was filled with a curious but callous congregation, who came to stare at the miserable people thus publicly exposed. Well might Mr. Bennet write that the condition of the condemned side was the most prominent of the manifold evils in the present system of Newgate, "so discreditable to the metropolis."

Yet it must have been abundantly plain to the reader that the other evils existing were great and glaring. A brief summary of them will best prove this. The gaol was neither suitable nor sufficiently large. It was not even kept weather-tight. The roof of the female prison, says the grand jury in their presentment in 1813, let in the rain. Supplies of common necessities, such as have now been part of the furniture of every British gaol for many years, were meagre or altogether absent. The rations of food were notoriously inadequate, and so carelessly distributed, that many were left to starve. So unjust and unequal was the system, that the allowance to convicted criminals was better than that of the innocent debtor, and the general insufficiency was such that it multiplied beyond all reason the number of visitors, many of whom came merely as the purveyors of food to their friends.

The prison allowances were eked out by the broken victuals generously given by several eating-house keepers in the city, such as Messrs. Birch of Cornhill and Messrs. Leach and Dollimore of Ludgate Hill. These were fetched away in a large tub on a truck by a turnkey. Amongst the heap was often the meat that had made turtle soup, which, when heated and stirred together in a saucepan, was said to be very good eating. The bedding was scanty; fuel and light had to be purchased out of prisoners' private means; clothing was issued but rarely, even to prisoners almost in nakedness, and as a special charitable gift. Extortion was practised right and left. Garnish continued to be demanded long after it had disappeared in other and better-regulated prisons. The fees on reception and discharge must be deemed exorbitant, when it is remembered the impoverished class who usually crowded the gaol; and they were exacted to relieve a rich corporation from paying for the maintenance of their own prison. This imposition of fees left prisoners destitute on their discharge, without funds to support them in their first struggle to recommence life, with ruined character, bad habits, and often bad health contracted in the gaol. A further and a more iniquitous method of extorting money was still practised, that of loading newly-arrived prisoners until they paid certain fees. Ironing was still the rule, not only for

the convicted, but for those charged with felonies; only the misdemeanants escaped. At the commencement of every sessions, such of the untried as had purchased “easement” of irons were called up and re-fettered, preparatory to their appearance in the Old Bailey. Irons were seldom removed from the convicted until discharge; sometimes the wearer was declared medically unfit, or he obtained release by long good conduct, or the faithful discharge of some petty office, such as gatesman or captain of a ward. The irons weighed from three to four pounds, but heavier irons, seven or eight pounds’ weight, were imposed in case of misconduct; and when there had been an attempt at escape, the culprit was chained down to the floor by running a chain through his irons which prevented him from climbing to the window of his cell. Among other excuses offered for thus manacling all almost without exception, was that it was the best and safest method of distinguishing a prisoner from a stranger and temporary visitor. Clothes or prison uniform would not have served the purpose, for a disguise can be rapidly and secretly put on, whereas irons cannot well be exchanged without loss of time and attracting much attention.^[46]

The unchecked admission of crowds of visitors to the felons’ as well as the debtors’ side was another unmixed evil. By this means spirits, otherwise unattainable and strictly prohibited, were smuggled into the gaol. Searches^[47] were made certainly, but they were too often superficial, or they might be evaded by a trifling bribe. Hence the frequent cases of drunkenness, of which no notice was taken, unless people grew riotous in their cups, and attracted attention by their disorderly behaviour. Another frightful consequence of this indiscriminate admission was the influx of numbers of abandoned women, only a few of whom had the commendable prudery to pass themselves off as the wives of prisoners. Any reputed, and indeed any real, wife might spend the night in Newgate if she would pay the shilling fee, commonly known as the “bad money,” a base payment which might have done something towards increasing the prison receipts, had it not been appropriated by the turnkey who winked at this evasion of the rules. Among the daily visitors were members of the criminal classes still at large, the thieves and burglars who carried on the active business of their profession, from which their confederates were temporarily debarred. One notorious character, while a prisoner awaiting transfer to the hulks, kept open house, so to speak, and entertained daily within the walls a select party of the most noted thieves in London. This delectable society enticed into

their set a clerk who had been imprisoned for fraud, and offered him half the booty if he would give full information as to the transactions and correspondence of his late employers. Owing to the facility of intercourse between inside and outside, many crimes were doubtless hatched in Newgate. Some of the worst and most extensive burglaries were planned there. Forged notes had been fabricated, false money coined, and both passed out in quantities to be circulated through the country. "I believe," says Mr. Bennet in the letter already largely quoted, "that there is no place in the metropolis where more crimes are projected or where stolen property is more secreted than in Newgate."

These malpractices were fostered by the absence of all supervision and the generally unbroken idleness. Although attempted partially at Bridewell, and more systematically at the new Millbank penitentiary, but just open (1816), the regular employment of prisoners had never yet been accepted as a principle in the metropolitan prisons. Insuperable difficulties were still supposed to stand in the way of any general employment of prisoners at their trades. There was fear as to the unrestricted use of tools, limits of space, the interference of the ill-disposed, who would neither work nor let others do so, and the danger of losing material, raw or manufactured. Many years were to elapse before these objections should be fairly met and universally overcome. It was not strange, therefore, that the inmates of Newgate should turn their unoccupied brains and idle hands to all manner of mischief; that when they were not carousing, plotting, or scheming, they should gamble with dice or cards, and play at bumble puppy or some other disreputable game of chance.

The report of the Committee of the House of Commons painted so black a picture of Newgate as then conducted, that the Corporation were roused in very shame to undertake some kind of reform. The above-mentioned report was ordered to be printed upon the 9th May. Upon the 29th July the same year, the court of aldermen appointed a committee of its own body, assisted by the town clerk, Mr. Dance, city surveyor, son to the architect of Newgate, and Mr. Addison, keeper of Newgate, to make a visitation of the gaols supposed to be the best managed, including those of Petworth and Gloucester.^[48] This committee was to compare allowances, examine rules, and certify as to the condition of prisoners; also to make such proposals as might appear salutary, and calculated to improve Newgate and the rest of the city gaols.

This committee made its report in September the following year, and an excellent report it is, so far as its recommendations are concerned. The committee seems to have fully realized, even at this early date (1815), many of the indispensable conditions of a model prison according to modern ideas. It admitted the paramount necessity for giving every prisoner a sleeping cell to himself, an amount of enlightenment which is hardly general among European nations at this the latter end of the nineteenth century,^[49] several of which still fall far short of our English ideal, that all prisoners should always be in separate cells by night, and those of short sentences by day. It recommended day cells or rooms for regular labour, which should be compulsory upon all transports and prisoners sentenced to hard labour, the work being constant and suitable, with certain hours of relaxation and for food and exercise. The personal cleanliness of all prisoners was to be insisted upon; they should be made to wash at least once a day, with the penalty of forfeiting the day's allowance of food, an increase of which the committee had recommended. The provision of more baths was also suggested, and the daily sweeping out of the prison. The clothes of prisoners arriving dirty, or in rags, should be fumigated before worn in the gaol, but as yet no suggestion was made to provide prison uniform. A laundry should be established, and a matron appointed on the female side, where all the prisoners' washing could be performed. Proper hours for locking and unlocking prisoners should be insisted upon; a bell should give notice thereof, and of meal-hours, working-hours, or of escapes.

The committee took upon itself to lay down stringent rules for the discipline of the prison. The gaoler should be required to visit every part and see every prisoner daily; the chaplain should perform service, visit the sick, instruct the prisoners, "give spiritual advice and administer religious consolation" to all who might need them;^[50] the surgeon should see all prisoners, whether ill or well, once a week, and take general charge of the infirmaries. All three, governor, chaplain, and surgeon, should keep journals, which should be inspected periodically by the visiting magistrates. It should be peremptorily forbidden to the keeper or any officer to make a pecuniary profit out of the supplies of food, fuel, or other necessities. No prisoner should be allowed to obtain superior accommodation on the payment of any fees. Fees indeed should be generally abolished, garnish also. No prisoners should in future be ironed, except in cases of misconduct,

provided only that their security was not jeopardized, and dependent upon the enforcement of another new rule, which recommended restrictions upon the number of visitors admitted. No wine or beer should be in future admitted into or sold in the gaol, except for the use of the debtors, or as medical comforts for the infirmary. Drunkenness, if it ever occurred, should be visited with severe punishment; gaming of all sorts should be peremptorily forbidden under heavy pains and penalties. The feelings of the condemned prisoners should no longer be outraged by their exposure in the chapel, and the chapel should be rearranged, so that the various classes might be seated separately, and so as not to see each other.

It will hardly be denied that these proposals went to the root of the matter. Had they been accepted in their entirety, little fault could in future have been found with the managers of Newgate. In common justice to them, it must be admitted that immediate effect was given to all that could be easily carried out. The state side ceased to exist, and the female prisoners thus regained the space of which their quadrangle had been robbed. The privileges of the master's side also disappeared; fees were nominally abolished, and garnish was scotched, although not yet killed outright. A certain number of bedsteads were provided, and there was a slight increase in the ration of bread. But here the recommendations touched at once upon the delicate subject of expense, and it is clear that the committee hesitated on this score. It made this too the excuse for begging the most important issue of the whole question. The committee did not deny the superior advantages offered by such prisons as Gloucester and Petworth, but it at once deprecated the idea that the city could follow the laudable example thus set in the provinces. "Were a metropolitan prison erected on the same lines, with all the space not only for air and exercise, but for day rooms and sleeping cells," it would cover some thirty acres, and cost a great deal more than the city, with the example of Whitecross Street prison before it, could possibly afford. The committee does not seem to have yet understood that Newgate could be only and properly replaced by a new gaol built on the outskirts, as Holloway eventually was,^[51] and permitted itself to be altogether countered and checked in its efforts towards reform by the prohibitory costliness of the land about Newgate. With the seeming impossibility of extending the limits of the prison as it then stood, all chances of classification and separation vanished, and the greatest evils remained untouched. All the committee could do in this respect was to

throw the responsibility on others. It pointed out that the Government was to blame for the overcrowding, and might diminish it if it chose. It was very desirable that there should be a more speedy removal of transports from Newgate to the ships. Again, there was the new Millbank penitentiary now ready for occupation. Why not relieve Newgate by drawing more largely upon the superior accommodation which Millbank offered?

CHAPTER III.

PHILANTHROPY IN NEWGATE.

Absence of religious and moral instruction in Newgate a hundred years ago—Chaplains not always zealous—Unprofessional amateur enthusiasts minister to the prisoners—Christian Knowledge Society—Silas Told, his life and work—Wesley leads him to prison visitation—Goes to Newgate regularly—Chaplain opposes his visits—Attends the condemned to the gallows—Attends Mary Edmondson—The gentlemen Highwaymen—Mrs. Brownrigg—Alexander Cruden of the ‘Concordance’ also visits Newgate—More precise account of a neglectful Chaplain—Dr. Forde—His hatred of amateur preachers—In his element in the chair of a ‘free-and-easy’—Private philanthropy active—Various societies formed—Prison schools—The female side the most disgraceful part of the prison—Mrs. Fry’s first visit—Her second visit—Awful description of interior of gaol—Ill-treatment of female prisoners—Their irons—Where Mrs. Fry commenced—The School—The Matron—Work obtained—Rules framed—Rapid improvement of Newgate—Female prison reformed—Publicity follows—Newgate becomes a show.

AMONG the many drawbacks from which the inmates of Newgate suffered through the eighteenth and the early part of the nineteenth century, was the absence of proper religious and moral instruction. The value of the ministrations of the ordinary, who was the official ghostly adviser, entirely depended upon his personal qualities. Now and again he was an earnest and devoted man, to whom the prisoners might fully open their hearts. More often he was careless and indifferent, satisfied to earn his salary by the slightest and most perfunctory discharge of his sacred duties. There were ordinaries whose fame rested rather upon their powers of digestion than in polemics or pulpit oratory. The Newgate chaplain had to say grace at city banquets, and was sometimes called upon to eat three consecutive dinners without rising from the table. One in particular was noted for his skill in compounding a salad, another for his jovial companionship. But the ordinary took life easy, and beyond conducting the services, did little work. Only when executions were imminent was he especially busy. It behoved then to collect matter for his account of the previous life and the misdeeds of the condemned, with their demeanour at Tyburn, and this, according to contemporary records, led him to get all the information he could from the malefactors who passed through his hands. In the history of the press yard there is an account of the proceedings of the chaplain, Mr. Smith, which may be somewhat over-coloured, but which has the appearance of truth. It was the ordinary’s custom to give interviews in his private closet to those condemned to death, and cross-examine them closely. One day a young fellow was brought before him, to whom he said at once, “Well, boy, now is the time to unbosom thyself to me. Thou hast been a great sabbath-breaker in thy time I warrant thee? The neglect of going to church regularly has brought thee under these unhappy circumstances.” “Not I, good sir,” was

the reply; "I never neglected going to some church, if I was in health, morning and evening every Lord's day." The lad told truth, for his business took him to such places of resort for the better carrying on his trade, which was that of a pickpocket. Mr. Smith was not to be done out of his confession. "No sabbath-breaker? then thou hast been an abominable drunkard?" This the criminal denied, declaring that he had always had a mortal aversion to strong drinks. The chaplain continued to press the criminal, but could find that he had been guilty of nothing more than thieving, and as this was a topic he could not enlarge upon in his pamphlet, he dismissed the lad, to be entered in his account as an obstinate, case-hardened rogue.

But while the official lacked zeal or religious fervour, there were not wanting others more earnest and enthusiastic to add their unprofessional but devoted efforts to the half-hearted ministrations of the ordinary of Newgate. Towards the end of the seventeenth century, when the Society for the Promotion of Christian Knowledge was first formed, Dr. Bray and other members visited Newgate, and made its inmates their especial care for a time. A prominent figure in the philanthropic annals of Newgate a little later is that of Silas Told, who devoted many years of his life to the spiritual needs of the prisoners. Told's career is full of peculiar interest. He was a pious child; both father and mother were religious folk, and brought him up carefully. According to his own memoirs, when quite an infant he and his sister Dulcibella were wont to wander into the woods and fields to converse about "God and happiness." Told passed through many trials and vicissitudes in his early years. At thirteen he went to sea as an apprentice, and suffered much ill-usage. He made many voyages to the West Indies and to the Guinea coast, being a horrified and unwilling witness of some of the worst phases of the slave trade. He fell into the hands of piratical Spaniards, was cast away on a reef, saved almost by a miracle, last of all was pressed on board a man-of-war. Here, on board H.M.S. 'Phoenix,' his religious tendencies were strengthened by a pious captain, and presently he married and left the sea for ever. After this he became a schoolmaster in Essex, then a clerk and book-keeper in London. Here he came under the influence of John Wesley, and although predisposed against the Methodists, he was profoundly impressed by their leader's preaching. While listening to a sermon by John Wesley on the suddenness of conversion, Told heard

another voice say to him, “This is the truth,” and from that time forth he became a zealous Methodist.

It was Wesley who led him to prison visitation. He was at that time schoolmaster of the Foundry school, and his call to his long and devoted labours in Newgate were brought about in this wise. “In the year 1744,” to quote his own words, “I attended the children one morning at the five o’clock preaching, when Mr. Wesley took his text out of the twenty-fifth chapter of St. Matthew. When he read ‘I was sick and in prison, and ye visited me not,’ I was sensible of my negligence in never visiting the prisoners during the course of my life, and was filled with horror of mind beyond expression. This threw me well-nigh into a state of despondency, as I was totally unacquainted with the measures requisite to be pursued for that purpose. However, the gracious God, two or three days after, sent a messenger to me in the school, who informed me of the malefactors that were under sentence of death, and would be glad of any of our friends who could go and pray with them. The messenger, whose name was Sarah Peters, gave me to understand that they were all much awakened, and that one of them, John Lancaster, was converted, and full of the grace of God. In consequence of this reviving information, I committed my school without an hour’s delay to my trusty usher, and went with Sarah Peters to Newgate, where we had admittance to the cell wherein they were confined.”

Silas Told found Lancaster in a state of religious exaltation, thanking God that he had been sent to Newgate, and praying while they knocked his irons off, till even the attendant sheriff shed tears.





Rev. Mr. Whitfield Preaching on Kennington Common

Silas accompanied the condemned men to Tyburn, and saw the gallows for the first time. He tells us that he went not without much shame and fear, because he clearly perceived the greater part of the spectators considered him as one of the sufferers. Lancaster, on arriving at the fatal tree, lifted up his eyes thereto, and said, “Blessed be God,” then prayed extemporary in a very excellent manner, and the others behaved with great discretion. Lancaster was friendless, and no one came forward to give the body interment; so the “surgeon’s mob” secured it, and carried it over to Paddington for dissection. Scarcely had it disappeared before a party of sailors came on the scene and demanded what had become of it. They followed the “surgeon’s mob,” recovered the body, and carried it in state through Islington and Houndsditch till they were tired. Then they dropped it upon the first doorstep. The story ends most dramatically, and Told declares that an old woman, disturbed by the uproar, came down and recognized in John Lancaster’s corpse the body of her own son.

After this first visit Told went regularly to Newgate. He describes the place, twenty-one years later, but still remembered vividly, as “such an emblem of the infernal pit as he never saw before.” However, he struggled

bravely on, having a constant pressure upon his mind “to stand up for God in the midst of them,” and praying much “for wisdom and fortitude.” He preached as often as he was permitted to both felons and debtors. But for the first few years, when attending the malefactors, he met with so many repulses from the keeper and ordinary, as well as from the prisoners themselves, that he was often greatly discouraged. “But notwithstanding I more vehemently pressed through all,” becoming the more resolute and “taking no denial.” His most bitter opponent, as was not unnatural, was the ordinary, Mr. Taylor, who would constantly station himself on Sunday mornings a few doors from Newgate, and wait there patiently for a couple of hours or more to obstruct his entrance, at the same time forbidding the turnkeys to give him admittance. Told’s persistence generally got him through, so that most Sunday mornings he had an opportunity of preaching on the debtors’ side to a congregation of forty or more. His influence among the debtors was so great that they readily formed themselves, at his request, into a society or organization, bound by rules and regulations to strict religious observances. In this he was ably seconded by the “circumspection” of two or three prisoners who highly approved of his proposals, and exercised a close watch on the others, whom they would not “suffer to live in any outward sin.” For a considerable time the debtors paid regular attention to his preachings and the meetings of the society. After some time, however, the ordinary “raised a great tumult,” and managed ever after to shut Silas Told out from that side of the prison.

Told was not to be repressed entirely. In spite of all opposition, he still visited the felons, among whom there was a blessed work, especially among the condemned malefactors. He frequently preached during the space which intervened between sentence and execution; he constantly visited the sick in all parts of the prison, which he tells us he had “reason to believe was made a blessing to many of their souls.” His zeal was so great that he spared no pains to do all the good in his power, “embracing every opportunity, both in hearing and speaking, so that in process of time he preached in every prison, as well as in every workhouse, in and about London, and frequently travelled to almost every town within twelve miles of the metropolis.”

Silas Told has left us several of his personal experiences in attending upon the condemned. One of the most interesting cases is that of Mary Edmonson, who was convicted of murdering her aunt, on slight evidence, and whose guilt seems doubtful. When the time of her departure for Tyburn

approached, Silas begged the sheriff to let him visit her as soon as possible. The sheriff asked him if he was a clergyman. "No, sir," replied Told. "Are you a Dissenting minister?" "I answered him 'No.' " "What are you then?" he went on. Silas replied that he was one who preached the gospel, and who wished to be the means of bringing the prisoner to confession. The sheriff then bade Told seize hold of his bridle-rein, and go by his side to the place of execution; although he cautioned him against the attempt, there being a riotous mob all along the streets, who were fiercely incensed against the poor condemned woman. "As we were proceeding on the road,"—let Silas tell his own story,—“the sheriff’s horse being close to the cart, I looked at her from under the horse’s bridle, and said, ‘My dear, look to Jesus.’ This salutary advice quickened her spirit, insomuch that although she did not look about her before, yet she turned herself round to me and joyfully answered, ‘Sir, I bless God I can look to Jesus for my comfort!’ This produced a pleasant smile on her countenance, which when the sons of violence perceived, they d—d her in a shameful manner; this was accompanied with a vengeful shout, ‘See how bold she is! See how the ---- laughs!’

“At length we came to the gallows, where many officers were stationed on horseback, besides numbers more on foot, furnished with constables’ staves. When the cart was backed under the gallows, a very corpulent man trod on my foot with such weight that I really thought he had taken it quite off; however, the sheriff soon cleared the way, and formed an arrangement of constables round the cart, then directed some of them to put me into it, in order that I might be of all the service to the malefactor which lay in my power; the sheriff himself standing behind the cart, the better to avail himself of my discourses with her. When she was tied up I began to address her nearly in the same words I did at the Peacock, pressing upon her an acknowledgment of the murder in the most solemn manner, but she declared her innocence in the presence of the sheriff. I then interrogated her. ‘Did you not commit the fact? Had you no concern therein? Were you not interested in the murder?’ She answered, ‘I am as clear of the whole affair as I was the day my mother brought me into the world.’ The sheriff on hearing these words shed plenty of tears, and said, ‘Good God! it is a second Coleman’s case!’ This circumstance likewise brought tears from many persons who heard her. When I was getting out of the cart the executioner put the handkerchief over her eyes, but she quickly moved it

away, and, addressing herself to the multitude, begged them to pray that God would bring to light, when she was departed, the cause of the assassination, saying she had no doubt but the prayers of such persons would be heard; but repeated her innocence, solemnly declaring that she was as ignorant of the crime for which she was going to suffer as at the day of her birth; and added also, 'I do not lay anything to the charge of my Maker, He has an undoubted right to take me out of this world as seemeth Him good; and although I am clear of this murder, yet I have sinned against Him in many various instances; but I bless God He hath forgiven me all my sins.' Her kinsman then came up into the cart, and would fain have saluted her; but she mildly turned her face aside, strongly suspecting him to be the assassin.

"After her kinsman had gone out of the cart, the executioner a second time was putting the handkerchief over her face, when she again turned it aside, looking at the sheriff, and saying, 'I think it cruel that none is suffered to pray by me.' The sheriff then desired me, for God's sake, to go a second time into the cart and render my prayers with her, which when finished, she began to pray extempore, and in a most excellent manner. When she had concluded her prayer, the executioner performed his part, and being turned off, her body dropped against my right shoulder, nor did she once struggle or move, but was as still as if she had hung for three hours."

One other case I will extract from Silas Told, as it possesses some peculiar features. It is that of the amateur highwaymen who took to the road as a fitting frolic to end a day's pleasure. Messrs. Morgan, Whalley, Brett, and Dupree, and two more, had dined freely at Chelmsford to celebrate an election. Having "glutted themselves with immoderate eating and drinking," they went out on the highway to rob the first person they came across. This happened to be an Essex farmer, whom they stripped of all he had. The farmer got help, followed them into Chelmsford, where they were captured, sent to London, tried at the Old Bailey, and cast for death. They were all of good station—Brett the son of a clergyman in Dublin, Whalley a man of fortune, Dupree a gentleman, and Morgan an officer on board one of His Majesty's ships of war. The last was engaged to Lady E—— Howard, a daughter of the Duke of Norfolk, who frequently visited Mr. Morgan in Newgate, Told being generally present at their interviews. Lady E—— went daily to the king, as did many other persons of great influence, to beg Mr. Morgan's life; but His Majesty steadfastly rejected all petitions, stating that

to do so would be to show partiality and a want of justice. But the devoted woman would not forego all hope, and, the morning before the execution, again appeared, and fell upon her knees at the king's feet. "My lady," said His Majesty, "there is no end to your importunity. I will spare his life upon condition that he is not acquainted therewith till he arrives at the place of execution." This was accordingly carried. Brett, Whalley, and Dupree were actually tied up to the gallows. Morgan and two others followed in a second cart, when the sheriff rode up with the respite for Morgan.

"It is hard to express"—I again quote from Told—"the sudden alarm this made among the multitude; and when I turned round and saw one of the prisoners out of the cart, falling to the ground, he having fainted away at the sudden news, I was seized with terror, as I thought it was a rescue rather than a reprieve; but when I beheld Morgan put into a coach, and perceived that Lady E. H. was seated therein, my fear was at an end.

"As soon as Morgan was gone, a venerable gentleman, addressing himself to Dupree, begged him to look steadfastly to God, in whose presence he would shortly appear, and hoped the mercy his companion had received would have no bad effect upon him. Dupree, with all calmness and composure of mind, said, 'Sir, I thank God that him they reprieved; it doesn't by any means affect me.' This gave the gentleman much satisfaction. When prayers were ended, I addressed each of them in the most solemn words I was capable of, which I hope was not in vain, as they all appeared entirely resigned to their fate. Brett earnestly craved the prayers of the multitude, and conjured them all to take warning by the untimely end of the three objects of their present attention. When they were turned off, and the mob nearly dispersed, I hastened back to Newgate, and there seriously conversed with Morgan, who, in consequence of the unexpected reprieve, was scarcely recovered."

Silas Told continued his labours for many years. In 1767 he visited the notorious Mrs. Brownrigg, who was sentenced to be hanged for whipping her servant-maid to death, and whom he accompanied to the gallows. His death occurred in 1779. He lived to hear of Howard's philanthropic exertions, and to see the introduction of some small measure of prison reform.

While Silas Told was thus engaged, another but a more erratic and eccentric philanthropist paid constant visits to Newgate. This was

Alexander Cruden, the well-known, painstaking compiler of the 'Concordance.' For a long time he came daily to the gaol, to preach and instruct the prisoners in the gospel, rewarding the most diligent and attentive with money, till he found that the cash thus disbursed was often spent in drink the moment his back was turned. He did more good than this. Through Mr. Cruden's solicitations a sentence of death upon a forger, Richard Potter, was commuted to one of transportation.

More precise details of the manner in which a Newgate ordinary interpreted his trust will be found in the evidence of the Rev. Brownlow Forde, LL.D., before the committee of 1814. Dr. Forde took life pretty easy. Had a prisoner sent for him, he told the committee, he might have gone, but as no one did send, except they were sick and thought themselves at death's door, he confined his ministrations to the condemned, whom he visited twice a week in the day room of the press yard, or daily after the order for execution had arrived. He repudiated the notion that he had anything to do with the state of morals of the gaol. He felt no obligation to instruct youthful prisoners, or attend to the spiritual needs of the mere children so often thrown into Newgate. He never went to the infirmary unless sent for, and did not consider it his duty to visit the sick, and often knew nothing of a prisoner's illness unless he was warned to attend the funeral. Among other reasons, he said that as the turnkeys were always busy, there was no one to attend him. While the chaplain was thus careless and apathetic, the services he conducted were little likely to be edifying or decorous. The most disgraceful scenes were common in the prison chapel. As the prisoners trooped into the galleries they shouted and halloed to their friends in the body of the church. Friends interchanged greetings, and "How d'ye do, Sall?" was answered by "Gallows well, Conkey Beau," as the men recognized their female acquaintances, and were recognized in turn. The congregation might be pretty quiet after the chaplain had made his appearance, but more often it was disorderly from first to last. Any disposed to behave well were teased and laughed at by others. Unrestricted conversation went on, accompanied by such loud yawning, laughing, or coughing as almost impeded the service. No one in authority attempted to preserve order; the gatesmen, themselves prisoners, might expostulate, but the turnkeys who were present ignored any disturbance until reminded of their duty by the chaplain. The keeper never attended service. It was suggested to him that he might have a pew in the chapel with a private

entrance to it from his own house, but nothing came of the proposal. It was not incumbent upon the prisoners, except those condemned to death, to attend chapel. Sometimes it was crowded, sometimes there was hardly a soul. In severe weather the place, in which there was no fire, was nearly empty. It was very lofty, very cold, and the prisoners, ill clad, did not care to shiver through the service. On “curiosity days,” those of the condemned sermon, more came, including debtors and visitors from outside, who thronged to see the demeanour of the wretched convicts under the painful circumstances already described. The service must have been conducted in a very slovenly and irreverent manner. Dr. Forde had no clerk, unless it chanced that some one in the condemned pew knew how to read. If not, there were sometimes no responses, and the “whole service was apt to be thrown into confusion.”^[52]

A man who did so little himself could hardly be expected to view with much favour the undisciplined efforts of amateurs and outsiders. In his opinion the prisoners were only harassed and worried by the Dissenting ministers and others who “haunted the gaol.” Dr. Forde said they (the prisoners) did not like it. “It was not to be expected of them, with their habits, that they should be crammed with preaching and prayers.” They bore with the visitation, however, hoping to get from the preacher a loaf, or money, or bread and cheese; although the tables were occasionally turned on them, and the visitor, according to Dr. Forde, “would eat up the mutton chop and drink the beer of some well-to-do prisoner, then go to prayers, and depart.” These ministers he styled Methodist preachers, or “clergymen who affect to be methodistical preachers,” although one, according to him, was a “raggedly-dressed Thames lighterman,” who presumed to come in and expound the Scriptures. Dr. Forde makes no mention of Mr. Baker, who must have been a constant visitor in his day—a “white-headed old man” who was in frequent attendance upon the prisoners when Mrs. Fry began her labours, and who had for years “devoted much time and attention to unostentatious but invaluable visits in Newgate.”^[53]

Dr. Forde seems to have been more in his element when taking the chair at a public-house ‘free-and-easy.’ In the ‘Book for a Rainy Day,’ already quoted, Mr. Smith gives us an account of a visit paid to Dr. Forde at a public-house in Hatton Garden. “Upon entering the club-room, we found the Doctor most pompously seated in a superb masonic chair, under a stately crimson canopy placed between the windows. The room was

clouded with smoke, whiffed to the ceiling, which gave me a better idea of what I had heard of the 'Black Hole of Calcutta' than any place I had seen. There were present at least a hundred associates of every denomination."

It is consoling to find that while officials slumbered, private philanthropy was active, and had been in some cases for years. Various societies and institutions had been set on foot to assist and often replace public justice in dealing with criminals. The Marine Society grew out of a subscription started by Justices Fielding and Welch, in 1756, for the purpose of clothing vagrant and friendless lads and sending them on board the fleet. The Philanthropic Society had been established in 1789 by certain benevolent persons, to supply a home for destitute boys and girls, and this admirable institution steadily grew and prospered. In 1794 it moved to larger premises, and in 1817 it had an income of £6000 a year, partly from subscriptions and legacies, partly from the profit on labour executed by its inmates.^[54] In 1816 another body of well-meaning people, moved by the "alarming increase of juvenile delinquency in the metropolis," formed a society to investigate its causes, inquire into the individual cases of boys actually under sentence, and afford such relief upon release as might appear deserved or likely to prevent a relapse into crime. The members of this society drew up a list containing seven hundred names of the friends and associates of boys in Newgate, all of whom they visited and sought to reform. They went further, and seriously discussed the propriety of establishing a special penitentiary for juveniles, a scheme which was never completely carried out. Another institution was the Refuge for the Destitute, which took in boys and girls on their discharge from prison, to teach them trades and give them a fair start in life. There were also the Magdalen Hospital and the Female Penitentiary, both of which did good work amongst depraved women.

Matters had improved somewhat in Newgate after the report of the committee in 1814, at least as regards the juveniles. A school had been established, over which the new ordinary, Mr. Cotton, who about this time succeeded Dr. Forde, presided, and in which he took a great interest. The chaplain was in communication with the Philanthropic and other institutions, and promising cases were removed to them. The boys were kept as far as possible apart from the men, but not at first from one another. Hence in the one long room they occupied and used for all purposes, eating, drinking, and sleeping, the elder and more vitiated boys were still able to

exercise a baneful influence over the young and innocent. More space became available by the removal of the debtors to Whitecross Street, and then the boys were lodged according to categories in four different rooms. Mr. Cotton believed that the boys benefited morally from the instruction and care they received. This juvenile school was one bright spot in the prevailing darkness of Newgate at that particular time. Another and a still more remarkable amelioration in the condition of the prisoners was soon to attract universal attention. The great and good work accomplished by that noble woman Mrs. Fry on the female side of Newgate forms an epoch in prison history, and merits a particular description.

Bad as were the other various courts and so called “sides” in Newgate prison, the quadrangle appropriated to the females was far worse. Its foul and degraded condition had attracted the sympathies of Elizabeth Fry as early as 1813. The winter had been unusually severe, and Mrs. Fry had been induced by several Friends, particularly by William Forster, to visit Newgate and endeavour to alleviate the sufferings of the female prisoners. The space allotted to the women was at that time still curtailed by the portion given over to the state side.^[55] They were limited to two wards and two cells, an area of about one hundred and ninety-two superficial yards in all, into which, at the time of Mrs. Fry’s visit, some three hundred women with their children were crowded, all classes together, felon and misdemeanant, tried and untried; the whole under the superintendence of an old man and his son. They slept on the floor, without so much as a mat for bedding. Many were very nearly naked, others were in rags; some desperate from want of food, some savage from drink, foul in language, still more recklessly depraved in their habits and behaviour. Everything was filthy beyond description. The smell of the place was quite disgusting. The keeper himself, Mr. Newman, was reluctant to go amongst them. He strove hard to dissuade Mrs. Fry from entering the wards, and failing in that, begged her at least to leave her watch in his office, assuring her that not even his presence would prevent its being torn from her. Mrs. Fry’s own account fully endorses all this. “All I tell thee is a faint picture of the reality; the filth, the closeness of the rooms, the ferocious manners and expressions of the women towards each other, and the abandoned wickedness which everything bespoke, are quite indescribable.” “One act, the account of which I received from another quarter, marks the degree of wretchedness to

which they were reduced at that time. Two women were seen in the act of stripping a dead child for the purpose of clothing a living one.”^[56]

Mrs. Fry must have gone again, for she wrote under date Feb. 16th, 1813 —“Yesterday we were some hours in Newgate with the poor female felons, attending to their outward necessities; we had been twice previously. Before we went away dear Anna Buxton uttered a few words in supplication, and very unexpectedly to myself I did also. I heard weeping, and I thought they appeared much tendered. A very solemn quiet was observed; it was a striking scene, with the poor people around in their deplorable condition.” Mrs. Fry’s charity extended to the gift of clothing, for it is recorded in her memoirs that many members of her domestic circle had long a vivid recollection of the “green baize garments,” and their pleasure in assisting to prepare them.

Nearly four years elapsed before Elizabeth Fry resumed her visits. Newgate and what she had seen there had no doubt made a deep impression on her mind, but a long illness and family afflictions had prevented her from giving her philanthropic yearnings full play. She appears to have recommenced her visits about Christmas 1816, and on Feb. 16th, 1817, there is an entry in her journal to the effect that she had been “lately much occupied in forming a school in Newgate for the children of the poor prisoners, as well as the young criminals.” It was in this way that she struck at the hearts of these poor degraded wretches, who were only too eager to save their children from a life of crime. “The proposal was received,” Mrs. Fry says, “even by the most abandoned with tears of joy.” The three intervening years between 1813 and 1816 had brought no improvement in the female side. Its inmates—the very scum of the town—were filthy in their habits and disgusting in their persons. Mrs. Fry tells us she found the railings in the inner yard crowded with half-naked women, struggling together for the front situations with the most boisterous violence, and begging with the utmost vociferation. As double gratings had now been fixed at some distance apart to prevent close communication between prisoners and their visitors, the women had fastened wooden spoons to the end of long sticks, which they thrust across the space as they clamoured for alms. Mrs. Fry tells us that she felt as if she were going into a den of wild beasts, and that she well recollects quite shuddering when the door closed upon her, and she was locked in with such a herd of novel and desperate companions. The women, according to another eye-witness, sat about the

yard on the stones, squalid in attire, ferocious in aspect. On this occasion a woman rushed out from the ward “yelling like a wild beast;” she made the circuit of the yard, brandishing her arms and tearing the caps or coverings from the heads of the other women. In spite of these terrible scenes, the ladies, several Friends having joined with Mrs. Fry, continued to give their attention to the school. “It was in our visits to the school,” she afterwards observed, when giving evidence before the Parliamentary committee of 1818, “where some of us attended every day, that we were witnesses of the dreadful proceedings that went forward on the female side of the prison; the begging, swearing, gaming, fighting, singing, dancing, dressing up in men’s clothes; the scenes are too bad to be described, so that we did not think it suitable to admit young persons with us.” This awful place had long been aptly entitled “Hell above ground.”

It was not strange that these miserable women should be absolutely unsexed. They were often subjected to brutal ill-treatment even before their arrival at Newgate. Many were brought to the prison almost without clothes. If coming from a distance, as in the case of transports lodged in Newgate until embarkation, they were almost invariably ironed, and often cruelly so. One lady saw the female prisoners from Lancaster Castle arrive, not merely handcuffed, but with heavy irons on their legs, which had caused swelling and inflammation. Others wore iron-hoops round their legs and arms, and were chained to each other. On the journey these poor souls could not get up or down from the coach without the whole of them being dragged together. A woman travelled from Cardigan with an iron hoop round her ankle, and fainted when it was removed. This woman’s story was, that during a long imprisonment she had worn an iron hoop round her waist, a second round her leg above the knee, a third at the ankle, and all these connected by chains. In the waist hoop were two bolts or fastenings, in which her hands were confined at night when she went to bed. Her bed was only of straw. These wretched and ill-used creatures might be forgiven if they at times broke out into rebellion. For a long time it was the practice with the female transports to riot previous to their departure from Newgate, breaking windows, furniture, or whatever came in their reach. Their outrageous conduct continued all the way from the gaol to the water-side, whither they were conveyed in open waggons, noisy and disorderly to the last, amidst the jeers and shouts of the assembled crowds.

Mrs. Fry, as I have said, endeavoured first to form a school. For this purpose an unoccupied room was set apart by the authorities. Although looking upon her experiment as hopeless, she received cordial support from the sheriffs, the governor, Mr. Newman, and the ordinary of Newgate, Mr. Cotton. The prisoners selected from among themselves a schoolmistress, Mary Connor by name, who had been committed for stealing a watch, and “who proved eminently qualified for her task.” The school, which was for children only and young persons under twenty-five, prospered, and by degrees the heroic band of ladies were encouraged to greater efforts. The conduct of the prisoners, their entreaties not to be excluded from the benefits of the school, inspired Mrs. Fry with confidence, and she resolved to attempt the introduction of order, industry, and religious feeling into Newgate. In April 1817 eleven members of the Society of Friends and another lady, the wife of a clergyman, formed themselves into “an association for the improvement of the female prisoners in Newgate.”^[57] These devoted persons gave themselves up entirely to their self-imposed task. With no interval of relaxation, and with but few intermissions from the call of other and more imperious duties, they lived among the prisoners.^[58] They arrived, in fact, at the hour of unlocking, and spent the whole day in the prison.

The more crying needs of the Newgate female prison at that date are indicated in a memorandum found among Mrs. Fry’s papers. It was greatly in need of room, she said. The women should be under the control and supervision of female, and not, as heretofore, of male officers. The number of visitors should be greatly curtailed, and all communications between prisoners and their friends should take place at stated times, under special rules. The prisoners should not be dependent on their friends for food or clothing, but should have a sufficiency of both from the authorities. Employment should be a part of their punishment, and be provided for them by Government. They might work together in company, but should be separated at night according to classes, under a monitor. Religious instruction should be more closely considered. It was to supply these needs that the committee devoted its efforts, the ladies boldly promising that if a matron could be found who would engage never to leave the prison day or night, they would find employment for the prisoners and the necessary funds until the city could be induced to meet the expense.

The matron was found, and the first prison matron appointed, an elderly respectable woman, who proved competent, and discharged her duties with fidelity. Mrs. Fry next sought the countenance and support of the governor and chaplain, both of whom met her at her husband's house to listen to her views and proposals. Mr. Cotton, the ordinary, was not encouraging; he frankly told her that "this, like many other useful and benevolent designs for the improvement of Newgate, would inevitably fail." Mr. Newman, however, bade her not despair; "but he has since confessed that when he came to reflect on the subject, and especially upon the character of the prisoners, he could not see even the possibility of success. Both, however, promised their warmest co-operation." Mrs. Fry next saw one of the sheriffs, asking him to obtain a salary for the matron, and a room in the prison for the Ladies' Committee. This sheriff, Mr. Bridges, was willing to help her if his colleagues and the Corporation agreed, "but told her that his concurrence or that of the city would avail her but little—the concurrence of the women themselves was indispensable; and that it was in vain to expect such untamed and turbulent spirits would submit to the regulations of a woman armed with no legal authority, and unable to inflict any punishment." Nevertheless, the two sheriffs met Mrs. Fry at Newgate one Sunday afternoon. The women, seventy in number, were assembled, and asked whether they were prepared to submit to the new rules. All "fully and unanimously" agreed to abide by them, to the surprise of the sheriffs, who doubted their submitting to such restraints. Upon this the sheriffs addressed the prisoners, telling them that the scheme had official support; then turning to Mrs. Fry, one of the two magistrates said, "Well, ladies, you see your materials."

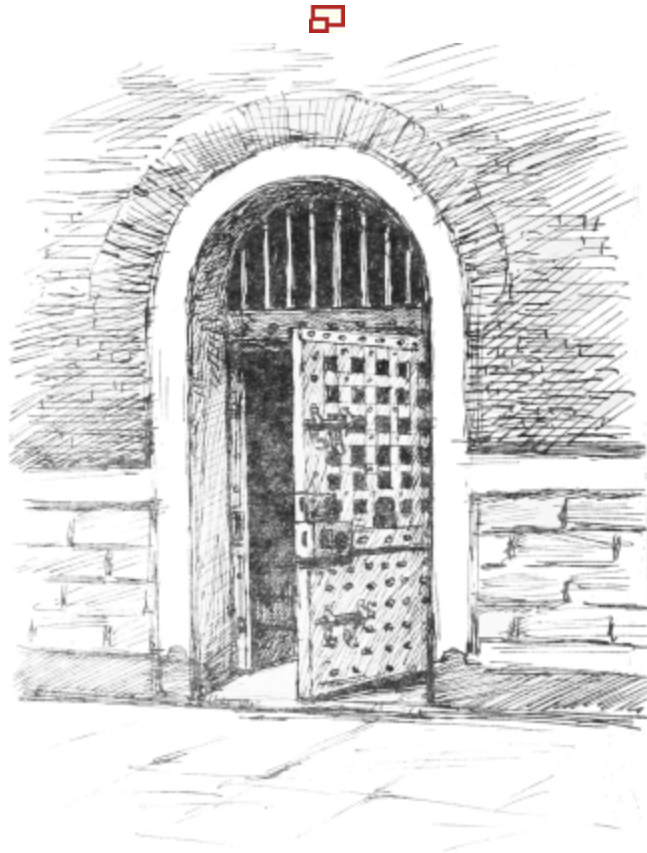
The next business was to obtain work. It had occurred to Mrs. Fry that the manufacture of clothing for Botany Bay would be a suitable sort of employment, and she accordingly called upon the city firm, Messrs. Richard Dixon and Co., of Fenchurch Street, who had hitherto supplied these articles. She told them plainly that she was seeking to deprive them of a part of their trade, whereupon they magnanimously altogether relinquished it, feeling loth "to obstruct her laudable designs." The work obtained, the work-room was next prepared. The sheriffs sent in carpenters, and the old prison laundry was speedily cleaned, whitewashed, and got ready; after which Mrs. Fry assembled all the convicted prisoners, told them her views and hopes, read them her proposed rules, which, as she did not

come among them with “any absolute or authoritative pretensions,” should be put to the vote. The women present voluntarily subscribed to all, although they were stringent, and aimed at the reform of evil and probably long-cherished habits. These rules need not be inserted here at length. It will suffice to say that they laid down the principle of constant employment at knitting, needlework, or so forth; that begging, swearing, gambling, quarrelling, and immoral conversation were forbidden; that the women should submit themselves to their monitors, elected by themselves, to the yard-keeper, similarly elected, and to the matron; that personal cleanliness, a quiet, orderly demeanour, and silence at the work-tables should be incumbent on all.

These rules were not only adopted readily, but strictly observed. In one month a complete transformation had taken place in the women. At first Mrs. Fry had wished to keep this gratifying result a secret, but it was thought expedient to report progress to the Corporation, so that the new system might be approved and established by the authority of the city. On a day fixed the Lord Mayor, accompanied by the sheriffs and several aldermen, attended at Newgate, and saw with their own eyes the remarkable change effected in so short a time. The daily routine went on before them exactly as usual. The prisoners assembled; one of the ladies read a chapter in the Bible, then the women proceeded quietly to their work. “Their attention during the time of reading, their orderly and sober deportment, their decent dress, the absence of anything like tumult, noise, or contention, the obedience and respect showed by them, and the cheerfulness exhibited in their countenance and manners, conspired to excite the astonishment and admiration of their visitors. Many of these knew Newgate, had visited it a few months before, and had not forgotten the painful impressions made by a scene exhibiting perhaps the very utmost limits of misery and guilt.”^[59] The city magistrates at once accepted the results achieved. Mrs. Fry’s rules were adopted into the prison system, power was conferred on the ladies to punish the refractory, and the salary of the matron was incorporated with the regular expenses of the prison.

The evidence of a gentleman who visited Newgate within a fortnight of the adoption of the new rules may fitly be added here. He went one day to call on Mrs. Fry at the prison, and was conducted to the women’s side. “On my approach,” he says, “no loud or dissonant sounds or angry voices indicated that I was about to enter a place which I was credibly assured had

long had for one of its titles that of 'Hell above ground.' The court-yard into which I was admitted, instead of being peopled with beings scarcely human, blaspheming, fighting, tearing each other's hair, or gaming with a filthy pack of cards for the very clothes they wore, which often did not suffice even for decency, presented a scene where stillness and propriety reigned. I was conducted by a



Entrance to Mrs. Fry's Ward.

decently-dressed person, the newly-appointed yards-woman, to the door of a ward where at the head of a long table sat a lady belonging to the Society of Friends. She was reading aloud to about sixteen women prisoners, who were engaged in needlework around it. Each wore a clean-looking blue apron and bib, with a ticket having a number on it suspended from her neck by a red tape. They all rose on my entrance, curtsied respectfully, and then at a signal given resumed their seats and employments. Instead of a scowl, leer, or ill-suppressed laugh, I observed upon their countenances an air of self-respect and gravity, a sort of consciousness of their improved character,

and the altered position in which they were placed. I afterwards visited the other wards, which were the counterparts of the first."

The efforts of the ladies, which had been at first concentrated upon the convicted, were soon directed also upon the untried. These still continued in a deplorable state, quarrelling and disorderly, bolder and more reckless because they were in doubt as to their future fate. Unhappily the same measure of success did not wait upon the attempt on this side. Many of these women counted upon an early release, and would not take heartily to work, although when they did they were "really and essentially improved." Nor could it be expected that the new régime could be established without occasional insubordination and some backsliding. The rules were sometimes broken. Spirits had been introduced more than once; six or seven cases of drunkenness had occurred. But the women were careful not to break out before the ladies; if they swore, it was out of hearing, and although they still played cards, it was when the ladies' backs were turned. Mrs. Fry told the Parliamentary committee how she expostulated with the women when she found they still gambled, and how she impressed upon them, "if it were true that there were cards in the prison," that she should consider it a proof of their regard if they would have the candour and kindness to bring her their packs. By and by a gentle tap came at her door as she sat alone with the matron, and a trembling woman entered to surrender her forbidden cards; another and another followed, till Mrs. Fry had soon five packs of cards in her possession. The culprits fully expected reproof, but Mrs. Fry assured them that their fault was fully condoned, and, much to their surprise, rewarded them for their spontaneous good feeling. This seems to have been in the ascendant on the whole, and at the end of the first year it was satisfactorily proved to competent judges, the past and present Lord Mayor, the sheriffs, gaolers, and various grand juries, the ordinary, and others, that an extraordinary change for the better had shown itself in the conduct of the females.

The work done in Newgate soon obtained much publicity, to the undoubted and manifest distaste of those who had accomplished it. It was first noticed in the newspapers by the well-known Robert Owen, who adduced it as a proof of the effects of kindness and regular habits. Prison discipline was at this time attracting attention, and Mrs. Fry's labours were very remarkable in this line. Very soon the female side at Newgate became quite a show. Every one of any status in society, every distinguished

traveller, all people with high aims or deep feelings, were constrained to visit the prison. Royalty for the first time took an interest in the gaol. The Duke of Gloucester was among the visitors, and was escorted round by Mrs. Fry in person. Another day she was engaged with the Chancellor of the Exchequer; on a third with the Home Secretary and the Speaker of the House of Commons. Still higher and more public honour was done to this noble woman by the Marquis of Lansdowne in the House of Lords, who in 1818, in moving an address on the state of the English prisons, spoke in terms of the highest eulogy of what had been effected "by Mrs. Fry and other benevolent persons in Newgate." After this, admission to view the interior of Newgate was eagerly sought by numbers of persons whose applications could not well be refused, in spite of the inconvenience occasioned by thus turning a place of durance into a sentimental lounge. A more desirable and useful result of these ministrations was the eagerness they bred in others to imitate this noble example. Numbers of persons wrote to Mrs. Fry from all parts of the country, seeking advice and encouragement as to the formation of similar societies. Even magistrates appealed to her regarding the management of their prisons. In consequence of the numerous communications received by the Newgate Association, a "corresponding committee" was formed to give information and send replies. Letters came from various capitals of Europe, including St. Petersburg, Turin, and Amsterdam, which announced the formation of Ladies' Societies for prison visiting.

During many years following its inauguration, the "Ladies' Association" continued their benevolent exertions with marked and well-deserved success. They did not confine their labours to Newgate, but were equally active in the other metropolitan prisons. They also made the female transports their peculiar charge, and obtained many reforms and ameliorations in the arrangement of the convict ships, and the provision for the women on landing at the Antipodes. That the first brilliant successes should be long and continuously maintained could hardly be expected. As time passed and improvements were introduced, there was not the same room for active intervention, and it was difficult to keep alive the early fire. The energy of the Ladies' Committee might not exactly flag, but it came later on to be occasionally misapplied. And it will be found in a later chapter, that the inspectors of prisons were not altogether satisfied with the ground taken up by the association.

CHAPTER IV.

THE BEGINNINGS OF PRISON REFORM.

Prison reform generally taken up—Mr. Neild's visitation—Howard's great work repeated—Neglect of prisons not the fault of the legislature—Numerous gaol Acts passed, but not carried out by local authorities—Prison Discipline Society formed in 1817—Its distinguished members—Mr. Buxton a leading spirit—His views and arguments for insisting on prison reform—Idea of classification first given in gaol Act of 1784, but never carried out—The society animadverted upon condition of various prisons—The Borough compter—Guildford—Irons—Their weight—Overcrowding—Underground dungeons—"The pit"—A few brilliant exceptions—Bury St. Edmunds—Ilchester—Newgate compared badly with last-named, but diet improved, and irons removed from untried—Complete reform still indispensable for real improvement—Prisoners committed to Newgate taken through the streets in gangs, chained—Opponents of reform—Sydney Smith laughs at efforts of Prison Discipline Society—It continues to work undeterred—Gives attention to tread-wheels—Also to plans for prison construction—Faulty prison architecture—Society rewarded by new legislation, and devotes itself to seeing that new Acts are observed—Borough prisons the worst—Acts did not apply to them—Great diversity of practice and discipline prevail—Various hours of labour—Borough gaols continue bad because municipalities beyond reach of the law—Description of worst borough gaols—Newgate continues a bye-word—Its shortcomings—Further legislation—Report of Lords' Committee in 1835—Reform of Municipal Corporations brings about reform in borough prisons.

WHILE Mrs. Fry was diligently engaged upon her self-imposed task in Newgate, other earnest people, inspired doubtless by her noble example, were stirred up to activity in the same great work. It began to be understood that prison reform could only be compassed by continuous and combined effort. The pleadings, however eloquent, of a single individual were unable to more than partially remedy the widespread and colossal evils of British prisons. Howard's energy and devotion were rewarded by lively sympathy, but the desire to improve which followed his exposures was but short-lived. It was so powerless against the persistent neglect of those intrusted with prison management, that, five-and-twenty years later, Mr. Neild, a second Howard, as indefatigable and self-sacrificing, found by personal visitation that the condition of gaols throughout the kingdom was, with a few bright exceptions, still deplorable and disgraceful. Mr. Neild was compelled to admit in 1812 that "the great reformation produced by Howard was in several places merely temporary: some prisons that had been ameliorated under the persuasive influence of his kind advice were relapsing into their former horrid state of privation, filthiness, severity, or neglect; many new

dungeons had aggravated the evils against which his sagacity could not but remonstrate; the motives for a transient amendment were becoming paralyzed, and the effect had ceased with the cause.”

I have shown in a previous chapter what Newgate was at this period, despite a vast expenditure and boasted efforts to introduce reforms. Some of the county gaols, and one or two borough gaols, had been rebuilt, generally through the personal activity of influential and benevolent local magnates, but the true principles of prison construction were as yet but imperfectly understood, and such portions of the “improved” gaols of that period as were still extant a few years back, contrast ludicrously with the prison architecture based upon a century’s experience of our own age.

The neglect of prison reform in those days was not to be visited upon the legislature. The executive, although harassed by internal commotion and foreign war, was not entirely callous to the crying need for amelioration in gaols. Measures remedial, although at best partial and incomplete, were introduced from time to time. Thus in 1813 the exaction of gaol fees had been forbidden by law, and two other acts more peremptory and precise followed on the same subject in succeeding years. In 1814 a bill was brought in to insist upon the appointment of chaplains in gaols, and when this had passed into law, it was subsequently amplified, and the rates of salaries fixed. Various acts were also passed to consolidate and amend previous gaol acts. The erection of new prison buildings was made imperative under certain conditions and following certain rules; the principle of classification was freshly enunciated; prison regulations were framed for general observance. But the effect of this legislation was rather weakened by the remoteness of the pressure exercised. The onus of improvement lay upon the magistracy, the local authorities administering local funds, and they were not threatened with any particular penalties if they evaded or ignored the new acts. Moreover, the laws applied more particularly to county jurisdictions. The borough gaols, those in fact under corporate management, were not included in the new measures; it was hoped that their rulers would hire accommodation in the county prisons, and that the inferior establishments would in course of time disappear. Yet the borough gaols were destined to survive many years, and to exhibit for a long time to come all the worst features of gaol mismanagement.

It was in 1817 that a small band of philanthropists resolved to form themselves into an association for the improvement of prison discipline.

They were hopeless of any general reform by the action of the executive alone. They felt that private enterprise might with advantage step in, and by the collection and diffusion of information, and the reiteration of sound advice, greatly assist the good work. The association was organized under the most promising auspices. A king's son, the Duke of Gloucester, was the patron; among the vice-presidents were many great peers of the realm, several bishops, and a number of members of the House of Commons, including Mr. Manners Sutton, Mr. Sturges Bourne, Sir James Mackintosh, Sir James Scarlett, and William Wilberforce. An active committee was appointed, comprising many names already well known, some of them destined to become famous in the annals of philanthropy. One of the moving spirits was the Honourable H. G. Bennet, M.P., whose vigorous protests against the lamentable condition of Newgate have already been recorded. Mrs. Fry's brother, Mr. Samuel Hoare, Junior, was chairman of the committee, on which also served many noted members of the Society of Friends—Mr. Gurney, Mr. Fry, Messrs. Forster, and Mr. T. F. Buxton, the coadjutor of Wilberforce in the great anti-slavery struggle. Mr. Buxton had already been associated with Mrs. Fry in the Newgate visitation, and his attention had thus been drawn to the neglected state of English prisons. When in Belgium he had examined with great satisfaction the admirable management of the great “Maison de Force” at Ghent,^[60] which Howard had eulogized some forty years before. Mr. Buxton communicated what he had seen at Ghent to the Prison Discipline Society, and was induced to make the account public. In order to give greater value to the pamphlet, he personally visited several English gaols, and pointed his observations by drawing forcible contrasts between the good and bad.

Mr. Buxton's small work on prison discipline^[61] gave a new aspect to the question he had so much at heart. For the first time the doctrine was enunciated that prisoners had rights of their own. The untried, and in the eyes of the law still innocent, could claim pure air, wholesome and sufficient food, and opportunities for exercise. They had a right, Mr. Buxton affirmed, to be employed in their own crafts, provided it could be safely followed in prison. “You have no right,” he says, addressing the authorities, “to subject a prisoner to suffering from cold, by want of bed-clothing by night or firing by day; and the reason is plain: you have taken him from his home, and have deprived him of the means of providing himself with the necessaries or comforts of life, and therefore you are bound to furnish him

with moderate indeed but suitable accommodation.” “You have for the same reason,” he goes on, “no right to ruin his habits by compelling him to be idle, his morals by compelling him to mix with a promiscuous assemblage of hardened and convicted criminals, or his health by forcing him at night into a damp, unventilated cell, with such crowds of companions as very speedily render the air foul and putrid; or to make him sleep in close contact with the victims of contagious and loathsome disease, or amidst the noxious effluvia of dirt and corruption. In short, attention to his feelings, mental and bodily, a supply of every necessary, abstraction from evil society, the conservation of his health and industrious habits, are the clear, evident, undeniable rights of an unconvicted prisoner.” Nor even when found guilty and his liberty forfeited did his privileges cease. The law appointed a suitable punishment for the offence; it was for those charged with the administration of the law to guard carefully against any aggravation of that punishment, to see that “no circumstances of severity are found in his treatment which are not found in his sentence.” No judge ever condemned a man to be half-perished with cold by day, or half-suffocated with heat by night. “Who ever heard of a criminal being sentenced to catch the rheumatism or the typhus fever?” “Disease, cold, famine, nakedness, and contagious and polluted air are not lawful punishments in the hands of the civil magistrates; nor has he a right to poison or starve his fellow-creatures.”^[62] “The convicted delinquent has his rights,” said Mr. Buxton authoritatively. “All measures and practices in prison which may injure him in any way are illegal, because they are not specified in his sentence; he is therefore entitled to a wholesome atmosphere, decent clothing and bedding, and a diet sufficient to support him.”

These somewhat novel but undoubtedly indisputable propositions were backed up, not by sound arguments only, but by the letter of the law. As Mr. Buxton pointed out, many old acts of parliament designed to protect the prisoner were still in full force. Some might be in abeyance, but they had never been repealed, and some were quite freshly imported upon the Statute Book. As far back as the reign of Charles II., a law was passed^[63] declaring that sufficient provision should be made for the relief and setting on work of “poor and needy prisoners committed to the common jail for felony and other misdemeanours, who many times perish before their trial; and the poor there living idle and unemployed become debauched, and come forth instructed in the practice of thievery and lewdness.” As a remedy, justices

of the peace were empowered to provide materials for the setting of poor prisoners to work, and to pay overseers or instructors out of the county rates. Again, the 22 Charles II. c. 20 ordered the gaoler to keep felons and debtors “separate and apart from one another, in distinct rooms, on pain of forfeiting his office and treble damages to the party aggrieved.” A much later act, the 14 Geo. III. c. 59 (1774), which was contemporaneous with Howard’s first journeys, laid down precise rules as regards cleanliness, and the proper supply of space and air. This act set forth that “whereas the malignant fever commonly called the jail distemper is found to be owing to want of cleanliness and fresh air in the several jails, the fatal consequences whereof might be prevented if the justices of the peace were duly authorized to provide such accommodations in jails as may be necessary to answer this salutary purpose, it is enacted that the justices shall order the walls of every room to be scraped and white-washed once every year.” Ventilators, hand and others, were to be supplied. An infirmary, consisting of two distinct rooms, one for males and one for females, should be provided for the separate accommodation of the sick. Warm and cold baths, or “commodious bathing tubs,” were to be kept in every gaol, and the prisoners directed to wash in them before release. These provisions were almost a dead letter. Yet another act passed in 1791, if properly observed, should have insured proper attention to them. By the 31 Geo. III. c. 46, s. 5, two or more justices were appointed visitors of prisons, and directed to visit and inspect three times every quarter. They were to report in writing to quarter sessions as to the state of the gaol, and as to all abuses which they might observe therein.

The most important gaol act of that early period, however, was the 24 Geo. III. c. 54, s. 4 (1784), which was the first legislative attempt to compel the classification of prisoners, or their separation into classes according to their categories or crimes. It was made incumbent upon the justices to provide distinct places of confinement for five classes of prisoners, viz.—

1. Prisoners convicted of felony.
2. Prisoners committed on a charge or suspicion of felony.
3. Prisoners guilty of misdemeanours.
4. Prisoners charged with misdemeanours.
5. Debtors.

It was further ordered that male prisoners should be kept perfectly distinct from the females. King's evidences were also to be lodged apart. Infirmaries separating the sexes were also to be provided, a chapel too, and warm and cold baths. "Care also was to be taken that the prisoners shall not be kept in any apartment underground."

In an early report of the Prison Discipline Improvement Society, published some six-and-thirty years after the promulgation of this act, the flagrant and persistent violations of it and others, which had continued through that long period, are forcibly pointed out. In 1818, out of five hundred and eighteen prisons in the United Kingdom, to which a total of upwards of one hundred thousand prisoners had been committed in the year, only twenty-three prisons were divided according to law; fifty-nine had no division whatever to separate males and females; one hundred and thirty-six had only one division for the purpose; sixty-eight had only two divisions, and so on. In four hundred and forty-five prisons no work of any description had been introduced for the employment of prisoners; in the balance some work was done, but with the most meagre results. The want of room was still a crying evil. In one hundred gaols, capable of accommodating only eight thousand five hundred and forty-five persons, as many as thirteen thousand and fifty-seven were crowded. Many of the gaols were in the most deplorable condition: incommodious, as has been stated, insecure, unhealthy, and unprovided with the printed or written regulations required by law. To specify more particularly one or two of the worst, it may be mentioned that in the Borough Compter the old evils of indiscriminate association still continued unchecked. All prisoners passed their time in absolute idleness, or killed it by gambling and loose conversation. The debtors were crowded almost inconceivably. In a space twenty feet long by six wide, twenty men slept on eight straw beds, with sixteen rugs amongst them, and a piece of timber for a bolster. Mr. Buxton, who found this, declared that it seemed physically impossible, but he was assured that it was true, and that it was accomplished by "sleeping edgeways." One poor wretch, who had slept next the wall, said he had been literally unable to move for the pressure. "In the morning the stench and heat were so oppressive that he and every one else on waking rushed unclothed into the yard;" and the turnkey told Mr. Buxton that the "smell on first opening the door was enough to knock down a horse." The hospital was filled with infectious cases, and in one room, seven feet by nine, with

closed windows, where a lad lay ill with fever, three other prisoners, at first perfectly healthy, were lodged. Of course they were seized with the fever; so that the culprit, in addition to his sentence, had to endure by “the regulations of the city a disease very dangerous in its nature,” and ran the risk of a lingering and painful death.^[64]

At Guildford prison, which Mr. Buxton also visited in 1818, there was no infirmary, no chapel, no work, no classification. The irons, which nearly every one wore, were remarkably heavy; those double ironed could not take off their small clothes.^[65] No prison dress was allowed, and half the inmates were without shirts or shoes or stockings. The diet was limited to dry bread, which was of the best certainly, and a pound and a half in weight. Matters were on much the same footing at St. Albans. They were far worse at Bristol, although at Mr. Buxton’s visit a new gaol was in process of erection, the first step towards reform since Howard’s visitation in 1774. In 1818 the old gaol was so densely packed that it was nearly impossible to pass through the yards for the throng. One hundred and fifty were lodged in a prison just capable of holding fifty-two. In the crowd, all of them persons who had “no other avocation or mode of livelihood but thieving,” Mr. Buxton counted eleven children—children hardly old enough to be released from the nursery. All charged with felony were in heavy irons, without distinction of age. All were in ill health; almost all were in rags; almost all were filthy in the extreme. The state of the prison, the desperation of the prisoners, broadly hinted in their conversation and plainly expressed in their conduct, the uproar of oaths, complaints, and obscenity, “the indescribable stench,” presented together a concentration of the utmost misery and the utmost guilt. It was “a scene of infernal passions and distresses,” says Buxton, “which few have imagination sufficient to picture, and of which fewer still would believe that the original is to be found in this enlightened and happy country.”

There was still worse to come. Having explored the yards and adjacent day rooms, and sleeping cells, a door was unlocked, the visitors were furnished with candles, and they descended eighteen long steps into a vault. At the bottom was a circular space, through which ran a narrow passage, and the sides of which were fitted with barrack bedsteads. The floor was on the level of the river, and very damp. The smell at one o’clock of the day “was something more than can be expressed by the term disgusting.” On the dirty bedstead lay a wretched being in the throes of severe illness. The only

ventilation of this pit, this “dark, cheerless, damp, unwholesome cavern—a dungeon in its worst sense”—was by a kind of chimney, which the prisoners kept hermetically sealed, and which had never been opened in the memory of the turnkey. Untried persons were often lodged in this nauseous underground den, and sometimes slept in “the pit,” loaded with heavy irons for a whole year, waiting the gaol delivery. Confinement for twelve months in the Bristol gaol was counted a punishment equivalent to seven years’ transportation.

In this prison there was no female infirmary. Sick women and their children remained in the ordinary wards, and propagated disease. No prison dress was allowed; no reception-room was provided, no soap, towels, or baths. The bedclothes consisted only of a single “very slight” rug. The allowance of food daily to felons was a fourpenny loaf, a price which in those days fluctuated enormously—as much as a hundred per cent. in a couple of years; but as no similar variation occurred in the prisoner’s appetite, his ration was somewhat precarious. As for the debtors, they had no allowance whatever, and were often in imminent danger of starvation. With all this, the inmates were crowded together at night to such a degree as to excite surprise that they should escape suffocation. There reigned through the whole edifice a chilly, damp, unwholesome atmosphere, and the effluvia from the prisoners was so nauseous that the chaplain found it necessary to take his place before they entered chapel, as he could not otherwise have faced the smell.

It is consoling to know that there were a few brilliant exceptions to this cruel, callous neglect. Already, as early as 1818, a prison existed at Bury St. Edmunds which was a model for imitation to others at that time, and which even fulfilled many of the exacting requirements of modern days. The great principles of classification, cleanliness, and employment were closely observed. There were eighty-four separate sleeping-cells, and unless the gaol was overcrowded, every inmate passed the night alone, and in comparative comfort, with a bed and proper bedding. The prison stood on a dry, airy situation outside the town. Prisoners on reception were treated as they are now-a-days—bathed, dressed in prison clothes, and inspected by the surgeon. No irons were worn except as a punishment. Personal cleanliness was insisted upon, and all parts of the prison were kept scrupulously clean. There was an infirmary, properly found and duly looked after. No idleness was permitted among the inmates. Trades were taught, or

prisoners were allowed to follow their own if suitable. There was, besides, a mill for grinding corn, somewhat similar to a turn-spit, which prisoners turned by walking in rows. This made exertion compulsory, and imposed hard labour as a proper punishment. Another gaol, that of Ilchester, was also worthy of all commendation. It exhibited all the good points of that at Bury. At Ilchester the rule of employment had been carried further. A system not adopted generally till nearly half a century later had already prevailed at Ilchester. The new gaol had been in a great measure constructed by the prisoners themselves. Masons, bricklayers, carpenters, painters had been employed upon the buildings, and the work was pronounced excellent by competent judges. Industrial labour had also been introduced with satisfactory results. Blanket weaving and cloth spinning was carried on prosperously, and all the material for prisoners' apparel was manufactured in the gaol. There were work-rooms for wool-washing, dyeing, carding, and spinning. The looms were constantly busy. Tailors were always at work, and every article of clothing and bedding was made up within the walls. There was a prison laundry too, where all the prisoners' linen was regularly washed. The moral welfare of the inmates was as closely looked after as the physical. There was an attentive chaplain, a schoolmaster, and regular religious and other instruction.

Compared with those highly meritorious institutions Newgate still showed but badly. Its evils were inherent and irremediable, but some ameliorating measures had been introduced, mainly through the exertions of a new governor, Mr. Brown, who succeeded Mr. Newman at Newgate in 1817.^[66] The most noticeable of the improvements introduced was a better regulation of dietaries within the prison. The old haphazard system, by which meat was issued in bulk, a week's allowance at a time, was abolished, and there was a regular scale of daily rations adopted. The diet was now ample. It consisted of a pound and a half of bread per diem; for breakfast a pint of gruel; for dinner half a pound of boiled meat, or a quart of soup with vegetables, on alternate days. The food was properly prepared in the prison kitchen. Meat was no longer issued raw, to be imperfectly cooked before a ward fire and bolted gluttonously, the whole two pounds at one sitting. Mr. Brown confidently asserted that no gaol in England now fed its inmates so well as did Newgate. So plentiful was this dietary, that although the old permission remained in force of allowing the friends of prisoners to bring them supplies from outside, the practice was falling into

abeyance, and the prisoners seldom required private assistance to eke out their meals.^[67] It was also claimed for the more ample and more orderly distribution of victuals, that the general health of the prisoners had greatly improved. Mr. Brown also, much to his own credit, brought about the abandonment of the practice of ironing all prisoners as a matter of course.

In 1818 prisoners awaiting trial in Newgate, were at length relieved from this illegal infliction. Convicts were not even compelled to wear irons, providing they behaved well. It was found that shackles might be safely dispensed with, even in the case of the most desperate characters. This was effected by stopping the nearly indiscriminate admission of visitors, which had hitherto prevailed all over the gaol. Ironing it will be remembered,^[68] was a distinguishing badge, so that when the gaol was cleared the free might be readily known from the captive, and escapes prevented. Under the new rule visitors were not allowed to pass into the interior of the prison, but were detained between the grating. This change led to some discontent, until it was found that the much greater boon of relief from irons accompanied it, and the reform was quietly accepted. Indeed the best consequences followed from the removal of irons. The prisoners were much better disposed; there were no riots, and fewer disturbances.

But nothing short of radical reform and complete reconstruction could touch the deep-seated evils of association, overcrowding, and idleness. The first still produced deplorable results—results to be observable for many years to come. Mr. Buxton mentions the case of a boy whose apparent innocence and artlessness had attracted his attention. He had been committed for an offence for which he was acquitted. He left Newgate utterly corrupted, and after lapsing into crime, soon returned with a very different character. Other cases of moral deterioration have already been recorded. Some attempt was made to reduce the overcrowding, on the recommendation of the House of Commons Committee of 1818, but this applied only a partial remedy. The bulk of the prisoners were still left in idleness. A few fortunate criminals, many of them kept back from transportation on purpose, who were skilled in trades, were employed at them. Painters, plasterers, and carpenters were allowed to follow their handicrafts, with the reward of sixpence per diem and a double allowance of food. They used their own tools, and this without any dangerous consequences as regards facilitating the escape of others, thus disposing of the objection so long raised against the industrial employment of prisoners

in Newgate. But this boon of toil was denied to all but a very limited number. As the Prison Discipline Society pertinently observed in a report dated 1820, "It is obvious that reformation must be materially impeded, and in some cases utterly defeated, when the prisoners are defectively classed, remain without constant inspection or employment, and are consequently condemned to habits of idleness and dissipation."

Newgate prisoners were the victims to another most objectionable practice which obtained all over London. Persons committed to a metropolitan gaol at that time were taken in gangs, men and women handcuffed together, or linked on to a long chain, unless they could afford to pay for a vehicle out of their own funds. Even then they were not certain of the favour, for I find a reference to a decent and respectable woman sent to Newgate, who handed a shilling to the escort warder to provide her with a hackney coach; but this functionary pocketed the cash, and obliged the woman to walk, chained to the rest. As the miserable crew filed through the public streets, exposed to the scornful gaze of every passenger, they were followed by a crowd of reckless boys, who jeered at and insulted them. Many thus led in procession were in a shocking condition of dirt and misery, frequently nearly naked, and often bearing upon them the germs, more or less developed, of contagious disease. "Caravans," the forerunners of the prison vans, were first made use of about 1827. That the need for prison reform was imperative may be gathered from the few out of many instances I have adduced, yet there were those who, wedded to ancient ideas, were intolerant of change; they would not admit the existence of any evils. One smug alderman, a member of the House of Commons, sneered at the ultra philanthropy of the champions of prison improvement. Speaking on a debate on prison matters, he declared that "our prisoners have all that prisoners ought to have, without gentlemen think they ought to be indulged with Turkey carpets." The Society for the Improvement of Prison Discipline was taxed with a desire to introduce a system tending to divest punishment of its just and salutary terrors; an imputation which the Society indignantly and very justly repudiated, the statement being, as they said, "refuted by abundant evidence, and having no foundation whatever in truth."

Among those whom the Society found arrayed against it was Sydney Smith, who, in a caustic article contributed to the 'Edinburgh Review,' protested against the pampering of criminals. While fully admitting the good intentions of the Society, he condemned their ultra humanitarianism as

misplaced. He took exception to various of the proposals of the Society. He thought they leant too much to a system of indulgence and education in gaols. He objected to the instruction of prisoners in reading and writing. “A poor man who is lucky enough,” he said, “to have his son committed for a felony educates him under such a system for nothing, while the virtuous simpleton who is on the other side of the wall is paying by the quarter for these attainments.” He was altogether against too liberal a diet; he disapproved of industrial occupations in gaols, as not calculated to render prisons terrible. “There should be no tea and sugar, no assemblage of female felons around the washing-tub, nothing but beating hemp and pulling oakum and pounding bricks—no work but what was tedious, unusual.”... “In prisons, which are really meant to keep the multitude in order, and to be a terror to evil-doers, there must be no sharings of profits, no visiting of friends, no education but religious education, no freedom of diet, no weavers’ looms or carpenters’ benches. There must be a great deal of solitude, coarse food, a dress of shame, hard, incessant, irksome, eternal labour, a planned and regulated and unrelenting exclusion of happiness and comfort.”^[69]

Undeterred by these sarcasms and misrepresentations, the Society pursued its laudable undertaking with remarkable energy and great singleness of purpose. The objects it had in view were set forth in one of its earliest meetings. It sought to obtain and diffuse useful information, to suggest beneficial regulations, and circulate tracts demonstrating the advantages of classification, constant inspection, regular employment, and humane treatment generally, with religious and moral instruction. It earnestly advocated the appointment of female officers to take exclusive charge of female prisoners, a much-needed and, according to our ideas, indispensable reform, already initiated by the Ladies’ Committee at Newgate.^[70] It made the subject of the newly-invented tread-wheels, or stepping-wheels, as they were at first called, its peculiar affair, and obtained full details, from places where they had been adopted, of the nature of these new machines,^[71] the method by which they were worked, and the dietaries of the prisoners employed upon them. Nor did it confine itself to mere verbal recommendations. The good it tried to do took active shape in the establishment of temporary refuges—at Hoxton for males, and in the Hackney Road for females—for the reception of deserving cases discharged from prison. The governor of Newgate and other metropolitan prisons had

orders of admission to this refuge, which he could bestow on prisoners on release, and so save the better-disposed or the completely destitute from lapsing at once into crime. The refuge, which had for its object the training of its inmates in habits of industry, and in moral and religious duty, and which after a time sought to provide them with suitable situations, was supported entirely out of the funds of the Society. At the time of its greatest prosperity, its annual income from donations and subscriptions was about £1600.

Another point to which the Society devoted infinite pains was the preparation of plans for the guidance of architects in the construction of prisons. A very valuable volume published by the Society traced the progress of prison architecture from the days when the gaol was the mere annexe of the baronial or episcopal castle, or a dungeon above or below the gate of a town, to the first attempts at systematic reconstruction carried out under the advice and supervision of Howard.^[72] It is interesting to observe that the plan of “radiation,” by which the prison blocks radiated from a central hall, like spokes in a wheel, was introduced as early as 1790 by Mr. Blackburn, an architect of eminence who was very largely employed in the erection of prison buildings at the close of the last century. With some important modifications this principle of radiation is still the rule. The Society did not limit its remarks to the description of what had already been done, but it offered suggestions for future buildings, with numerous carefully-executed drawings and designs of the model it recommended for imitation. Experience has since shown that in some respects these plans are defective, especially in the placing of the governor’s residence in the centre of the prison. It was thought that this would guarantee constant supervision and inspection, but it did nothing of the kind, and only the presence of warders on duty is found now-a-days to be really efficacious. The main recommendations, however, are based upon common sense, and none are more commendable than that which deprecates the excessive ornamentation of the external parts of the edifice. “The new gaols,” as Howard says, “having pompous fronts, appear like palaces to the lower class of people, and many persons are against them on this account.” The Prison Society reproves the misdirected efforts of ambitious architects, who by a lavish and improvident expenditure of public money sought to “rank the prisons they built among the most splendid buildings of the city or town.” Absence of embellishment is in perfect unison with the character of the establishment.

These are principles fully recognized now-a-days, and it may fairly be conceded that the Prison Discipline Society's ideal differed little from that kept in view in the construction of the latest and best modern gaols.

After a few years of active exertion the Society was rewarded by fresh legislation. To its efforts, and their effect upon Parliament and the public mind, we must attribute the new Gaol Acts of 4 Geo. IV. cap. 64, and 5 Geo. IV. cap. 85, which having gone through several sessions, at last became law in 1823-4. By the preamble of the first-named act it was declared "expedient to introduce such measures and arrangements as shall not only provide for the safe custody, but shall also tend more effectually to preserve the health and improve the morals of the prisoners, and shall insure the proper measure of punishment to convicted offenders." Accordingly due provision was made for the enforcement of hard labour on all prisoners sentenced to it, and for the employment of all others. As a rider to this enactment, it was laid down that any prisoner who could work and would not had no claim to be supported in gaol, "unless such ability (to work) should cease by reason of sickness, infirmity, the want of sufficient work, or from any other cause." It was distinctly laid down that male and female prisoners should be confined in separate buildings or parts of the prison, "so as to prevent them from seeing, conversing, or holding any intercourse with each other." Classification was insisted upon, in the manner laid down by the 24 Geo. III. cap. 54,^[73] with such further separation as the justices should deem conducive to good order and discipline. Female prisoners were in all cases to be under the charge of female officers. Every prison containing female prisoners was to have a matron who was to reside constantly in the prison. The religious and moral welfare of the prisoners were to be attended to, the first by daily services, the latter by the appointment of schoolmasters and instruction in reading and writing. Last, but not least, the use of irons was strictly forbidden, "except in cases of urgent and absolute necessity," and every prisoner was to be provided with a hammock or cot to himself, suitable bedding, and, if possible, a separate cell. The second act, passed in the following year, enlarged and amended the first, and at the same time gave powers to the House to call for information as to the observance of its provisions.

The promulgation of these two Gaol Acts strengthened the hands of the Prison Discipline Society enormously. It had now a legal and authoritative standard of efficiency to apply, and could expose all the local authorities

that still lagged behind, or neglected to comply with the provisions of the new laws. The Society did not shrink from its self-imposed duty, but continued year after year, with unflagging energy and unflinching spirit, to watch closely and report at length upon the condition of the prisons of the country. For this purpose it kept up an extensive correspondence with all parts of the kingdom, and circulated queries to be answered in detail, whence it deduced the practice and condition of every prison that replied. Upon these and the private visitations made by various members the Society obtained the facts, often highly damnatory, which were embodied in its annual reports. The progress of improvement was certainly extremely slow. It was long before the many jurisdictions imitated the few. Gaols, of which the old prison at Reading was a specimen, were still left intact. In that prison, with its cells and yards arranged within the shell of an ancient abbey chapel, the prisoners, without firing, bedding, or sufficient food, spent their days “in surveying their grotesque prison, or contriving some means of escape by climbing the fluted columns which supported the Gothic arches of the aisles, and so passing by the roof down into the garden and on to freedom.” In a county prison adjoining the metropolis, the separation between the male and female quarters was supposed to be accomplished by the erection of an iron railing; in this same prison capital convicts were chained to the floor until execution. In another gaol not far off male and female felons still occupied the same room—underground, and reached by a ladder of ten steps. In others the separation between the sexes consisted in a hanging curtain, or an imaginary boundary line, and nothing prevented parties from passing to either side but an empty regulation which all so disposed could defy. Numbers of the gaols were still unprovided with chaplains, and the prisoners never heard Divine service. In many others there were no infirmaries, no places set apart for the confinement of prisoners afflicted with dangerous and infectious disorders. No attempt was made to maintain discipline. Half the gaols had no code of rules properly prepared and sanctioned by the judges, according to law.

By degrees, however, the changes necessary to bring the prisons into conformity with the recent acts were attempted, if not actually introduced into the county prisons, to which, with a few of the more important city or borough prisons, these acts more especially applied.^[74] Most of the local authorities embarked into considerable expenditure, determined to rebuild their gaols *de novo* on the most approved pattern, or to reappropriate,

reconstruct, and patch up the existing prisons till they were more in accordance with the growing requirements of the times. Religious worship became more generally the rule; chaplains were appointed, and chapels provided for them; surgeons and hospitals also. Workshops were built at many prisons, various kinds of manufactures and trades were set on foot, including weaving, matting, shoe-making, and tailoring. The interior of one prison was illuminated throughout with gas,—still a novelty, which had been generally adopted in London only four years previously,—“a measure which must greatly tend to discourage attempts to escape.” There were tread-wheels at most of the prisons, and regular employment thereon or at some other kind of hard labour. In many places too where the prisoners earned money by their work, they were granted a portion of it for their own use after proper deduction for maintenance. Only a few glaring evils still demanded a remedy. The provision of separate sleeping cells was still quite inadequate. For instance, in twenty-two county gaols there were 1063 sleeping cells in all (in 1823), and the average daily number committed that year amounted to 3985. The want of sleeping cells long continued a crying need. Four years later the Prison Society reported that in four prisons, which at one time of the year contained 1308 prisoners, there were only sixty-eight sleeping rooms or cells, making an average of nineteen persons occupying each room. At the New Prison, Clerkenwell, which had become the principal reception gaol of Middlesex, and so took all the untried, the sleeping space per head was only sixteen inches, and often as many as 293 men^[75] had to be accommodated on barrack beds occupying barely 390 feet lineal. The “scenes of tumult and obscenity” in these night rooms are said to have been beyond description; a prisoner in one nocturnal riot lost an eye. Yet to Clerkenwell were now committed the juveniles, and all who were inexperienced in crime.

Great want of uniformity in treatment in the various prisons was still noticeable, and was indeed destined to continue for another half century, in other words, until the introduction of the Prison Act of 1877.^[76] At the time of which I am writing there was great diversity of practice as regards the hours of labour. In some prisons the prisoners worked seven hours a day, in others ten and ten and a half. The nature of the employment varied greatly in severity, especially the tread-wheel labour. In some county gaols, as I have already said, female prisoners were placed upon the tread-wheel; in others women were very properly exempted from it, and also from all

severe labour. Earnings were very differently appropriated. Here the prisoners were given the whole amount, there a half or a third. Sometimes this money might be expended in the purchase of extra articles of food.^[77] The rations varied considerably everywhere. It was still limited to bread in some places, the allowance of which varied from one to three pounds; in others meat, soup, gruel, beer were given. Here and there food was not issued in kind, but a money allowance which the prisoner might expend himself. Bedding and clothing was still denied, but only in a few gaols; in others both were supplied in ample quantities, the cost varying per prisoner from twenty shillings to five pounds. It was plain that although the law had defined general principles of prison government, too much discretion was still left to the magistracy to fill in the details. The legislature only recommended, it did not peremptorily insist. Too often the letter of the law was observed, but not its spirit.

One great impediment to wide amelioration was that a vast number of small gaols lay out of reach of the law. When the new acts were introduced, numerous prisons under local jurisdiction were exempted from the operation of the law. They were so radically bad that reform seemed hopeless, and it was thought wiser not to bring them under provisions which clearly could not be enforced. Mr. Peel, who as Home Secretary had charge of the bill, which became the 4 Geo. IV. cap. 64, said that he had abstained from legislating for these small jurisdictions "on mature deliberation." "It is not," he said, "that I am insensible of the lamentable and disgraceful situation in which many of them are, but I indulge a hope that many of them will contract with the counties, that many of them will build new gaols, and that when in a year or two we come to examine their situation, we shall find but few which have not in one or other of these ways removed the grievance of which such just complaint is made. When that time arrives I shall not hesitate to ask Parliament for powers to compel them to make the necessary alterations, for it is not to be endured that these local jurisdictions should remain in the deplorable situation in which many of them now are."

At this time there were in England one hundred and seventy boroughs, cities, towns, and liberties which possessed the right of trying criminals for various offences. Nearly every one of these jurisdictions had its own prison, and there were one hundred and sixty such gaols in all. Many of them consisted of one or two rooms at most. The total number of prisoners they received during the year varied from two persons to many hundreds. It was

in these gaols, withdrawn from the pressure of authority, that the new rules were invariably ignored. The right and privilege of the borough to maintain its own place of confinement was so “ancient and indisputable,” that for long no idea of interfering with them was entertained. All that was urged was that the borough magistracy had no right to govern their gaols so as to corrupt those committed, “to the injury of the peace and morals of the public.” As time passed, however, these magistrates made no effort at reform. They neither built new gaols nor contracted with the counties, as had been expected, for the transfer of their prisoners. As the Society put it in 1827, “the friends to the improvement of prison discipline will regret to learn that the gaols attached to corporate jurisdictions continue to be the fruitful sources of vice and misery, debasing all who are confined within their walls, and disseminating through their respective communities the knowledge and practice of every species of criminality.” The Society proceeded to support this indictment by facts. It is much the old story. The prisoners were lodged in rooms whence they could converse with passengers in the streets, and freely obtain spirits and other prohibited articles. All descriptions of offenders congregated together in the felons’ wards. The keeper and his officers resided at a distance from the gaol, and left its inmates to their own devices. There was no decency whatever in the internal arrangements; still no separation of the sexes, no means of ablution or other necessary services. One borough prison consisted of nothing more than a couple of cells, about ten yards square, and absolutely nothing more. In another borough, with a population of ten thousand, the prison was of the same dimensions. One cell was a dungeon, and the other an “improper and unhealthy abode for any human being,” with a watercourse running through it.

Most of these small gaols were still in existence and in much the same state eight years later, as is shown by the report of the Commissioners to inquire into the state of the municipal corporations in 1835. An examination of this report shows how even the most insignificant township had its gaol. Thus Dinas Mwddy, in Merionethshire, had, “besides the pinfold and the stocks or crib, a little prison.” Clun, in Shropshire, had a lock-up under the town hall. At Eye, in Suffolk, the gaol was part of the poor-house; so it was at Richmond, in Yorkshire, where the master of the workhouse was also keeper of the gaol. At Godmanchester there was no gaol, but a cage to secure prisoners till they could be taken before a magistrate. Kidderminster

had a prison, one damp chill room, “the only aperture through which air could be admitted being an iron grating level with the street, through the bars of which quills or reeds were inserted, and drink conveyed to the prisoners.” At Walsall, in Staffordshire, the gaol consisted of six cells, frequently so damp that the moisture trickled down the walls; there was not space for air or exercise, and the prison allowance was still limited to bread and water.

Newgate through all these years continued a bye-word with the Society. Some reforms had certainly been introduced, such as the abolition of irons, already referred to, and the establishment of male and female infirmaries. The regular daily visitation of the chaplain was also insisted upon. But it was pointed out in 1823 that defective construction must always bar the way to any radical improvement in Newgate. Without enlargement no material change in discipline or interior economy could possibly be introduced. The chapel still continued incommodious and insufficient; female prisoners were still exposed to the full view of the males, the netting in front of the gallery being perfectly useless as a screen. In 1824 Newgate had no glass in its windows, except in the infirmary and one ward of the chapel yard; and the panes were filled in with oiled paper, an insufficient protection against the weather; and as the window-frames would not shut tight, the prisoners complained much of the cold, especially at night. There was a diminution in the numbers in custody, due to the adoption of the practice of not committing at once to Newgate every offender for trial at the Old Bailey, but nothing had been done to improve the prison buildings. In 1827 the Society was compelled to report that “no material change had taken place in Newgate since the passing of the prison laws,^[78] and that consequently the observance of their most important provisions was habitually neglected.” It was enacted that the court of aldermen should make rules for the government of the prison, and that these should be posted publicly within the walls. As yet no rules or regulations had been printed or prepared. By another clause of the Gaol Act, two justices were to be appointed to visit the prison at least thrice in every quarter, and “oftener if occasion required.” These justices were to inspect every part of the prison, and examine into the state and condition of prisoners. The city justices had not fulfilled this obligation. Idleness was still the general rule for all prisoners in Newgate, in defiance of the law. There was no instruction of adult prisoners, in accordance with the law. The sleeping

accommodation was still altogether contrary to the latest ideas. The visits of friends was once more unreservedly allowed, and these incomers freely brought in extra provisions and beer. Last, and worst of all, the arrangements for keeping the condemned prisoners between sentence and execution were more than unsatisfactory. They were not confined apart from each other, but were crowded thirty or forty together in the press yard, so that “corrupt conversation obliterated from the mind of him who is doomed to suffer every serious feeling and valuable impression.”^[79] I shall have more to say on this subject, and upon the state of Newgate generally, in the following chapter.

The Prison Society did not relax its efforts as time passed, but its leading members had other and more pressing claims upon their energies. Mr. Buxton had succeeded to the great work which William Wilberforce had commenced, and led the repeated attacks upon slavery in British colonies till the whole body of the slaves were manumitted in 1833. In the year immediately preceding this, Parliament was too busy with the great question of its own reform to spare much time for domestic legislation. Nevertheless a committee of the House of Commons was appointed in 1831 to report upon the whole system of secondary punishments, which dealt with gaols of all classes, as well as transportation. This committee animadverted strongly upon the system in force at the metropolitan gaols, and more especially upon the condition of Newgate, where “prisoners before and after trial are under no efficient superintendence,” and where “there was no restraint, or attempt at restraint.” Mr. Samuel Hoare was examined by this committee, and stated that in his opinion Newgate, as the common gaol of Middlesex, was wholly inadequate to the proper confinement of its prisoners. From the moment of a person’s committal he was certain to be plunged deeper and deeper in guilt. The prisoners were crowded together in the gaol, contrary to the requirements of the 4 Geo. IV. Again in 1835 prisons and their inmates became once more the care of the senate, and the subject was taken up this time by the House of Lords. A committee was appointed, under the presidency of the Duke of Richmond, “to inquire into and report upon the several gaols and houses of correction in the counties, cities, and corporate towns within England and Wales; upon the rules and discipline therein established with regard to the treatment of unconvicted as well as convicted persons.” The committee was also to report upon the manner in which sentences were carried out, and to

recommend any alterations necessary in the rules in order to insure uniformity of discipline. It met on the 31st March, 1835, and continued its sittings well into July, during which time a host of witnesses were examined, and the committee presented three separate reports, embodying recommendations which may be said to have formed the basis of modern prison management.

It was laid down as a first and indispensable principle that uniformity of discipline should prevail everywhere, a theory which did not become a practical fact for forty more years. As a means of securing this uniformity, it was suggested that the rules framed for prison government should be subjected to the Secretary of State for approval, and not, as heretofore, to the judges of assize; that, both to check abuses and watch the progress of improvement, inspectors of prisons should be appointed, who should visit all the prisons from time to time and report to the Secretary of State. It was recommended that the dietaries should be submitted and approved like the rules; that convicted prisoners should not receive any food but the gaol allowance; that food and fuel should be issued in kind, and never provided by the prisoners themselves out of monies granted them. The use of tobacco, hitherto pretty generally indulged in both by men and women, should be strictly prohibited, "as a stimulating luxury inconsistent with any notion of strict discipline and the due pressure of just punishment." Prison officers should not have any share in prisoners' earnings, which should be paid into general prison funds, and no part of them handed over to the prisoners themselves. As a means of increasing the severity of imprisonment, letters and visits from outside should not be permitted during the first six months of an imprisonment. Various other recommendations were made as regards the appointment of chaplain and schoolmasters; the limitation of the powers of wardsmen, or prisoners employed in positions of trust, who should not be permitted to traffic with their fellow-prisoners in any way. The committee most of all insisted upon the entire individual separation of prisoners, except during the hours of labour, religious worship, and instruction, as "absolutely necessary for preventing contamination, and for securing a proper system of prison discipline." This was the first enunciation of the system of separate confinement, which was eventually to replace the attempted arrangement of prisoners by classes according to antecedents and crimes, an incomplete and fallacious method of preventing contamination. The Lords' Committee fully recognized the

painful fact that the greatest mischief followed from the intercourse which was still permitted in so many prisons; to use its words, “the comparatively innocent are seduced, the unwary are entrapped, and the tendency to crime in offenders not entirely hardened is confirmed by the language, the suggestions, and the example of more depraved and systematic criminals.”

This committee, as well as the one preceding it, also reported in terms of strong reprobation on the small prisons and gaols still under the borough corporations. The Commons’ Committee gave it as their opinion that they were in a deplorable state. The same language was used by the commissioners appointed to inquire into the municipal corporations in 1835, when speaking more particularly of the borough gaols. In these the commissioners found “additional proof of the evils of continuing the present constitution of the local tribunals. Instances rarely occur in which the borough gaols admit of any proper classification of the prisoners. In some large towns, as at Berwick on Tweed, Southampton, and Southwark, they (the prisons) are in a very discreditable condition. In many of the smaller boroughs they are totally unfit for the confinement of human beings. In these places the prisoners are often without a proper supply of air and light; frequently the gaols are mere dungeons under the town hall.... It was frequently stated in evidence that the gaol of the borough was in so unfit a state for the reception of prisoners, that plaintiffs were unwilling to consign the defendants against whom they had obtained execution to confinement within its walls.” The Lords’ Committee on Gaols were of the same opinion, and considered the prisons under corporate or peculiar jurisdiction in a very unsatisfactory condition. They therefore recommended that the prisoners should be removed to the county gaols from such prisons as were past improvement, and that the borough funds should be charged for the accommodation. The whole question was again dealt with in Lord John Russell’s bill for the reform of the municipal corporations, and with a more liberal election of town councillors, and the establishment of municipal institutions upon a proper footing, the borough gaols were brought more into accordance with the growing demand for a more humane system of prison management.

CHAPTER V.

THE FIRST REPORT OF THE INSPECTORS OF PRISONS.

Appointment of inspectors of prisons—Their names and antecedents—Mr. Crawford and Mr. Whitworth Russell at once visit Newgate, and make a searching inquiry—Find old evils still present—Overcrowding no longer excusable—Want of classification—The governor, Mr. Cope, blamed for this—Prisoners' treatment—No beds, uncleanly, and in rags—Baleful despotism of prisoner wardsmen, who have more power than the officers—Again proofs of Mr. Cope's neglect—Scenes of horror in Newgate—Gambling, drinking, debauchery—Flash books allowed—Libel of Stockdale v. Hansard grows out of this—Serious affrays in the wards—Prisoners badly wounded by one another—Extra and luxurious food admitted—Also visitors of both sexes indiscriminately—Same evils to a lesser degree on female side—Ladies' Association—No real separation of the sexes—Mr. Cope an offender in this respect—The press-yard or condemned convicts' yard the worst of all—Culpable and indiscriminate association—Brutal behaviour of many of those sentenced to death—The ordinary checked in his zeal—Criminal lunatics allowed to remain in Newgate—House of Commons' prisoners monopolize hospital and best accommodation in the gaol—Abuses of State Side revived in their case—Evils rampant briefly recapitulated by inspectors—Their report raises a storm in the city—Protest of the Corporation—Some attempt at reform—Many of the charges reiterated in later reports—No radical reform possible without complete reconstruction.

IN the preceding chapter I have been tempted by the importance of the general question to give it prominence and precedence over the particular branch of which I am treating. Newgate has remained rather in the background while the whole of the gaols as a body were under discussion. But this digression was necessary in order to present a more complete picture of the state of gaols in the early part of the present century, just before the public mind was first awakened to the need for thorough reform. I shall now return to the great gaol of the city of London, and give a more detailed account of its condition and inner life as the inspectors of prisons found them in 1835-6. These gentlemen were appointed in October 1835, owing to the strong representations of the Lords' Committee,^[80] backed up by the evidence of several influential witnesses. Mr. Samuel Hoare, when examined, considered it indispensably necessary, to carry out whatever system might be established, that inspectors should watch over the observance of the law. He saw no objection on the score of their probable interference with the local jurisdiction, but he would not arm them with any authority lest their co-operation might be offensive. Sir Frederick Roe was of the same opinion as regards the appointment, but he would give the

inspectors the power of acting as well as reporting. They should be persons, he thought, selected from the highest class; the duty was most important, one which required discretion, judgment, and knowledge of law, with sufficient insight and experience to discover defects in prison discipline. These considerations no doubt had weight with those who made the selection of the first inspectors, and the two gentlemen appointed were probably the most fitted in England to be so employed. One was Mr. William Crawford, the other the Rev. Whitworth Russell.

The first named had long been an active philanthropist, devoting himself more particularly to the reformation of juvenile criminals.^[81] William Crawford had been one of the promoters and managers of the Philanthropic Society's farm school. Later on he had devoted himself to the personal investigation of the prisons of the United States. At that time the mild and intelligent prison discipline in force in Pennsylvania, the legacy of the old Quaker immigrants, had made such prisons as Auburn a model for imitation. Several European states had despatched emissaries to examine and report upon them. France had sent MM. Beaumont and De Tocqueville, who subsequently published several interesting works on the subject. England was represented by Mr. Crawford, and the result of his inquiry was given to the public as an appendix to the House of Commons' 'Report on Secondary Punishments.' It is an able and exhaustive state paper, testifying to the keenness of the writer's perception, and his unremitting labour in pursuing his researches. Mr. Crawford was thoroughly versed in the still imperfectly understood science of prison management, and fully qualified for his new duties.

The second inspector, the Rev. Whitworth Russell, was the chaplain of Millbank penitentiary, the great architectural experiment which grew out of the strong representations of Jeremy Bentham and others, and was the first national recognition of the principle that punishment must be reformatory as well as deterrent.

Messrs. Crawford and Russell proceeded to carry out their new functions with commendable energy, and without a moment's loss of time. The ink was barely dry upon their letters of appointment before they appeared at Newgate, and commenced a searching investigation. They attended early and late; they mustered the prisoners, examined into their condition, took voluminous evidence from all classes of individuals, from the governor down to the convict in the condemned cells. They visited the wards after

locking-up time, and saw with their own eyes what went on. Having started with the proposition that the metropolitan prisons must monopolize their attention, as constituting, to use their own words, “a subject of magnitude and importance sufficient to exclude other gaols,” they soon narrowed their inquiry still further, and limited it to Newgate alone. Newgate indeed became the sole theme of their first report. The fact was that the years as they passed, nearly twenty in all, had worked but little permanent improvement in this detestable prison. Changes introduced under pressure had been only skin deep. Relapse was rapid and inevitable, so that the latter state of the prison was worse than the first. The disgraceful overcrowding had been partially ended, but the same evils of indiscriminate association were still present; there was the old neglect of decency, the same callous indifference to the moral well-being of the prisoners, the same want of employment and of all disciplinary control.

All these evils were set forth at length in the inspectors’ first report. There was no longer the faintest possible excuse for overcrowding. The numbers now committed to Newgate had sensibly diminished. The prison had become more or less a place of detention only, harbouring mainly those awaiting trial. To these were still added an average of about fifty expecting the last penalty of the law; a certain number of transports awaiting removal to the colonies; an occasional prisoner or two committed by the Houses of Parliament, the Courts of King’s Bench, Common Pleas, and Exchequer, the Commissioners of bankruptcy and of taxes; smugglers, and a larger number sentenced for very short terms, and for offences of the most varying description, by the Central Criminal Court. The sum total thus produced was inconsiderable compared with the hundreds that had formerly filled the gaol, and the whole by proper management might have been so accommodated as to prevent overcrowding. But incredible as it may appear, the authorities of Newgate declined to avail themselves of the advantages offered them, and when the population fell they shut up one half the gaol and crowded up the other. Some rooms remained quite empty and unoccupied, while others were full to overflowing. Not only were the wards thus needlessly crammed, and for no reason but the niggardliness of the corporation which refused a proper supply of bedding, but the occupants of each were huddled together indiscriminately. The inspectors found in the same wards in the chapel yard the convicted and the untried, the felon and the misdemeanant, the sane and the insane, the old and young offender. The

classification prescribed by the Gaol Act, which laid down that certain prisoners should not intermix, was openly neglected, and “the greatest contempt shown for the law.” In another part there were men charged with and convicted of unnatural offences shut up with lads of tender years; minor offenders charged with small thefts or non-payment of small sums were cheek by jowl with convicts sentenced to long terms of transportation. In the master’s side yard, which had only one washing place, as many as seventy-eight prisoners, frequently more, were associated together, “of every variety of age, habit, and delinquency, without employment, oversight, or control.” In the middle yard it was still worse. “Here,” say the inspectors, “are herded together the very worst class of prisoners; certainly a more wretched combination of human beings can hardly be imagined. We have reason to fear that poverty, ragged clothes, and an inability to pay the ward dues, elsewhere exacted for better accommodation, consign many of the more petty and unpractised offenders to this place, where they inevitably meet with further contamination from the society of the most abandoned and incorrigible inmates of the gaol.”

No doubt the governor for the time being, Mr. Cope, was in a great measure to blame for all this, and for the want of proper classification. I shall have occasion to speak again, and more at length, of Mr. Cope’s careless and perfunctory discharge of his many manifest duties, but I shall here confine myself to animadverting on his neglect as regards the appropriation of his prison. He was unable to give any reason whatever for not utilizing the whole of the wards. He saw certain rooms fill up, and yet took no steps to open others that were locked up and empty. He blamed the construction of Newgate for the neglect of classification, and was yet compelled to confess that he had made no attempt whatever to carry it out. The fact was, he did not keep the classification of prisoners on first arrival in his own hands, nor even in that of his officers. A new prisoner’s fate, as to location, rested really with a powerful fellow-prisoner. The inspectors found that prisoners had their places assigned to them by the inner gatesman, himself a convicted prisoner, and a “wardsman” or responsible head of a room. The wardsman still exacted dues, of which more directly, and this particular official took excellent care to select as residents for his own ward those most suitable from his own point of view. “So great is the authority exercised by him, and so numerous were his opportunities of showing favouritism, that all the prisoners may be said to be in his power. If

a man is poor and ragged, however inexperienced in crime, or however trifling may be the offence for which he has been committed, his place is assigned among the most depraved, the most experienced, and the most incorrigible offenders in the middle yard.” It must be admitted that so far but little effort had been made to counteract the evils of indiscriminate association.

It was not likely that a system which left innocent men—for the great bulk of new arrivals were still untried—to be pitchforked by chance anywhere, into any sort of company, within this the greatest nursery of crime in London, should exercise even the commonest care for the personal decency or comfort of the prisoners. Their treatment was also a matter of chance. They still slept on rope mats on the floor, herded together in companies of four or more to keep one another warm, and under the scanty covering of a couple of dirty stable-rugs apiece. So closely did they lie together, that the inspectors at their night visits found it difficult in stepping across the room to avoid treading on them. Sometimes two mats were allotted to three sleepers. Sometimes four slept under the same bedding, and left their mats unoccupied. The rugs used were never washed; an order existed that the bedding should be taken into the yards to be aired, but it was not very punctually obeyed. The only convenience for personal ablutions were the pumps in the yards, and the far-off baths in the condemned or press-yard. Water might not be taken into the ward for washing purposes. There was some provision of clothing, but it was quite insufficient, and nothing at all was given if prisoners had enough of their own to cover their nakedness. The inspectors paraded the prisoners, and found them generally ragged and ill-clad, squalid and filthy in the extreme; many without stockings, and with hardly shoes to their feet; some, who had the semblance of covering on the upper part of their feet, had no soles to the shoes, and their bare feet were on the ground. This, too, was in the depth of the winter, and during a most inclement season. The allowance of food was not illiberal, but its issue was precarious, and dependent on the good will of the wardsmen, who measured out the portions to each according to his eye, and not with weights and measures, no turnkey being present. Too much was left to the wardsmen. It was he who could issue small luxuries; he sold tea, coffee, sugar, tobacco, although prohibited, and extra beer. He charged a weekly sum as ward dues for the use of knives, forks, and plates—a perpetuation under another form of the old detestable custom of garnish. He

had power where his exactions were resisted of making the ward most uncomfortable for the defaulter. He could trump up a false complaint against his fellow-prisoner, and so get him punished; he might keep him from the fire, or give him his soup or gruel in a pail instead of a basin.

The authority of these wardsmen so improperly exalted, and so entirely unchecked, degenerated into a baneful despotism. They bought their offices from one another, and were thus considered to have a vested interest in them. Their original capital had been a few shillings, and for this they purchased the right to tax their fellows to the extent of pounds per week. The wardsmen had a monopoly in supplying provisions, gave dinner and breakfast at his own price, and was such complete master of the ward that none of its inmates were suffered to make tea or coffee for themselves lest it should interfere with his sales. He made collections when it suited him for ward purposes, to be spent as he chose, in candles and so forth. When the wardsmen was a man of some education, with some knowledge of legal chicanery gained by personal experience, he might add considerably to his emoluments by drawing briefs and petitions for his fellows. There was a recognized charge of 5s. per brief, for a petition of from 1s. 6d. to 8s., according to its length, and by these payments a wardsmen had been known to amass as much as £40. The man intrusted with this privilege was often the inner gatesman, the prisoner official already mentioned, who held the fate of new arrivals as regards location in his hands. It was not strange that he should sometimes misuse his power, and when prisoners were not to be cajoled into securing his legal services, had been known to employ threats, declaring that he was often consulted by the governor as to a prisoner's character, in view of speaking to it at the trial, and he could easily do them a good turn—or a very bad one. The brief-drawing gatesman and wardsmen at the time of the inspectors' first visit must have been a particularly powerful personage. He was on the most intimate and improperly familiar terms with the turnkeys, had a key of both the master's side and middle side yards, was the only person present at the distribution of beer, and was trusted to examine, and, if he chose, pass in, all provisions, money, clothes, and letters brought for prisoners by their friends.

All the wardsmen alike were more or less irresponsible. The turnkeys complained bitterly that these old prisoners had more power than they themselves. The governor himself admitted that a prisoner of weak intellect who had been severely beaten and much injured by a wardsmen did not

dare complain, the victim of this cruel ill-usage having “more fear of the power of the wardsmen to injure him, than confidence in the governor’s power to protect him.” These wardsmen, besides thus ruling the roast, had numerous special privileges, if such they can be called. They were not obliged to attend chapel, and seldom if ever went; “prisoners,” said one of them under examination, “did not like the trouble of going to chapel.” They had a standing bedstead to sleep on, and a good flock mattress; double allowance of provisions, filched from the common stock. Nobody interfered with them or regulated their conduct. They might get drunk when so disposed, and did so frequently, alone or in company. Evidence was given before the inspectors of eight or ten prisoners seen “giddy drunk, not able to sit upon forms.” The female wards-women were also given to intemperance. The matron deposed to having seen the gates-woman “exceedingly drunk,” and having been insulted by her. There was no penalty attached to drunkenness. A wardsmen did not necessarily lose his situation for it. Nor was drink the only creature comfort he might enjoy. He could indulge in snuff if a snuff-taker, and might always smoke his pipe undisturbed; for although the use of tobacco had been prohibited since the report of the Lords Committee, it was still freely introduced into the prison.

Probably authority would not have been so recklessly usurped by the wardsmen had not the proper officials too readily surrendered it. The turnkeys left the prisoners very much to themselves, never entering the wards after locking-up time, at dusk, till unlocking next morning, and then only went round to count the number. Many of them were otherwise and improperly occupied for hours every day in menial services for the governor, cleaning his windows or grooming his horse. One turnkey had been so employed several hours daily for nearly eleven years. It was not strange that subordinates should neglect their duty when superiors set the example. Nothing was more prominently brought out by the inspectors than the inefficiency of the governor at that time, Mr. Cope. He may have erred in some points through ignorance, but in others he was clearly guilty of culpable neglect. We have seen that he took no pains to classify and separate prisoners on reception. This was only one of many grave omissions on his part. He did not feel it incumbent on himself to visit his prison often or see his prisoners. The act prescribed that he should do both every twenty-four hours, but days passed without his entering the wards. The prisoners declared that they did not see him oftener than twice a week; one man who

had been in the condemned ward for two months, said the governor only came there four times. Again, a turnkey deposed that his chief did not enter the wards more than once a fortnight.

But it is only fair to Mr. Cope to state that he himself said he went whenever he could find time, and that he was constantly engaged attending sessions and going with drafts to the hulks. But when he did visit, his inspections were of the most superficial character; sometimes he looked at his bolts and bars, but he never examined the cupboards, coal-boxes, or other possible hiding-places for cards, dice, dangerous implements, or other prohibited articles. He only attended chapel once on Sunday, never on the week-day, and generally devoted the time service was in progress to taking the descriptions of newly-arrived prisoners. He really did not know what passed in his gaol, and was surprised when the inspectors proved to him that practices of which he was ignorant, and which he admitted that he reprehended, went on without hindrance. He was satisfied to let matters run on as in the old times, he said in his own justification; with him what was, was right, and evils that should have been speedily rooted out remained because they had the prescription of long usage. He kept no daily journal of occurrences, and nothing, however important, was recorded at the time. The aldermen never called upon him to report, and left him nearly unsupervised and uncontrolled. In his administration of discipline he was quite uncertain; the punishments he inflicted were unequal, and it was not the least part of the blame imputed to him that he made special favourites of particular prisoners, retaining of his own accord in Newgate, and for years, felons who should have been sent beyond the seas. But, indeed, his whole rule was far too mild, and under this mistaken leniency the interior of the gaol was more like a bear-garden or the noisy purlieus of a public-house than a prison.

It was the same old story—evil constantly in the ascendant, the least criminal at the mercy of the most depraved. Under the reckless contempt for regulations, the apathy of the authorities, and the undue ascendancy of those who, as convicted felons, should have been most sternly repressed, the most hardened and the oldest in vice had the best of it, while the inexperienced beginner went to the wall. Edward Gibbon Wakefield,^[82] who spent three years in Newgate a little before the time of the inspectors' first report, said with justice that "incredible scenes of horror occur in Newgate." It was, moreover, in his opinion undoubtedly the greatest nursery of crime in

London. The days were passed in idleness, debauchery, riotous quarrelling, immoral conversation, gambling, indirect contravention of parliamentary rules, instruction in all nefarious processes, lively discourse upon past criminal exploits, elaborate discussion of others to be perpetrated after release. No provision whatever was made for the employment of prisoners, no materials were purchased, no trade instructors appointed. There was no school for adults; only the boys were taught anything, and their instructor, with his assistant, were convicted prisoners. Idle hands and unoccupied brains found in mischief the only means of whiling away the long hours of incarceration. Gaming of all kinds, although forbidden by the Gaol Acts, was habitually practised. This was admitted in evidence by the turnkeys, and was proved by the appearance of the prison tables, which bore the marks of gaming-boards deeply cut into them. Prisoners confessed that it was a favourite occupation, the chief games being “shoving halfpence” on the table, pitch in the hole, cribbage, dominoes, and common tossing, at which as much as four or five shillings would change hands in an hour.

But this was not the only amusement. Most of the wards took in the daily papers, the most popular being the ‘Times,’ ‘Morning Herald,’ and ‘Morning Chronicle’; on Sunday the ‘Weekly Dispatch,’ ‘Bell’s Life,’ and the ‘Weekly Messenger.’ The newsman had free access to the prison; he passed in unsearched and unexamined, and, unaccompanied by an officer, went at once to his customers, who bought their paper and paid for it themselves. The news-vendor was also a tobacconist, and he had thus ample means of introducing to the prisoners the prohibited but always much-coveted and generally procurable weed. In the same way the wardsman laid in his stock to be retailed. Other light literature besides the daily journals were in circulation: novels, flash songs, play-books, such as ‘Jane Shore,’ ‘Grimm’s German Tales,’ with Cruikshank’s illustrations, and publications which in these days would have been made the subject of a criminal prosecution. One of these, published by Stockdale, the inspectors styled “a book of the most disgusting nature.”^[83] There was also a good supply of Bibles and prayers, the donation of a philanthropic gentleman, Captain Brown, but these, particularly the Bibles, bore little appearance of having been used. Drink, in more or less unlimited quantities, was still to be had. Spirits certainly were now excluded; but a potman, with full permission of the sheriffs, brought in beer for sale from a neighbouring public-house, and visited all the wards with no other escort than the prisoner gatesman. The

quantity to be issued per head was limited by the prison regulations to one pint, but no steps were taken to prevent any prisoner from obtaining more if he could pay for it. The beer-man brought in as much as he pleased; he sold it without the controlling presence of an officer. Not only did prisoners come again and again for a “pint,” but large quantities were carried off to the wards to be drunk later in the day.

There were more varied, and at times, especially when beer had circulated freely, more uproarious diversions. Wrestling, in which legs were occasionally broken, was freely indulged in; also such low games as “cobham,” leap-frog, puss in the corner, and “fly the garter,” for which purpose the rugs were spread out to prevent feet slipping on the floor. Feasting alternated with fighting. The weekly introduction of food, to which I shall presently refer, formed the basis of luxurious banquets, washed down by liquor and enlivened by flash songs and thrilling long-winded descriptions of robberies and other “plants.” There was much swearing and bad language, the very worst that could be used, from the first thing in the morning to the last thing at night.^[84] New arrivals, especially the innocent and still guileless debutant, were tormented with rude horse-play, and assailed by the most insulting “chaff.” If any man presumed to turn in too early he was “toed,” that is to say, a string was fastened to his big toe while he was asleep, and he was dragged from off his mat, or his bedclothes were drawn away across the room. The ragged part of the prisoners were very anxious to destroy the clothes of the better dressed, and often lighted small pieces of cloth, which they dropped smouldering into their fellow-prisoners’ pockets. Often the victim, goaded to madness, attacked his tormentors; a fight was then certain to follow. These fights sometimes took place in the daytime, when a ring was regularly formed, and two or three stood by the door to watch for the officer’s approach. More often they occurred at night, and were continued to the bitter end. The prisoners in this way administered serious punishment on one another. Black eyes and broken noses were always to be seen.

More cruel injuries were common enough, which did not result from honest hand-to-hand fights. The surgeon’s journal produced to the inspectors contained numerous entries of terrible wounds inflicted in a cowardly way. “A serious accident: one of the prisoners had a hot poker run into his eye.” “A lad named Matthew White has had a wound in his eye by a bone thrown at him, which very nearly destroyed vision.” “There was a

disturbance in the transport yard yesterday evening, and the police were called in. During the tumult a prisoner, ... who was one of the worst of the rioters, was bruised about the head and body." "Watkins' knee-joint is very severely injured." "A prisoner Baxter is in the infirmary in consequence of a severe injury to his wrist-joint." Watkins' case, referred to above, is made the subject of another and a special report from the surgeon. He was in the transport side, when one of his fellows, in endeavouring to strike another prisoner with a large poker, missed his aim, and struck Watkins' knee.... Violent inflammation and extensive suppuration ensued, and for a considerable time amputation seemed inevitable. After severe suffering prolonged for many months, the inflammation was subdued, but the cartilage of the knee-joint was destroyed, and he was crippled for life. On another occasion a young man, who was being violently teased, seized a knife and stabbed his tormentor in the back. The prisoner who used the knife was secured, but it was the wardsman, and not the officers, to whom the report was made, and no official inquiry or punishment followed.

Matters were at times still worse, and the rioting went on to such dangerous lengths as to endanger the safety of the building. On one occasion a disturbance was raised which was not quelled until windows had been broken and forms and tables burnt. The officers were obliged to go in among the prisoners to restore order with drawn cutlasses, but the presence and authority of the governor himself became indispensable. The worst fights occurred on Sunday afternoons; but nearly every night the act of locking up became, from the consequent removal of all supervision, the signal for the commencement of obscene talk, revelry, and violence.

Other regulations laid down by the Gaol Acts were still defied. One of these was that prisoners should be restricted to the gaol allowance of food; but all could still obtain as much extra, and of a luxurious kind, as their friends chose to bring them in. Visitors were still permitted to come with supplies on given days of the week, about the only limitation being that the food should be cooked, and cold; hot meat, poultry, and fish were also forbidden. But the inspectors found in the ward cupboards mince-pies and other pasties, cold joints, hams, and so forth. Many other articles were introduced by visitors, including money, tobacco, pipes, and snuff. From the same source came the two or three strong files which the inspectors found in one ward, together with four bradawls, several large iron spikes, screws, nails, and knives; "all of them instruments calculated to facilitate attempts

at breaking out of prison, and capable of becoming most dangerous weapons in the hands of desperate and determined men.” The nearly indiscriminate admission of visitors, although restricted to certain days, continued to be an unmixed evil. The untried might see their friends three times a week, the convicted only once. On these occasions precautions were supposed to be taken to exclude bad characters, yet many persons of notoriously loose life continually obtained egress. Women saw men if they merely pretended to be wives; even boys were visited by their sweethearts. Decency was, however, insured by a line of demarcation, and visitors were kept upon each side of a separated double iron railing. But no search was made to intercept prohibited articles at the gate, and there was no permanent gate-keeper, which would have greatly helped to keep out bad characters. Some idea of the difficulty and inconvenience of these lax regulations as regards visiting, may be gathered from the statement that as many as three hundred were often admitted on the same day—enough to altogether upset what small show of decorum and discipline was still preserved in the prison. Perhaps the worst feature of the visiting system was the permission accorded to male prisoners “under the name of husbands, brothers, and sons” to have access to the female side on Sundays and Wednesdays, in order to visit their supposed relations there.

On this female side, where the Ladies’ Association still reigned supreme, more system and a greater semblance of decorum was maintained. But there were evils akin to those on the male side, prominent amongst which was the undue influence accorded to prisoners. A female prisoner kept the registers. Wards-women were allowed much the same authority, with the same temptations to excess, and intoxication was not unknown among them and others. The clothing was still meagre and ragged: the washing places insufficient, and wanting in decency; in some yards the pump was the only provision, and this in a place within sight of visitors, of the windows of the male turnkeys, and unprotected from the weather. There was the same crowding in the sleeping arrangements as on the male side; the same scarcity of bedding. It was a special evil of this part of the prison, that the devotional exercises, originally so profitable, had grown into a kind of edifying spectacle, which numbers of well-meaning but inquisitive people were anxious to witness. Thus, when the inspectors visited there were twenty-three strangers, and only twenty-eight prisoners. The presence of so

many strangers, many of them gentlemen, distracted the prisoners' attention, and could not be productive of much good.

The separation of the sexes was not indeed rigidly carried out in Newgate as yet. We have seen that male prisoners visited their female relations and friends on the female side. Besides this, the gatesman who prepared the briefs had interviews with female prisoners alone while taking their instructions; a female came alone and unaccompanied by a matron to clean the governor's office in the male prison; male prisoners carried coal into the female prison, when they saw and could speak or pass letters to the female prisoners; and the men could also at any time go for tea, coffee, and sugar to Mrs. Brown's shop, which was inside the female gate. In the bail-dock, where most improper general association was permitted, the female prisoners were often altogether in the charge of male turnkeys. The governor was also personally responsible for gross contravention of this rule of separation, and was in the habit of drawing frequently upon the female prison for prisoners to act as domestic servants in his own private dwelling. Some member of the Ladies' Association observed and commented upon the fact that a "young rosy-cheeked girl" had been kept by the governor from transportation, while older women in infirm health were sent across the seas. His excuse was that he had given the girl his promise that she should not go, an assumption of prerogative which by no means rested with him; but he afterwards admitted that the girl had been recommended to him by the principal turnkey, who knew something of her friends. This woman was really his servant, employed to help in cleaning, and taken on whenever there was extra work to be done. The governor had a great dislike, he said, to seeing strangers in his house. This girl had been first engaged on account of the extra work entailed by certain prisoners committed by the House of Commons, who had been lodged in the governor's own house. The house at this time was full of men and visitors; waiters came in from the taverns with meals. Some of the prisoners had their valets, and all these were constantly in and out of the kitchen where this female prisoner was employed. There was revelling and roystering, as usual, with "high life below-stairs." The governor sent down wine on festive occasions, of which no doubt the prisoner housemaid had her share. It can hardly be denied that the governor, in his treatment of this woman, was acting in flagrant contravention of all rules.

Eighteen years had elapsed since the formation of the “Ladies’ Association,” and Mrs. Fry with her colleagues still laboured assiduously in Newgate, devoting themselves mainly to the female prison, although their ministrations were occasionally extended to the male side. The inspectors paid tribute to the excellence of the motives of these philanthropic ladies, and recognized the good they did. They had introduced “much order and cleanliness,” had provided work for those who had hitherto passed their time in total idleness, and had made the treatment of female transports on the way to New South Wales their especial care. They had tried, moreover, by their presence and their pious, disinterested efforts, to restrain the dissolute manners and vicious language of the unhappy and depraved inmates. But it was already plain that they constituted an independent authority within the gaols; they were frequently in conflict with the chaplain, who not strangely resented the orders issued by the aldermen, that women should be frequently kept from chapel in order that they might attend the ladies’ lectures and exhortations. The admission of a crowd of visitors to assist in these lay services has already been remarked upon; as the inspectors pointed out, it had the bad effect of distracting attention, it tended to “dissipate reflection, diminish the gloom of the prison, and mitigate the punishment which the law has sentenced the prisoner to undergo.”

It is to be feared too that although the surface was thus whitewashed and decorous, much that was vicious still festered and rankled beneath, and that when the restraining influences of the ladies were absent, the female prisoners relapsed into immoral and uncleanly discourse. Even in the daytime, when supervision was withdrawn, “the language used to be dreadful,” says one of the women when under examination; “swearing and talking of what crimes they had committed, and how they had done it.” Another witness declared she had heard the most shocking language in the yard; she said “she had never witnessed such scenes before, and hopes she never shall again—it was dreadful!” After locking-up time, which varied, as on the male side, according to the daylight, the scenes were often riotous and disgraceful. The poor, who could afford no luxuries, went to bed early, but were kept awake by the revelries of the rich, who supped royally on the supplies provided from outside, and kept it up till ten or eleven o’clock. There were frequent quarrels and fights; shoes and other missiles were

freely bandied about; and with all this “the most dreadful oaths, the worst language, too bad to be repeated,” were made use of every night.

Bad as were the various parts of the gaol already dealt with, there still remained one where the general callous indifference and mismanagement culminated in cruel culpable neglect. The condition of the capitally-convicted prisoners after sentence was still very disgraceful. The side they occupied, still known as the press-yard, consisted of two dozen rooms and fifteen cells. In these various chambers, until just before the inspectors made their report, all classes of the condemned, those certain to suffer, and the larger number who were nearly certain of a reprieve, were jumbled up together, higgledy-piggledy, the old and the young, the murderer and the child who had broken into a dwelling.^[85] All privacy was impossible under the circumstances. At times the numbers congregated together were very great; as many as fifty and sixty, even more, were crowded indiscriminately into the press-yard. The better-disposed complained bitterly of what they had to endure; one man declared that the language of the condemned rooms was disgusting, that he was dying a death every day in being compelled to associate with such characters. In the midst of the noisy and blasphemous talk no one could pursue his meditations; any who tried to pray became the sport and ridicule of his brutal fellows.

Owing to the repeated entreaties of the criminals who could hardly hope to escape the gallows, some show of classification was carried out, and when the inspectors visited Newgate they found the three certain to die in a day-room by themselves; in a second room were fourteen more who had every hope of a reprieve. The whole of these seventeen had, however, a common airing-yard, and took their exercise there at the same time, so that men in the most awful situation, daily expecting to be hanged, were associated continually with a number of those who could look with certainty on a mitigation of punishment. The latter, light-hearted and reckless, conducted themselves in the most unseemly fashion, and “with as much indifference as the inmates of the other parts of the prison.” They amused themselves after their own fashion; played all day long at blind-man’s-buff and leap-frog, or beat each other with a knotted handkerchief, laughing and uproarious, utterly unmindful of the companionship of men upon whom lay the shadow of an impending shameful death. “Men whose cases were dangerous, and those most seriously inclined, complained of these annoyances,” so subversive of meditation, so disturbing to the

thoughts; they suffered sickening anxiety, and wished to be locked up alone. This indiscriminate association lasted for months, during the whole of which time the unhappy convicts who had but little hope of commutation were exposed to the mockery of their reckless associates.

The brutal callousness of the bulk of the inmates of the press-yard may be gathered from the prison punishment-book, which frequently recorded such entries as the following: "Benjamin Vines and Daniel Ward put in irons for two days for breaking the windows of the day room in the condemned cells." "Joseph Coleman put in irons for three days for striking one of the prisoners," in the same place. There were disputes and quarrels constantly among these doomed men; it was a word and blow, an argument clenched always with a fight. The more peaceably disposed found some occupation in making Newgate tokens, leaden hearts,^[86] and "grinding the impressions off penny-pieces, then pricking figures or words on them to give to their friends as memorials." Turnkeys occasionally visited the press-yard, but its occupants were under little or no control. The chaplain, who might have been expected to make these men his peculiar care, and who at one time had visited them frequently, often several times a week, had relaxed his efforts, because, according to his own account, he was so frequently stopped in the performance of his duties. In his evidence before the inspectors he declared that "for years he gave his whole time to his duties, from an early hour in the morning till late in the afternoon. He left off because he was so much interfered with and laughed at, and from seeing that no success attended his efforts, owing to the evils arising from association." Latterly his ministrations to the condemned had been restricted to a visit on Sunday afternoons, and occasionally about once a fortnight on a week-day.

It is only fair to Mr. Cotton to add that, according to his own journal, he was unremitting in his attentions to convicts who were actually cast for death, and the day of whose execution was fixed. He had no doubt a difficult mission to discharge; on the one hand, the Ladies' Association, supported and encouraged by public approval, trenched upon his peculiar province; on the other, the governor of the gaol sneered at his zeal, stigmatized his often most just strictures on abuses as "a bundle of nonsense," and the aldermen, when he appealed to them for protection and countenance, generally sided with his opponents. Nevertheless the inspectors summed up against him. While admitting that he had had many

difficulties to contend with, and that he had again and again protested against the obstacles thrown in his way, the inspectors “cannot forbear expressing their opinion that he might have shown greater perseverance, in the face of impediments confessedly discouraging,” as regards the private teaching of prisoners; and they went on to say that “a resolved adherence, in spite of discouragements the most disheartening, to that line of conduct which his duty imposed on him, would, it is probable, have eventually overcome the reluctance of some of the prisoners at least, and would have possessed so much moral dignity as effectually to rebuke and abash the profane spirit of the more insolent and daring of the criminals.”

The lax discipline maintained in Newgate was still further deteriorated by the presence of two other classes of prisoners who ought never to have been inmates of such a gaol. One of these were the criminal lunatics, who were at this time and for long previous continuously imprisoned there. As the law stood since the passing of the 9th Geo. IV. c. 40, any two justices might remove a prisoner found to be insane, either on commitment or arraignment, to an asylum, and the Secretary of State had the same power as regards any who became insane while undergoing sentence. These powers were not invariably put in force, and there were in consequence many unhappy lunatics in Newgate and other gaols, whose proper place was the asylum. At the time the Lords’ Committee sat there were eight thus retained in Newgate, and a return in the appendix of the Lords’ report gives a total of thirty-nine lunatics confined in various gaols, many of them guilty of murder and other serious crimes. The inspectors in the following year, on examining the facts, found that some of these poor creatures had been in confinement for long periods: at Newgate and York Castle as long as five years; “at Ilchester and Morpeth for seven years; at Warwick for eight years, at Buckingham and Hereford for eleven years, at Appleby for thirteen years, at Anglesea for fifteen years, at Exeter for sixteen years, and at Pembroke for not less a period than twenty-four years.”

It was manifestly wrong that such persons, “visited by the most awful of calamities,” should be detained in a common prison. Not only did their presence tend greatly to interfere with the discipline of the prison, but their condition was deplorable in the extreme. The lunatic became the sport of the idle and the depraved. His cure was out of the question; he was placed in a situation “beyond all others calculated to confirm his malady and prolong his sufferings.” The matter was still further complicated at Newgate

by the presence within the walls of sham lunatics. Some of those included in the category had actually been returned as sane from the asylum to which they had been sent, and there was always some uncertainty as to who was mad and who not. Prisoners indeed were known to boast that they had saved their necks by feigning insanity. It was high time that the unsatisfactory state of the law as regards the treatment of criminal lunatics should be remedied, and not the least of the good services rendered by the new inspectors was their inquiry into the status of these unfortunate people, and their recommendation to improve it.

The other inmates of the prison of an exceptional character, and exempted from the regular discipline, such as it was, were the ten persons committed to Newgate by the House of Commons in 1835. These were the gentlemen concerned in the bribery case at Ipswich in 1835, when a petition was presented against the return of Messrs. Adam Dundas and Fitzroy Kelly. Various witnesses, including Messrs. J. B. Dasent, Pilgrim, Bond, and Clamp, had refused to give evidence before the House of Commons' Committee; a Speaker's warrant was issued for their arrest when they absconded. Mr. J. E. Sparrow and Mr. Clipperton, the parliamentary agents of the members whose election was impugned, were implicated in aiding and abetting the others to abscond, and a Mr. O'Mally, counsel for the two M.P.'s, was also concerned. Pilgrim and Dasent were caught and given into the custody of the sergeant-at-arms, and the rest were either arrested or they surrendered. A resolution at once passed the House without division to commit the whole to Newgate, where they remained for various terms. Dasent and Pilgrim were released in ten days, on making due submission. O'Mally sent in a medical certificate, declaring that the imprisonment was endangering his life, and after some question he was also released. The rest were detained for more than a month, it being considered that they were the most guilty, as being either professional agents, who advised the others to abscond, or witnesses who did not voluntarily come forward when the chance was given them.

Many of the old customs once prevalent in the State Side, so properly condemned and abolished, were revived for the convenience of these gentlemen, whose incarceration was thus rendered as little like imprisonment as possible. A certain number, who could afford the high rate of a guinea per diem, fixed by the under sheriff, were lodged in the governor's house, slept there, and had their meals provided for them from

the Sessions House or London Coffee-House. A few others, who could not afford a payment of more than half a guinea, were permitted to monopolize a part of the prison infirmary, where the upper ward was exclusively appropriated to their use. They also had their meals sent in, and, with the food, wine almost *ad libitum*. A prisoner, one of the wardsmen, waited on those in the infirmary; the occupants of the governor's house had their own servants, or the governor's. As a rule, visitors, many of them persons of good position, came and went all day long, and as late as nine at night; some to the infirmary, many more to the governor's house. There were no restraints, cards and backgammon were played, and the time passed in feasting and revelry. Even Mr. Cope admitted that the committal of this class of prisoners to Newgate was most inconvenient, and the inspectors expressed themselves still more strongly in reprehension of the practice. The infirmary at this particular period epitomized the condition of the gaol at large. It was diverted from its proper uses, and, as the "place of the greatest comfort," was allotted to persons who should not have been sent to Newgate at all. All the evils of indiscriminate association were strongly accentuated by the crowd collected within its narrow limits. "It may easily be imagined," say the inspectors, in speaking of the prison generally, "what must be the state of discipline in a place filled with characters so various as were assembled there, where the tried and the untried, the sick and the healthy, the sane and the insane, the young and the old, the trivial offender and the man about to suffer the extreme penalty of the law, are all huddled together without discrimination, oversight, or control."

Enough has probably been extracted from this most damnatory report to give a complete picture of the disgraceful state in which Newgate still remained in 1835. The inspectors, however, honestly admitted that although the site of the prison was convenient, its construction was as bad as bad could be. Valuable space was cumbered with many long and winding passages, numerous staircases, and unnecessarily thick and cumbrous inner walls. The wards were in some cases spacious, but they were entirely unsuited for separation or the inspection of prisoners. The yards were narrow and confined, mainly because the ground plan was radically vicious. These were evils inseparable from the place. But there were others remediable under a better system of management. More attention to ventilation, which was altogether neglected and inadequate, would have secured a better atmosphere for the unhappy inmates, who constantly

breathed an air heavy, and, when the wards were first opened in the morning, particularly offensive.

Again, the discipline commonly deemed inseparable from every place of durance was entirely wanting. The primary object of committing a prisoner to gaol, as the inspectors pointed out, was to deter not only the criminal himself, but others from crime, and “to dispose him, by meditation and seclusion, to return to an honest life.” But at Newgate the convicted prisoner, instead of privation and hard fare, “is permitted to purchase whatever his own means or the means of his friends in or out of prison can afford, and he can almost invariably procure the luxuries of his class of life, beer and tobacco, in abundance. Instead of seclusion and meditation, his time is passed in the midst of a body of criminals of every class and degree, in riot, debauchery, and gaming, vaunting his own adventures, or listening to those of others; communicating his own skill and aptitude in crime, or acquiring the lessons of greater adepts. He has access to newspapers, and of course prefers that description which are expressly prepared for his own class, and which abound in vulgar adventure in criminal enterprise, and in the histories of the police, the gaol, and the scaffold. He is allowed intercourse with prostitutes who, in nine cases out of ten, have originally conducted to his ruin; and his connection with them is confirmed by that devotion and generosity towards their paramours in adversity for which these otherwise degraded women are remarkable. Having thus passed his time, he returns a greater adept in crime, with a wider acquaintance among criminals, and, what perhaps is even more injurious to him, is generally known to all the worst men in the country; not only without the inclination, but almost without the ability of returning to an honest life.”

These pungent and well-grounded strictures applied with still greater force to the unconvicted prisoner, the man who came to the prison innocent, and still uncontaminated, to be subjected to the same baneful influences, and to suffer the same moral deterioration, whether ultimately convicted or set free. The whole system, or more correctly the want of system, was baneful and pernicious to the last degree. The evils of such association were aggravated by the unbroken idleness; one “evil inflamed the other;” reformation or any kind of moral improvement was impossible; the prisoner’s career was inevitably downward, till he struck the lowest depths. “Forced and constant intercourse with the most depraved individuals of his own class; the employment of those means and agents by which the lowest

passions and the most vulgar propensities of man are perpetually kept in the highest state of excitement—drink, gaming, obscene and blasphemous language; utter idleness, the almost unrestricted admission of money and luxuries; uncontrolled conversation with visitors of the very worst description—prostitutes, thieves, receivers of stolen goods; all the tumultuous and diversified passions and emotions which circumstances like these must necessarily generate, forbid the faintest shadow of a hope that in a soil so unfavourable for moral culture, any awakening truth, salutary exhortation, or imperfect resolutions of amendment can take root or grow.”

Strong as were the foregoing remarks, the inspectors wound up their report in still more trenchant language, framing a terrible indictment against those responsible for the condition of Newgate. Their words deserve to be quoted in full.

“We cannot close these remarks,” say the inspectors, “without an expression of the painful feelings with which we submit to your Lordship^[87] this picture of the existing state of Newgate. That in this vast metropolis, the centre of wealth, civilization, and information; distinguished as the seat of religion, worth, and philanthropy, where is to be found in operation every expedient by which Ignorance may be superseded by Knowledge, Idleness by Industry, and Suffering by Benevolence; that in the metropolis of this highly-favoured country, to which the eyes of other lands turn for example, a system of prison discipline such as that enforced in Newgate should be for a number of years in undisturbed operation, not only in contempt of religion and humanity, but in opposition to the recorded denunciations of authority, and in defiance of the express enactments of the law, is indeed a subject which cannot but impress every considerate mind with humiliation and sorrow. We trust, however, that the day is at hand when this stain will be removed from the character of the city of London, and when the first municipal authority of our land will be no longer subjected to the reproach of fostering an institution which outrages the rights and feelings of humanity, defeats the ends of justice, and disgraces the profession of a Christian country.”

The publication of this report raised a storm in the city, and the corporation was roused to make an immediate protest. A committee of aldermen was forthwith appointed to report upon the inspectors’ report, and the result was another lengthy blue book, printed in the parliamentary papers, 1836, traversing where it was possible the statements of the

inspectors, and offering explanation and palliation of such evils as could not be denied. The inspectors retorted without loss of time, reiterating their charges, and pointing out that the committee of aldermen by its own admission justified the original allegations. It was impossible to deny the indiscriminate association; the gambling, drinking, smoking, quarrelling in the gaol; the undue authority given to prisoners, the levying of garnish under another name, the neglect of the condemned convicts, the filthy condition of the wards, the insufficiency of bedding and clothing, the misemployment of officers and prisoners by the governor. The corporation evidently had the worst of it, and began to feel the necessity for undertaking the great work of reform. Next year we find the inspectors expressing their satisfaction that “the full and faithful exposure which we felt it our duty to make of Newgate has been productive of at least some advantage, inasmuch as it has aroused the attention of those upon whom parliamentary reports and grand jury presentments had hitherto failed to make the slightest impression.”

The measures of improvement introduced were mainly as follows: the fixing of “inspection holes” in the doors and walls, so as to insure more supervision; of windows opening into the well-holes, to give better light and ventilation; the construction of bed-places, three tiers high alongside the walls for males, two tiers for females; the provision of dining-rooms and dining-tables. The infirmary was enlarged, the admission of visitors limited, and the passing of articles prevented by a wire screen. The windows were to be glazed and painted to prevent prisoners from looking out; baths, fumigating places for clothing, wash-house, and the removal of dust-bins, completed the new arrangements in the main prison. In the press-yard, the press-room and ward above it were parcelled out into nine separate sleeping cells; each was provided with an iron bedstead, and a small desk at which the condemned man might read or write. But the one great and most crying evil remained unremedied. “The mischief of gaol associations,” say the inspectors, “which has been demonstrably proved to be the fruitful source of all the abuses and irregularities which have so long disgraced Newgate, is not only permitted still to exist in the prison, but is rendered more powerful than before.”... In endeavouring to arrest contamination, prisoners were more closely confined, and associated in smaller numbers; but this had the effect of throwing them into closer contact, and of making them more intimately acquainted with, more directly influential upon, one another.

In the inspectors' fourth report, dated 1839, they return to the charge, and again call the corporation to task for their mismanagement of Newgate. Abuses and irregularities, which had been partially remedied by the reform introduced in 1837, were once more in the ascendant. "In our late visits," they say, "we have seen manifest indications of a retrograde movement in this respect, and a tendency to return to much of that laxity and remissness which formerly marked the management of this prison." Again the following year the inspectors repeat their charge. "The prominent evils of this prison (Newgate)—evils which the alterations made within the last four years have failed to remove—are the association of prisoners, and the unusual contamination to which such association gives rise. For nearly twenty-two hours out of the twenty-four the prisoners are locked up, during which time no officer is stationed in the ward with them." They go on to say—"Newgate is only less extensively injurious than formerly because it is less crowded. The effects of the imprisonment are to vitiate its inmates, to extend their acquaintanceship with each other, to corrupt the prisoner charged with an offence of which he may be innocent, and to confirm in guilt the young and inexperienced offender."

The reports as the years flow on reiterate the same complaints. Much bitterness of feeling is evidently engendered, and the corporation grows more and more angry with the inspectors. The prison officials appear to be on the side of the inspectors, to the great dissatisfaction of the corporation, who claimed the full allegiance and support of its servants. In a resolution passed by the Court of Aldermen on 18th March, 1842, I find it ordered "that the ordinary of Newgate be restricted from making any communications to the Home Office or the Inspectors of Prisons, and that he be required wholly to confine himself to the performance of his duty as prescribed by Act of Parliament." The inspectors were not to be deterred, however, by any opposition from the earnest discharge of their functions, and continued to report against Newgate. In their tenth report they state that they are compelled by an imperative sense of duty to advert in terms of decided condemnation to the lamentable condition of the prisons of the city of London,—Newgate, Giltspur St. Compter, and the City Bridewell,—in which the master evil of gaol association and consequent contamination still continues to operate directly to the encouragement of crime. "The plan adopted for ventilating the dining-room on the 'master's side' and that of the middle yard is very inefficient; it consists of several circular

perforations, about two inches in diameter, slanting downwards from the top of the walls to the outside adjoining the slaughter-houses of Newgate market; and occasionally, in hot weather, instead of ventilating the apartments, they only serve to convey the offensive effluvia arising from the decaying animal matter into the dining-rooms. Sometimes the stench in hot weather is said to be very bad. Many rats also come through these so-called ventilators, as they open close to the ground at the back of the prison.” At the same time the inspectors animadvert strongly upon the misconduct of prisoners and the frequency of prison punishments, both offences and punishments affording a sufficient index to the practices going forward; and they wind up by declaring that a strict compliance with their duties gave them no choice “but to report matters as we found them, and again and again to protest against Newgate as it at present exists.”

No complete and permanent improvement was indeed possible while Newgate remained unchanged. It was not till the erection of the new prison at Holloway in 1850, and the entire internal reconstruction of Newgate according to new ideas, that the evils so justly complained of and detailed in this chapter were entirely removed. But these are matters which will occupy a later page in my narrative.

CHAPTER VI.

EXECUTIONS (*continued*).

Executions not always in front of Newgate after discontinuance of Tyburn—Old Bailey by degrees monopolizes the business—Description of the new gallows—Same system had already been used in Dublin—“The fall of the leaf”—Last case of burning before Newgate—Phœbe Harris, in 1788—Crowds as great as ever at the Old Bailey, and as brutal as of old—Pieman, ballad-monger, and “rope”-seller did a roaring trade—Governor Wall—His demeanour and dress—Enormous crowd at Wall’s execution—Also at that of Holloway and Haggerty—Frightful catastrophe and terrible loss of life in the crowd—The same anticipated at execution of Bellingham, but avoided by extreme precautions taken—Crowds to see Fauntleroy and Courvoisier suffer—Description of an execution in 1851—The demeanour, generally, of the condemned—Long protracted uncertainty as to their fate—Awful levity displayed—Reasons for delay—The Recorder’s report—Its arrival—Communicated to convicts by chaplain—Tenderness really shown to those certain to die—Chaplain improves the occasion in preaching the condemned sermon—The chapel service on day it was preached described—Demeanour of the condemned described in detail—Abstract of a condemned sermon—Service and returning thanks by the respite the day after the execution—Callowness of those present—Crowded congregation to hear Courvoisier’s condemned sermon, and dense throng to see him hanged—Amelioration of the criminal code—Executions more rare—Capital punishment gradually restricted to murderers—Dissection of the bodies abolished—Some details of dissection—Public exhibition of bodies also discontinued—The body of Williams, who murdered the Marrs, so shown—Hanging in chains given up—Failures at executions—Culprits fight for life—Case of Charles White, of Luigi Buranelli, of William Bousfield—Calcraft and his method of hanging—Other hangmen—Story of the cost of a hangman.

I PROPOSE to return now to the subject of Newgate executions, which we left at the time of the discontinuance of the long-practised procession to Tyburn. The reasons for this change were fully set forth in a previous chapter.^[88] The terrible spectacle was as demoralizing to the public, for whose admonition it was intended, as the exposure was brutal and cruel towards the principal actors. The decision to remove the scene of action to the immediate front of the gaol itself was in the right direction, as making the performance shorter and diminishing the area of display. But the Old Bailey was not exclusively used; at first, and for some few years after 1784, executions took place occasionally at a distance from Newgate. This was partly due to the survival of the old notion that the scene of the crime ought also to witness the retribution; partly perhaps because residents in and about the Old Bailey raised a loud protest against the constant erection of the scaffold in their neighbourhood. As regards the first, I find that in 1786 John Hogan, the murderer of a Mr. Odell, an attorney who resided in Charlotte Street, Rathbone Place, was executed on a gibbet in front of his victim’s house. Lawrence Jones, a burglar, was in 1793 ordered for execution in Hatton Garden, near the house he had robbed; and when he evaded the sentence by suicide, his body was exhibited in the same neighbourhood, “extended upon a plank on the top of an open cart, in his

clothes, and fettered.” Again, as late as 1809 and 1812, Execution Dock, on the banks of the Thames, was still retained. Here John Sutherland, commander of the British armed transport ‘The Friends,’ suffered on the 29th June, 1809, for the murder of his cabin-boy, whom he stabbed after much ill-usage on board the ship as it lay in the Tagus. On the 18th December, 1812, two sailors, Charles Palm and Sam Tilling, were hanged at the same place for the murder of their captain, James Keith, of the trading vessel ‘Adventure,’ upon the high seas. They were taken in a cart to the place of execution, amidst a vast concourse of people. “Palm, as soon as he was seated in the cart, put a quid of tobacco into his mouth, and offered another to his companion, who refused it with indignation.... Some indications of pity were offered for the fate of Tilling; Palm, execration alone.”^[89]

But the Old Bailey gradually, and in spite of all objections urged, monopolized the dread business of execution. The first affair of the kind on this spot was on the 3rd December, 1783, when, in pursuance of an order issued by the Recorder to the sheriffs of Middlesex and the keeper of His Majesty’s gaol, Newgate, a scaffold was erected in front of that prison for the execution of several convicts named by the Recorder. “Ten were executed; the scaffold hung with black; and the inhabitants of the neighbourhood, having petitioned the sheriffs to remove the scene of execution to the old place, were told that the plan had been well considered, and would be persevered in.” The following 23rd April, it is stated that the malefactors ordered for execution on the 18th inst. were brought out of Newgate about eight in the morning, and suspended on a gallows of a new construction. “After hanging the usual time they were taken down, and the machine cleared away in half-an-hour. By practice the art is much improved, and there is no part of the world in which villains are hanged in so neat a manner, and with so little ceremony.”

A full description of this new gallows, which was erected in front of the debtors’ door, is to be found in contemporary records. “The criminals are not exposed to view till they mount the fatal stage. The last part of the stage, or that next to the gaol, is enclosed by a temporary roof, under which are placed two seats for the reception of the sheriffs, one on each side of the stairs leading to the scaffold. Round the north, west, and south sides are erected galleries for the reception of officers, attendants, &c., and at the distance of five feet from the same is fixed a strong railing all round the

scaffold to enclose a place for the constables. In the middle of this machinery is placed a movable platform, in form of a trap-door, ten feet long by eight wide, on the middle of which is placed the gibbet, extending from the gaol across the Old Bailey. This movable platform is raised six inches higher than the rest of the scaffold, and on it the convicts stand; it is supported by two beams, which are held in their place by bolts. The movement of the lever withdraws the bolts, the platform falls in;” and this, being much more sudden and regular than that of a cart being drawn away, has the effect of immediate death. A broadsheet dated April 24th, 1787,^[90] describing an execution on the newly-invented scaffold before the debtors’ door, Newgate, says, “The scaffold on which these miserable people suffered is a temporary machine which was drawn out of the yard of the sessions house by horses; ... it is supported by strong posts fixed into grooves made in the street; ... the whole is temporary, being all calculated to take to pieces, which are preserved within the prison.”

This contrivance appears to have been copied with improvements from that which had been used in Dublin at a still earlier date, for that city claims the priority in establishing the custom of hanging criminals at the gaol itself. The Dublin “engine of death,” as the gallows are styled in the account from which the following description is taken, consisted of an iron bar parallel to the prison wall, and about four feet from it, but strongly affixed thereto with iron scroll clamps. “From this bar hang several iron loops, in which the halters are tied. Under this bar at a proper distance is a piece of flooring or platform, projecting somewhat beyond the range of the iron bar, and swinging upon hinges affixed to the wall. The entrance upon this floor or leaf is from the middle window over the gate of the prison; and this floor is supported below, while the criminals stand upon it, by two pieces of timber, which are made to slide in and out of the prison wall through apertures made for that purpose. When the criminals are tied up and prepared for their fate, this floor suddenly falls down, upon withdrawing the supporters inwards. They are both drawn at once by a windlass, and the unhappy culprits remain suspended.” This mode of execution, it is alleged, gave rise to the old vulgar “chaff,” “Take care, or you’ll die at the fall of the leaf.” The machinery in use in Dublin is much the same as that employed at many gaols now-a-days. But the fall apart and inwards of two leaves is considered superior. The latter is the method still followed at Newgate.

The sentences inflicted in front of Newgate were not limited to hanging. In the few years which elapsed between the establishment of the gallows at Newgate and the abolition of the practice of burning females for petty treason, more than one woman suffered this penalty at the Old Bailey. One case is preserved by Catnach, that of Phœbe Harris, who in 1788 was “barbariously” (*sic* in the broadsheet) executed and burnt before Newgate for coining. She is described as a well-made little woman, something more than thirty years of age, of a pale complexion and not disagreeable features. “When she came out of prison she appeared languid and terrified, and trembled greatly as she advanced to the stake, where the apparatus for the punishment she was about to experience seemed to strike her mind with horror and consternation, to the exclusion of all power of recollectedness in preparation for the approaching awful moment.” She walked from the debtors’ door to a stake fixed in the ground about half-way between the scaffold and Newgate Street. She was immediately tied by the neck to an iron bolt fixed near the top of the stake, and after praying fervently for a few minutes, the steps on which she stood were drawn away, and she was left suspended. A chain fastened by nails to the stake was then put round her body by the executioner with his assistants. Two cart-loads of faggots were piled about her, and after she had hung for half-an-hour the fire was kindled. The flames presently burned the halter, the body fell a few inches, and hung then by the iron chain. The fire had not quite burnt out at twelve, in nearly four hours, that is to say. “A great concourse of people attended on this melancholy occasion.”

The change from Tyburn to the Old Bailey had worked no improvement as regards the gathering together of the crowd or its demeanour. As many spectators as ever thronged to see the dreadful show, and they were packed into a more limited space, disporting themselves as heretofore by brutal horse-play, coarse jests, and frantic yells. It was still the custom to offer warm encouragement or bitter disapproval, according to the character and antecedents of the sufferer. The highwayman, whose exploits many in the crowd admired or emulated, was cheered and bidden to die game; the man of better birth could hope for no sympathy, whatever his crime. At the execution of Governor Wall, in 1802, the furious hatred of the mob was plainly apparent in their appalling cries. His appearance on the scaffold was the signal for three prolonged shouts from an innumerable populace, “the brutal effusion of one common sentiment.” It was said that so large a crowd

had never collected since the execution of Mrs. Brownrigg, nor had the public indignation risen so high. Pieman and ballad-monger did their usual roaring trade amidst the dense throng. No sooner was the “job” finished than half-a-dozen competitors appeared, each offering the identical rope for sale at a shilling an inch. One was the “yeoman of the halter,” a Newgate official, the executioner’s assistant, whom Mr. J. T. Smith,^[91] who was present at the execution, describes as “a most diabolical-looking little wretch—Jack Ketch’s head man.” The yeoman was, however, under-sold by his wife, “Rosy Emma,” exuberant in talk and hissing hot from Pie Corner, where she had taken her morning dose of gin-and-bitters.^[92] A little further off, says Mr. Smith, was “a lath of a fellow past three-score years and ten, who had just arrived from the purlieu of Black Boy Alley, woebegone as Romeo’s apothecary, exclaiming, ‘Here’s the identical rope at sixpence an inch.’ ”

Mr. Smith’s account of the condemned convict, whose cell he was permitted to enter, may be inserted here. He was introduced by the ordinary, Dr. Forde, a name familiar to the reader,^[93] who met him at the felons’ door “in his canonicals, and with his head as stiffly erect as a sheriff’s coachman.” The ordinary “gravely uttered, ‘Come this way, Mr. Smith.’ As we crossed the press yard a cock crew, and the solitary clanking of a restless chain was dreadfully horrible. The prisoners had not risen.” They entered a “stone cold room,” and were presently joined by the prisoner. “He was death’s counterfeit, tall, shrivelled, and pale; and his soul shot out so piercingly through the port-holes of his head, that the first glance of him nearly petrified me.... His hands were clasped, and he was truly penitent. After the yeoman had requested him to stand up, ‘he pinioned him,’ as the Newgate phrase is, and tied the cord with so little feeling that the governor (Wall), who had not given the wretch his accustomed fee, observed, ‘You have tied me very tight,’ upon which Dr. Forde ordered him to slacken the cord, which he did, but not without muttering. ‘Thank you, sir,’ said the governor to the doctor, ‘it is of little moment.’ He then made some observations to the attendant about the fire, and turning to the doctor, questioned him. ‘Do tell me, sir; I am informed I shall go down with great force; is it so?’ After the construction and action of the machine had been explained, the doctor asked the governor what kind of men he had commanded at Goree, where the murder for which he was condemned had been committed. ‘Sir,’ he answered, ‘they sent me the very riff-raff.’ The

poor soul then joined the doctor in prayer, and never did I witness more contrition at any condemned sermon than he then evinced. The sheriff arrived, attended by his officers, to receive the prisoner from the keeper. A new hat was partly flattened on his head, for, owing to its being too small in the crown, it stood many inches too high behind. As we were crossing the press yard, the dreadful execrations of some of the felons so shook his frame that he observed ‘the clock had struck;’ and quickening his pace, he soon arrived at the room where the sheriff was to give a receipt for his body, according to the usual custom. Before the colonel^[94] had been pinioned he had pulled out two white handkerchiefs, one of which he bound over his temples so as nearly to conceal his eyes, the other he kept between his hands. Over the handkerchief around his brows he placed a white cap, the new hat being on top of all. He was dressed in a mixed-coloured loose coat with a black collar, swandown waistcoat, blue pantaloons, and white silk stockings. Thus apparelled he ascended the stairs at the debtors’ door, and stepped out on to the platform, to be received, as has been said, by prolonged yells. These evidently deprived him of the small portion of fortitude he had summoned up. He bowed his head under extreme pressure of ignominy, and at his request the ordinary drew the cap further down over his face, when in an instant, without waiting for any signal, the platform dropped, and he was launched into eternity.”

Whenever the public attention had been specially called to a particular crime, either on account of its atrocity, the doubtfulness of the issue, or the superior position of the perpetrator, the attendance at the execution was certain to be tumultuous, and the conduct of the mob disorderly. This was notably the case at the execution of Holloway and Haggerty in 1807, an event long remembered from the fatal and disastrous consequences which followed it. They were accused by a confederate, who, goaded by conscience, had turned approver, of the murder of a Mr. Steele, who kept a lavender warehouse in the city, and who had gardens at Feltham, whither he often went to distil the lavender, returning to London the same evening. One night he was missing, and after a long interval his dead body was discovered, shockingly disfigured, in a ditch. This was in 1802. Four years passed without the detection of the murderers, but in the beginning of 1807 one of them, at that time just sentenced to transportation, made a full confession, and implicated Holloway and Haggerty. They were accordingly apprehended and brought to trial, the informer, Hanfield by name, being

accepted as king's evidence. Conviction followed mainly on his testimony; but the two men, especially Holloway, stoutly maintained their innocence to the last. Very great excitement prevailed in the town throughout the trial, and this greatly increased when the verdict was known.

An enormous crowd assembled to witness the execution, amounting, it was said, to the hitherto unparalleled number of 40,000. By eight o'clock not an inch of ground in front of the platform was unoccupied. The pressure soon became so frightful that many would have willingly escaped from the crowd; but their attempts only increased the general confusion. Very soon women began to scream with terror; some, especially of low stature, found it difficult to remain standing, and several, although held up for some time by the men nearest them, presently fell, and were at once trampled to death. Cries of Murder! murder! were now raised, and added greatly to the horrors of the scene. Panic became general. More women, children, and many men were borne down, to perish beneath the feet of the rest. The most affecting and distressing scene was at Green Arbour Lane, just opposite the debtors' door of the prison. Here a couple of piemen had been selling their wares; the basket of one of them, which was raised upon a four-legged stool, was upset. The pieman stooped down to pick up his scattered stock, and some of the mob, not seeing what had happened, stumbled over him. No one who fell ever rose again. Among the rest was a woman with an infant at the breast. She was killed, but in the act of falling she forced her child into the arms of a man near her, and implored him in God's name to save it; the man, needing all his care for his own life, threw the child from him, and it passed along the heads of the crowd, to be caught at last by a person who struggled with it to a cart and deposited it there in safety. In another part seven persons met their death by suffocation.

In this convulsive struggle for bare existence people fought fiercely with one another, and the weakest, of course the women, went under. One cart-load of spectators having broken down, some of its occupants fell off the vehicle, and were instantly trampled to death. This went on for more than an hour, and until the malefactors were cut down and the gallows removed; then the mob began to thin, and the streets were cleared by the city marshals and a number of constables. The catastrophe exceeded the worst anticipations. Nearly one hundred dead and dying lay about; and after all had been removed, the bodies for identification, the wounded to hospitals, a cart-load of shoes, hats, petticoats, and fragments of wearing apparel were

picked up. St. Bartholomew's Hospital was converted into an impromptu *Morgue*, and all persons who had relatives missing were admitted to identify them. Among the dead was a sailor lad whom no one knew; he had his pockets filled with bread and cheese, and it was generally supposed that he had come a long distance to see the fatal show.

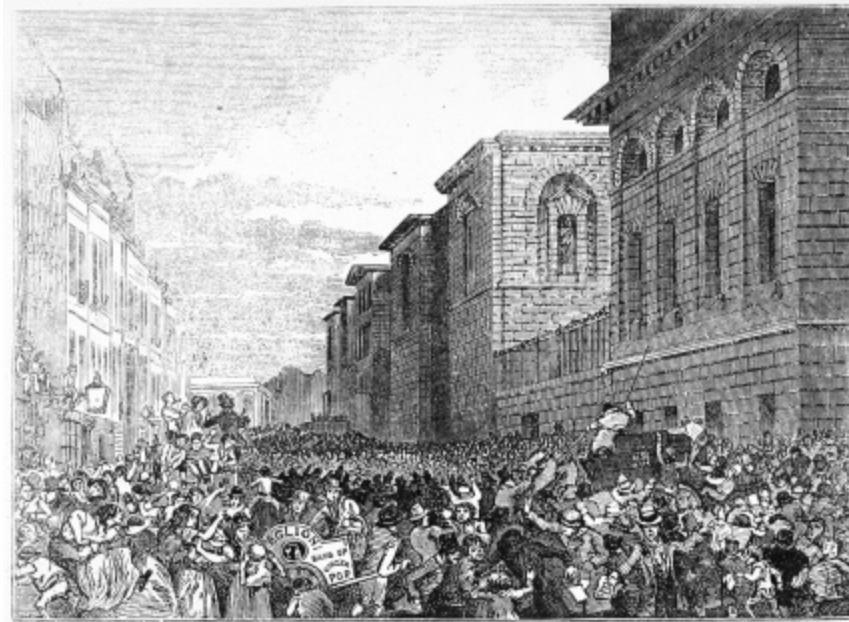


**BELLINGHAM, WHO MURDERED
MR. SPENCER PERCIVAL.**

A tremendous crowd assembled when Bellingham was executed in 1812 for the murder of Spencer Percival, at that time prime minister; but there were no serious accidents, beyond those caused by the goring of a maddened, over-driven ox which forced its way through the crowd. Precautions had been taken by the erection of barriers, and the posting of placards at all the avenues to the Old Bailey, on which was printed, "Beware of entering the crowd! Remember thirty poor persons were pressed to death by the crowd when Haggerty and Holloway were executed!" The concourse was very great, notwithstanding these warnings. It was still greater at Fauntleroy's execution in 1824, when no less than 100,000 persons assembled, it was said. Every window and roof which could command a view of the horrible performance was occupied. All the avenues and approaches, places even whence nothing whatever could be seen of the scaffold, were blocked by persons who had overflowed from the area in front of the gaol. At Courvoisier's execution in 1840 it was the same, or worse. As early as six a.m. the number assembled already

exceeded that seen on ordinary occasions; by seven a.m. the whole space was so thronged that it was impossible to move one way or the other. Some persons were kept for more than five hours standing against the barriers, and many nearly fainted from exhaustion. Every window had its party of occupants; the adjoining roofs were equally crowded. High prices were asked and paid for front seats or good standing room. As much as £5 was given for the attic story of the Lamb's Coffee House; £2 was a common price for a window. At the George public-house to the south of the drop, Sir W. Watkin Wynn, Bart., hired a room for the night and morning, which he and a large party of friends occupied before and during the execution; in an adjoining house, that of an undertaker, was Lord Alfred Paget, also with several friends. Those who had hired apartments spent the night in them, keeping up their courage with liquids and cigars. Numbers of ladies were present, although the public feeling was much against their attendance. One well-dressed woman fell out of a first-floor window on to the shoulders of the crowd below, but neither she nor any one else was greatly hurt. The city authorities had endeavoured to take all precautions against panic and excitement among the crowd, and caused a number of stout additional barriers to be erected in front of the scaffold, and although one of these gave way owing to the extraordinary pressure, no serious accident occurred.

Some years later an eye-witness published a graphic account of one of these scenes.^[95] Soon after midnight on the Sunday night, for by this time the present practice of executing on Monday morning had been pretty generally introduced, the crowd began to congregate in and about the Old Bailey. Gin-shops and coffee-houses were the first to open doors, and touts began to bid for tenants for the various rooms upstairs. Cries of "Comfortable room!" "Excellent situation!" "Beautiful prospect!" "Splendid view!" resounded on every side. By this time the workmen might be heard busily erecting the gallows; the sounds of hammer and saw intermingled with the broad jeers and coarse jests of the rapidly increasing mob. One by one the huge uprights of black timber were fitted together, until presently the huge stage loomed dark above the crowd which was now ranged round the barriers; a throng of people whom neither rain, snow, storm, nor darkness ever hindered from attending the show. They were mainly members of the criminal



PREPARING FOR AN EXECUTION.

classes; their conversation was of companions and associates of former years, long ago imprisoned, transported, hanged, while they, hoary-headed and hardened in guilt, were still at large. They talked of the days when the convicts were hung up a dozen or more in a row; of those who had shown the white, and those who had died game. The approaching ceremony had evidently no terrors for these “idolaters of the gallows.” With them were younger men and women: the former already vowed to the same criminal career, and looking up to their elders with the respect due to successful practitioners; the latter unsexed and brutalized by dissipation, slipshod and slovenly, in crushed bonnet and dirty shawl, the gown fastened by a single hook, their harsh and half-cracked voices full of maudlin, besotted sympathy for those about to die. “Above the murmur and tumult of that noisy assembly, the lowing and bleating of cattle as they were driven into the stalls and pens of Smithfield fell with a strange unnatural sound upon the ear.... Hush! the unceasing murmur of the mob now breaks into a loud deep roar, a sound as if the ocean had suddenly broken through some ancient boundary, against which its ever restless billows had for ages battered; the wide dark sea of heads is all at once in motion; each wave seems trying to overleap the other as they are drawn onwards towards this

outlet. Every link in that great human chain is shaken, along the whole lengthened line has the motion jarred, and each in turn sees, coiled up on the floor of the scaffold like a serpent, the hangman's rope! The human hand that placed it there was only seen for a moment, as it lay, white and ghastly, upon the black boards, and then again was as suddenly withdrawn, as if ashamed of the deed it had done. The loud shout of the multitude once more subsided, or only fell upon the abstracted ear like the dreamy murmur of an ocean shell. Then followed sounds more distinct and audible, in which ginger-beer, pies, fried fish, sandwiches, and fruit were vended under the names of notorious murderers, highwaymen, and criminals, famous in the annals of Newgate for the hardihood they had displayed in the hour of execution, when they terminated their career of crime at the gallows. Threading his way among these itinerant vendors was seen the meek-faced deliverer of tracts, the man of good intentions, now bonneted, now laughed at, the skirt of his seedy black coat torn across; yet, though pulled right and left, or sent headlong into the crowd by the swing of some brutal and muscular arm, never once from that pale face passed away its benign and patient expression, but ever the same form moved along in the fulfilment of his mission, in spite of all persecution. Another fight followed the score which had already taken place; this time two women were the combatants. Blinded with their long hair, they tore at each other like two furies; their bonnets and caps were trodden underfoot in the kennel, and lay disregarded beside the body of the poor dog which, while searching for its master in the crowd, was an hour before kicked to death by the savage and brutal mob.

“Another deep roar, louder than any which had preceded it, broke from the multitude. Then came the cry of ‘Hats off!’ and ‘Down in front!’ as at a theatre. It was followed by the deep and solemn booming of the death-bell from the church of St. Sepulchre—the iron knell that rang upon the beating heart of the living man who was about to die; and with blanched cheek, and sinking, we turned away from the scene.”

In thus describing the saturnalia before the gallows I have been drawn on somewhat beyond the period with which I am at present dealing. Let me retrace my steps, and speak more in detail of the treatment of the condemned in those bloodthirsty and brutally indifferent days, and of their demeanour after sentence until the last penalty was paid. One of the worst evils was the terrible and long-protracted uncertainty as to the result. In the case of convicted murderers only was prompt punishment inflicted, and

with them indeed this despatch amounted to undue precipitancy. Forty-eight hours was the limit of time allowed to the unhappy man to make his peace, and during that time he was still kept on a bare allowance of bread and water. But the murderers formed only a small proportion of the total number sentenced to death, and for the rest there was a long period of anxious suspense, although in the long run mercy generally prevailed, and very few capitally convicted for crimes less than murder actually suffered. Thus in the years between May 1st, 1827, and 30th April, 1831, no less than four hundred and fifty-one sentences of death for capital crimes were passed at the Old Bailey; but of these three hundred and ninety-six were reversed by the king in council, and only fifty-two were really executed. Already the severity of our criminal code, and the number of capital felonies upon the statute book, had brought a reaction; and while the courts adhered to the letter of the law, appeals were constantly made to the royal prerogative of mercy. This was more particularly the practice in London. Judges on assize were satisfied with simply recording a sentence of death against offenders whom they did not think deserved the extreme penalty. At the Old Bailey almost every one capitally convicted by a jury was sentenced to be hanged. The result in the latter case was left in the first place to the king in council, but there was a further appeal then, as now, to the king himself, or practically to the Home Secretary. Neither in town or country were cases entirely taken on their own merits. Convicted offenders might have good or bad luck; they might be arraigned when their particular crime was uncommon, and were then nearly certain to escape; or theirs might be one of many, and it might be considered necessary to “make an example.” In this latter it might fairly be said that a man was put to death less for his own sins than for the crimes of others.

The absurdity of the system, its irregularity and cruelty, were fully touched upon by the inspectors of prisons in their first report. They found at Newgate, under disgraceful conditions as already described,^[96] seventeen capital convicts, upon all of whom the sentence of death had been passed. Eventually two only of the whole number suffered; two others were sentenced to three months’ imprisonment, and the balance to varying terms. Nothing could be more strongly marked than the contrast between the ultimate destiny of different individuals all abiding the same awful doom: on the one hand the gallows, on the other a short imprisonment. The inspectors very properly desired to call attention to the inevitable tendency

in this mode of dealing with “the most awful sanctions of the law,” to make those sanctions an object of contemptuous mockery. The consequences were plainly proved to the inspectors. Capitally convicted prisoners did, as a matter of fact, “treat with habitual and inexpressible levity the sentence of death.” Of this I have treated at length in the last chapter.

The time thus spent varied considerably, but it was seldom less than six weeks. It all depended upon the sovereign’s disposition to do business. Sometimes the Privy Council did not meet for months, and during all that time the convicts languished with hope nearly indefinitely deferred. When the council had decided, the news was conveyed to Newgate by the Recorder, who made his “report,” as it was called. The time of the arrival of this report was generally known at Newgate, and its contents were anxiously awaited by both convicts in the press-yard and their friends collected in a crowd outside the gates. Sometimes the report was delayed. On one occasion, Mr. Wakefield tells us, the Recorder, who had attended the council at Windsor, did not deliver the report till the following day. “The prisoners and their friends, therefore, were kept in a state of the most violent suspense for many hours, during which they counted the moments—the prisoners in their cells as usual, and their friends in the street in front of Newgate, where they passed the night. I have heard the protracted agony of both classes described by those who witnessed it in terms so strong, that I am unwilling to repeat them.”...^[97] “The crowd of men and women who passed the night in front of Newgate, began, as soon as the hour was passed when they had expected the report, to utter imprecations against the Recorder, the Secretary of State, the Council, and the King; they never ceased cursing until the passion of anger so excited was exchanged for joy in some and grief in others. I myself heard more than one of those whose lives were spared by that decision of the council, afterwards express a wish to murder the Recorder for having kept them so long in suspense.”

The Recorder’s report generally reached Newgate late at night. Its receipt was immediately followed by the promulgation of its contents to the persons most closely concerned, which was done with a sort of ceremony intended to be impressive. The whole of the convicts were assembled together in one ward, and made to kneel down. To them entered the chaplain or ordinary of Newgate in full canonicals, who in solemn tones communicated to each in turn the fate in store for him. The form of imparting the intelligence was generally the same. “So-and-so, I am sorry to

tell you that it is all against you;" or, "A. B., your case has been taken into consideration by the king in council, and His Majesty has been mercifully pleased to spare your life." The fatal news was not always received in the same way. The men who were doomed often fell down in convulsions upon the floor. Sometimes any who had had a narrow escape fainted, but the bulk of those respited looked on with unfeeling indifference. The concluding part of the ceremony was, for those who had been pardoned, to recite a thanksgiving to God and the king.

It is satisfactory to be able to record that some consideration was shown the capital convict actually awaiting execution. Even so severe a critic as Mr. Wakefield states that "a stranger to the scene would be astonished to observe the peculiar tenderness, I was going to add respect, which persons under sentence of death obtain from all the officers of the prison. Before sentence a prisoner has only to observe the regulations of the gaol in order to remain neglected and unnoticed. Once ordered to the cells, friends of all classes suddenly rise up; his fellow-prisoners, the turnkeys, the chaplain, the keepers, and the sheriffs all seem interested in his fate, and he can make no reasonable request that is not at once granted by whomsoever he may address. This rule has some, but very few, exceptions; such as where a hardened offender behaves with great levity and brutality, as if he cared nought for his life, and thought every one anxious to promote his death." Mr. Wakefield goes on to remark that persons convicted of forgery "excited an extraordinary degree of interest in all who approached them." This was noticeable with Fauntleroy, who, on account of his birth and antecedents, was allowed to occupy a turnkey's room, and kept altogether separate from the other prisoners until the day of his death. It cannot be denied, however, that the ordinary's treatment was somewhat unfeeling, and in proof thereof I will quote an extract from the reverend gentleman's own journal. He seems to have improved the occasion when preaching the condemned sermon before Fauntleroy, by pointing a moral from that unhappy man's own case. For this the chaplain was a few days later summoned before the gaol committee of aldermen, and informed that the public would not in future be admitted to hear the condemned sermon. "I was also informed," writes Mr. Cotton, "that this resolution was in consequence of their (the aldermen's) disapproving of the last discourse delivered by me, previous to the execution of Henry Fauntleroy for uttering a forged security, in which it was said I had enlarged upon the heinous nature of his crime, and warned

the public to avoid such conduct. I was informed that this unnecessarily harassed his feelings, and that the object of such sermons was solely to console the prisoner, and that from the time of his conviction nothing but what is consolatory should be addressed to a criminal. One of the aldermen, moreover, informed me that the whole court of aldermen were unanimous in their opinion on this subject. As to the exclusion of strangers on these occasions, the experience I have had convinces me that one, and perhaps the only, good of an execution, *i. e.* the solemn admonition to the public, will thereby be lost.”

Probably the reader will side with the aldermen against the ordinary. This episode throws some doubt upon the tenderness and proper feeling exhibited by the chaplain towards the most deserving members of his criminal flock; and the idea will be strengthened by the following account of the Sunday service in the prison chapel on the occasion when the condemned sermon was preached. The extract is from Mr. E. Gibbon Wakefield’s brochure, the date 1828, just three years after Fauntleroy’s death. Strangers were now excluded, but the sheriffs attended in state, wearing their gold chains, while behind their pew stood a couple of tall footmen in state liveries. The sheriffs were in one gallery; in the other opposite were the convicts capitally convicted who had been respited. Down below between the galleries was the mass of the prison population; the schoolmaster and the juvenile prisoners being seated round the communion-table, opposite the pulpit. In the centre of the chapel was the condemned pew, a large dock-like erection painted black. Those who sat in it were visible to the whole congregation, and still more to the ordinary, whose desk and pulpit were just in front of the condemned pew, and within a couple of yards of it. The occupants of this terrible black pew were the last always to enter the chapel. Upon the occasion which I am describing they were four in number; and here I will continue the narrative in Mr. Wakefield’s own words:—

“First is a youth of eighteen, condemned for stealing in a dwelling-house goods valued above five pounds. His features have no felonious cast; ... he steps boldly with head upright, looks to the women’s gallery, and smiles. His intention is to pass for a brave fellow, but the attempt fails; he trembles, his knees knock together, and his head droops as he enters the condemned pew. The next convict is clearly and unmistakably a villain. He is a hardened offender, previously cast for life, reprieved, transported to

Australia, and since returned without pardon. For this offence the punishment is death. He has, however, doubly earned his sentence, and is actually condemned for burglary committed since his arrival in England. His look at the sheriffs and the ordinary is full of scorn and defiance. The third convict is a sheep-stealer, a poor ignorant fellow in whose crime are mitigating circumstances, but who is left to die on the supposition that this is not his first conviction, and still more because a good many sheep have of late been stolen by other people. He is quite content to die; indeed the chaplain and others have brought him firmly to believe that his situation is enviable, and that the gates of heaven are open to receive him.” The last of the four is said to have been a clergyman of the Church of England,^[98] condemned for forgery, “a miserable old man in a tattered suit of black. Already he is half dead. Great efforts have been made to save his life. Friends, even utter strangers, have interceded for him, and to the last he has buoyed himself up by hope of reprieve. Now his doom is sealed irrevocably, and he has given himself up to despair. He staggers towards the pew, reels into it, stumbles forward, flings himself on the ground, and, by a curious twist of the spine, buries his head under his body. The sheriffs shudder, their inquisitive friends crane forward, the keeper frowns on the excited congregation, the lately smirking footmen close their eyes and forget their liveries, the ordinary clasps his hands, the turnkeys cry ‘Hush!’ and the old clerk lifts up his cracked voice, saying, ‘Let us sing to the praise and glory of God.’

“The morning hymn is sung first, as if to remind the condemned that next morning at eight a.m. they are to die. The service proceeds. At last the burial service is reached. The youth alone is able to read, but from long want of practice he is at a loss to find the place in his prayer-book. The ordinary observes him, looks to the sheriffs, and says aloud, ‘The service for the dead!’ The youth’s hands tremble as they hold the book upside down. The burglar is heard to mutter an angry oath. The sheep-stealer smiles, and, extending his arms upwards, looks with a glad expression to the roof of the chapel. The forger has never moved.

“Let us pass on. All have sung ‘the Lamentation of a Sinner,’ and have seemed to pray ‘especially for those now awaiting the awful execution of the law.’ We come to the sermon.

“The ordinary of Newgate is an orthodox, unaffected, Church of England divine, who preaches plain, homely discourses, as fit as any religious

discourse can be fit for the irritated audience. The sermon of this day, whether eloquent or plain, useful or useless, must produce a striking effect at the moment of its delivery. The text, without another word, is enough to raise the wildest passions of the audience.... For a while the preacher addresses himself to the congregation at large, who listen attentively—except the clergyman and the burglar, the former of whom is still rolled up at the bottom of the condemned pew, while the eyes of the latter are wandering round the chapel, and one of them is occasionally winked impudently at some acquaintance amongst the prisoners for trial. At length the ordinary pauses, and then, in a deep tone, which, though hardly above a whisper, is audible to all, says, ‘Now for you, my poor fellow mortals, who are about to suffer the last penalty of the law.’ But why should I repeat the whole? It is enough to say that in the same solemn tone he talks about the minutest of crimes, punishments, bonds, shame, ignominy, sorrow, sufferings, wretchedness, pangs, childless parents, widows and helpless orphans, broken and contrite hearts, and death to-morrow morning for the benefit of society. What happens? The dying men are dreadfully agitated. The young stealer in a dwelling-house no longer has the least pretence to bravery. He grasps the back of the pew, his legs give way, he utters a faint groan, and sinks on the floor. Why does no one stir to help him? Where would be the use? The hardened burglar moves not, nor does he speak; but his face is of an ashy paleness; and if you look carefully you may see the blood trickling from his lip, which he has bitten unconsciously, or from rage, or to rouse his fainting courage. The poor sheep-stealer is in a frenzy. He throws his hands far from him, and shouts aloud, ‘Mercy, good Lord! mercy is all I ask. The Lord in His mercy come! There! there! I see the Lamb of God! Oh! how happy! Oh! this is happy!’ Meanwhile the clergyman, still bent into the form of a sleeping dog, struggles violently; his feet, legs, hands, and arms, even the muscles of his back, move with a quick, jerking motion, not naturally, but, as it were, like the affected parts of a galvanized corpse. Suddenly he utters a short sharp scream, and all is still.

“The silence is short. As the ordinary proceeds ‘to conclude,’ the women set up a yell, which is mixed with a rustling noise, occasioned by the removal of those whose hysterics have ended in fainting. The sheriffs cover their faces, and one of their inquisitive friends blows his nose with his glove. The keeper tries to appear unmoved, but his eye wanders anxiously over the combustible assembly. The children round the communion-table

stare and gape with childish wonder. The two masses of prisoners for trial undulate and slightly murmur, while the capital convicts who were lately in that black pew appear faint with emotion.

“This exhibition lasts for some minutes, and then the congregation disperses, the condemned returning to the cells: the forger carried by turnkeys; the youth sobbing aloud convulsively, as a passionate child; the burglar muttering curses and savage expressions of defiance; whilst the poor sheep-stealer shakes hands with the turnkeys, whistles merrily, and points upwards with madness in his look.”

Mr. Wakefield winds up his graphic but somewhat sensational account by describing another religious service, which may appropriately be inserted here. He says, “On the day of execution there is no service in the chapel of Newgate. On the following day the capital convicts, whose companions have been hanged, are required to return thanks for their narrow escape. The firmest disbeliever in religion, if he had not lately been irritated by taking part in such a scene as the condemned service in Newgate, could hardly witness this ceremony without being affected. The men, who were so lately snatched from the jaws of death, kneel, whilst the rest of the congregation sit, and the ordinary, in a tone of peculiar solemnity, says, ‘Almighty God, Father of all mercies, we thine unworthy servants do give thee most humble and hearty thanks for all thy goodness and loving-kindness to us, and to all men; *particularly to those who desire now to offer up their praises and thanksgivings for thy late mercies vouchsafed unto them.*’ Could any one, knowing the late situation of the kneeling men, looking as they do at the empty pew, occupied when they saw it last, but a few hours ago, by their comrades who are now dead; could any one, not disgusted with the religious ceremonials of Newgate, witness this scene without emotion? Hardly any one. But what are the feelings of those who take part in it? I have been present at the scene not less than twenty times, and have invariably observed that many of the kneeling men or boys laughed while they knelt, pinched each other, and, when they could do so without fear of being seen by any officer of the prison, winked at other prisoners in derision of what was taking place; and I have frequently heard men and lads who had been of the kneeling party boast to their companions after the service that they had wiped their eyes during the thanksgiving, to make the ordinary believe they had been crying.”

Although this misapplication of religious services still went on, the outside public continued to be excluded from the Newgate chapel on the day the condemned sermon was preached. This very proper rule was, however, set aside on the Sunday preceding Courvoisier's execution. So many applications for admission were made to the sheriffs, that they reluctantly agreed to open the gallery which had formerly been occupied by strangers on these occasions. Cards were issued, and to such an extent, that although the service was not to commence till half-past ten, by nine a.m. all the avenues to the prison gates were blocked by ticket-holders. In spite of the throng, owing to the excellent arrangements made by the sheriffs, no inconvenience was suffered by the congregation, among whom were Lord Adolphus Fitz Clarence, Lord Coventry, Lord Paget, Lord Bruce, several members of the House of Commons, and a few ladies. Contemporary accounts give a minute description of the demeanour of the convict upon this solemn occasion. He sat on a bench before the pulpit,—the hideous condemned pew had been swept away,—and never once raised his eyes during the service. "In fact his looks denoted extreme sorrow and contrition, and he seemed to suffer great inward agitation when the ordinary particularly alluded to the crime for the perpetration of which he stood condemned." Mr. Carver, the ordinary, appears to have addressed himself directly to Courvoisier, and to have dwelt with more emphasis than good taste upon the nature of the crime, and the necessity for repentance. But the chaplain admitted that the solitude of the convict's cell was more appropriate for serious reflection and profitable ministration than "this exciting occasion before a large and public assembly." So far as I can find, Courvoisier was the last condemned criminal who was thus exhibited to a crowd of morbidly curious spectators.

The atrocity of the murder no doubt attracted extraordinary attention to it. The crowd outside Newgate on the day of execution has already been described; but there was also a select gathering of distinguished visitors within the gaol. First came the sheriffs, the under-sheriffs, and several aldermen and city officials, then Lord Powerscourt and several other peers of the realm. Mr. Charles Kean the tragedian was also present, drawn to this terrible exhibition by the example of his father, the more celebrated Edmund Kean, who had witnessed the execution of Thistlewood "with a view," as he himself said, "to his professional studies."

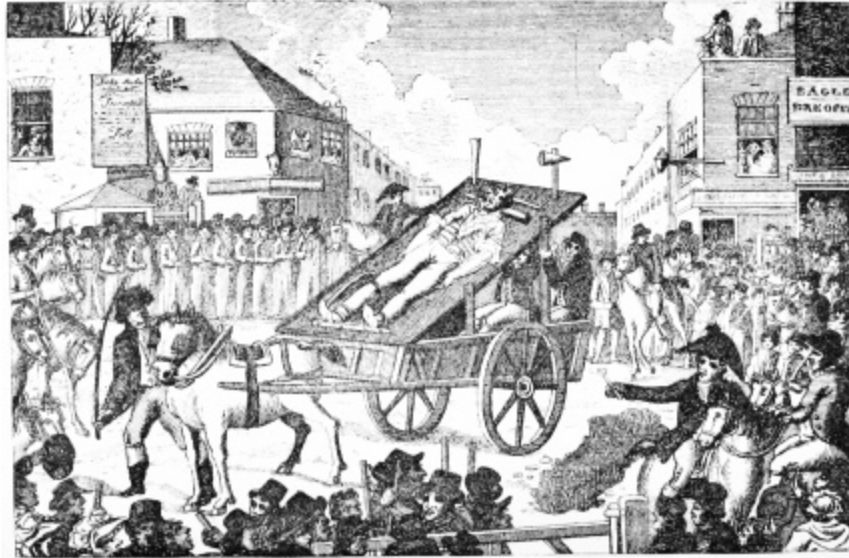
But there is little doubt that as executions became more rare they made more impression on the public mind. Already a strong dislike to the reckless and almost indiscriminate application of the extreme penalty was apparent in all classes, and the mitigation of the criminal code, for which Romilly had so strenuously laboured, was daily more and more of an accomplished fact. In 1832 capital punishment was abolished for forgery, except in cases of forging or altering wills or powers of attorney to transfer stock. Nevertheless, after that date no person whatever was executed for this offence. In the same year capital punishment was further restricted, and ceased to be the legal sentence for coining, sheep or horse stealing, and stealing in a dwelling-house. House-breaking, as distinguished from burglary, was similarly exempted in the following year; next, the offences of returning from transportation, stealing post-office letters, and sacrilege were no longer punishable with death. In 1837 Lord John Russell's acts swept away a number of capital offences, including cutting and maiming, rick-burning, robbery, burglary, and arson. Within a couple of years the number of persons sentenced to death in England had fallen from four hundred and thirty-eight in 1837 to fifty-six in 1839. Gradually the application of capital punishment became more and more restricted, and was soon the penalty for murder alone. While in London, for instance, in 1829, twenty-four persons had been executed for crimes other than murder, from 1832 to 1844 not a single person had been executed in the metropolis except for this the gravest crime. In 1837 the death penalty was practically limited to murder or attempts to murder, and in 1841 this was accepted as the almost universally established rule. Seven other crimes, however, were still capital by law, and so continued till the passing of the Criminal Consolidation Acts of 1861.

With the amelioration of the criminal code, other cruel concomitants of execution also disappeared. In 1832 the dissection of bodies cut down from the gallows, which had been decreed centuries previously,^[99] was abolished; the most recent enactment in force was the 9th Geo. IV. cap. 31, which directed the dissection of all bodies of executed murderers, the idea being to intensify the dread of capital punishment. That such dread was not universal or deep-seated may be gathered from the fact that authentic cases were known previous to the first cited act of criminals selling their own bodies to surgeons for dissection. This dissection was carried out for Newgate prisoners in Surgeons' Hall, adjoining Newgate, the site of the

present Sessions House of the Old Bailey, and the operation was witnessed by students and a number of curious spectators. Lord Ferrers' body was brought to Surgeons' Hall after execution in his own carriage and six; after the post mortem had been carried out, the corpse was exposed to view in a first-floor room. Pennant speaks of Surgeons' Hall as a handsome building, ornamented with Ionic pilasters, and with a double flight of steps to the first floor. Beneath is a door for the admission of the bodies of murderers and other felons. There were other public dissecting rooms for criminals. One was attached to Hicks' Hall, the Clerkenwell Sessions House, built out of monies provided by Sir Baptist Hicks, a wealthy alderman of the reign of James I.^[100] Persons were still living in 1855 who had witnessed dissections at Hicks' Hall, and "whom the horrid scene, with the additional effect of some noted criminals hanging on the walls, drove out again sick and faint, as we have heard some relate, and with pale and terrified features, to get a breath of air."^[101] The dissection of executed criminals was abolished soon after the discovery of the crime of burking, with the idea that ignominy would no longer attach to an operation which ceased to be compulsory for the most degraded beings; and that executors or persons having lawful possession of the bodies of people who had died friendless, would voluntarily surrender them for the advancement of medical science.

Another brutal practice had nearly disappeared about the time of the abolition of dissection. This was the public exhibition of the body, as was done in the case of Mrs. Phipoe, the murderess, who was executed in front of Newgate in 1798, and "her body





EXHIBITION OF BODY OF WILLIAMS.

publicly exhibited in a place built for the purpose in the Old Bailey.” About this time I find that the bodies of two murderers, Clench and Mackay, “were publicly exposed in a stable in Little Bridge Street, near Apothecaries’ Hall, Surgeons’ Hall being let to the lieutenancy of the county for the accommodation of the militia.” In 1811 Williams, who murdered the Marrs in Ratcliffe Highway,^[102] having committed suicide in gaol to escape hanging, it was determined that a public exhibition should be made of the body through the neighbourhood which had been the scene of the monster’s crimes. A long procession was formed, headed by constables, who cleared the way with their staves. Then came the newly-formed horse patrol, with drawn cutlasses, parish officers, peace officers, the high constable of the county of Middlesex on horseback, and then the body of Williams, “extended at full length on an inclined platform erected on the cart, about four feet high at the head, and gradually sloping towards the horse, giving a full view of the body, which was dressed in blue trousers and a blue-and-white striped waistcoat, but without a coat, as when found in the cell. On the left side of the head the fatal mallet, and on the right the ripping chisel, with which the murders had been committed, were exposed to view. The countenance of Williams was ghastly in the extreme, and the whole had an appearance too horrible for description.” The procession traversed Ratcliffe twice, halting for a quarter of an hour in front of the victims’ dwelling, and was accompanied throughout by “an immense concourse of persons, eager to get a sight of the murderer’s remains.... All the shops in the

neighbourhood were shut, and the windows and tops of the houses were crowded with spectators.”

Hanging in chains upon the gibbet which had served for the execution, or on another specially erected on some commanding spot, had fallen into disuse by 1832. But there was an attempt to revive it at that date, when the act for dispensing with the dissection of criminals was passed. A clause was inserted to the effect that “the bodies of all prisoners convicted of murder should either be hung in chains, or buried under the gallows on which they had been executed, ... according to the discretion of the court before whom the prisoners might be tried.” The revival of this barbarous practice caused much indignation in certain quarters, but it was actually tried in two provincial towns, Leicester and Durham. At the first-named the exhibition nearly created a tumult, and the body was taken down and buried, but not before the greatest scandal had been caused by the unseemly proceedings of the crowd that flocked to see the sight. A sort of fair was held, gaming-tables were set up, cards were played under the gibbet, to the disturbance of the public peace and the annoyance of all decent people.^[103] At Jarrow Stake, where the Durham murderer’s body was exposed, there were similar scenes, mingled with compassion for the culprit’s family, and a subscription was set on foot for them then and there at the foot of the gibbet. Later on, after dark, some friends of the deceased stole the body and buried it in the sand, and this was the end of hanging in chains. After this a law was passed which prescribed that the bodies of all executed murderers should be buried within the walls of the gaol.

Although these objectionable practices had disappeared, there were still many shocking incidents at executions, owing to the bungling and unskilful way in which the operation was performed. The rope still broke sometimes, although it was not often that the horrid scene seen at Jersey at the beginning of the century was repeated. There the hangman added his weight to that of the suspended culprit, and having first pulled him sideways, then got upon his shoulders, so that the rope broke. “To the great surprise of all who witnessed this dreadful scene, the poor criminal rose straight upon his feet, with the hangman on his shoulders, and immediately loosened the rope with his fingers.” After this the sheriffs sent for another rope, but the spectators interfered, and the man was carried back to gaol. The whole case was referred to the king, and the poor wretch, whose crime had been a military one, was eventually pardoned. A somewhat similar event happened

at Chester not long afterwards; the ropes by which two offenders were turned off broke a few inches from their necks. They were taken back to gaol, and were again brought out in the afternoon, by which time fresh and stronger ropes had been procured, and the sentence was properly and completely carried out. Other cases might be quoted, especially that of William Snow, *alias* Sketch, who slipped from the gallows at Exeter and fell to the ground. He soon rose to his feet, and hearing the sorrowful exclamations of the populace, coolly said, "Good people, do not be hurried; I am not, I can wait."

Similar cases were not wanting as regards the executions before Newgate. Others were not less horrible, although there was no failure of apparatus. Sometimes the condemned man made a hard fight for life. When Charles White was executed in 1823 for arson, he arranged a handkerchief in such a way that the executioner found a difficulty in pinioning his hands. White managed to keep his wrists asunder, and continued to struggle with the officials for some time. Eventually he was pinioned with a cord in the usual manner. On the scaffold he made a violent attempt to loosen his bonds, and succeeded in getting his hands free. Then with a strong effort he pushed off the white cap, and tried to liberate his neck from the halter, which by this time had been adjusted. The hangman summoned assistance, and with help tied the cap over White's face with a handkerchief. The miserable wretch during the whole of this time was struggling with the most determined violence, to the great horror of the spectators. Still he resisted, and having got from the falling drop to the firm part of the platform, he nearly succeeded in tearing the handkerchief from his eyes. However, the ceremony went forward, and when the signal was given the drop sank. The wretched man did not fall with it, but jumped on to the platform, and seizing the rope with his hands, tried to avoid strangulation. The spectacle was horrible; the convict was half on the platform, half hanging, and the convulsions of his body were appalling. The crowd vociferously yelled their disapproval, and at length the executioner forced the struggling criminal from the platform, so that the rope sustained his whole weight. His face was visible to the whole crowd, and was fearful to behold. Even now his sufferings were not at an end, and his death was not compassed until the executioner terminated his sufferings by hanging on to his legs.

When Luigi Buranelli was executed in 1855, through the improper adjustment of the rope his sufferings were prolonged for five minutes; "his

chest heaved, and it was evident that his struggle was a fearful one.”^[104] A worse case still was that of William Bousfield, who, when awaiting execution for murder, about the same date, had attempted to throw himself upon the fire in his condemned cell. He was in consequence so weak when brought out for execution, that he had to be carried by four men, two supporting his body and two his legs. His wretched, abject condition, seated in a chair under the drop, was such as almost to unnerve the executioner Calcraft, who had been further upset by a letter threatening to shoot him when he appeared to perform his task. Calcraft, the moment he had adjusted the cap and rope, ran down the steps, drew the bolt, and disappeared. “For a second or two the body hung motionless, then, with a strength that astonished the attendant officials, Bousfield slowly drew himself up, and rested with his feet on the right side of the drop. One of the turnkeys rushed forward and pushed him off. Again the wretched creature succeeded in obtaining foothold, but this time on the left side of the drop.” Calcraft was forced to return, and he once more pushed Bousfield off, who for the fourth time regained his foothold. Again he was repelled, this time Calcraft adding his weight to the body, and the strangulation was completed.

It was stated in evidence before the Commission on Capital Punishment in 1864, that Calcraft’s method of hanging was very rough, much the same as if he had been hanging a dog. There has never been much science in the system of carrying out the extreme penalty in this country; the “finisher of the law” has come more by chance than fitness or special education to exercise his loathsome office. Calcraft, of whom mention has just been made, was by trade a lady’s shoemaker, and before he took to hanging he was employed as a watchman at Reid’s brewery in Liqueurpond Street. He was at first engaged as assistant to the executioner Tom Cheshire, but in due course rose to be chief. He was always known as a mild-mannered man of simple tastes, much given to angling in the New River, and a devoted rabbit fancier. He was well known in the neighbourhood where he resided, and the street *gamins* cried “Jack Ketch” as he went along the street. While Calcraft was in office other aspirants to fame appeared in the field. One was Askern, who had been a convicted prisoner at York, but who consented to act as hangman when Calcraft was engaged, and no other functionary could be obtained. It was not always easy to hire a hangman. There is still extant a curious petition presented to the Treasury by Ralph Griffith, Esq., high sheriff of Flintshire, which sets forth that the petitioner had been at great

expense by sending clerks and agents to Liverpool and Shrewsbury to hire an executioner. The man to be hanged belonged to Wales, and no Welshman would do the job. Travelling expenses of these agents cost £15, and another £10 were spent in the hire of a Shropshire man, who deserted, and was pursued, but without success. Another man was hired, himself a convict, whose fees for self and wife were twelve guineas. Then came the cost of the gallows, £4 12s.; and finally the funeral, cart, coffin, and other petty expenses, amounting to £7 10s., making the whole outlay close on £50.

CHAPTER VII.

NEWGATE NOTORIETIES.

Diminution in certain kinds of crime—Fewer street robberies because people carried less cash about them—Corresponding increase in cases of fraud, forgeries, jewel and bullion robberies—Great commercial frauds—Offences against the person confined to murder and manslaughter, the character of which remained much the same—Another crime, that of attempt upon the sovereign—Other forms of treason—The Cato Street conspiracy—Thistlewood's history—Discovery of the plot—The conspirators' plan—How defeated—Their trial at the Old Bailey—The informer Edwards—Their sentence and execution—Attacks on the sovereign—Oxford fires at Queen Victoria—His attempt due to a craze for notoriety—"Young England"—Francis—Bean—Mr. Pate—Celebrated frauds and forgeries—Fauntleroy—The last execution for forgery—Captain Montgomery—Joseph Hutton the Quaker—Richard Gifford—Maynard—Sir Robert Peel's bill to amend forgery laws—The Forgery Act—Latest cases of abduction—E. Gibbon Wakefield and Miss Turner—Big "jobs," burglaries and other robberies, still perpetrated—Howard robs Mr. Mullay—Strange assault upon Mr. Gee—Thieves prosper through connivance of fences and receivers—Ikey Solomons—His escape from custody—He leaves the country, but returns, and is eventually sentenced to transportation—Large robbery of the Custom House—While still undiscovered, robbery of diamonds at the Custom House Quay—Leads to detection of both—The gold-dust robbery in 1839—How discovered—Done by Jews, who cheat each other all round—A few of the most remarkable murders of this epoch—Thurtell, Hunt, and Probert kill Mr. Weare—Burke and Hall—Their imitators, Bishop and Williams, in London, murder an Italian boy and sell the body—Greenacre and Mrs. Gale murder Hannah Brown—Horrible means of disposing of the corpse—Detection, trial, and sentence.

IN chapter two of the present volume I brought down the record of crime to the second decade of the present century. I propose now to continue the subject, and to devote a couple of chapters to criminal occurrences of a more recent date, only premising that as accounts become more voluminous I shall be compelled to deal with fewer cases, taking in preference those which are typical and invested with peculiar interest. It is somewhat remarkable that a marked change soon comes over the Calendar. Certain crimes, those against the person especially, diminished gradually. They became less easy or remunerative. Police protection was better and more effective; the streets of London were well lighted, the suburbs were more populous and regularly patrolled. People, too, were getting into the habit of carrying but little cash about them, and no valuables but their watches or personal jewellery. Street robberies offered fewer inducements to depredators, and evil-doers were compelled to adopt other methods of preying upon their fellows. This led to a rapid and marked increase in all

kinds of fraud; and prominent in the criminal annals of Newgate in these later years will be found numerous remarkable instances of this class of offence—forgeries committed systematically, and for long periods, as in the case of Fauntleroy, to cover enormous defalcations; the fabrication of deeds, wills, and false securities for the purpose of misappropriating funds or feloniously obtaining cash; thefts of bullion, bank-notes, specie, and gold-dust, planned with consummate ingenuity, eluding the keenest vigilance, and carried out with reckless daring; jewel-boxes cleverly stolen under the very noses of owners or care-takers. As time passed, the extraordinary extension of all commercial operations led to many entirely novel and often gigantic financial frauds. The credulity of investors, the unscrupulous dishonesty of bankers, the slackness of supervision over wholly irresponsible agents, produced many terrible monetary catastrophes, and lodged men like Cole, Robson, and Redpath in Newgate.

While the varying conditions of social life thus brought about many changes in the character of offences against property, those against the person became more and more limited to the most heinous, or those which menaced or destroyed life. There was no increase in murder or manslaughter; the number of such crimes remained pretty constant proportionately to population. Nor did the methods by which they were perpetrated greatly vary from those in times past. The causes also continued much the same. Passion, revenge, cupidity, sudden ebullitions of homicidal rage, the cold-blooded, calculating atrocity born of self-interest, were still the irresistible incentives to kill. The brutal ferocity of the wild beast once aroused, the same means, the same weapons were employed to do the dreadful deed, the same and happily often futile precautions taken to conceal the crime. Pegsworth, and Greenacre, and Daniel Good merely reproduced types that had gone before, and that have since reappeared. Esther Hibner was as inhuman in her ill-usage of the parish apprentice she killed as Martha Brownrigg had been. Thurtell and Hunt followed in the footsteps of Billings, Wood, and Catherine Hayes. Courvoisier might have lived a century earlier. Hocker was found upon the scene of his crime, irresistibly attracted thither, as was Theodore Gardelle. Now and again there seemed to be a recurrence of a murder epidemic, as there had been before; as in the year 1849, a year memorable for the Rush murders at Norwich, the Gleeson Wilson murder at Liverpool, that of the Mannings in London, and of many more. Men like Mobbs, the miscreant known as “General Haynau”

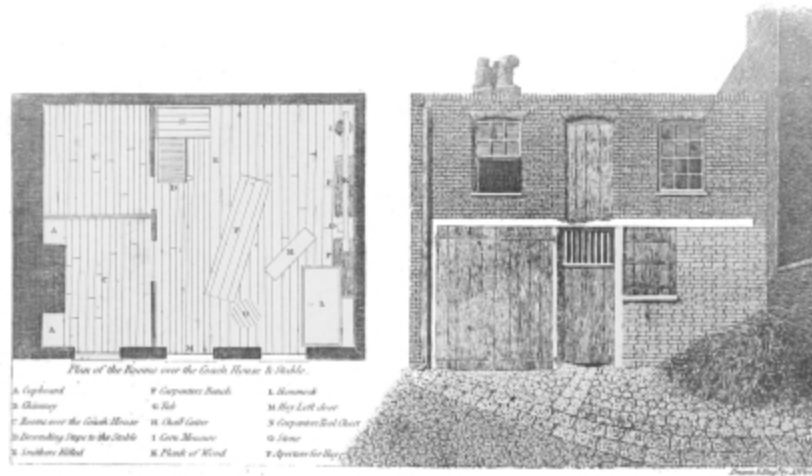
on account of his blood-thirstiness, still murdered their wives; or like Cannon the chimney-sweeper, who savagely killed the policeman.

A not altogether new crime, however, akin to murder, although happily never passing beyond dastardly attempts, cropped up in these times, and was often frequently repeated within a short interval. The present Queen very soon after her accession became the victim of the most cowardly and unmanly outrages, and the attempted murder of the sovereign by Oxford in 1840 was followed in the very next year by those of Francis and of Bean in two consecutive months, while in 1850 Her Majesty was the victim of another outrage at the hands of one Pate. These crimes had their origin too often in the disordered brains of lunatics at large, like Captain Goode. Their perpetrators were charged with high treason, but met with merciful clemency as irresponsible beings. But at various dates treason more distinct and tangible came to the front: attempts to levy war against the State. The well-known Cato Street conspiracy, which grew out of disturbed social conditions after the last French war, amidst general distress, and when the people were beginning to agitate for a larger share of political power, was among the earliest, and to some extent the most desperate, of these. Its ringleaders, Thistlewood and the rest, were after capture honoured by committal as State prisoners to the Tower, but they came one and all to Newgate for trial at the Old Bailey, and remained there after conviction till they were hanged. Later on, the Chartists agitated persistently for the concession embraced in the so-called People's Charter, many of which are by this time actually, and by more legitimate efforts, engrafted upon our Constitution. But the Chartists sought their ends by riot and rebellion, and gained only imprisonment for their pains. Some five hundred in all were arrested, but as only three of these were lodged in Newgate, I shall not recur to them in my narrative.

The Cato Street conspiracy would have been simply ridiculous but for the recklessness of the desperadoes who planned it. That some thirty or more needy men should hope to revolutionize England is a sufficient proof of the absurdity of their attempt. But they proceeded in all seriousness, and would have shrunk from no outrage or atrocity in furtherance of their foolhardy enterprise. The massacre of the whole of the Cabinet Ministers at one stroke was to be followed by an attack upon "the old man and the old woman," as they styled the Mansion House and the Bank of England. At the former the "Provisional Government" was to be established, which under

Thistlewood as dictator was to rule the nation, by first handing over its capital to fire and pillage. This Thistlewood had seen many vicissitudes throughout his strange, adventurous career. The son of a respectable Lincolnshire farmer, he became a militia officer, and married a woman with £10,000, in which, however, she had only a life interest. She died early, and Thistlewood, left to his own resources, followed the profession of arms, first in the British service, and then in that of the French revolutionary Government. It was during this period that he was said to have imbibed his revolutionary ideas. Returning to England, he found himself rich in a small landed property, which he presently sold to a man who became bankrupt before he had paid over the purchase money. After this he tried farming, but failed. He married again and came to London, where he soon became notorious as a reckless gambler and a politician holding the most extreme views. In this way he formed the acquaintance of Watson and others, with whom he was arraigned for treasonable practices, and imprisoned. On his release he sent a challenge to Lord Sidmouth, the Home Secretary, and was again arrested and imprisoned. On his second release, goaded by his fancied wrongs, he began to plot a dark and dreadful revenge, and thus the conspiracy in which he was the prime mover took shape, and came to a head.

The Government obtained early and full information of the nefarious scheme. One of the conspirators, by name Edwards, made a voluntary confession to Sir Herbert Taylor one morning at Windsor; after which Thistlewood and his accomplices were closely watched, and measures taken to arrest them when their plans were so far developed that no doubt could remain as to their guilt. The day appointed for the murder and rising actually arrived before the authorities interfered. It was the day on which Lord Harrowby was to entertain his colleagues at dinner in Grosvenor Square. The occasion was considered excellent by the conspirators for disposal of the whole Cabinet at one blow, and it was arranged that one of their number should knock at Lord Harrowby's door on the pretence of leaving a parcel, and that when it was opened the whole band should rush in. While a few secured the servants, the rest were to fall upon Lord Harrowby and his guests. Hand-grenades were to be thrown into the dining-room, and during the noise and confusion the assassination of the ministers was to be completed, the heads of Lord Castlereagh and Lord



THE STABLE &C. IN CATO STREET WHERE THE CONSPIRATORS MET.

Sidmouth being carried away in a bag. Lord Harrowby's dinner-party was postponed, but the conspirators knew nothing of it, and those who watched his house were further encouraged in their mistake by the arrival of many carriages, bound, as it happened, to the Archbishop of York's. Meanwhile the main body remained at their headquarters, a ruined stable in Cato Street, Edgeware Road, completing their dispositions for assuming supreme power after the blow had been struck. Here they were surprised by the police, headed by a magistrate, and supported by a strong detachment of Her Majesty's Guards. The police were the first to arrive on the spot, the Guards having entered the street at the wrong end. The conspirators were in a loft, approached by a ladder and a trap-door, access through which could only be obtained one by one. The first constable who entered Thistlewood ran through the body with a sword, but others quickly followed, the lights were extinguished, and a desperate conflict ensued. The Guards, headed by Lord Adolphus Fitz Clarence, now reinforced the police, and the conspirators gave way. Nine of the latter were captured, with all the war material, cutlasses, pistols, hand-grenades, and ammunition. Thistlewood and fourteen more succeeded for the moment in making their escape, but most of them were subsequently taken. Thistlewood was discovered next morning in a mean house in White Street, Moorfields. He was in bed with his breeches on (in the pockets of which were found a number of cartridges), the black belt he had worn at Cato Street, and a military sash.

The trial of the conspirators came on some six weeks later, at the Old Bailey. Thistlewood made a long and rambling defence, the chief features of which were abuse of Lord Sidmouth, and the vilification of the informer Edwards. Several of the other prisoners took the same line as regards Edwards, and there seems to have been good reason for supposing that he was a greater villain than any of those arraigned. He had been in a state of abject misery, and when he first joined “the reformers,” as the Cato Street conspirators called themselves, he had neither a bed to lie upon nor a coat to his back. His sudden access to means unlimited was no doubt due to the profitable *rôle* he soon adopted of Government informer and spy, and it is pretty certain that for some time he served both sides; on the one inveigling silly enthusiasts to join in the plot, and denouncing them on the other. The employment of Edwards, and the manner in which the conspirators were allowed to commit themselves further and further before the law was set in motion against them, were not altogether creditable to the Government. It was asserted, not without foundation, at these trials, that Edwards repeatedly incited the associates he was betraying to commit outrage, to set fire to houses, throw hand-grenades into the carriages of ministers; that he was, to use Thistlewood’s words, “a contriver, instigator, and entrapper.” The Government were probably not proud of their agent, for Edwards, after the conviction had been assured, went abroad to enjoy, it was said, an ample pension, so long as he did not return to England.

Five of the conspirators, Thistlewood, Ings, Brunt, Davidson, and Tidd, were sentenced to death, and suffered in the usual way in front of Newgate, with the additional penalty of decapitation, as traitors, after they had been hanged. A crowd as great as any known collected in the Old Bailey to see the ceremony, about which there were some peculiar features worth recording. The reckless demeanour of all the convicts except Davidson was most marked. Thistlewood and Ings sucked oranges on the scaffold; they with Brunt and Tidd scorned the ordinary’s ministrations, but Ings said he hoped God would be more merciful to him than men had been. Ings was especially defiant. He sought to cheer Davidson, who seemed affected, crying out, “Come, old cock-of-wax, it will soon be over.” As the executioner fastened the noose, he nodded to a friend he saw in the crowd; and catching sight of the coffins ranged around the gallows, he smiled at the show with contemptuous indifference. He roared out snatches of a song about Death or Liberty, and just before he was turned off, yelled out three

cheers to the populace whom he faced. He told the executioner to “do it tidy,” to pull it tight, and was in a state of hysterical exaltation up to the very last. Davidson, who was the only one who seemed to realize his awful situation, listened patiently and with thankfulness to the chaplain, and died in a manner strongly contrasting with that of his fellows. After the five bodies had hung for half-an-hour, a man in a mask came forward to complete the sentence. Contemporary reports state that from the skilful manner in which he performed the decapitation, he was generally supposed to be a surgeon. Be this as it may, the weapon used was only an ordinary axe, which rather indicates that force, not skill, was employed. This axe is still in existence, and is preserved at Newgate with various other unpleasant curiosities, but is only an ordinary commonplace tool. These were the last executions for high treason, but not the last prisoners by many who passed through Newgate charged with sedition.

Attacks upon the sovereign, as I have said, became more common after the accession of the young Queen Victoria in 1838. It was a form of high treason not unknown in earlier reigns. In 1786 a mad woman, Margaret Nicholson, tried to stab George III. as he was alighting from his carriage at the gate of St. James’s Palace. She was seized before she could do any mischief, and eventually lodged in Bethlehem Hospital, where she died after forty years’ detention, at the advanced age of one hundred. Again, a soldier, by name Hatfield, who had been wounded in the head, and discharged from the army for unsoundness of mind, fired a pistol at George III. from the pit of Drury Lane theatre in 1800. William IV. was also the victim of a murderous outrage on Ascot race-course in 1832, when John Collins, “a person in the garb of a sailor, of wretched appearance, and having a wooden leg,” threw a stone at the king, which hit him on the forehead, but did no serious injury. Collins, when charged, pleaded that he had lost his leg in action, that he had petitioned without success for a pension, and that, as he was starving, he had resolved on this desperate deed, feeling, as he said, that he might as well be shot or hanged as remain in such a state. He was eventually sentenced to death, but the plea of lunacy was allowed, and he was confined for life.

None of the foregoing attempts were, however, so dastardly or determined as that made by Oxford upon our present gracious Queen two years after she ascended the throne. The cowardly crime was probably encouraged by the fearless and confiding manner in which the Queen,

secure as it seemed in the affections of her loyal people, freely appeared in public. Oxford, who was only nineteen at the time his offence was committed, had been born at Birmingham, but he came as a lad to London, and took service as a pot-boy to a publican. From this he was promoted to barman, and as such had charge of the business in various public-houses. He left his last situation in April 1840, and established himself in lodgings in Lambeth, after which he devoted himself to pistol practice in shooting-galleries, sometimes in Leicester Square, sometimes in the Strand, or the West End. His acquaintances often asked his object in this, but he kept his own counsel till the 10th June. On that day Oxford was on the watch at Buckingham Palace. He saw Prince Albert return there from a visit to Woolwich, and then passed on to Constitution Hill, where he waited till four p.m., the time at which the Queen and Prince Consort usually took an afternoon drive. About six p.m. the royal carriage, a low open vehicle drawn by four horses, ridden by postilions, left the palace. Oxford, who had been pacing backwards and forwards with his hands under the lapels of his coat, saw the carriage approach. He was on the right or north side of the road. Prince Albert occupied the same side of the carriage, the Queen the left. As the carriage came up to him Oxford turned, put his hand into his breast, drew a pistol, and fired at the Queen.

The shot missed, and as the carriage passed on, Oxford drew a second pistol and fired again. The Queen saw this second movement, and stooped to avoid the shot; the Prince too rose to shield her with his person. Again, providentially, the bullet went wide of the mark, and the royal party drove back to Clarence House, the Queen being anxious to give the first news of the outrage and of her safety to her mother, the Duchess of Kent. Meanwhile the pistol-shots had attracted the attention of the bystanders, of whom there was a fair collection, as usual, waiting to see the Queen pass. Oxford was seized by a person named Lowe, who was at first mistaken for the assailant. But Oxford at once assumed the responsibility for his crime, saying, "It was I. I did it. I'll give myself up. There is no occasion to use violence. I will go with you." He was taken into custody, and removed first to a police cell, thence committed to Newgate, after he had been examined before the Privy Council. Oxford expressed little anxiety or concern. He asked more than once whether the Queen was hurt, and acknowledged that the pistols were loaded with ball.

A craze for notoriety, to be achieved at any cost, was the one absorbing idea in young Oxford's disordered brain. After his arrest he thought only of the excitement his attempt had raised, nothing of its atrocity, or of the fatal consequences which might have ensued. When brought to trial he hardly realized his position, but gazed with complacency around the crowded court, and eagerly inquired what persons of distinction were present. He smiled continually, and when the indictment was read, burst into loud and discordant fits of laughter. These antics may have been assumed to bear out the plea of insanity set up in his defence, but that there was madness in his family, and that he himself was of unsound mind, could not be well denied. His father, it was proved in evidence, had been at times quite mad; and Oxford's mental state might be inferred from his own proceedings. Among his papers was found a curious document, purporting to be the rules of an association called "Young England," which Oxford had evolved out of his own inflated self-conceit, and which had never any real corporeal existence. "Young England" was a secret society, with no aim or object. Its sworn members, known only to Oxford, and all of them mere shadows, were bound to provide themselves with sword, rifle, dagger, and a pair of pistols; to wear a black crape mask, to obey punctually the orders of their commander-in-chief, and to assume any disguise, if required to go into the country on the business of the association.

The officers of the society were to be known only by "factitious (*sic*) names." Thus, among the presidents were those of Gowrie, Justinian, Aloman, Colsman, Kenneth, and Godfrey; Hannibal and Ethelred were on the council; Anthony, Augustus, and Frederic were among the generals; Louis and Amadeus among the captains; and Hercules, Neptune, and Mars among the lieutenants of the association. The various grades were distinguished by cockades and bows of different colours. The society was supposed to meet regularly, and its proceedings, together with the speeches made, were duly recorded. With Oxford's other papers were found letters from the secretary, written as it seemed by Oxford to himself, after the manner of Mr. Toots, all of which declared their approval of the commander-in-chief. One expressed pleasure that Oxford improved so much in speaking, and declared that his (Oxford's) speech the last time "was beautiful." This letter went on to say that a new member had been introduced by Lieut. Mars, "a fine, tall, gentlemanly young man, and it is said that he is a military officer, but his name has not yet transpired. Soon

after he was introduced we were alarmed by a violent knocking at the door; in an instant our faces were covered, we cocked our pistols, and with drawn swords stood waiting to receive the enemy. While one stood over the fire with the papers, another stood with lighted torch to fire the house. We then sent the old woman to open the door, and it proved to be some little boys who had knocked and ran away.” Another letter directed Oxford to attend an extraordinary meeting of “Young England” in consequence of having received some information of an important nature from Hanover. “You must attend; and if your master will not give you leave, you must come in defiance of him.”

No serious importance could be attached to these, the manifest inventions of a disordered intellect. The whole of the evidence pointed so strongly towards insanity, that the jury brought in a verdict of acquittal on that ground, and Oxford was ordered to be detained during Her Majesty’s pleasure. He went from Newgate first to Bethlehem, from which he was removed to Broadmoor on the opening of the great criminal lunatic asylum at that place. He was released from Broadmoor in 1878, and went abroad.

Within a couple of years a second attempt to assassinate the Queen was perpetrated in nearly the same spot, by a man named John Francis, who was arrested in the very act, just as he had fired one shot. His motives for thus imitating the dastardly crime of Oxford are shrouded in obscurity. He could not plead insanity like his predecessor, and no attempt was made at his trial to prove him of unsound mind. Here again probably it was partly the love of notoriety which was the incentive, backed possibly with the hope that, as in a much more recent case,^[105] he would be in some way provided for, he having been for some time previously in abject circumstances. The deed was long premeditated, and would have been executed a day earlier had not his courage failed him at the last moment. A youth named Pearson had seen him present a pistol at the Queen’s carriage, but draw it back again, exclaiming presently, “I wish I had done it.” Pearson weakly allowed Francis to go off without securing his apprehension, but later he gave full information. The Queen was apprised of the danger, and begged not to go abroad; but she declared she would not remain a prisoner in her own palace, and next day drove out as usual in an open barouche. Nothing happened till Her Majesty returned to Buckingham Palace about six p.m., when, on descending Constitution Hill, with an equerry riding close on each side of her carriage, a man who had been leaning against the palace garden wall

suddenly advanced, levelled a pistol at the Queen, and fired. He was so close to the carriage that the smoke of his pistol enveloped the face of Colonel Wylde, one of the equerries. The Queen was untouched, and at first, it is said, hardly realized the danger she had escaped. Francis had already been seized by a policeman named Trounce, who saw his movement with the pistol, but too late to prevent its discharge. The prisoner was conveyed without delay to the Home Office, and there examined by the Privy Council, which had been hastily summoned for the purpose. On searching him the pistol was found in his pocket, the barrel still warm; also some loose powder and a bullet. There was some doubt as to whether the pistol when fired was actually loaded with ball, but the jury brought in a verdict of guilty of the criminal intent to kill. Francis was sentenced to be hanged, decapitated, and quartered, the old traitor's doom, but was spared, and subsequently transported for life. The enthusiasm of the people at the Queen's escape was uproarious, and her drive next day was one long triumphal progress. At the Italian Opera in the evening the audience, on the Queen's appearance, greeted her with loud cheers, and called for the national anthem. This was in May 1842.

Undeterred by the well-merited punishment which had overtaken Francis, a third miscreant made a similar but far less serious attempt in the month of July following. As the Queen was driving from Buckingham Palace to the Chapel Royal, a deformed lad among the crowd was seen to present a pistol at Her Majesty's carriage, in the Mall, about half-way between Buckingham and St. James's Palaces. Only one person saw the movement, a lad named Dasset, who at once collared the cripple, and taking him up to two policemen, charged him with the offence. The policemen treated the matter as a hoax, and allowed the culprit to make off. Later on, however, Dasset was himself seized and interrogated, and on his information handbills were circulated, giving the exact description of the deformed youth, who had "a hump-back, and a long, sickly, pale face, with light hair;" his nose was marked with a scar or black patch, and he was altogether of a dirty appearance. It happened that a lad named Bean had absconded from his father's home some weeks before, whose description, as given by his father to the police, exactly tallied with that of the deformed person "wanted" for the assault on the Queen. A visit to the father's residence was followed by the arrest of the son, who had by this time returned. This son, John William Bean, was fully identified by Dasset, and

presently examined by the Privy Council. He was eventually charged with a misdemeanour, the capital charge having been abandoned, and committed for trial. Much the same motives of seeking notoriety seem to have impelled Bean, who was perfectly sane, to his rash act; but it was proved that the pistol was not loaded with ball, and he was only convicted of an attempt “to harass, vex, and grieve the sovereign.” Lord Abinger sentenced him to eighteen months’ imprisonment in Newgate, but the place of durance was changed, to meet the existing law, to Millbank Penitentiary.

I shall mention briefly one more case, in which, however, there was no murderous intent, before I pass on to other crimes. On June 1850 the Queen was once more subjected to cowardly outrage, the offender being a Mr. Pate, a gentleman by birth, who had borne the Queen’s commission, first as cornet, and then lieutenant, in the 10th Hussars. Pate was said to be an eccentric person, given to strange acts and antics, such as mixing whiskey and camphor with his morning bath-water, and walking for choice through prickly gorse bushes. He always kept the blinds down at his chambers in Jermyn Street; and as the St. James’s clock chimed quarter-past three, invariably went out in a cab, for which he always paid the same fare, nine shillings, all in shillings, and no other coin. But this was not sufficient to constitute lunacy, nor was his plea of “momentary uncontrollable impulse” deemed valid as any palliation of his offence. That offence was a brutal assault upon Her Majesty, whom he struck in the face with a small stick just as she was leaving Cambridge House. The blow crushed the bonnet and bruised the forehead of the Queen, who was happily not otherwise injured. Pate was found guilty, and sentenced to seven years’ transportation, the judge, Baron Alderson, abstaining from inflicting the penalty of whipping, which was authorized by a recent act, on account of Mr. Pate’s family and position in life.

I have already remarked that as violence was more and more eliminated from crimes against the person, frauds indicating great boldness, extensive design, and ingenuity became more prevalent. The increase of bank forgeries, and its cause, I referred to in a previous chapter.^[106] At one session of the Old Bailey, in 1821, no less than thirty-five true bills were found for passing forged notes. But there were other notorious cases of forgery. That of Fauntleroy the banker, in 1824, caused much excitement at the time on account of the magnitude of the fraud, and the seeming probity of the culprit. Mr. Fauntleroy was a member of a banking firm, which his

father had established in conjunction with a gentleman of the name of Marsh, and others. He had entered the house as clerk in 1800; in 1807, and when only twenty-two, he succeeded to his father's share in the business. According to Fauntleroy's own case, he found at once that the firm was heavily involved, through advances made to various builders, and that it could only maintain its credit by wholesale discounting. Its embarrassments were greatly increased by the bankruptcy of two of its clients in the building trade, and the bank became liable for a sum of £170,000. New liabilities were incurred to the extent of £100,000 by more failures, and in 1819, by the death of one of the partners, a large sum in cash had to be withdrawn from the bank to pay his heirs. "During these numerous and trying difficulties"—it is Mr. Fauntleroy who speaks—"the house was nearly without resources, and the whole burthen of management falling on me, ... I sought resources where I could;" in other words, he forged powers of attorney, and proceeded to realize securities lodged in his bank under various names. Among the prisoner's private papers, one was found giving full details of the stock he had feloniously sold out, the sum total amounting to some £170,000, with a declaration in his own handwriting to the following effect. "In order to keep up the credit of our house, I have forged powers of attorney for the above sums and parties, and sold out to the amount here stated, and without the knowledge of my partners. I kept up the payments of the dividends, but made no entries of such payments in my books. The bank began first to refuse our acceptances, and to destroy the credit of our house; the bank shall smart for it."

Many stories were in circulation at the time of Fauntleroy's trial with regard to his forgeries. It was said that he had by means of them sold out so large an amount of stock, that he paid £16,000 a year in dividends to escape detection. Once he ran a narrow risk of being found out. A lady in the country, who had £13,000 in the stocks, desired her London agent to sell them out. He went to the bank, and found that no stocks stood in her name. He called at once upon Fauntleroy, his client's bankers, for an explanation, and was told by Mr. Fauntleroy that the lady had desired *him* to sell out, "which I have done," added the fraudulent banker, "and here are the proceeds," whereupon he produced exchequer bills to the amount. Nothing more was heard of the affair, although the lady declared that she had never instructed Fauntleroy to sell. On another occasion the banker forged a gentleman's name while the latter was sitting with him in his private room,

and took the instrument out to a clerk with the ink not dry. It must be added that the Bank of England, on discovering the forgeries, replaced the stock in the names of the original holders, who might otherwise have been completely ruined. A newspaper report of the time describes Fauntleroy as “a well-made man of middle stature. His hair, though gray, was thick, and lay smooth over his forehead. His countenance had an expression of most subdued resignation. The impression which his appearance altogether was calculated to make was that of the profoundest commiseration.”

The crime, long carried on without detection, was first discovered in 1820, when it was found that a sum of £10,000, standing in the name of three trustees, of whom Fauntleroy was one, had been sold out under a forged power of attorney. Further investigations brought other similar frauds to light, and fixed the whole sum misappropriated at £170,000, the first forgery dating back to 1814. A run upon the bank immediately followed, which was only met by a suspension of payment and the closing of its doors. Meanwhile public gossip was busy with Fauntleroy’s name, and it was openly stated in the press and in conversation that the proceeds of these frauds had been squandered in chambering, gambling, and debauchery. Fauntleroy was scouted as a



FAUNTLEROY IN THE DOCK.

licentious libertine, a deep and determined gamester, a spendthrift whose extravagance knew no bounds.^[107] The veil was lifted from his private life, and he was accused of persistent immorality. In his defence he sought to rebut these charges, which indeed were never clearly made out, and it is pretty certain that his own account of the causes which led him into

dishonesty was substantially true. He called many witnesses, seventeen in all, to speak of him as they had found him; and these, all respectable city merchants and business men, declared that they had hitherto formed a high opinion of his honour, integrity, and goodness of disposition, deeming him the last person capable of a dishonourable action.

These arguments availed little with the jury, who after a short deliberation found Fauntleroy guilty, and he was sentenced to death. Every endeavour was used, however, to obtain a commutation of sentence. His case was twice argued before the judges on points of law, but the result in both cases was unfavourable. Appeals were made to the Home Secretary, and all possible political interest brought to bear, but without success. Fauntleroy meanwhile lay in Newgate, not herded with other condemned prisoners, as the custom was,^[108] but in a separate chamber, that belonging to one of the warders of the gaol. I find in the chaplain's journal, under date 1824, various entries relative to this prisoner. "Visited Mr. Fauntleroy. My application for books for him not having been attended, I had no prayer-book to give him." "Visited Mr. Fauntleroy. The sheriffs have very kindly permitted him to remain in the turnkey's room where he was originally placed; nor can I omit expressing a hope that this may prove the beginning of a better system of confinement, and that every description of persons who may be unfortunately under sentence of death will no longer be herded indiscriminately together."^[109] The kindness of the city authorities to Fauntleroy was not limited to the assignment of a separate place of durance.

As I have already said, they took the chaplain seriously to task for the bad taste shown in the condemned sermon preached before Fauntleroy. This was on the text, "Wherefore let him that thinketh he standeth take heed lest he fall," and was full of the most pointed allusions to the culprit. Fauntleroy constantly groaned aloud while the sermon proceeded, and contemporary reports declared that "he appeared to feel deeply the force of the reverend gentleman's observations," especially when the chaplain spoke "of the great magnitude of our erring brother's offence, one of the most dangerous description in a trading community." The sermon ended with an appeal to the dying man, exhorting him to penitence. This "personality," and it can be called by no other name, is carefully excluded from prison pulpit utterances on the eve of an execution.

A very curious and, in its way, amusing circumstance in connection with this case was the offer of a certain Italian, Edmund Angelini, to take

Fauntleroy's place. Angelini wrote to the Lord Mayor to this effect, urging that Fauntleroy was a father, a citizen: "his life is useful, mine a burthen, to the State." He was summoned to the Mansion House, where he repeated his request, crying, "Accordez moi cette grâce," with much urgency. There were doubts of his sanity. He wrote afterwards to the effect that the moment he had offered himself, an unknown assassin came to aim a blow at him. "Let this monster give his name; I am ready to fight him. I am still determined to put myself in the place of Mr. Fauntleroy. If the law of this country can receive such a sacrifice, my death will render to heaven an innocent man, and to earth a repentant sinner."

Fauntleroy was not entirely dependent upon the ordinary for ghostly counsel in his extremity. He was also attended by the Rev. Mr. Springett and the indefatigable Mr. Baker, whose name has already been mentioned.^[110] When led out on the morning of his execution, these two last-named gentlemen each took hold of one of his arms, and so accompanied him to the scaffold. The concourse in front of Newgate was enormous, but much sympathy was evinced for this unfortunate victim to human weakness and ruthless laws. A report was, moreover, widely circulated, and the impression long prevailed, that he actually escaped death. It was said that strangulation had been prevented by the insertion of a silver tube in his wind-pipe, and that after hanging for the regulated time he was taken down and easily restored to consciousness. Afterwards, according to the common rumour, he went abroad and lived there for many years; but the story is not only wholly unsubstantiated, but there is good evidence to show that the body after execution was handed over to his friends and interred privately.

Some years were still to elapse before capital punishment ceased to be the penalty for forgery, and in the interval several persons were sentenced to or suffered death for this crime. There were two notable capital convictions for forgery in 1828. One was that of Captain Montgomery, who assumed the aliases of Colonel Wallace and Colonel Morgan. His offence was uttering forged notes, and there was strong suspicion that he had long subsisted entirely by this fraud. The act for which he was taken into custody was the payment of a forged ten-pound note for half-a-dozen silver spoons. Montgomery was an adept at forgery. He had gone wrong early. Although born of respectable parents, and gazetted to a commission in the army, he soon left the service and betook himself to dishonest ways. His first forgery was the marvellous imitation of the signature of the Hon. Mr. Neville, M.P.,

who wrote an extremely cramped and curious hand. He was not prosecuted for this fraud on account of the respectability of his family, and soon after this escape he came to London, where he practised as a professional swindler and cheat. For a long time justice did not overtake him for any criminal offence, but he was frequently in Newgate and in the King's Bench for debt. After three years' confinement in the latter prison he passed himself off as his brother, Colonel Montgomery, a distinguished officer, and would have married an heiress had not the imposture been discovered in time. He then took to forging bank-notes, and was arrested as I have described above. Montgomery was duly sentenced to death, but he preferred suicide to the gallows. After sentence his demeanour was serious yet firm. The night previous to that fixed for his execution he wrote several letters, one of them being to Edward Gibbon Wakefield, a fellow-prisoner, [111] and listened attentively to the ordinary, who read him the well-known address written and delivered by Dr. Dodd previous to his own execution for forgery. But next morning he was found dead in his cell. In one corner after much search a phial was found labelled "Prussic acid," which it was asserted he had been in the habit of carrying about his person ever since he had taken to passing forged notes, as an "antidote against disgrace." This phial he had managed to retain in his possession in spite of the frequent searches to which he was subjected in Newgate.

The second conviction for forgery in 1828 was that of the Quaker Joseph Hunton, a man of previously the highest repute in the city of London. He had prospered in early life, was a slop-seller on a large scale at Bury St. Edmunds, and a sugar-baker in the metropolis. He married a lady also belonging to the Society of Friends, who brought him a large fortune, which, and his own money, he put into a city firm, that of Dickson and Co. He soon, however, became deeply involved in Stock Exchange speculations, and losing heavily, to meet the claims upon him he put out a number of forged bills of exchange or acceptances, to which the signature of one Wilkins of Abingdon was found to be forged. Hunton tried to fly the country on the detection of the fraud, but was arrested at Plymouth just as he was on the point of leaving England in the New York packet. He had gone on board in his Quaker dress, but when captured was found in a light-green frock, a pair of light-grey pantaloons, a black stock and a foraging cap. Hunton was put upon his trial at the Old Bailey, and in due course sentenced to death. His defence was that the forged acceptances would have

been met on coming to maturity, and that he had no real desire to defraud. Hunton accepted his sentence with great resignation, although he protested against the inhumanity of the laws which condemned him to death. On entering Newgate he said, "I wish after this day to have communication with nobody; let me take leave of my wife, and family, and friends. I have already suffered an execution; my heart has undergone that horrible penalty." He was, however, visited by and received his wife, and several members of the Society of Friends. Two elders of the meeting sat up with him in the press yard the whole of the night previous to execution, and a third, Mr. Sparks Moline, came to attend him to the scaffold. He met his death with unshaken firmness, only entreating that a certain blue handkerchief, to which he seemed fondly attached, should be used to bandage his eyes, which request was readily granted.

Hunton's execution no doubt aroused public attention to the cruelty and futility of the capital law against forgery. A society which had already been started against capital punishment devoted its efforts first to a mitigation of the forgery statute, but could not immediately accomplish much. In 1829 the gallows claimed two more victims for this offence. One was Richard Gifford, a well-educated youth who had been at Christ's Hospital, and afterwards in the National Debt Office. Unfortunately he took to drink, lost his appointment, and fell from bad to worse. Suddenly, after being at the lowest depths, he emerged, and was found by his friends living in comfort in the Waterloo Road. His funds, which he pretended came to him with a rich wife, were really the proceeds of frauds upon the Bank of England. He forged the names of people who held stock on the Bank books, and got the value of the stock; he also forged dividend receipts and got the dividends. He was only six-and-twenty when he was hanged. The other and the last criminal executed for forgery in this country was one Maynard, who was convicted of a fraud upon the Custom House. In conjunction with two others, one of whom was a clerk in the Custom House, and had access to the official records, he forged a warrant for £1973, and was paid the money by the comptroller general. Maynard was convicted of uttering the forged document, Jones of being an accessory; the third prisoner was acquitted. Maynard was the only one who suffered death.

This was on the last day of 1829. In the following session Sir Robert Peel brought in a bill to consolidate the acts relating to forgery. Upon the third reading of this bill Sir James Macintosh moved as an amendment that

capital punishment should be abolished for all crimes of forgery, except the forgery of wills and powers of attorney. This amendment was strongly supported outside the House, and a petition in favour of its passing was presented, signed by more than a thousand members of banking firms. Macintosh's amendment was carried in the Commons, but the new law did not pass the Lords, who re-enacted the capital penalty. Still no sentence of death was carried out for the offence, and in 1832 the Attorney-General introduced a bill to abolish capital punishment entirely for forgery. It passed the Commons, but opposition was again encountered in the Lords. This time they sent back the bill, re-enacting only the two penalties for will forging and the forging of powers of attorney; in other words, they had advanced in 1832 to the point at which the Lower House had arrived in 1830. There were at the moment in Newgate six convicts sentenced to death for forging wills. The question was whether the Government would dare to take their lives at the bidding of the House of Lords, and in defiance of the vote of the assembly which more accurately represented public opinion. It was indeed announced that their fate was sealed; but Mr. Joseph Hume pressed the Government hard, and obtained an assurance that the men should not be executed. The new Forgery Act with the Lords' amendment passed into law, but the latter proved perfectly harmless, and no person ever after suffered death for any variety of this crime.

I will include in this part of the present chapter almost one of the last instances^[112] of a crime which in time past had invariably been visited with the death penalty, and which was of a distinctly fraudulent nature. The abduction of Miss Turner by the brothers Wakefield bore a strong resemblance to the carrying off and forcible marrying of heiresses as already described.^[113] Miss Turner was a school-girl of barely fifteen, only child of a gentleman of large property in Cheshire, of which county he was actually high sheriff at the time of his daughter's abduction. The elder brother, Edward Gibbon Wakefield, the prime mover in the abduction, was a barrister, not exactly briefless, but without a large practice. He had, it was said, a good private income, and was already a widower with two children at the time of his committing the offence for which he was subsequently tried. He had eloped with his first wife from school. While on a visit to Macclesfield he heard by chance of Miss Turner, and that she would inherit all her father's possessions. He thereupon conceived an idea of carrying her off and marrying her willy nilly at Gretna Green. The two brothers started at

once for Liverpool, where Miss Turner was at school with a Mrs. Daulby. At Manchester, *en route*, a travelling carriage was purchased, which was driven up to Mrs. Daulby's door at eight in the morning, and a servant hurriedly alighted from it, bearing a letter for Miss Turner. This purported to be from the medical attendant of Mr. Turner, written at Shrigley, Mr. Turner's place of residence; and it stated that Mrs. Turner had been stricken with paralysis. She was not in immediate danger, but she wished to see her daughter, "as it was possible she might soon become incapable of recognizing any one." Miss Turner, greatly agitated, accompanied the messenger who had brought this news, a disguised servant of Wakefield's, who had plausibly explained that he had only recently been engaged at Shrigley. The road taken was *viâ* Manchester, where the servant said a Dr. Hull was to be picked up to go on with them to Shrigley.

At Manchester, however, the carriage stopped at the Albion Hotel. Miss Turner was shown into a private room, where Mr. Wakefield soon presented himself. Miss Turner, not knowing him, would have left the room, but he said he came from her father, and she remained. Wakefield, in reply to her inquiries, satisfied her that her mother was well, and that the real reason for summoning her from school was the state of her father's affairs. Mr. Turner was on the verge of bankruptcy. He was at that moment at Kendal, and wished her to join him there at once. Miss Turner consented to go on, and they travelled night and day towards the north. But at Kendal there was no Mr. Turner, and, to allay Miss Turner's growing anxiety, Wakefield found it necessary to become more explicit regarding her father's affairs. He now pretended that Mr. Turner was also on his way to the border, pursued by sheriffs' officers. The fact was, Wakefield went on to say, an uncle of his had advanced Mr. Turner £60,000, which had temporarily staved off ruin. But another bank had since failed, and nothing could save Mr. Turner but the transfer of some property to Miss Turner, and its settlement on her, so that it might become the exclusive property of her husband, "whoever he might be." Wakefield added that it had been suggested he should marry Miss Turner, but that he had laughed at the idea. Wakefield's uncle took the matter more seriously, and declared that unless the marriage came off Mr. Turner must be sold up. Miss Turner, thus pressed, consented to go on to Gretna Green. Passing through Carlisle, she was told that Mr. Turner was in the town, but could not show himself. Nothing could release him from his trouble but the arrival of the marriage certificate from Gretna Green. Filial

affection rose superior to all scruples, and Miss Turner, having crossed the border, was married to Wakefield by the blacksmith in the usual way. Returning to Carlisle, she now heard that her father had been set free, and had gone home to Shrigley, whither they were to follow him. They set out, but at Leeds Wakefield found himself called suddenly to Paris; the other brother was accordingly sent on a pretended mission to Shrigley to bring Mr. Turner on to London, whither Wakefield and Miss Turner also proceeded. On arrival, Wakefield pretended that they had missed Mr. Turner, and must follow him over to France. The strangely-married couple thereupon pressed on to Dover, and crossed over to Calais.

The fact of the abduction did not transpire for some days. Then Mrs. Daulby learnt that Miss Turner had not arrived at Shrigley, but that she had gone to Manchester. Friends went in pursuit and traced her to Huddersfield and further north. The terror and dismay of her parents were soon intensified by the receipt of a letter from Wakefield, at Carlisle, announcing the marriage. Mr. Turner at once set off for London, where he sought the assistance of the police, and presently ascertained that Wakefield had gone to the Continent with his involuntary bride. An uncle of Miss Wakefield's, accompanied by his solicitor and a Bow Street runner, at once went in pursuit. Meanwhile, a second letter turned up from Wakefield at Calais, in which he assured Mrs. Turner that Miss Turner was fondly attached to him, and went on to say, "I do assure you, madam, that it shall be the anxious endeavour of my life to promote her happiness by every means in my power." The game, however, was nearly up. Miss Turner was met by her uncle on Calais pier as she was walking with Wakefield. The uncle claimed her. The husband resisted. M. le Maire was appealed to, and decided to leave it to the young lady, who at once abandoned Wakefield. As he still urged his rights over his wife, Miss Turner cried out in protest, "No, no, I am not his wife; he carried me away by fraud and stratagem, and forced me to accompany him to Gretna Green.... By the same forcible means I was compelled to quit England, and to trust myself to the protection of this person, whom I never saw until I was taken from Liverpool, and never want to see again." On this Wakefield gave in. He surrendered the bride who had never been a wife, and she returned to England with her friends, while Wakefield went on alone to Paris.

Mr. William Wakefield was arrested at Dover, conveyed to Chester, and committed to Lancaster Gaol for trial at the next assizes, when indictments

were preferred against both brothers “for having carried away Ellen Turner, spinster, then a maid and heir apparent unto her father, for the sake of the lucre of her substance; and for having afterwards unlawfully and against her will married the said Ellen Turner.” They were tried in March of the following year, Edward Wakefield having apparently given himself up, and found guilty, remaining in Lancaster Gaol for a couple of months, when they were brought up to the court of King’s Bench for judgment. The prosecution pressed for a severe penalty. Edward Wakefield pleaded that his trial had already cost him £3000. Mr. Justice Bayley, in summing up, spoke severely of the gross deception practised upon an innocent girl, and sentenced the brothers each to three years’ imprisonment, William Wakefield in Lancaster Gaol, and Edward Gibbon Wakefield in Newgate, which sentences were duly enforced. The marriage was annulled by an Act of Parliament, although Wakefield petitioned against it, and was brought from Newgate, at his own request, to oppose the second reading of the bill. He also wrote and published a pamphlet from the gaol to show that Miss Turner had been a consenting party to the marriage, and was really his wife. Neither his address nor his pamphlet availed much, for the bill for the divorce passed both Houses. That Mr. Wakefield was a shrewd critic and close observer of all that went on in the Newgate of those days, will be admitted by those who have read his book on “the punishment of death,” which was based on his gaol experiences, and of which I have availed myself in the last chapter.

After their release from Lancaster and Newgate respectively, both Wakefields went abroad. Mr. W. Wakefield served in a continental army, and rose to the rank of colonel, after which he went to New Zealand, and held an important post in that colony. Mr. E. G. Wakefield took part in the scheme for the colonization of North Australia, and for some years resided in that colony. Miss Turner subsequently married Mr. Legh of Lym Hall, Cheshire.

It must not be imagined that although highway robbery was now nearly extinct,^[114] and felonious outrages in the streets were rare, that thieves or depredators were idle or entirely unsuccessful. Bigger “jobs” than ever were planned and attempted, as in the burglary at Lambeth Palace, when the thieves were fortunately disappointed, the archbishop having, before he left town, sent his plate-chests, eight in number, to the silversmith’s for greater security. The jewellers were always a favourite prey of the London thieves.

Shops were broken into, as when that of Grimaldi and Johnson, in the Strand, was robbed of watches to the value of £6000. Where robbery with violence was intended, the perpetrators had now to adopt various shifts and contrivances to secure their victim. No more curious instance of this ever occurred than the assault made by one Howard upon a Mr. Mullay, with intent to rob him. The latter had advertised, offering a sum of £1000 to any one who would introduce him to some mercantile employment. Howard replied, desiring Mr. Mullay to call upon him in a house in Red Lion Square. Mr. Mullay went, and a second interview was agreed upon, when a third person, Mr. Owen, through whose interest an appointment under Government was to be obtained for Mullay, would be present. Mr. Mullay called again, taking with him £500 in cash. Howard discovered this, and his manner was very suspicious; there were weapons in the room—a long knife, a heavy trap-ball bat, and a poker. Mr. Mullay became alarmed, and as Mr. Owen did not appear, withdrew; Howard, strange to say, making no attempt to detain him; probably because Mullay promised to return a few days later, and to bring more money. On this renewed visit Mr. Owen was still absent, and Mr. Mullay agreed to write him a note from a copy Howard gave him. While thus engaged, Howard thrust the poker into the fire. Mullay protested, and then Howard, under the influence of ungovernable rage, as it seemed, jumped up, locked the door, and attacked Mullay violently with the trap-ball bat and knife. Mullay defended himself, and managed to break the knife, but not before he had cut himself severely. A life and death struggle ensued. Mullay cried “Murder!” Howard swore he would finish him, but proved the weaker of the two, and Mullay got him down on the floor. By this time the neighbours were aroused, and several people came to the scene of the affray. Howard was secured, given into custody, and committed to Newgate. The defence he set up was, that Mullay had used epithets towards him while they were negotiating a business matter, and that, being an irritable temper, he had struck Mullay, after which a violent scuffle took place. It was, however, proved that Howard was in needy circumstances, and that his proposals to Mr. Mullay could only have originated in a desire to rob him. He was found guilty of an assault with intent, and sentenced to transportation for fourteen years.

A more complicated and altogether most extraordinary case of assault, with intent to extort money, occurred a few years later. It was perpetrated upon a respectable country solicitor, Mr. Gee, of Bishop Stortford, who

administered the estate of a certain Mr. Canning, deceased. This Mr. Canning had left his widow a life interest in £2000 so long as she remained unmarried. The money went after her to her children. Mr. Gee had invested £1200 of this, and was seeking how best to place the remaining £800, when he was asked to meet a Mr. Heath in London with regard to the sale of certain lands at Bishop Stortford. An appointment was made and kept by Mr. Gee, but on arrival he was met by a young sailor with a letter which begged Mr. Gee to go to Heath's house, as the latter was not well. Mr. Gee went in the coach sent for him, and alighted at 27, York Street, West, Commercial Road. The coach immediately drove off; Mr. Gee entered the house, asked for Mr. Heath, was told he would find him in the back kitchen at breakfast. He was about to descend the stairs when three persons, one of them the young sailor, fell upon him, and in spite of his resistance carried him into a sort of den partitioned off at the end of the back kitchen. There he was seated on some sort of wooden bench and securely fastened. "A chain fixed to staples at his back passed round his chest under his arms, and was padlocked on the left side;" his feet were bound with cords and made fast to rings in the floor. Thus manacled, one of the party, who pretended to be Mrs. Canning's brother, addressed him, insisting that he should forthwith sign a cheque for the £800 of the Canning inheritance still uninvested, and write an order sufficient to secure the surrender of the other £1200. Mr. Gee at first stoutly refused. Then, as they warned him that he would be kept a prisoner in total darkness in this horrible den until he agreed to their demands, he gave in, and signed the documents thus illegally extorted. One was a cheque for £800 on his bankers, the other an order to Mr. Bell of Newport, Essex, requesting the surrender of a deed.

His captors having thus succeeded in their designs, left him, no doubt to realize the money. The door of his place of durance stood open, and Mr. Gee began to consider whether he might not escape. For three hours he struggled without success with his bonds, but at length managed to wriggle out of the chain which confined his body, and soon loosened the ropes round his feet. Thus free, he eluded the vigilance of two of the party, who were at dinner in the front kitchen, and creeping out into the garden at the back, climbed the wall, and got into the street. His first act was to send a messenger to stop the cheque and the order to Mr. Bell, his next to seek the help of the police. Two Bow Street runners were despatched to the house in York Street, which had evidently been taken on purpose for the outrage.

There was no furniture in the place, and the den in the kitchen had been recently and specially constructed of boards of immense strength and thickness. It was a cell five feet by three, within another, the intervening being filled with rammed earth to deaden the sound. A fixed seat, two feet, was at one end, and a foot above it was a bar with a staple, to which hung the body chain.

On the arrival of the police the house was empty. The two men on guard had gone off immediately after Mr. Gee had escaped, but they returned later in the day, and were apprehended. Inquiries set on foot also elicited the suspicion that the person who had represented Mrs. Canning's brother was a blind man named Edwards, who had taken this house in York Street, and who was known to be a frequent visitor at Mrs. Canning's. A watch was set on him at her house, where he was soon afterwards arrested. Edwards, whom Mr. Gee easily identified with the others, at once admitted that he was the prime mover of the conspiracy. He had sought by all legal means to obtain possession of the £2000, but had failed, and had had recourse to more violent means. It turned out that he was really married to Mrs. Canning, both having been recognized by the clergyman who had performed the ceremony, and the assault had been committed to secure the money which Mrs. Canning had lost by re-marriage. All three men were committed for trial, although Edwards wished to exculpate the others as having only acted under his order. At the trial the indictment charging them with felony could not be sustained, but they were found guilty of conspiracy and assault. Edwards was sentenced to two years' imprisonment in Newgate, Weedon and Lecasser to twelve and six months respectively in Coldbath Fields.

At no period could thieves in London or elsewhere have prospered had they been unable to dispose of their ill-gotten goods. The trade of fence, or receiver, therefore, is very nearly as old as the crimes which it so obviously fostered.^[115] One of the most notorious, and for a time most successful practitioners in this illicit trade, passed through Newgate in 1831. The name of Ikey Solomons was long remembered by thief and thief-taker. He began as an itinerant street vendor at eight, at ten he passed bad money, at fourteen he was a pickpocket and a "duffer," or a seller of sham goods. He early saw the profits to be made out of purchasing stolen goods, but could not embark in it at first for want of capital. He was taken up when still in his teens for stealing a pocket-book, and was sentenced to transportation, but did not get

beyond the hulks at Chatham. On his release an uncle, a slop-seller in Chatham, gave him a situation as “barker,” or salesman, at which he realized £150 within a couple of years. With this capital he returned to London and set up as a fence. He had such great aptitude for business, and such a thorough knowledge of the real value of goods, that he was soon admitted to be one of the best judges known of all kinds of property, from a glass bottle to a five hundred guinea chronometer. But he never paid more than a fixed price for all articles of the same class, whatever their intrinsic value. Thus, a watch was paid for as a watch, whether it was of gold or silver; a piece of linen as such, whether the stuff was coarse or fine. This rule in dealing with stolen goods continues to this day, and has made the fortune of many since Ikey.

Solomons also established a system of provincial agency, by which stolen goods were passed on from London to the seaports, and so abroad. Jewels were re-set, diamonds re-faced; all marks by which other articles might be identified, the selvages of linen, the stamps on shoes, the number and names on watches, were carefully removed or obliterated after the goods passed out of his hands. On one occasion the whole of the proceeds of a robbery from a boot shop was traced to Solomons’; the owner came with the police, and was morally convinced that it was his property, but could not positively identify it, and Ikey defied them to remove a single shoe. In the end the injured bootmaker agreed to buy back his stolen stock at the price Solomons had paid for it, and it cost him about a hundred pounds to re-stock his shop with his own goods.

As a general rule Ikey Solomons confined his purchases to small articles, mostly of jewellery and plate, which he kept concealed in a hiding-place with a trap-door just under his bed. He lived in Rosemary Lane, and sometimes he had as much as £20,000 worth of goods secreted on the premises. When his trade was busiest he set up a second establishment, at the head of which, although he was married, he put another lady, with whom he was on intimate terms. The second house was in Lower Queen Street, Islington, and he used it for some time as a depot for valuables. But it was eventually discovered by Mrs. Solomons, a very jealous wife, and this, with the danger arising from an extensive robbery of watches in Cheapside, in which Ikey was implicated as a receiver, led him to think seriously of trying his fortunes in another land. He was about to emigrate to New South Wales, when he was arrested at Islington and committed to

Newgate on a charge of receiving stolen goods. While thus incarcerated he managed to escape from custody, but not actually from gaol, by an ingenious contrivance which is worth mentioning. He claimed to be admitted to bail, and was taken from Newgate on a writ of *habeas* before one of the judges sitting at Westminster. He was conveyed in a coach driven by a confederate, and under the escort of a couple of turnkeys. Solomons, while waiting to appear in court, persuaded the turnkeys to take him to a public-house, where all might “refresh.” While there he was joined by his wife and other friends. After a short carouse the prisoner went into Westminster, his case was heard, bail refused, and he was ordered back to Newgate. But he once more persuaded the turnkeys to pause at the public, where more liquor was consumed. When the journey was resumed, Mrs. Solomons accompanied her husband in the coach. Half-way to Newgate she was taken with a fit. One turnkey was stupidly drunk, and Ikey persuaded the other, who was not much better, to let the coach change and pass Petticoat Lane *en route* to the gaol, where the suffering woman might be handed over to her friends. On stopping at a door in this low street, Ikey jumped out, ran into the house, slamming the door behind him. He passed through and out at the back, and was soon beyond pursuit. By-and-by the turnkeys, sobered by their loss, returned to Newgate alone, and pleaded in excuse that they had been drugged.

Ikey left no traces, and the police could hear nothing of him. He had in fact gone out of the country, to Copenhagen, whence he passed on to New York. There he devoted himself to the circulation of forged notes. He was also anxious to do business in watches, and begged his wife to send him over a consignment of cheap “righteous” watches, or such as had been honestly obtained, and not “on the cross.” But Mrs. Solomons could not resist the temptation to dabble in stolen goods, and she was found shipping watches of the wrong category to New York. For this she received a sentence of fourteen years’ transportation, and was sent to Van Diemen’s Land. Ikey joined her at Hobart Town, where they set up a general shop, and soon began to prosper. He was, however, recognized, and ere long an order came out from home for his arrest and transfer to England, which presently followed, and he again found himself an inmate of Newgate, waiting trial as a receiver and a prison-breaker. He was indicted on eight charges, two only of which were substantiated, but on each of them he received a sentence of seven years’ transportation. At his own request he

was reconveyed to Hobart Town, where his son had been carrying on the business. Whether Ikey was “assigned” to his own family is not recorded, but no doubt he succeeded to his own property when the term of servitude had expired.

No doubt, on the removal of Ikey Solomons from the scene, his mantle fell upon worthy successors. There was an increase rather than an abatement in jewel and bullion robberies in the years immediately following, and the thieves seem to have had no difficulty in disposing of their spoil. One of the largest robberies of its class was that effected upon the Custom House in the winter of 1834. A large amount of specie was nearly always retained here in the department of the Receiver of Fines. This was known to some clerks in the office, who began to consider how they might lay hands on a lot of cash. Being inexperienced, they decided to call in the services of a couple of professional housebreakers, Jordan and Sullivan, who at once set to work in a business-like way to obtain impressions of the keys of the strong room and chest. But before committing themselves to an attempt on the latter, it was of importance to ascertain how much it usually contained. For this purpose Jordan waited on the receiver to make a small payment, for which he tendered a fifty-pound note. The chest was opened to give change, and a heavy tray lifted out which plainly held some £4000 in cash. Some difficulty then arose as to gaining admission to the strong room, and it was arranged that a man, May, another Custom House clerk, should be introduced into the building, and secreted there during the night to accomplish the robbery. May was smuggled in through a window on the esplanade behind an opened umbrella. When the place was quite deserted he broke open the chest and stole £4700 in notes, with a quantity of gold and some silver. He went out next morning with the booty when the doors were re-opened, and attracted no attention. The spoil was fairly divided; part of the notes were disposed of to a travelling “receiver,” who passed over to the Continent and there cashed them easily.

This occurred in November 1834. The Custom House officials were in a state of consternation, and the police were unable at first to get on the track of the thieves. While the excitement was still fresh, a new robbery of diamonds was committed at a bonded warehouse in the immediate neighbourhood, on Custom House Quay. The jewels had belonged to a Spanish countess recently deceased, who had sent them to England for

greater security on the outbreak of the first Carlist war. At her death the diamonds were divided between her four daughters, but only half had been claimed, and at the time of the robbery there were still £6000 worth in the warehouse. These were deposited in an iron chest of great strength on the second floor. The thieves it was supposed had secreted themselves in the warehouse during business hours, and waited till night to carry out their plans. Some ham sandwiches, several cigar ends, and two empty champagne bottles were found on the premises next day, showing how they had passed their time. They had had serious work to get at the diamonds. It was necessary to force one heavy door from its hinges, and to cut through the thick panels of another. The lock and fastenings of the chest were forced by means of a "jack," an instrument known to housebreakers, which if introduced into a keyhole, and worked like a bit and brace, will soon destroy the strongest lock. The thieves were satisfied with the diamonds; they broke open other cases containing gold watches and plate, but abstracted nothing.

The police were of opinion that these robberies were both the work of the same hand. But it was not until the autumn that they traced some of the notes stolen from the Custom House to Jordan and Sullivan. About this time also suspicion fell upon Huey, one of the clerks, who was arrested soon afterwards, and made a clean breast of the whole affair. There was a hunt for the two well-known house-breakers, who were eventually heard of at a lodging in Kennington. But they at once made tracks, and took up their residence under assumed names in a tavern in Bloomsbury. The police lost all trace of them for some days, but at length Sullivan's brother was followed from the house in Kennington to the above-mentioned tavern. Both the thieves were now apprehended, but only a small portion of the lost property was recovered, notwithstanding a minute search through the room they had occupied. After their arrest, Jordan's wife and Sullivan's brother came to the inn, and begged to be allowed to visit this room; but their request, in spite of their earnest entreaties, was refused, at the instigation of the police. A few days later a frequent guest at the tavern arrived, and had this same room allotted to him. A fire was lit in it, and the maid in doing so threw a lot of rubbish, as it seemed, which had accumulated under the grate, on top of the burning coals. By-and-by the occupant of the room noticed something glittering in the centre of the fire, which, to inspect more closely, he took out with the tongs. It was a large gold brooch set in pearls, but a

portion of the mounting had melted with the heat. The fire was raked out, and in the ashes were found seven large and four dozen small brilliants, also seven emeralds, one of them of considerable size. A part of the “swag” stolen from the bonded warehouse was thus recovered, but it was supposed that a number of the stolen notes had perished in the fire.

The condign punishment meted out to these Custom House robbers had no deterrent effect seemingly. Within three months, three new and most mysterious burglaries were committed at the West End, all in houses adjoining each other. One was occupied by the Portuguese ambassador, who lost a quantity of jewellery from an *escritoire*, and his neighbours lost plate and cash. Not the slightest clue to these large affairs was ever obtained, but it is probable that they were “put up” jobs, or managed with the complicity of servants. The next year twelve thousand sovereigns were cleverly stolen in the Mile End Road.

The gold-dust robbery of 1839, the first of its kind, was cleverly and carefully planned with the assistance of a dishonest *employé*. A young man named Caspar, clerk to a steam-ship company, learnt through the firm’s correspondence that a quantity of gold-dust brought in a man-of-war from Brazil had been transhipped at Falmouth for conveyance to London. The letter informed him of the marks and sizes of the cases containing the precious metal, and he with his father arranged that a messenger should call for the stuff with forged credentials, and anticipating the rightful owner. The fraudulent messenger, by the help of young Caspar, established his claim to the boxes, paid the wharfage dues, and carried off the gold-dust. Presently the proper person arrived from the consignees, but found the gold-dust gone. The police were at once employed, and after infinite pains they discovered the person, one Moss, who had acted as the messenger. Moss was known to be intimate with the elder Caspar, father of the clerk to the steam-ship company, and these facts were deemed sufficient to justify the arrest of all three. They also ascertained that a gold-refiner, Solomons, had sold bar gold to the value of £1200 to certain bullion dealers. Solomons was not straightforward in his replies as to where he got the gold, and he was soon placed in the dock with the Caspars and Moss. Moss presently turned approver, and implicated “Money Moses,” another Jew, for the whole affair had been planned and executed by members of the Hebrew persuasion. “Money Moses” had received the stolen gold-dust from Moss’ father-in-law, Davis, or Isaacs, who was never arrested, and passed it on to Solomons

by his daughter, a widow named Abrahams. Solomons was now also admitted as a witness, and his evidence, with that of Moss, secured the transportation of the principal actors in the theft. In the course of the trial it came out that almost every one concerned except the Caspars had endeavoured to defraud his accomplices. Moss peached because he declared he had been done out of the proper price of the gold-dust; but it was clear that he had tried to appropriate the whole of the stuff, instead of handing it or the price of it back to the Caspars. "Money Moses" and Mrs. Abrahams imposed upon Moss as to the price paid by Solomons; Mrs. Abrahams imposed upon her father by abstracting a portion of the dust and selling it on her own account; Solomons cheated the whole lot by retaining half the gold in his possession, and only giving an I. O. U. for it, which he refused to redeem on account of the row about the robbery.

Moses, it may be added, was a direct descendant of Ikey Solomons.^[116] He was ostensibly a publican, and kept the Black Lion in Vinegar Yard, Drury Lane, where secretly he did business as one of the most daring and successful fencers ever known in the metropolis. His arrest and conviction cast dismay over the whole gang of receivers, and for a time seriously checked the nefarious traffic. It may be added that prison life did not agree with "Money Moses"; a striking change came over his appearance while in Newgate. Before his confinement he had been a sleek round person, addicted obviously to the pleasures of the table. He did not thrive on prison fare, now more strictly meagre, thanks to the inspectors and the more stringent discipline, and before he embarked for Australia to undergo his fourteen years, he was reported to have fallen away to a shadow.

Having brought down the records of great frauds, forgeries, and thefts from about 1825 to 1840, I will now retrace my steps and give some account of the more remarkable murders during that period. No murder has created greater sensation and horror throughout England than that of Mr. Weare by Thurtell, Hunt, and Probert. As this was accomplished beyond the limits of the metropolis, and its perpetrators arraigned at Hertford, where the principal actor suffered death, the case hardly comes within the limits of my subject. But Probert, who turned king's evidence, and materially assisted conviction, was tried at the Old Bailey the following year for horse-stealing, and hanged in front of Newgate. The murder was still fresh in the memory of the populace, and Probert was all but lynched on his way to gaol. According to his statement, when sentenced to death, he had been

driven to horse-stealing by the execration which had pursued him after the murder. "Every door had been closed against him, every hope of future support blasted. Since the calamitous event," he went on, "that happened at Hertford, I have been a lost man." The event which he styles calamitous we may well characterize as one of the most deliberately atrocious murders on record. Thurtell was a gambler, and Weare had won a good deal of money from him. Weare was supposed to carry a "private bank" about with him in a pocket in his under waistcoat. To obtain possession of this, Thurtell with his two associates resolved to kill him. The victim was invited to visit Probert's cottage in the country near Elstree. Thurtell drove him down in a gig, "to be killed as he travelled," in Thurtell's own words. The others followed, and on overtaking Thurtell, found he had done the job alone in a retired part of the road known as Gill's Hill Lane. The murderer explained that he had first fired a pistol at Weare's head, but the shot glanced off his cheek. Then he attacked the other's throat with a penknife, and last of all drove the pistol barrel into his forehead. After the murder the villains divided the spoil, and went on to Probert's cottage, and supped off pork-chops brought down on purpose. During the night they sought to dispose of the body by throwing it into a pond, but two days later had to throw it into another pond. Meanwhile the discovery of pistol and knife spattered with human blood and brains raised the alarm, and suspicion fell upon the three murderers, who were arrested. The crime was brought home to Thurtell by the confession of Hunt, one of his accomplices, who took the police to the pond, where the remains of the unfortunate Mr. Weare were discovered, sunk in a sack weighted by stones. Probert was then admitted as a witness, and the case was fully proved against Thurtell, who was hanged in front of Hertford Gaol. Hunt, in consideration of the information he had given, escaped death, and was sentenced to transportation for life.

Widespread horror and indignation was evoked throughout the kingdom by the discovery of the series of atrocious murders perpetrated in Edinburgh by the miscreants Burke and Hare, the first of whom has added to the British language a synonym for illegal suppression. The crimes of these inhuman purveyors to medical science do not fall within the limits of this work. But Burke and Hare had their imitators further south, and of these Bishop and Williams, who were guilty of many peculiar atrocities, ended their murderous careers in front of the debtors' door at Newgate. Bishop, whose real name was Head, married a half-sister of Williams'. Williams

was a professional resurrectionist, or body-snatcher, a trade almost openly countenanced when “subjects” for the anatomy schools were only to be got by rifling graves, or worse. Bishop was a carpenter, but having been suddenly thrown out of work, he joined his brother-in-law in his line of business. After a little Bishop got weary of the dangers and fatigues of exhumation, and proposed to Williams that instead of disinterring they should murder their subjects. Bishop confessed that he was moved to this by the example of Burke and Hare. They pursued their terrible trade for five years without scruple and without detection. Eventually the law overtook them, but almost by accident. They presented themselves about noon one day at the dissecting room of King’s College Hospital, accompanied by a third man, an avowed “snatcher” and *habitué* of the Fortune of War, a public-house in Smithfield frequented openly by men of this awful profession. This man, May, asked the porter at King’s College if “he wanted anything?” the euphemism for offering a body. The porter asked what he had got, and the answer was, a male subject. Reference was made to Mr. Partridge, the demonstrator in anatomy, and after some haggling they agreed on a price, and in the afternoon the snatchers brought a hamper which contained a body in a sack. The porter received it, but from its freshness became suspicious of foul play. Mr. Partridge was sent for, and he with some of the students soon decided that the corpse had not died a natural death. The snatchers were detained, the police sent for, and arrest followed as a matter of course.

An inquest was held on the body, which was identified as that of an Italian boy, Carlo Ferrari, who made a living by exhibiting white mice about the streets, and the jury returned a verdict of wilful murder against persons unknown, expressing a strong opinion that Bishop, Williams, and May had been concerned in the transaction. Meanwhile, a search had been made at Nova Scotia Gardens, Bethnal Green, where Bishop and Williams lived. At first nothing peculiar was found; but at a second search the back-garden ground was dug up, and in one corner, at some depth, a bundle of clothes were unearthed, which, with a hairy cap, were known to be what Ferrari had worn when last seen. In another portion of the garden more clothing, partly male and partly female, was discovered, plainly pointing to the perpetration of other crimes. These facts were represented before the police magistrate who examined Bishop and his fellows, and further incriminating evidence adduced, to the effect that the prisoners had bartered

for a coach to carry “a stiff ’un”; they had also been seen to leave their cottage, carrying out a sack with something heavy inside. On this they were fully committed to Newgate for trial. This trial came off in due course at the Central Criminal Court, where the prisoners were charged on two counts, one that of the murder of the Italian boy, the other that of a boy unknown. The evidence from first to last was circumstantial, but the jury, after a short deliberation, did not hesitate to bring in a verdict of guilty, and all three were condemned to death.

Shortly before the day fixed for execution, Bishop made a full confession, the bulk of which bore the impress of truth, although it included statements that were improbable and unsubstantiated. He asserted that the victim was a Lincolnshire lad, and not an Italian boy, although the latter was fully proved. According to the confession, death had been inflicted by drowning in a well, whereas the medical evidence all pointed to violence. It was, however, pretty clear that this victim, like preceding ones, had been lured to Nova Scotia Gardens, and there drugged with a large dose of laudanum. While they were in a state of insensibility the murder was committed. Bishop’s confession was endorsed by Williams, and the immediate result was the respite of May. A very painful scene occurred in Newgate when the news of his escape from death was imparted to May. He fainted, and the warrant of mercy nearly proved his death-blow. The other two looked on at his agitation with an indifference amounting to apathy. The execution took place a week or two later, in the presence of such a crowd as had not been seen near Newgate for years.

I will close this chapter with a brief account of another murder, the memory of which is still fresh in the minds of Londoners, although half a century has passed since it was committed. The horror with which Greenacre’s crime struck the town was unparalleled since the time when Catherine Hayes slew her husband. There were many features of resemblance in these crimes. The decapitation and dismemberment, the bestowal of the remains in various parts of the town, the preservation of the head in spirits of wine, in the hope that the features might some day be recognized, were alike in both. The murder in both cases was long a profound mystery. In this which I am now describing, a bricklayer found a human trunk near some new buildings in the Edgeware Road, one morning in the last week of 1836. The inquest on these remains, which medical examination showed to be those of a female, returned a verdict of wilful

murder against some person unknown. On the 7th July, 1837, the lockman of "Ben Jonson lock," in Stepney Fields, found a human head jammed into the lock gates. Closer investigation proved that it belonged to the trunk already discovered on the 2nd February. A further discovery was made in an osier bed near Cold Harbour Lane, Camberwell, where a workman found a bundle containing two human legs, in a drain. These were the missing members of the same mutilated trunk, and there was now evidence sufficient to establish conclusively that the woman thus collected piecemeal had been barbarously done to death. But the affair still remained a profound mystery. No light was thrown upon it till, towards the end of March, a Mr. Gay of Goodge Street came to view the head, and immediately recognized it as that of a widowed sister, Hannah Brown, who had been missing since the previous Christmas Day.

The murdered individual was thus identified. The next step was to ascertain where and with whom she had last been seen. This brought suspicion on to a certain James Greenacre, whom she was to have married, and in whose company she had left her own lodgings to visit his in Camberwell. The police wished to refer to Greenacre, but as he was not forthcoming, a warrant was issued for his apprehension, which was effected at Kennington on the 24th March. A woman named Gale, who lived with him, was arrested at the same time. The prisoners were examined at the Marylebone police court. Greenacre, a stout, middle-aged man, wrapped in a brown greatcoat, assumed an air of insolent bravado; but his despair must have been great, as was evident from his attempt to strangle himself in the station-house. Suspicion grew almost to certainty as the evidence was unfolded. Mrs. Brown was a washer-woman, supposed to be worth some money; hence Greenacre's offer of marriage. She had realized all her effects, and brought them with her furniture to Greenacre's lodgings. The two when married were to emigrate to Hudson's Bay. Whether it was greed or a quarrel that drove Greenacre to the desperate deed remains obscure. They were apparently good friends when last seen together at a neighbour's, where they seemed "perfectly happy and sociable, and eager for the wedding day." But Greenacre in his confession pretended that he and his intended had quarrelled over her property or the want of it, and that in a moment of anger he knocked her down. He thought he had killed her, and in his terror began at once to consider how he might dispose of the body and escape arrest. While she was senseless, but really still alive, he cut off her

head, and dismembered the body in the manner already described. It is scarcely probable that he would have gone to this extremity if he had had no previous evil intention, and the most probable inference is that he inveigled Mrs. Brown to his lodgings with the set purpose of taking her life.

His measures for the disposal of the *corpus delicti* remind us of those taken by Mrs. Hayes and her associates, or of Gardelle's frantic efforts to conceal his crime. The most ghastly part of the story is that which deals with his getting rid of the head. This, wrapped up in a silk handkerchief, he carried under his coat-flaps through the streets, and afterwards on his cap in a crowded city omnibus. It was not until he left the 'bus, and walked up by the Regent's Canal, that he conceived the idea of throwing the head into the water. Another day elapsed before he got rid of the rest of the body, all of which, according to his own confession, made no doubt with the idea of exonerating Mrs. Gale, he accomplished without her assistance. On the other hand, it was adduced in evidence that Mrs. Gale had been at his lodgings the very day after the murder, and was seen to be busily engaged in washing down the house with bucket and mop.

Greenacre, when tried at the Old Bailey, admitted that he had been guilty of manslaughter. While conversing with Mrs. Brown, he declared the unfortunate woman was rocking herself to and fro in a chair; as she leant back he put his foot against the chair, and so tilted it over. Mrs. Brown fell with it, and Greenacre, to his horror, found that she was dead. But the medical evidence was clear that the decapitation had been effected during life, and the jury, after a short deliberation, without hesitation brought in a verdict of wilful murder. The woman Gale was also found guilty, but sentence of death was only passed on Greenacre. The execution was, as usual, attended by an immense concourse, and Greenacre died amidst the loudest execrations. Gale was sentenced to penal servitude for life.

CHAPTER VIII.

NEWGATE NOTORIETIES (*continued*).

Increase in crimes of fraud—Edward Beaumont Smith—Casting away ships—The ‘Dryad’—Wrecked by the Wallaces—Another clergyman-forgery, Dr. Bailey—The Barber Fletcher frauds to obtain unclaimed stock in the funds—The Bank of England robbed by one of its clerks of £8000—Other daring robberies—Burglaries at Windsor Castle and Buckingham Palace—Ingenious plate robbery at Lord Fitzgerald’s in Belgrave Square—Stealing plate from clubs by a member—A large parcel of rough diamonds stolen—More murders—The valet Courvoisier murders his master, Lord William Russell—His trial and sentence—His confession, attempted suicide, and demeanour at the scaffold—Daniel Good murders his wife—Strange discovery of the crime—Pursuit and arrest of the murderer—Hocker kills Mr. Delarue—Murderer cannot tear himself from the scene of his crime—Epidemic of murder in 1848-9—Rush—Gleeson Wilson—The Mannings and their victim, O’Connor—The cold-blooded scheme—How carried out, and how discovered—One of the first instances of the employment of the electric telegraph to arrest the murderers—Their trial—Violent conduct of Mrs. Manning—The execution at Horsemonger Lane Gaol—Charles Dickens on this execution—Other murderers—Robert Marley—Cannon, the chimney-sweep, who makes a murderous assault upon and nearly killed a policeman—Mobbs, the brutal husband—Barthelemy—Series of gigantic frauds, commencing in 1850—Walter Watts, the inventor of the new crime—The two lives he led—Immense defalcations—Sentenced for stealing a bit of paper value one penny—Commits suicide—The forgeries of R. F. Pries—Those of Joseph Windle Cole—Raises funds on fictitious dock warrants—The bankers Messrs. Strahan, Paul, and Bates tried for disposing of securities they held on deposit—Systematic embezzlement by Robson, a clerk in the Crystal Palace Company—Lionel Redpath carries on still more audacious frauds—His way of life—A patron of art, and foremost in all good works—His detection and flight—Is captured, tried, and sentenced to transportation—Big prizes still to be had by daring thieves—The bullion robbery on the South-Eastern—How planned and carried out—Detected by accident—The bold and systematic forgeries of Saward, or Jem the Penman—His method—How caught—Sentenced to transportation.

As the century advanced crimes of fraud increased. They not only became more numerous, but they were on a wider scale. The most extensive and systematic robberies were planned and carried out so as long to escape detection. One of the earliest of the big operators in fraudulent finance was Edward Beaumont Smith, who was convicted in 1841 of uttering false exchequer bills to an almost fabulous amount. A not entirely novel kind of fraud, but one carried out on a larger scale than heretofore, came to light in this same year, 1841. This was the wilful shipwreck and casting away of a vessel which, with her supposed cargo, had been heavily insured. The ‘Dryad’ was a brig owned principally by two persons named Wallace, one a seaman, the other merchant. She was freighted by the firm of Zulueta and Co. for a voyage to Santa Cruz. Her owners insured her for a full sum of £2000, after which the Wallaces insured her privily with other underwriters for a second sum of £2000. After this, on the faith of forced bills of lading, the captain, Loose by name, being a party to the intended fraud, they obtained further insurances on goods never shipped. It was fully proved in evidence that when the ‘Dryad’ sailed she carried nothing but the cargo

belonging to Zulueta and Co. Yet the Wallaces pretended to have put on board quantities of flannels, cloths, cotton prints, beef, pork, butter, and earthenwares, on all of which they effected insurances. Loose had his instructions to cast away the ship on the first possible opportunity, and from the time of his leaving Liverpool he acted in a manner which excited the suspicions of the crew. The larboard pump was suffered to remain choked up, and the long-boat was fitted with tackles and held ready for use at a moment's notice. The ship, however, met with exasperatingly fine weather, and it was not until the captain reached the West India Islands that he got a chance of accomplishing his crime. At a place called the Silver Keys he ran the ship on the reef. But another ship, concluding that he was acting in ignorance, rendered him assistance. The 'Dryad' was got off, repaired, and her voyage renewed to Santa Cruz. He crept along the coast close in shore, looking for a quiet spot to cast away the ship, and at last, when within fifteen miles of port, with wind and weather perfectly fair, he ran her on to the rocks. Even then she might have been saved, but the captain would not suffer the crew to act. Nearly the whole of the cargo was lost as well as the ship. The captain and crew, however, got safely to Jamaica, and so to England; the captain dying on the voyage home.

The crime soon became public. Mate, carpenter, and crew were eager to disavow complicity, and voluntarily gave information. The Wallaces were arrested, committed to Newgate, and tried at the Old Bailey. The case was clearly proved against them, and both were sentenced to transportation for life. While lying in Newgate, awaiting removal to the convict ship, both prisoners made full confessions. According to their own statements the loss of the 'Dryad' was only one of six intentional shipwrecks with which they had been concerned. The crime of fraudulent insurance they declared was very common, and the underwriters must have lost great sums in this way. The merchant Wallace said he had been led into the crime by the advice and example of a city friend who had gone largely into this nefarious business; this Wallace added that his friend had made several voyages with the distinct intention of superintending the predetermined shipwrecks. The other Wallace, the sailor, also traced his lapse into crime to evil counsel. He was an honest sea-captain, he said, trading from Liverpool, where once he had the misfortune to be introduced to a man of wealth, the foundations of which had been laid by buying old ships on purpose to cast them away. This person made much of Wallace, encouraged his attentions to his daughter,

and tempted him to take to fraudulent insurance as a certain method of achieving fortune. Wallace's relations warned him against his Liverpool friend, but he would not take their advice, and developing his transactions, ended as we have seen.

A clergyman nearly a century later followed in the steps of Dr. Dodd, but did not under more humane laws lose his life. The Rev. W. Bailey, LL.D., was convicted at the Central Criminal Court, in February 1843, of forgery. A notorious miser, Robert Smith, had recently died in Seven Dials, where he had amassed a considerable fortune. But among the charges on the estate he left was a promissory note for £2875, produced by Dr. Bailey, and purporting to be signed by Smith. The executors to the estate disputed the validity of this document. Miss Bailey, the doctor's sister, in whose favour the note was said to have been given, then brought an action against the administrators, and at the trial Dr. Bailey swore that the note had been given him by Smith. The jury did not believe him, and the verdict was for the defendants. Subsequently Bailey was arrested on a charge of forgery, and after a long trial found guilty. His sentence was transportation for life.

A gigantic conspiracy to defraud was discovered in the following year, when a solicitor named William Henry Barber, Joshua Fletcher a surgeon, and three others were charged with forging wills for the purpose of obtaining unclaimed stock in the funds. There were two separate affairs. In the first a maiden lady, Miss Slack, who was the possessor of two separate sums in consols, neglected through strange carelessness on her own part and that of her friends to draw the dividends on more than one sum. The other, remaining unclaimed for ten years, was transferred at the end of that time to the commissioners for the reduction of the National Debt. Barber, it was said, became aware of this, and that he gained access to Miss Slack on pretence of conveying to her some funded property left her by an aunt. By this means her signature was obtained; a forged will was prepared bequeathing the unclaimed stock to Miss Slack; a note purporting to be from Miss Slack was addressed to the governor of the Bank of England, begging that the said stock might be handed over to her, and a person calling herself Miss Slack duly attended at the bank, where the money was handed over to her in proper form. A second will, also forged, was propounded at Doctors Commons as that of a Mrs. Hunt of Bristol. Mrs. Hunt had left money in the funds which remained unclaimed, and had been transferred, as in Miss Slack's case. Here again the money, with ten years'

interest, was handed over to Barber and another calling himself Thomas Hunt, an executor of the will. It was shown that the will must be a forgery, as its signature was dated 1829, whereas Mrs. Hunt actually died in 1806. A third similar fraud to the amount of £2000 was also brought to light. Fletcher was the moving spirit of the whole business. It was he who had introduced Barber to Miss Slack, and held all the threads of these intricate and nefarious transactions. Barber and Fletcher were both transported for life, although Fletcher declared that Barber was innocent, and had no guilty knowledge of what was being done. Barber was subsequently pardoned, but was not replaced on the rolls as an attorney till 1855, when Lord Campbell delivered judgment on Barber's petition, to the effect that "the evidence to establish his (Barber's) connivance in the frauds was too doubtful for us to continue his exclusion any longer."

Banks and bankers continued to be victimized. In 1844 the Bank of England was defrauded of a sum of £8000 by one of its clerks, Burgess, in conjunction with an accomplice named Elder. Burgess fraudulently transferred consols to the above amount, standing in the name of Mr. Oxenford, to another party. A person, Elder of course, who personated Oxenford, attended at the bank to complete the transfer and sell the stock. Burgess, who was purposely on leave from the bank, effected the sale, which was paid for with a cheque for nearly the whole amount on Lubbock's Bank. Burgess and Elder proceeded in company to cash this, but as they wanted all gold, the cashier gave them eight Bank of England notes for £1000 each, saying that they could get so much specie nowhere else. Thither Elder went alone, provided with a number of canvas and one large carpet-bag. But when the latter was filled with gold it was too heavy to lift, and Elder had to be assisted by two bank porters, who carried it for him to a carriage waiting near the Mansion House. The thieves, for Elder was soon joined by Burgess, drove together to Ben Caunt's, the pugilist's, public-house in St. Martin's Lane, where the cash was transferred from the carpet-bag to a portmanteau. The same evening both started for Liverpool, and embarking on board the mail steamer 'Britannia,' escaped to the United States.

Burgess' continued absence was soon noticed at the bank. Suspicions were aroused when it was found that he had been employed in selling stock for Mr. Oxenford, which developed into certainty as soon as that gentleman was referred to. Mr. Oxenford having denied that he had made any transfer

of stock, the matter was at once put into the hands of the police. A smart detective, Forrester, after a little inquiry, established the fact that the man who had personated Mr. Oxenford was a horse-dealer named Joseph Elder, an intimate acquaintance of Burgess'. Forrester next traced the fugitives to Liverpool, and thence to Halifax, whither he followed them, accompanied by a confidential clerk from the bank. At Halifax Forrester learnt that the men he wanted had gone on to Boston, thence to Buffalo and Canada, and back to Boston. He found them at length residing at the latter place, one as a landed proprietor, the other as a publican. Elder, the former, was soon apprehended at his house, but he evaded the law by hanging himself with his pocket-handkerchief. The inn belonging to Burgess was surrounded, but he escaped through a back door on to the river, and rowed off in a boat to a hiding-place in the woods. Next day a person betrayed him for the reward, and he was soon captured. The proceeds of the robbery were lodged in a Boston bank, but four hundred sovereigns were found on Elder, while two hundred more were found in Burgess' effects. Burgess was eventually brought back to England, tried at the Central Criminal Court, and sentenced to transportation for life.

Within a month or two the bank of Messrs. Rogers and Co., Clement's Lane, was broken into. Robberies as daring in conception as they were boldly executed were common enough. One night a quantity of plate was stolen from Windsor Castle; another time Buckingham Palace was robbed. Of this class was the ingenious yet peculiarly simple robbery effected at the house of Lord Fitzgerald in Belgrave Square. The butler, on the occasion of a death in the family, when the house was in some confusion, arranged with a burglar to come in, and with another carry off the plate-chest in broad daylight, and as a matter of business. No one interfered or asked any questions. The thief walked into the house in Belgrave Square, and openly carried off the plate-chest, deposited it in a light cart at the door, and drove away. Howse, the steward, accused the other servants, but they retorted, declaring that he had been visited by the thief the day previous, whom he had shown over the plate closet. Howse and his accomplice were arrested; the former was found guilty and sentenced to fifteen years, but the latter was acquitted.

Stealing plate was about this period the crime of a more aristocratic thief. The club spoons and other articles of plate were long a source of profitable income to a gentleman named Ashley, who belonged to five good

London clubs—the Junior United Service, the Union, Reform, Colonial, and Erechthæum clubs. When one of these clubs was taken in at the Army and Navy, that establishment also suffered. Suspicion fell at length upon Ashley, who was seen to handle the forks and spoons at table in a strange manner. A watch was set on his house, in Allington Street, Pimlico, and one day a police constable tracked him to a silversmith's in Holborn Hill, where Ashley produced four silver spoons, and begged that his initials might be engraved upon them. Ashley was arrested as he left the shop; the spoons were impounded, and it was found that the club monogram had been erased from them. On a search of the prisoner's lodgings in Allington Street, a silver fork was found, a number of pawnbrokers' duplicates, and three small files. It was proved at the trial that Ashley had asked his landlady for brick-dust and leather, and it was contended that these with the files were used to alter the marks on the plate. At most of the clubs the servants had been mulcted to make good lost plate, which had no doubt been stolen by the prisoner. Several pawnbrokers were subpœnaed and obliged to surrender plate, to the extent in some cases of a couple of dozen of spoons or forks, which the various club secretaries identified as the property of their respective clubs. Ashley was the son of an army agent and banker, and many witnesses were brought to attest to his previous good character, but he was found guilty and sentenced to seven years' transportation.

A robbery of a somewhat novel kind was executed in rather a bungling fashion by Ker, a sea-captain, whose ship brought home a mixed cargo from Bahia and other ports. Part of the freight were four hundred rough diamonds valued at £4000. These packages were consigned to Messrs. Shroeder of London; and as it was known that they were to arrive in Ker's ship, one of the owners had met her at Deal, but the captain had already absconded with the packages of precious stones in his pocket. Ker came at once to London, and, by the help of the landlord of a public-house in Smithfield and others, disposed of the whole of the diamonds. A Jew named Benjamin effected the sale to certain merchants named Blogg and Martin, who declared that the rough diamond market was in such a depressed condition that they could only afford to give £1750 for stones worth £4000. The circumstances of this purchase of brilliants from a stranger at such an inadequate price was strongly commented upon at Ker's trial. The moment it was discovered that the diamonds had disappeared, the affair was taken up by the police. Forrester, the detective who had pursued and captured Burgess at Boston,

[117] tracked Ker to France, and following him there, eventually captured him at Montreuil. He was arraigned at the Old Bailey, and the case fully proved. His sentence was seven years' transportation.

The gravest crimes continued at intervals to inspire the town with horror, and concentrate public attention upon the gaol of Newgate, and the murderers immured within its walls. Courvoisier's case made a great stir. There was unusual atrocity in this murder of an aged, infirm gentleman, a scion of the ducal house of Bedford, by his confidential valet and personal attendant. Lord William Russell lived alone in Norfolk Street, Park Lane. He was a widower, and seventy-three years of age. One morning in May his lordship was found dead in his bed with his throat cut. The fact of the murder was first discovered by the housemaid, who, on going down early, was surprised to find the dining-room in a state of utter confusion; the furniture turned upside down, the drawers of the *escritoire* open and rifled, a bundle lying on the floor, as though thieves had been interrupted in the act. The housemaid summoned the cook, and both went to call the valet, Courvoisier, who came from his room ready dressed, a suspicious circumstance, as he was always late in the morning. The housemaid suggested that they should see if his lordship was all right, and the three went to his bed-room. While Courvoisier opened the shutters, the housemaid, approaching the bed, saw that the pillow was saturated with blood.



COURVOISIER.

The discovery of the murdered man immediately followed. The neighbourhood was alarmed, the police sent for, and a close inquiry

forthwith commenced. That Lord William Russell had committed suicide was at once declared impossible. It was also clearly proved that no forcible entry had been made into the house; the fresh marks of violence upon the door had evidently been made inside, and not from outside; moreover, the instruments, poker and chisel, by which they had no doubt been effected, were found in the butler's pantry, used by Courvoisier. The researches of the police soon laid bare other suspicious facts. The bundle found in the dining-room contained, with clothes, various small articles of plate and jewellery which a thief would probably have put into his pocket. Upstairs in the bed-room a *rouleaux* box for sovereigns had been broken open, also the jewel-box and note-case, from the latter of which was abstracted a ten-pound note known to have been in the possession of the deceased. His lordship's watch was gone. Further suspicion was caused by the position of a book and a wax candle by the bedside. The latter was so placed that it could throw no light on the former, which was a 'Life of Sir Samuel Romilly.' The intention of the real murderer to shift the crime to burglars was evident although futile, and the police, feeling convinced that the crime had been committed by some inmate of the house, took Courvoisier into custody, and placed the two female servants under surveillance. The valet's strange demeanour had attracted attention from the first. He had hung over the body in a state of dreadful agitation, answering no questions, and taking no part in the proceedings.

Three days later a close search of the butler's pantry produced fresh circumstantial evidence. Behind the skirting board several of his lordship's rings were discovered; near it was his Waterloo medal, and the above-mentioned ten-pound note. Further investigation was rewarded by the discovery in the pantry of a split gold ring, used by Lord William to carry his keys on; next, and in the same place, a chased gold key; and at last his lordship's watch was found secreted under the leads of the sink. All this was evidence sufficient to warrant Courvoisier's committal for trial; but still he found friends, and a liberal subscription was raised among the foreign servants in London to provide funds for his defence. Courvoisier, when put on his trial, pleaded not guilty; but on the second day the discovery of fresh evidence, more particularly the recovery of some of Lord William's stolen plate, induced the prisoner to make a full confession of his crime to the lawyers who defended him. This placed them in a position of much embarrassment. To have thrown up their brief would have been to have

secured Courvoisier's conviction. Mr. Phillips, who led in the case, went to the other extreme, and in an impassioned address implored the jury not to send an innocent man to the gallows. It will be remembered that the question whether Mr. Phillips had not exceeded the limits usually allowed to counsel was much debated at the time.

The jury without hesitation found Courvoisier guilty, and he was sentenced to death. The prisoner's demeanour had greatly changed during the trial. Coolness amounting almost to effrontery gave way to hopeless dejection. On his removal to Newgate after sentence, he admitted that he had been justly convicted, and expressed great anxiety that his fellow-servants should be relieved from all suspicion. Later in the day he tried to commit suicide by cramming a towel down his throat, but was prevented. Next morning he made a full confession in presence of his attorney, and the governor, Mr. Cope. In this he gave as the motives of his crime a quarrel he had with his master, who threatened to discharge him without a character. Lord William, according to the valet, was of a peevish, difficult temper; he was annoyed with his man for various small omissions and acts of forgetfulness, and on the night of the murder had taken Courvoisier to task rather sharply. Finally, on coming downstairs after bed-time, Lord William had found Courvoisier in the dining-room. "What are you doing here?" asked his lordship. "You can have no good intentions; you must quit my service to-morrow morning." This seems to have decided Courvoisier, who took a carving-knife from the sideboard in the dining-room, went upstairs to Lord William's bed-room, and drew the knife across his throat. "He appeared to die instantly," said the murderer, in conclusion. His account of his acts and movements after the deed varied so considerably in the several documents he left behind, that too much reliance cannot be placed upon his confession. His last statement contains the words, "The public now think I am a liar, and they will not believe me when I say the truth." This was no doubt the case, but this much truth his confession may be taken to contain: that Courvoisier was idle, discontented, ready to take offence, greedy of gain; that he could not resist the opportunity for robbery offered him by his situation at Lord William Russell's; that when vexed with his master he did not shrink from murder, both for revenge and to conceal his other crimes.

Courvoisier wished to commit suicide in Newgate, but was prevented by the vigilant supervision to which he was subjected while in gaol. The attempt was to have been made by opening a vein and allowing himself to

bleed to death. The Sunday night before his execution he would not go to bed when ordered. The governor insisted, but Courvoisier showed great reluctance to strip. The order was, however, at length obeyed, and the whole of the prisoner's clothes were minutely searched. In the pocket of the coat Mr. Cope, the governor, found a neatly-folded cloth, and asked what it was for. Courvoisier admitted that he had intended to bind it tightly round his arm and bleed himself to death in the night. The next inquiry was how he hoped to open a vein. "With a bit of sharpened stick picked out of the ordinary firewood." "Where is it?" asked the governor. The prisoner replied that he had left it in the mattress of which he had just been deprived. The bed was searched, but no piece of sharpened wood was found. It was thought that it might have been lost in changing the mattresses. The cloth above referred to belonged to the inner seam of his trousers, which he had managed to tear out. There is nothing to show that Courvoisier really contemplated self-destruction.

A murder which reproduced many of the features of that committed by Greenacre soon followed, and excited the public mind even more than that of Courvoisier's. Daniel Good's crime might have remained long undiscovered but for his own careless stupidity. He was coachman to a gentleman at Roehampton. One day he went into a pawnbroker's at Wandsworth, and bought a pair of breeches on credit. At the same time he was seen to steal and secrete a pair of trousers. The shop-boy gave information. Good was followed to his stables by a policeman, but obstinately denied the theft. The policeman insisted on searching the premises, at which Good displayed some uneasiness. This increased when the officer, accompanied by two others, a neighbour and a bailiff, entered one of the stables. Good now offered to go to Wandsworth and satisfy the pawnbroker. Just at this moment, however, the searchers found concealed under two trusses of hay a woman's headless and dismembered trunk. At the constable's cry of alarm Good rushed from the stable and locked the door behind him. Some time elapsed before the imprisoned party could force open the doors, and by then the fugitive had escaped. Medical assistance having been summoned, it was ascertained how the dismemberment had been effected. At the same time an overpowering odour attracted them to the adjoining harness-room, where the missing remains were raked out half consumed in the ashes of a wood fire. In the same room a large axe and saw were found covered with blood.

Inquiry into the character of Good exposed him as a loose liver, who “kept company” with several women. One called his sister, but supposed to be his wife, had occupied a room in South Street, Manchester Square, with a son of Good’s by a former wife. Another wife, real or fictitious, existed in Spitalfields, and evidence was given of close relation between Good and a third woman, a girl named Butcher, residing at Woolwich. The victim was the first of these three. Good had told her, much to her perturbation, that she was to move from South Street to Roehampton, and one day he fetched her. They were seen together on Barnes Common, and again in Putney Park Lane, where they were talking loud and angrily. The poor creature was never seen again alive. The actual method of the murder was never exactly ascertained. Good himself remained at large for some weeks. He had tramped as far as Tunbridge, where he obtained work as a bricklayer’s labourer; he there gave satisfaction for industry, but he was taciturn, and would hold no converse with his fellows. The woman where he lodged noticed that he was very restless at night, moaning and sighing much. Detection came unexpectedly. He was recognized by an ex-policeman who had known him at Roehampton, and immediately arrested. In his effects were found the clothes he had on at the time of his escape from the stables, and under the jacket he was wearing was a piece of a woman’s calico apron stained with blood, which he had used to save the pressure on his shoulder by the hod. Good was committed to Newgate, and tried at the Central Criminal Court before a crowded court. He made a rambling defence, ending by saying, “Good ladies and gentlemen all, I have a great deal more to say, but I am so bad I cannot say it.” The case was clearly proved against him, and he was condemned, sentenced, and duly executed.

Hocker’s murder is in its way interesting, as affording another proof of the extraordinary way in which the culprit returned to the scene of his guilt. The cries of his victim, a Mr. Delarue, brought passers-by and policemen to the spot, a lonely place near a dead wall beyond Belsize Hall, Hampstead, but too late to give substantial aid. While the body lay there still warm, battered and bleeding from the cruel blows inflicted upon him by his cowardly assailant, a man came by singing. He entered into conversation with the policemen, and learnt, as it seemed for the first time, what had happened. His remark was, “It is a nasty job;” he took hold of the dead hand, and confessed that he felt “queer” at the shocking sight. This sight was his own handiwork, yet he could not overcome the strange fascination

it had for him, and remained by the side of the corpse till the stretcher came. Even then he followed it as far as Belsize Lane. It was here that the others engaged in their dismal office in removing the dead first got a good look at the stranger's face. He wanted a light for a cigar, and got it from a lantern which was lifted up and fully betrayed his features. It was noticed that he wore a mackintosh. Next day the police, in making a careful search of the scene of the murder, picked up a coat-button, which afterwards played an important part in the identification of the murderer. A letter, which afforded an additional clue, was also found in the pocket of the deceased. Still it was many weeks before any arrest was made. In the mean time the police were not idle. It came out by degrees that the person who had been seen in Belsize Lane on the night the body was found was a friend of the deceased. His name was Hocker; he was by trade a ladies' shoemaker; and it was also ascertained that after the day of the murder he was flush of money. He was soon afterwards arrested on suspicion, and a search of his lodgings brought to light several garments saturated with blood; a coat among them much torn and stained, with three buttons missing, one of which corresponded with that picked up at Hampstead. The letter found in the pocket of the deceased was sealed with a wafer marked F, and many of the same sort were found in the possession of the accused. This was enough to obtain a committal, after several remands; but the case contained elements of doubt, and the evidence at the trial was entirely circumstantial. A witness deposed to meeting Hocker, soon after the cries of murder were heard, running at a dog-trot into London, and others swore that they plainly recognized him as the man seen soon afterwards in the lane. A woman whom he called on the same evening declared he had worn a mackintosh, his coat was much torn, there was a stain of blood on his shirt-cuff, and he was in possession, the first time to her knowledge, of a watch. This was Delarue's watch, fully identified as such, which Hocker told his brother Delarue had given him the morning of the murder.

These were damnable facts which well supported the prosecution. The prisoner made an elaborate defence, in which he sought to vilify the character of deceased as the seducer of an innocent girl to whom he (Hocker) had been fondly attached. When her ruin was discovered her brother panted for revenge. Hocker, whose skill in counterfeiting handwriting was known, was asked to fabricate a letter making an assignation with Delarue in a lonely part of Hampstead. Hocker and the

brother went to the spot, where the latter left him to meet his sister's seducer alone. Soon afterwards Hocker heard cries of "murder," and proceeding to where they came from, found Delarue dead, slain by the furious brother. Hocker was so overcome, feeling himself the principal cause of the tragedy, that he rushed to a slaughter-house in Hampstead and purposely stained his clothes with blood. Such an extravagant defence did not weigh with judge or jury; the first summed up dead against the prisoner, and the latter, after retiring for ten minutes, found him guilty. Hocker's conduct in Newgate while under sentence of death was most extraordinary. He drew up several long statements, containing narratives purely fictitious, imputing crimes to his victim, and repeating his line of defence, that Delarue had suffered by the hands of imaginary outraged brothers acting as the avengers of females deeply injured by him. Hocker made several pretended confessions and revelations, all of which were proved to be absolutely false by the police on inquiry. His demeanour was a strange compound of wickedness, falsehood, and deceit. But at the fatal hour his hardihood forsook him, and he was almost insensible when taken out of his cell for execution. Restoratives were applied, but he was in a fainting condition when tied, and had to be supported by the assistant executioner while Calcraft adjusted the noose.

There was an epidemic of murder in the United Kingdom about 1848-9. In November of the first-named year occurred the wholesale slaughter of the Jermys in their house, Stanfield Hall, by the miscreant Rush. Soon afterwards, in Gloucestershire, a maidservant, Sarah Thomas, murdered her mistress, an aged woman, by beating out her brains with a stone. Next year John Gleeson Wilson, at Liverpool, murdered a woman, Ann Henrichson, also a maidservant and two children; while in Ireland a wife dashed out her husband's brains with a hammer. London did not escape the contagion, and prominent among the detestable crimes of the period stands that of the Mannings at Bermondsey. These great criminals suffered at Horsemonger Lane Gaol, but they were tried at the Central Criminal Court, and were for some time inmates of Newgate. Their victim was a man named Patrick O'Connor, a Custom-House gauger, who had been a suitor of Marie de Roux before she became Mrs. Manning. Marie de Roux up to the time of her marriage had been in service as lady's-maid to Lady Blantyre, daughter of the Duchess of Sutherland, and Manning hoped to get some small Government appointment through his wife's interest. He had failed in this

as well as in the business of a publican, which he had at one time adopted. After the marriage a close intimacy was still maintained between O'Connor and the Mannings. He lived at Mile End, whence he walked often to call at 3, Minver Place, Bermondsey, the residence of his old love. O'Connor was a man of substance. He had long followed the profitable trade of a money-lender, and by dint of usurious interest on small sums advanced to needy neighbours, had amassed as much as £8000 or £10,000. His wealth was well known to "Maria," as he called Mrs. Manning, who made several ineffectual attempts to get money out of him. At last this fiendish woman made up her mind to murder O'Connor and appropriate all his possessions. Her husband, to whom she coolly confided her intention, a heavy brutish fellow, was yet aghast at his wife's resolve, and tried hard to dissuade her from her bad purpose. In his confession after sentence he declared that she plied him well with brandy at this period, and that during the whole time he was never in his right senses. Meanwhile this woman, unflinching in her cold, bloody determination, carefully laid all her plans for the consummation of the deed.

One fine afternoon in August, O'Connor was met walking in the direction of Bermondsey. He was dressed with particular care, as he was to dine at the Mannings and meet friends, one a young lady. He was seen afterwards smoking and talking with his hosts in their back parlour, and never seen again alive. It came out in the husband's confession that Mrs. Manning induced O'Connor to go down to the kitchen to wash his hands, that she followed him to the basement, that she stood behind him as he stood near the open grave she herself had dug for him, and which he mistook for a drain, and that while he was speaking to her she put the muzzle of a pistol close to the back of his head and shot him down. She ran upstairs, told her husband, made him go down to look at her handiwork, and as O'Connor was not quite dead, Manning gave the *coup de grâce* with a crowbar. After this Mrs. Manning changed her dress and went off in a cab to O'Connor's lodgings, which, having possessed herself of the murdered man's keys, she rifled from end to end. Returning to her own home, where Manning meantime had been calmly smoking and talking to the neighbours over the basement wall, the corpse lying just inside the kitchen all the while, the two set to work to strip the body and hide it under the stones of the floor. This job was not completed till the following day, as the hole had to be enlarged, and the only tool they had was a dust-shovel. A quantity of

quicklime was thrown in with the body to destroy all identification. This was on a Thursday evening. For the remainder of that week and part of the next the murderers stayed in the house, and occupied the kitchen, close to the remains of their victim. On the Sunday Mrs. Manning roasted a goose at this same kitchen fire, and ate it with relish in the afternoon. This cold-blooded indifference after the event was only outdone by the premeditation of this horrible murder. The hole must have been excavated and the quicklime purchased quite three weeks before O'Connor met his death, and during that time he must frequently have stood or sat over his own grave.

Discovery of the murder came in this wise. O'Connor, a punctual and well-conducted official, was at once missed at the London Docks. On the third day his friends began to inquire for him, and at their request two police officers were sent to Bermondsey to inquire for him at the Mannings, with whom it was well known that he was very intimate. The Mannings had seen or heard nothing of him, of course. As O'Connor still did not turn up, the police after a couple of days returned to Minver Place. The house was empty, bare and stripped of all its furniture, and its former occupants had decamped. The circumstance was suspicious, and a search was at once made of the whole premises. In the back kitchen one of the detectives remarked that the cement between certain stones looked lighter than the rest, and on trying it with a knife, he found that it was soft and new, while elsewhere it was set and hard. The stones were at once taken up; beneath them was a layer of fresh mortar, beneath that a lot of loose earth, amongst which a stocking was turned up, and presently a human toe. Six inches lower the body of O'Connor was uncovered. He was lying on his face, his legs tied up to his hips so as to allow of the body fitting into the hole. The lime had done its work so rapidly that the features would have been indistinguishable but for the prominent chin and a set of false teeth.

The corpse settled all doubts, and the next point was to lay hands upon the Mannings. It was soon ascertained that the wife had gone off in a cab with a quantity of luggage. Part of this she had deposited to be left till called for at one station, while she had gone herself to another, that at Euston Square. At the first the boxes were impounded, opened, and found to contain many of O'Connor's effects. At the second exact information was obtained of Mrs. Manning's movements. She had gone to Edinburgh. A telegraphic message, then newly adapted to the purposes of criminal detection, advised the Edinburgh police of the whole affair, and within an

hour an answer was telegraphed, stating that Mrs. Manning was in custody. She had been to brokers to negotiate the sale of certain foreign railway stock, with which they had been warned from London not to deal, and they had given information to the police. Her arrest was planned, and, when the telegram arrived from London, completed. An examination of her boxes disclosed a quantity of O'Connor's property. Mrs. Manning was transferred to London and lodged in the Horsemonger Lane Gaol, where her husband soon afterwards joined her. He had fled to Jersey, where he was recognized and arrested. Each tried to throw the blame on the other; Manning declared his wife had committed the murder, Mrs. Manning indignantly denied the charge.

The prisoners were in due course transferred to Newgate, to be put upon their trial at the Central Criminal Court. A great number of distinguished people assembled as usual at the Old Bailey on the day of trial. The Mannings were arraigned together; the husband standing at one of the front corners of the dock, his wife at the other end. Manning, who was dressed in black, appeared to be a heavy, bull-necked, repulsive-looking man, with a very fair complexion and light hair. Mrs. Manning was not without personal charms; her face was comely, she had dark hair and good eyes, and was above the middle height, yet inclined to be stout. She was smartly dressed in a plaid shawl, a white lace cap; her hair was dressed in long *crêpe* bands. She had lace ruffles at her wrist, and wore primrose-coloured kid gloves. The case rested upon the facts which have been already set forth, and was proved to the satisfaction of the jury, who brought in a verdict of guilty. Manning, when sentence of death was passed on him, said nothing; but Mrs. Manning, speaking in a foreign accent, addressed the court with great fluency and vehemence. She complained that she had no justice; there was no law for her, she had found no protection either from judges, the prosecutor, or her husband. She had not been treated like a Christian, but like a wild beast of the forest. She declared that the money found in her possession had been sent her from abroad; that O'Connor had been more to her than her husband, that she ought to have married him. It was against common sense to charge her with murdering the only friend she had in the world; the culprit was really her husband, who killed O'Connor out of jealousy and revengeful feelings. When the judge assumed the black cap Mrs. Manning became still more violent, shouting, "No, no, I will not stand it! You ought to be ashamed of yourselves!" and would have left the dock

had not Mr. Cope, the governor of Newgate, restrained her. After judgment was passed she repeatedly cried out Shame! and stretching out her hand, she gathered up a quantity of the rue which, following ancient custom dating from the days of the gaol fever, was strewn in front of the dock, and sprinkled it towards the bench with a contemptuous gesture.

On being removed to Newgate from the court Mrs. Manning became perfectly furious. She uttered loud imprecations, cursing judge, jury, barristers, witnesses, and all who stood around. Her favourite and most often-repeated expression was, “D—n seize you all.” They had to handcuff her by force against the most violent resistance, and still she raged and stormed, shaking her clenched and manacled hands in the officers’ faces. From Newgate the Mannings were taken in separate cabs to Horsemonger Lane Gaol. On this journey her manner changed completely. She became flippant, joked with the officers, asked how they liked her “resolution” in the dock, and expressed the utmost contempt for her husband, whom she never intended to acknowledge or speak to again. Later her mood changed to abject despair. On reaching the condemned cell she threw herself upon the floor and shrieked in an hysterical agony of tears. After this, until the day of execution, she recovered her spirits, and displayed reckless effrontery, mocking at the chaplain, and turning a deaf ear to the counsels of a benevolent lady who came to visit. Now she abused the jury, now called Manning a vagabond, and through all ate heartily at every meal, slept soundly at nights, and talked with cheerfulness on almost any subject. Nevertheless, she attempted to commit suicide by driving her nails, purposely left long, into her throat. She was discovered just as she was getting black in the face. Manning’s demeanour was more in harmony with his situation, and the full confession he made elucidated all dark and uncertain points in connection with the crime. The actual execution, which took place at another prison than Newgate, is rather beyond the scope of this work. But it may be mentioned that the concourse was so enormous that it drew down the well-merited and trenchant disapproval of Charles Dickens, who wrote to the ‘Times,’ saying that he believed “a sight so inconceivably awful as the wickedness and levity of the immense crowd collected at the execution this morning could be imagined by no man, and presented by no heathen land under the sun. The horrors of the gibbet, and of the crime which brought the wretched murderers to it, faded in my mind before the atrocious bearing, looks, and language of the assembled

spectators. When I came upon the scene at midnight, the shrillness of the cries and howls that were raised from time to time, denoting that they came from a concourse of boys and girls already assembled in the best places, made my blood run cold." It will be in the memory of many that Mrs. Manning appeared on the scaffold in a black satin dress, which was bound tightly round her waist. This preference brought the costly stuff into disrepute, and its unpopularity lasted for nearly thirty years.

I will briefly describe one or two of the more remarkable murders in the years immediately following, then pass on to another branch of crime.

Robert Marley at the time of his arrest called himself a surgical instrument maker. It was understood also that he had served in the army as a private, and had, moreover, undergone a sentence of transportation. But it was supposed that he had been once in a good position, well born, and well educated. When lying under sentence of death in Newgate, he was visited by a lady, a gentlewoman in every sense of the word, who was said to be his sister. His determined addiction to evil courses had led to his being cast off by his family, and he must have been at the end of his resources when he committed the crime for which he suffered. His offence was the murder of Richard Cope, a working jeweller, shopman to a Mr. Berry of Parliament Street. It was Cope's duty to stay in the shop till the last, close the shutters, secure the stock of watches and jewellery, then lock up the place and take on the keys to Mr. Berry's private house in Pimlico. Cope, a small man, crippled, and of weakly constitution, was alone in the shop about 9.30; the shutters were up, and he was preparing to close, when Marley entered and fell upon him with a life-preserver, meaning to kill him and rifle the shop. The noise of the struggle was heard outside in the street, and bystanders peeped in through the shutters, but no one entered or sought to interfere in what seemed only a domestic quarrel. A milliner's porter, Lerigo, was also attracted by the noise of the row, but after walking a few paces he felt dissatisfied, and returned to the spot. Pushing the shop-door open, he saw Marley finishing his murderous assault. Lerigo turned for assistance to take the man into custody. Marley, disturbed, picked up a cigar and parcel from the counter, then ran out, pursued by Lerigo only. Marley ran along the street, down into Cannon Row, then into Palace Yard, where the waterman of the cab-tank, in obedience to Lerigo's shouts, collared the fugitive. Escorted by his two captors, Marley was taken back into Parliament Street to the jeweller's shop. The policemen were now in possession; two of them

supported Cope, who was still alive, although insensible, and Marley was apprehended. The evidence against him was completed by his identification by Cope in Westminster Hospital, who survived long enough to make a formal deposition before Mr. Jardine, the police magistrate, that Marley was the man who had beaten him to death.

Marley at his trial was undefended, and the sheriffs offered him counsel; but he declined. The witnesses against him all spoke the truth, he said; there was no case to make out; why waste money on lawyers for the defence? His demeanour was cool and collected throughout; he seemed while in Newgate to realize thoroughly that there was no hope for him, and was determined to face his fate bravely. After sentence, the Newgate officers who had special charge of him noticed that he slept well and ate well, enjoying all his meals. One of them went into his cell just at dinner-time; the great clock of St. Sepulchre's close by was striking the hour, and Marley, who had his elbows on the table, with his head resting on his hands, looked up and observed calmly, "Go along, clock; come along, gallows." On the dread morning he came out to execution quite gaily, and tripped up the stairs to the scaffold. His captors, it may be added (Lerigo and Allen), were warmly commended by the judge for their courage and activity. The former was given a reward of twenty and the latter of ten pounds.

A murderous assault on a police constable, which so nearly ended fatally that the culprit was sentenced to death, although not executed, was perpetrated in 1852. The case was accompanied with the most shocking brutality. Cannon, by trade a chimney-sweep, had long been characterized by the bitterest hatred of the police force, and had been repeatedly sentenced to imprisonment for most desperate and ferocious attacks upon various constables. His last victim was Dwyer, a fine young officer who had been summoned to take Cannon into custody when the latter was drunk and riotous in front of a public-house. Dwyer found Cannon bleeding profusely from a wound in the head, and persuaded him to go to a doctor's. They walked together quietly for some little distance, then Cannon, without the slightest warning, threw the constable on his back, and violently assaulted him by jumping on his chest and stomach, and by getting his hand inside Dwyer's stock, with the idea of strangling him. Dwyer managed to overpower his assailant, and got to his feet; but Cannon butted at him with his head, and again threw him to the ground, after which he kicked his prostrate foe in the most brutal and cowardly manner, and until he was

almost senseless, and bruised from head to foot. Once more Dwyer got to his feet, and managed, by drawing his staff, to keep Cannon at bay until a second constable came to his aid. All this time not one of a numerous body of bystanders offered to assist the policeman in his extremity. On the contrary, many of them encouraged the brutal assailant in his savage attack. To Cannon's infinite surprise, he was indicted for attempt to murder, and not for a simple assault, and found guilty. The judge, in passing sentence of death, told him he richly deserved the punishment. As Dwyer survived, Cannon escaped the death sentence, which was commuted to penal servitude for life. A handsome sum was subscribed for the injured constable, who was disabled for life.

Only a few have vied with Cannon in fiendish cruelty and brutality. One of these was Mobbs, who lived in the Minories, generally known by the soubriquet of "General Haynau," a name execrated in England about this time. Mobbs systematically ill-used his wife for a long space of time, and at last cut her throat. For this he was executed in front of Newgate in 1833. Emmanuel Barthelemy again, the French refugee, was a murderer of the same description, who despatched his victim with a loaded cane, after which, to secure his escape, he shot an old soldier who had attempted to detain him. He was convicted and executed. He died impenitent, declaring that he had no belief, and that it was idle to ask forgiveness of God. "I want forgiveness of man; I want those doors (of the prison) opened." Barthelemy was generally supposed to have been a secret agent of the French police.

I will now pass to grave but less atrocious crimes. In 1850 occurred the first of a series of gigantic frauds, which followed each other at no long intervals, which had a strong family likeness, and originated all of them to make money easily, without capital, and at railroad speed. Walter Watts was an inventor, a creator, who struck an entirely new and original line of crime. Employed as a clerk in the Globe Assurance, he with unusual quickness of apprehension discovered and promptly turned to account an inexcusably lax system of management, which offered peculiar chances of profit to an ingenious and unscrupulous man. It was the custom in this office to make the banker's pass-book the basis of the entries in the company's ledgers. Thus, when a payment was made by the company, the amount disbursed was carried to account in the general books from its entry in the pass-book, and without reference to or comparison with the documents in which the payment was claimed. This pass-book, when not at the bank, was in the

exclusive custody of Watts. The cheques drawn by the directors also passed through his hands; to him too they came back to be verified and put by, after they had been cashed by the bank. In this way Watts had complete control over the whole of the monetary transactions of the company. He could do what he liked with the pass-book, and by its adoption, as described as the basis of all entries, there was no independent check upon him if he chose to tamper with it. This he did to an enormous extent, continually altering, erasing, and adding figures to correspond with and cover the abstractions he made of various cheques as they were drawn. It seems incredible that this pass-book, which when produced in court was a mass of blots and erasures, should not have created suspicion of foul play either at the bank or at the company's board. Implicit confidence appears to have been placed in Watts, who was the son of an old and trusted *employé*, and, moreover, a young man of plausible address.

Watts led two lives. In the West End he was a man of fashion, with a town house, a house at Brighton, and a cellar full of good wine at both. He rode a priceless hack in Rotten Row, or drove down to Richmond in a mail phaeton and pair. He played high, and spent his nights at the club, or in joyous and dissolute company. When other pleasures palled he took a theatre, and posed as a munificent patron of the dramatic art. Under his auspices several "stars" appeared on the boards of the Marylebone theatre, and later he became manager of the newly rebuilt Olympic at Wych Street. No one cared too closely to inquire into the sources of wealth. Some said he was a fortunate speculator in stocks, others that he had had extraordinary luck as a gold-digger. Had his West End and little-informed associates followed him into the city, whither he was taken every morning in a smart brougham, they would have seen him alight from it in Cornhill, and walk forward on foot to enter as a humble and unpretending *employé* the doors of the Globe Assurance office. His situation exactly described was that of check clerk in the cashier's department, and his salary was £200 a year. Nevertheless, in this position, through the culpable carelessness which left him unfettered, he managed between 1844 and 1850 to embezzle and apply to his own purposes some £71,000. The detection of these frauds came while he was still prominently before the world as the lessee of the Olympic. Rumours were abroad that serious defalcations had been discovered in one of the insurance offices, but it was long before the public realized that the fraudulent clerk and the great theatrical manager were one

and the same person. Watts's crime was discovered by the secretary of the Globe Company, who came suddenly upon the extensive falsification of the pass-book. An inquiry was at once set on foot, and the frauds were traced to Watts. The latter, when first taxed with his offence, protested his innocence boldly, and positively denied all knowledge of the affair; and he had so cleverly destroyed all traces that it was not easy to bring home the charge. But it was proved that Watts had appropriated one cheque for £1400, which he had paid into his own bankers, and on this he was committed to Newgate for trial. There were two counts in the indictment: one for stealing a cheque value £1400, the second for stealing a bit of paper value one penny. The jury found him guilty of the latter only, with a point of law reserved. This was fully argued before three judges, who decided that the act of stealing the bit of paper involved a much more serious offence, and told him they should punish him for what he had really done, and not for the slight offence as it appeared on the record. The sentence of the court, one of ten years' transportation, struck the prisoner with dismay. He had been led to suppose that twelve months' imprisonment was the utmost the law could inflict, and he broke down utterly under the unexpected blow. That same evening he committed suicide in Newgate.

The details of the suicide were given at the inquest. Watts had been in ill-health from the time of his first arrest. In Giltspur Street Compter, where he was first lodged, he showed symptoms of delirium tremens, and admitted that he had been addicted to the excessive use of stimulants. His health improved, but was still indifferent when he was brought up for sentence, and he was an occupant of the Newgate infirmary. He returned from court in a state of gloomy dejection, and in the middle of the night one of the fellow-prisoners who slept in the same ward noticed that he was not in his bed. This man got up to look for him, and found him hanging from the bars of a neighbouring room. He had made use of a piece of rope cut out from the sacking of his bedstead, and had tied his feet together with a silk pocket-handkerchief. The prison officers were called, but Watts was quite cold and stiff when he was cut down. Strange to say, a second suicide occurred in Newgate the same night, that of a prize-fighter named Donovan, tried the same day, and convicted of manslaughter. Sentence of death had been recorded against Donovan, who, like Watts, had seemingly been overcome with sudden despair.

In 1853 a second case of gigantic fraud alarmed and scandalized the financial world. It outshone the defalcations of Watts. Nothing to equal the excitement caused by the forgeries of Robert Ferdinand Pries had been known before in the city of London. He was a corn merchant who operated largely in grain. So enormous were his transactions, that they often affected the markets, and caused great fluctuations in prices. These had been attributed to political action; some thought that the large purchases in foreign grains, effected at losing prices, were intended by the protectionists to depress the wheat market, and secure the support of the farmers at the forthcoming election; others, that Napoleon III., but recently proclaimed Emperor of the French, wished to gain the popularity necessary to secure the people. Few realized that these mysterious operations were the “convulsive attempt” of a ruined and dishonest speculator to sustain his credit. Pries, although enjoying a high reputation in the city, had long been in a bad way. His extensive business had been carried on by fraud. His method was to obtain advances twice over on the same bills of lading or corn warrants. The duplicates were forged. In this way he obtained vast sums from several firms, and one to which he was indebted upwards of £50,000 subsequently stopped payment. Pries at length was discovered through a dishonoured cheque for £3000, paid over as an instalment of £18,000 owing for an advance on warrants. Inquiries were instituted when the cheque was protested, which led to the discovery of the forgeries. Pries was lodged in Newgate, tried at the Old Bailey, and transported for life.

Another set of frauds, which resembled those of Pries in principle, although not in practice, were soon afterwards discovered. These were the forgeries of Joseph Windle Cole. This clever but unscrupulous trader proposed to gain the capital he needed for business purposes by raising money on dock warrants for imported goods which had no real existence. When such goods arrived they were frequently left at a wharf, paying rent until it suited the importer to remove them. The dock warrant was issued by the wharfinger as certificate that he held the goods. The warrant thus represented money, and was often used as such, being endorsed and passed from hand to hand as other negotiable bills. Cole’s plan was to have a wharf of his own, nominally occupied by a creature trading as Maltby and Co. Goods would be landed at this wharf; Maltby and Co. would issue warrants on them deliverable to the importer, and the goods were then passed to be stored in neighbouring warehouses. The owners of the latter would then

issue a second set of warrants on these goods, in total ignorance of the fact that they were already pledged. Cole quickly raised money on both sets of warrants. He carried on this game for some time with great success, and so developed his business that in one year his transactions amounted to a couple of millions of pounds. He had several narrow escapes. Once a warrant-holder sent down a clerk to view certain goods, and the clerk found that these goods had already a "stop" upon them, or were pledged. Cole escaped by throwing the blame on a careless partner, and at once removed the "stop." Again, some of the duplicate and fictitious warrants were held by a firm which suspended payment, and there was no knowing into whose hands they might fall. Cole found out where they were, and redeemed them at a heavy outlay, thus obtaining business relations with the firm that held them, which were soon developed, much to that firm's subsequent anger and regret. Last of all, the well-known bankers Overend and Gurney, whose own affairs created much excitement some years later, wishing to verify the value of warrants they held, and sending to Maltby and Co.'s wharf, found out half the truth. These bankers, wishing for more specific information, asked Davidson and Gordon, a firm with which Cole was closely allied, whether the warrants meant goods or nothing. They could not deny that the latter was the truth, and were forthwith stigmatized by Mr. Chapman, Overend and Gurney's representative, as rogues. But Overend and Gurney took no steps to make the swindle public, and therefore, according to people of more rigid principle, became in a measure a party to the fraud.

The course of the swindlers was by no means smooth, but it was not till 1854 that suspicion arose that anything was wrong. A firm which held a lot of warrants suddenly demanded the delivery of the goods they covered. The goods having no existence, Cole of course could not deliver them. About this time Davidson and Gordon, the people above-mentioned, who had fraudulent warrants out of their own to the extent of £150,000, suspended payment and absconded. This affected Cole's credit, and ugly reports were in circulation charging him with the issue of simulated warrants. These indeed were out to the value of £367,800. Cole's difficulties increased more and more; warrant-holders came down upon him demanding to realize their goods. Cole now suspended payment. Maltby, who had bolted, was pursued and arrested, to end his life miserably by committing suicide in a Newgate cell. Cole too was apprehended, and in due course tried at the Central Criminal Court. He was found guilty, and sentenced to the seemingly

inadequate punishment of four years' transportation. Davidson and Gordon were also sentenced to imprisonment.

A more distressing case stands next on the criminal records—the failure and subsequent sentence of the bankers Messrs. Strahan, Paul, and Bates, for the fraudulent disposal of securities lodged in their hands. This firm was one of the oldest banking establishments in the kingdom, and dated back to the Commonwealth, when, under the title of Snow and Walton, it carried on business as pawnbrokers. The Strahan of the firm which came to grief was a Snow who changed his name for a fortune of £200,000; he was a man esteemed and respected in society and the world of finance, incapable as it was thought of a dishonest deed. Sir John Dean Paul had inherited a baronetcy from his father, together with an honoured name; he was himself a prominent member of the Low Church, of austere piety, active in all good works. Mr. Bates had been confidential managing clerk, and was taken into the firm not alone as a reward for long and faithful service, but that he might strengthen it by his long experience and known business capacity. The bank enjoyed an excellent reputation, it had a good connection, and was supposed to be perfectly sound. Moreover, the partners were sober, steady men, who paid unremitting attention to business. Yet even so early as the death of the first Sir John Paul, the bank was insolvent, and instead of starting on a fresh life with a new name, it should then and there have closed its doors. In December 1851 the balance sheet showed a deficiency of upwards of £70,000. The bank had been conducted on false principles; it had assumed enormous responsibilities—on one side by the ownership of the Mostyn collieries, a valueless property, and on the other by backing up an impecunious and rotten firm of contractors with vast liabilities and pledged to impossible works abroad. The engagements of the bank on these two heads amounting to nearly half a million of money, produced immediate embarrassment and financial distress.

The bank was already insolvent, and the partners had to decide between suspending payment or continuing to hold its head above water by flagitious processes. They chose, unhappily for themselves, the latter alternative. Money they must have, and money they raised to meet their urgent necessities upon the balances and securities deposited with them by their customers. This borrowing continued, and on such a scale that their paper was soon at a discount, and the various discount houses would not advance sufficient sums to relieve the necessities of the bank. Then it was

that instead of merely pledging securities, the bank sold them outright, and thus passed the Rubicon of fraud. This went on for some time, and might never have been discovered had some good stroke of luck provided any of the partners with money enough to retrieve the position of the bank. But that passed from bad to worse; the firm's paper went down further and further in value; an application to the Committee of Bankers for assistance was peremptorily refused, then came a run on the bank, and it was compelled to stop payment. Its debts amounted to three-quarters of a million, and the dividend it eventually paid was three and twopence in the pound. But worse than the bankruptcy was the confession made by the partners in the court. They admitted that they had made away with many of the securities intrusted to their keeping. Following this, warrants were issued for their arrest, the specific charge being the unlawful negotiation of Danish bonds and other shares belonging to the Rev. Dr. Griffiths of Rochester, to the value of £20,000.

Bates was at once captured in Norfolk Street, Strand. Police officers went down at night to Nutfield, near Reigate, and arrested Sir John Paul, but allowed the prisoner to sleep there. Next morning they only just saved the train to town, and left Sir John behind on the platform, but he subsequently surrendered himself. Mr. Strahan was arrested at a friend's house in Bryanston Square. All three were tried at the Central Criminal Court, and sentenced to fourteen years' transportation, passing some time in Newgate *en route*. Bates, the least guilty, was pardoned in 1858.

Two cases of extensive embezzlement which were discovered almost simultaneously, those of Robson and Redpath, will long be remembered both within and without the commercial world. They both reproduced many of the features of the case of Watts, already described, but in neither did the sums misappropriated reach quite the same high figure. But neither Robson nor Redpath would have been able to pursue their fraudulent designs with success had they not, like Watts, been afforded peculiar facilities by the slackness of system and the want of methodical administration in the concerns by which they were employed. Robson was of humble origin, but he was well educated, and he had some literary abilities. His proclivities were theatrical, and he was the author of several plays, one at least of which, 'Love and Loyalty,' with Wallack in a leading part, achieved a certain success. He began life as a law-writer, earning thereby some fifteen or eighteen shillings a week; but the firm he served got him a situation as

clerk in the office of the Great Northern Railway, whence he passed to a better position under the Crystal Palace Company. He now married, although his salary was only a pound a week; but he soon got on. He had a pleasant address, showed good business aptitudes, and quickly acquired the approval of his superiors. Within a year he was advanced to the post of chief clerk in the transfer department, at a salary of £150 a year. His immediate chief was a Mr. Fasson, upon whose confidence he gained so rapidly, through his activity, industry, and engaging manners, that ere long the whole management of the transfer department was intrusted to him.

Some time elapsed before Robson succumbed to temptation. He was not the first man of loose morality and expensive tastes who preferred to risk his future reputation and liberty to the present discomfort of living upon narrow means. The temptation was all the greater because the chances of successful fraud lay ready to hand. Shares in the company were represented by certificates, which often enough never left the company's, or more exactly Robson's, hands. He conceived the idea of transferring shares, bogus shares from a person who held none, to any one who would buy them in the open market. He took it for granted that the certificates representing these bogus shares, and which practically did not exist, would never be called for. This ingenious method of raising funds he adopted and carried on without detection, till the defalcations from fraudulent transfers and fraudulent issues combined amounted to £27,000. With the proceeds of these flagitious frauds Robson feasted and made merry. He kept open house at Kilburn Priory; entertained literary, artistic, and dramatic celebrities; had a smart "turn out," attended all the race-meetings, and dressed in the latest fashion. To his wife, poor soul, he made no pretence of fidelity, and she enjoyed only so much of his company as was necessarily spent in receiving guests at home, or could be spared from two rival establishments in other parts of the town. To account for his revenues he pretended to have been very lucky on the Stock Exchange, which was at one time true to a limited extent, and to have succeeded in other speculations. When his friends asked why he, a wealthy man of independent means, continued to slave on as a clerk on a pittance, he replied gaily that his regular work at the Crystal Palace office was useful as a sort of discipline, and kept him steady.

All this time his position was one of extreme insecurity. He was standing over a mine which at any moment might explode. The blow fell suddenly, and when least expected. One morning Mr. Fasson asked casually for

certain certificates, whether representing real or fictitious shares does not appear; but they were certificates connected in some way with Robson's long-practised frauds, and he could not produce them. His chief asked sternly where they were. Robson said they were at Kilburn Priory. "Let us go to Kilburn for them together," said Mr. Fasson, growing suspicious. They drove there, and Robson on arrival did the honours of his house, rang for lunch to gain time, but at Mr. Fasson's pressing demands went upstairs to fetch the certificates. He came back to explain that he had mislaid them. Mr. Fasson, more and more ill at ease, would not accept this subterfuge, and declared they must be found. Robson again left him, but only to gather together hastily all the money and valuables on which he could lay his hands, with which he left the house. Mr. Fasson waited and waited for his subordinate to re-appear, and at last discovered his flight. A reward was forthwith offered for Robson's apprehension. Meanwhile the absconding clerk had coolly driven to a favourite dining-place in the West End, where a fish curry and a brace of partridges were set before him, and he discussed the latter with appetite, but begged that they would never give him curry again, as he did not like it. After dinner he went into hiding for a day or two, then, accompanied by a lady, not Mrs. Robson, he took steamer and started for Copenhagen. But the continental police had been warned to look out for him, and two Danish inspectors got upon his track, followed him over to Sweden, and arrested him at Helsingfors. Thence he was transferred to Copenhagen and surrendered in due course to a London police officer.

Little more remains to be said about Robson. He appears to have accepted his position, and to have at once resigned himself to his fate. When brought to trial he took matters very coolly, and at first pleaded "Not Guilty," but subsequently withdrew the plea. Sergeant Ballantine, who prosecuted, paid him the compliment of describing him as "a young man of great intelligence, considerable powers of mind, and possessed of an education very much beyond the rank of life to which he originally belonged." Robson was found guilty, and sentenced to two terms of transportation, one for twenty and one for fourteen years. Newgate officers who remember Robson still describe him as a fine young man, who behaved well as a prisoner, but who had all the appearance of a careless, thoughtless, happy-go-lucky fellow.

In many respects the embezzlement of which Leopold Redpath was guilty closely resembled that of Robson, but it was based upon more

extended and audacious forgeries. Redpath's crime arose from his peculiar and independent position as registrar of stock of the Great Northern Railway Company. This offered him great facilities for the creation of artificial stock, its sale from a fictitious holder, and transfer to himself. All the signatures in the transfer were forged. Not only did he thus transfer and realize "bogus" stock, but he bought *bonâ fide* amounts, and increased their value by altering the figures, by inserting say 1 before 500, and thus making it £1500, which larger amount was duly carried to his credit on the register, and entered upon the certificates of transfer. By these means Redpath misappropriated vast sums during a period extending over ten years. The total amount was never exactly made out, but the false stock created and issued by him was estimated at £220,000. Even when the bubble burst Redpath, who had lived at the rate of twenty thousand a year, had assets in the shape of land, house, furniture, pictures, and *objets d'art* to the value of £50,000.

He began in a very small way. First a lawyer's clerk, he then got an appointment in the Peninsular and Oriental Company's office; afterwards he set up as an insurance broker on his own account, but presently failed. His fault was generosity, an open-handed, unthinking charity which gave freely to the poor and needy the money which belonged to his creditors. After his bankruptcy he obtained a place as clerk in the Great Northern Railway office, from which he rose to be assistant registrar, with the special duties of transferring shares. He soon proved his ability, and by unremitting attention mastered the whole work of the office. Later on he became registrar, and in this more independent position developed to a colossal extent the frauds he had already practised as a subordinate. Now he launched out into great expenditure, took a house in Chester Terrace, and became known as a Mæcenas and patron of the arts. He had a nice taste in *bric-à-brac*, and was considered a good judge of pictures. Leading social and artistic personages were to be met with at his house, and his hospitality was far famed. The choicest wines, the finest fruits, peas at ten shillings a quart, five-guinea pines, and early asparagus were to be found on his table. But his chief extravagance, his favourite folly, was the exercise of an ostentatious benevolence. The philanthropy he had displayed in a small way when less prosperous became now a passion. His name headed every subscription list; his purse was always open. Not content with giving where assistance was solicited, he himself sought out deserving cases and personally afforded

relief. When the crash came there were pensioners and other recipients of his bounty who could not believe that so good a man had really been for years a swindler and a rogue. Down at Weybridge, where he had a country place, his name was long remembered with gratitude by the poor. During the days of his prosperity he was a governor of Christ's Hospital, of the St. Ann's Society, and one of the supporters and managers of the Patriotic Fund. In his person he was neat and fastidious; he patronized the best tailors, and had a fashionable *coiffeur* from Hanover Square daily to curl his hair.

There was something dramatic in Redpath's detection. Just after Robson's frauds had agitated the minds of all directors of companies, the chairman of the Great Northern (Mr. Denison) was standing at a railway station talking to a certain well-known peer of the realm. Redpath passed and lifted his hat to his chairman; the latter acknowledged the salute. But the peer rushed forward and shook Redpath warmly by the hand. "What do you know of our clerk?" asked Mr. Denison of his lordship. "Only that he is a capital fellow, who gives the best dinners and balls in town." Redpath had industriously circulated reports that he had prospered greatly in speculation; but the chairman of the Great Northern could not realize that a clerk of the company could honestly be in the possession of unlimited wealth. It was at once decided at the board to make a thorough examination of all his books. Redpath was called in and informed of the intended investigation. He tried to stave off the evil hour by declaring that everything was perfectly right; but finding he could not escape, he said he would resign his post, and leaving the board-room, disappeared.

The inquiry soon revealed the colossal character of the frauds. Warrants were issued for Redpath's arrest, but he had flown to Paris. Thither police officers followed, only to find that he had returned to London. A further search discovered him at breakfast at a small house in the New Road. He was arrested, examined before a police magistrate, and committed to Newgate. Great excitement prevailed in the city and the West End when Redpath's defalcations were made public. The Stock Market was greatly affected, and society, more especially that which frequents Exeter Hall, was convulsed. The Central Criminal Court, when the trial came on, was densely crowded, and many curious eyes were turned upon the somewhat remarkable man who occupied the dock. He is described by a contemporary account as a fresh-looking man of forty years of age, slightly bald, inclined

to embonpoint, and thoroughly embodying the idea of English respectability. His manner was generally self-possessed, but his face was marked with "uneasy earnestness," and he looked about him with wayward, furtive glances. When the jury found a verdict of guilty he remained unmoved. He listened without emotion to the judge's well-merited censures, and received his sentence of transportation for life without much surprise. Redpath passed away into the outer darkness of a penal colony, where he was still living a year or two back. But his name lingers still in this country as that of the first swindler of his time, and the prototype of a class not uncommon in our later days—that of dishonest rogues who assume piety and philanthropy as a cloak for their misdeeds.

In Newgate Redpath is remembered by the prison officer as a difficult man to deal with. From the moment of his reception he gave himself great airs, as a martyr and a man heavily wronged. By-and-by, when escape seemed hopeless, and after sentence, he suddenly degenerated into the lowest stamp of criminal, and behaved so as to justify a belief that he had been a gaol-bird all his life.

It has been already remarked in these pages that with changed social conditions came a great change in the character of crimes. Highway robberies, for instance, had disappeared, if we except the spasmodic and severely repressed outbreak of "garotting," which at one time spread terror throughout London. Thieves preferred now to use ingenuity rather than brute force. It was no longer possible to stop a coach or carriage, or rob the postman who carried the mail. The improved methods of locomotion had put a stop to these depredations. People travelled in company, as a rule; only when single and unprotected were they in any danger of attack, and that but rarely. There were still big prizes, however, to tempt the daring, and none appealed more to the thievish instinct than the custom of transmitting gold by rail. The precious metal was sent from place to place carefully locked up and guarded, no doubt; but were the precautions too minute, the vigilance too close to be eluded or overcome? This was the question which presented itself to the fertile brain of one Pierce, who had been concerned in various "jobs" of a dishonest character, and who for the moment was a clerk in a betting office. He laid the suggestion before Agar, a professional thief, who was of opinion it contained elements of success. But the collusion and active assistance of *employés* of the railway carriers were indispensable, and together they sounded one Burgess, a guard on the South-Eastern

Railway, a line by which large quantities of bullion were sent to the Continent. Burgess detailed the whole system of transmission. The gold, packed in an iron-bound box, was securely lodged in safes locked with patent Chubbs. Each safe had three sets of double keys, all held by confidential servants of the company. One pair was with the traffic superintendent in London, another with an official in Folkestone, a third with the captain of the Folkestone and Boulogne boat. At the other side of the Channel the French railway authorities took charge.

The safes while on the line *en route* between London and Folkestone were in the guard's van. This was an important step, and they might easily be robbed some day when Burgess was the guard, provided only that they could be opened. The next step was to get impressions and fabricate false keys. A new accomplice was now needed within the company's establishment, and Pierce looked about long before he found the right person. At last he decided to enlist one Tester, a clerk in the traffic department, whom he thought would prove a likely tool. The four waited patiently for their opportunity, which came when the safes were sent to Chubbs' to be repaired; and Chubbs sent them back, but only with one key, in such a way that Tester had possession of this key for a time. He lent it to Agar for a brief space, who promptly took an impression on wax. But the safes had a double lock; the difficulty was to get a copy of the second key. This was at length effected by Agar and Pierce. After hanging about the Folkestone office for some time, they saw at last that the key was kept in a certain cupboard. Still watching and waiting for the first chance, they seized it when the clerks left the office empty for a moment. Pierce boldly stepped in, found the cupboard unlocked; he removed the key, handed it to Agar outside, who quickly took the wax impression, handed it back to Pierce; Pierce replaced it, left the office, and the thing was done.

After this nothing remained but to wait for some occasion when the amount transmitted would be sufficient to justify the risks of robbery. It was Tester's business, who had access to the railway company's books, to watch for this. Meanwhile the others completed their preparations with the utmost care. A weight of shot was bought and stowed in carpet bags ready to replace exactly the abstracted gold. Courier bags were bought to carry the "stuff" slung over the shoulders; and last, but not least, Agar frequently travelled up and down the line to test the false keys he had manufactured with Pierce's assistance. Burgess admitted him into the guard's van, where

he fitted and filed the keys till they worked easily and satisfactorily in the locks of the safe. One night Tester whispered to Agar and Pierce, "All right," as they cautiously lounged about London Bridge. The thieves took first-class tickets, handed their bags full of shot to the porters, who placed them in the guard's van. Just as the train was starting Agar slipped into the van with Burgess, and Pierce got into a first-class carriage. Agar at once got to work on the first safe, opened it, took out and broke into the bullion box, removed the gold, substituted the shot from a carpet bag, re-fastened and re-sealed the bullion box, and replaced it in the safe. At Redhill Tester met the train and relieved the thieves of a portion of the stolen gold. At the same station Pierce joined Agar in the guard's van, and there were now three to carry on the robbery. The two remaining safes were attacked and nearly entirely despoiled in the same way as the first, and the contents transferred to the courier bags. The train was now approaching Folkestone, and Agar and Pierce hid themselves in a dark part of the van. At that station the safes were given out, heavy with shot, not gold; the thieves went on to Dover, and by-and-by, with Ostend tickets previously procured, returned to London without mishap, and by degrees disposed of much of the stolen gold.

The theft was discovered at Boulogne, when the boxes were found not to weigh exactly what they ought. But no clue was obtained to the thieves, and the theft might have remained a mystery but for the subsequent bad faith of Pierce to his accomplice Agar. The latter was ere long arrested on a charge of uttering forged cheques, convicted, and sentenced to transportation for life. When he knew that he could not escape his fate, he handed over to Pierce a sum of £3000, his own, whether rightly or wrongly acquired never came out, together with the unrealized part of the bullion, amounting in all to some £15,000, and begged his accomplice to invest it as a settlement on a woman named Kay, by whom he had had a child. Pierce made Kay only a few small payments, then appropriated the rest of the money. Kay, who had been living with Agar at the time of the bullion robbery, went to the police in great fury and distress, and disclosed all she knew of the affair. Agar too, in Newgate, heard how Pierce had treated him, and at once readily turned approver. As the evidence he gave incriminated Pierce, Burgess, and Tester, all three were arrested and committed to Newgate for trial. The whole strange story, the long incubation and the elaborate accomplishment of the plot, came out at the Old Bailey, and was acknowledged to be one of the most extraordinary on record.

Scarcely had the conviction of these daring and astute thieves been assured, than another gigantic fraud was brought to light. The series of boldly-conceived and cleverly-executed forgeries in which James Townshend Seward, commonly called "Jem the Penman," was the prime mover, has probably no parallel in the annals of crime. Seward himself is a striking and in some respects an unique figure in criminal history. A man of birth and education, a member of the bar, and of acknowledged legal attainments, his proclivities were all downward. Instead of following an honourable profession, he preferred to turn his great natural talents and ready wits to the most nefarious practices. He was known to the whole criminal fraternity as a high-class receiver of stolen goods, a negotiator more especially of stolen paper, cheques and bills, of which he made a particular use. He dealt too in the precious metals, when they had been improperly acquired, and it was to him that Agar, Pierce, and the rest applied when seeking to dispose of their stolen bullion. But Seward's operations were mainly directed to the fabrication and uttering of forged cheques. His method was comprehensive and deeply laid. Burglars brought him the cheques they stole from houses, thieves what they got in pocket-books. Cheques blank and cancelled were his stock-in-trade. The former he filled up by exact imitation of the latter, signature and all. When he could get nothing but the blank cheque, he set in motion all sorts of schemes for obtaining signatures, such as commencing sham actions, and addressing formal applications, merely for the reply. One stroke of luck which he turned to great account was the return from transportation of an old "pal" and confederate, who brought with him some bills of exchange.

Seward's method of negotiating the cheques was equally well planned. Like his great predecessor Old Patch,^[118] he never went to a bank himself, nor did any of his accomplices. The bearer of the cheque was always innocent and ignorant of the fraudulent nature of the document he presented. In order to obtain messengers of this sort, Seward answered advertisements of persons seeking employment, and when these presented themselves, intrusted them as a beginning with the duty of cashing cheques. A confederate followed the emissary closely, not only to insure fair play and the surrender of the proceeds if the cheque was cashed, but to give timely notice if it was not, so that Seward and the rest might make themselves scarce. As each transaction was carried out from a different address, and a different messenger always employed, the forgers always escaped detection.

But fate overtook two of the gang, partly through their own carelessness, when transferring their operations to Yarmouth. One named Hardwicke assumed the name of Ralph, and, to obtain commercial credit in Yarmouth, paid in £250 to a Yarmouth bank as coming from a Mr. Whitney. He forgot to add that it was to be placed to Ralph's credit, and when he called as Ralph, he was told it was only at Mr. Whitney's disposal, and that it could be paid to no one else. Hardwicke, or "Ralph," appealed to Saward in his difficulty, and that clever schemer sent an elaborate letter of instructions how to ask for the money. But while Hardwicke was in communication with Saward, the bank was in communication with London, and the circumstances were deemed sufficiently suspicious to warrant the arrest of the gentlemen at Yarmouth on a charge of forgery and conspiracy.

Saward's letter to Hardwicke fell into the hands of the police and compromised him. While Hardwicke and Atwell were in Newgate awaiting trial, active search was made for Saward, who was at length taken in a coffee-shop near Oxford Street, under the name of Hopkins. He resisted at first, and denied his identity, but on being searched, two blank cheques of the London and Westminster Bank were found in his pocket. He then confessed that he was the redoubtable Jem Saward, or Jem the Penman, and was conveyed to a police-court, and thence to Newgate. At his trial Atwell and Hardwicke, two of his chief allies and accomplices, turned approvers, and the whole scheme of systematic forgery was laid bare. The evidence was corroborated by that of many of the victims who had acted as messengers, and others who swore to the meetings of the conspirators and their movements. Saward was found guilty, and the judge, in passing sentence on him of transportation for life, expressed deep regret that "the ingenuity, skill, and talent, which had received so perverted and mistaken direction, had not been guided by a sense of virtue, and directed to more honourable and useful pursuits." The proceeds of these forgeries amounted, it was said, to some thousands per annum. Saward spent all his share at low gaming houses, and in all manner of debaucheries. He was in person a short, square-built man of gentlemanly address, sharp and shrewd in conversation and manner. He was fifty-eight at the time of his conviction, and had therefore enjoyed a long innings.

CHAPTER IX.

LATER RECORDS.

Latest cases of escape—Charles Thomas White—John Williams—Henry Williams—Other attempts frustrated—Bell, Brown, and Barry escape together—Krapps the sailor—The last case on record—Suicides—Latest executions—Some account of Calcraft and Marwood—Public executions continue, but much reprehended—The crowd at the ‘Flowery Land’ executions—Prices paid for seats—The same at Müller’s—‘Times’ ’ account of that execution—Efforts to make executions private in gaols—Royal commission—Mr. Hibbert’s bill— The Fenian Barrett’s, last public execution at Newgate—First private one, that of Alexander Mackay—Private executions not popular with Newgate officials—Some account, by them, of the demeanour of murderers—Wainwright—Catherine Wilson—Kate Webster.

THE old notion always prevailed that Newgate was impregnable, so to speak, from within, and that none of its inmates could hope to escape from its secure precincts. Yet the gaol, in spite of its fortress-like aspect, was by no means really safe. Year after year prisoners determined to get free, and occasionally succeeded in their efforts. The inspectors’ reports mention many cases of evasion accomplished. There were others less successful. Charles Thomas White, awaiting execution for arson, made a desperate effort to escape from Newgate in 1827. He had friends and auxiliaries inside the gaol and out. The cell he occupied was near the outer wall, and had he but been able to remove its iron bars, he might have descended into Newgate Street by means of a rope ladder. The ladder was actually made, of black sewing-thread firmly and closely interwoven. But White could not remove the bars; the instruments needed for the purpose never reached him. It was noticed that he was most anxious to receive a pair of shoes for which he had asked, and when they arrived they were closely examined. Sewn in between the upper and lower leathers several spring saws were found, which would have easily cut through any bars. White, when taxed with his attempt, admitted that the accusation was true, and spoke “with pride and satisfaction of the practicability of his scheme.”

There is an attempt at escape mentioned in Mr. Wakefield’s book, which might have been an intended suicide. John Williams, a young fellow only twenty-three years of age, awaited execution in 1827 for stealing in a dwelling-house. On the very morning on which he was to suffer he eluded the vigilance, such as it was, of his officers, and climbed up the pipe of a

cistern in the corner of the press yard; some thought with the idea of drowning himself. He never reached the cistern, but fell back into the yard, injuring his legs severely. Although his execution was imminent, a surgeon attended to his wounds, and he was carried more dead than alive to the scaffold. A harrowing scene followed; the wounds broke open and bled profusely while the last dread penalty was being performed, to the manifest excitement and indignation of the crowd.

A more daring and skilful escape was effected in 1836 by the chimney-sweep Henry Williams, who, while detained in the press-yard as a capital convict, under sentence of death for burglary, managed to get away in the very same spot where his namesake had nine years before so miserably failed. Escape seemed absolutely hopeless, and would certainly have been impossible to any one less nimble than a chimney-sweep, trained under the old system to ascend the most intricate flues. Even after Williams had got out, persons were disposed to disbelieve that the escape had been accomplished in the manner indicated; they preferred to credit it to carelessness or collusion from officers of the gaol. Yet from the circumstantial account given by Williams after recapture, there can be little doubt that he got away as will be described. Williams as a capital convict was lodged in the press-yard or condemned ward. He had access to the airing yard, and there was for hours no kind of supervision. In one corner of the airing yard stood a cistern at some height from the ground; the wall beneath and above it was "rusticated," in other words, the granite surface had become roughened, and offered a sort of foothold. About fifty feet from the ground level, and above the cistern, a revolving chevaux-de-frise of iron was fixed, with only a short interval between it and the wall, supported by a horizontal iron railing with upright points; in the wall above the chevaux-de-frise projected a series of iron spikes sharp enough to forbid further ascent. Williams surveyed these formidable obstacles to evasion, and calmly proceeded to surmount them. His first task was to gain the top of the cistern; this he effected by keeping his back to one side of the angle, and working with his hands behind him, while he used his bare feet like claws upon the other side of the wall angle. The condition of the stone surface just mentioned assisted him in this, and he managed to get beyond the cistern to the railing below the chevaux-de-frise. The least slip now would have been fatal to him. But he could not thrust his body in through the narrow space left by the chevaux-de-frise, and was compelled to work along the railing

round three-quarters of the square of the yard, and at length reached a point opposite the top of the building containing the condemned wards. This had been a perilous and painful task; the spikes of the railing penetrated his flesh and made progression slow and difficult. But the worst part of the business was to jump from this irksome foothold of the iron grating on to the top of the building just mentioned, a distance of eight or nine feet. He had here completed his ascent. His next job was to descend outside Newgate. Clambering along the roof, he passed to the top of the ordinary's residence, hoping to find an open sky-light by which he might enter and so work downstairs. If the worst came to the worst, he intended to have gone down some chimney, as he had often done before in the way of business. But he did not like the risk of entering a room by the fireplace, and the chances of detection it offered.

He traversed vainly all the roofs in Newgate Street, running a great risk of discovery as he passed by a lot of workmen at Tyler's manufactory in Warwick Square, which had formerly been the College of Physicians. As his coat was an incumbrance, he left it on the top of the third house in Newgate Street, and thus in shirt-sleeves, barefoot and bareheaded, he worked along to the roofs in Warwick Lane. Here he came upon a woman on the leads hanging out clothes to dry. Williams concealed himself behind a chimney till she had re-entered her garret, and then following her down a step ladder into the house, told his story, appealed to and won her compassion. She suffered him to pass downstairs. Below he met another woman and a girl, both of whom were terrified at his appearance, but when he explained that he was running away from the gallows they left him the road clear. To walk out into the street was an easy affair, and he was now free, with one and fourpence in his pocket and a shirt and trousers for all his clothing. Denied admission everywhere as a ragged, half-naked beggar, he tramped across London Bridge to Wandsworth, where he refreshed himself with a pint of strong ale, the first sustenance he had taken since his escape, and continued his march to Kingston, where he slept soundly under a hedge till next morning. Entering a town, he obtained employment at once as a chimney-sweep from a widow woman, who gave him "bub and grub," or food and one-and-sixpence, for every nine days' work. Dissatisfied with this remuneration, he again took to the road, and tramped into Hampshire, where he presently committed a burglary at Lymington, was caught, and lodged in Winchester Gaol. Mr. Cope, the governor of Newgate, having

been communicated with, proceeded to Winchester, where he at once identified Williams.

The success, although very short-lived, which attended him, no doubt inspired other inmates of Newgate to follow his example. It was for some time after this a constant practice to go up the chimneys in the hopes of escaping by the flue. Even then, however, irons across barred the ascent after a certain distance, and in no one case did a fugitive get clear away. A man named Lears, under sentence of transportation for an attempt at murder on board ship, got up part of the way, but had to come down again covered with soot and filth just as the officers entered the ward. Lears was rewarded by being obliged to wear cross irons on his legs, a punishment rarely inflicted in Newgate, and probably one of the few cases of a recurrence, but under proper safeguards and limitations, to the old system of chains. On another occasion Mr. Cope the governor came in and missed a man. The ward was one short of its number. What had become of the fellow? No one would answer. It was summer-time, and the grate was empty, but the governor promptly ordered a fire to be lighted. The effect was nearly instantaneous; the fugitive, uncomfortably ensconced in the flue, came down of his own accord, like Colonel Colt's racoon. After this great iron guards, just as are to be seen in lunatic asylums, were fixed over the fireplaces, and the prisoners had no longer access to the chimneys.

Among the escapes still remembered was one in 1849, accomplished by a man who had been employed working at the roof of the chapel on the female side. He was engaged in whitewashing and cleaning; the officer who had him in charge left him on the stairs leading to the gallery. Taking advantage of being unobserved, he got out through the roof on to the leads, and travelled along them towards No. 1, Newgate Street. This was a public-house. He stepped in at a garret window, coolly walked downstairs, and entered the bar. They asked him how he had cut his hand, which was bleeding, and he said he had done it while working up on the roof. No further notice was taken of him; no one seemingly suspected that he was a prisoner, and he was suffered to walk off without let or hindrance.

In 1853 three men escaped in company from one of the wards in the middle yard. They were penal servitude men, their names Bell, Brown, and Barry, and they were awaiting transfer to Leicester, which with Wakefield was utilized as a receptacle for convicts not going to Western Australia, or any of the new establishments at home, at Portland, Dartmoor, or elsewhere.

These men managed to cut a hole in the ceiling of the ward near the iron cage^[119] on the landing, and so got access to the roof. At that time rope mats were still used as beds. One of the three, shamming ill, remained all day in his ward, where he employed himself unravelling the rope from the sleeping-mats. By evening he manufactured a good long length, and after all was quiet the three got on to the roof through the hole, and so on to Tyler's manufactory close by, whence they let themselves down into the street by the rope. These men were all in prison dress at the time of their escape, but one of their number, Bell, sent back his clothes a few days later by parcel's delivery, with a civil note to the governor, saying he had no further use for them. All three fugitives were recaptured, Brown almost at once; then Barry, who was taken at the East End in a public-house where he had arranged to meet a pal. The Newgate officers obtained information of this, and went to the spot, where they effected the capture, but not till they had had an exciting chase down the street. The third, Bell, remained longest at large. He too was run into at a lodging in the Kingsland Road. The officers dropped on to him while he was still in bed, but as they came upstairs he jumped up and hid in a cupboard. All three after recapture passed on, as originally intended, to Leicester, where they did their "bit"^[120] and were released; but only to be taken soon afterwards for a fresh offence, and again pass through Newgate with sentences of penal servitude.

A later case was still more remarkable, as it was effected after the alteration of the prison and its reconstruction on the newest lines. A sailor, Krapps by name, occupied one of the upper cells in the new block. The doors, through incomplete knowledge of prison needs, were not, as now, sheeted with iron. The prisoner had nothing to deal with but wooden panels, and by dint of cutting and chopping he got both the lower panels out. Through the aperture he crept out on to the landing at the dead of night, and so down into the central space of the building. Under superior orders all the doors and gates of this block were left open at night, to allow the night watchman to pass freely to all parts. This was considered safer than intrusting him with keys. Krapps walked at once into the yard and across to the female side, where he found some of the washing still hanging out to dry. He made a strong rope with several of the sheets; then, returning to the male yard, got hold of the step ladder used in lighting the gas, and which under our more careful supervision would have been, as now-a-days, chained up. Cutting the cord which fastened the two legs of the step ladder,

he opened them out and made one long length; with this, placed against the wall near the chevaux-de-frise, he made an escalade. The top of the wall was gained without difficulty. Along this Krapps crawled, and then dropped down on to the cook-house. He now put in requisition the rope made of the sheets, and with its help lowered himself into the street. Down below were market-carts waiting for daylight, and among them Krapps found a refuge and friends. The first intimation of his escape was afforded by the police, who informed the prison authorities next day that a rope was hanging down from the cook-house roof. Nothing more was heard of Krapps. The curious thing in his case was that his offence was a trifling one; he was still untried, but would almost certainly have escaped with a minor penalty, say of three or four months' imprisonment. There is, however, no explanation of the motives which prompt prisoners to attempt escapes. Cases well authenticated have been known of men who had all but completed their sentences, and for whom the prison gates would open within a few days, who yet faced extraordinary risks to advance their enlargement by only a few hours. On the other hand, at the great convict establishments, such is the moral restraint of a systematic discipline, that numbers of men, "lifers," and others with ten, fourteen, or twenty years to do, can be trusted to work out of doors without bolts and bars at a distance from the prison.

The last escape from Newgate was only three years ago, and occurred just before the final closing of the prison. No report of it was made public, as the man was almost immediately recaptured. He was at work under the supervision of the artisan warder of the prison, who permitted him to go up on to the roof of the old wards, in order to throw water for flushing purposes down a shoot. He was out of sight while so employed, and remained so long absent that the warder, becoming uneasy, went in search of him. He had disappeared. Encouraged by the shouts and signals of some workmen employed on a building outside, the prisoner made one of the most marvellous jumps on record, from the building he was on to a distant wall, with a drop of sixty feet between. Then he ran along the coping of the wall towards its angle with Tyler's manufactory, and dropped down on to the gridiron below. This was not strong enough to carry him, and he fell through.

Suicides and executions were, however, always the most effectual methods of making exit from durance. Suicides at Newgate were numerous enough, but they seldom possessed any novel or unusual features; prison

suicides seldom do, except as regards ingenuity and determination. Only great resolution indeed, persisted in to the bitter end, would make death a certainty, so limited and imperfect are the means generally available. When a bit of rope carefully secreted, braces, shoe-strings, shirt torn into strips are the only instruments, and a bar or small hook at no elevation affords the only drop, strangulation would seldom supervene but for the resolution of the miserable *felo de se*. One curious instance of a suicide carried out under the most adverse and extraordinary circumstances may be quoted. It was that of a “Long Firm” swindler, by name Johnson, who contrived to hang himself from a hammock hook only eighteen inches from the ground. The noose was one of his hammock straps, which he buckled round his throat. Having carefully spread out a blanket on the floor just below the hammock as it lay suspended, he fastened one end of the strap above mentioned to the hook, and then fell down. He might have saved himself at any moment by merely extending an arm; but he lay there patiently till death supervened. When discovered next morning, quite dead, it was found that the strap actually did not touch his throat; three fingers might have been inserted between it and the flesh; the pressure was all on the arteries behind the ears, and surgical opinion stated that the stoppage of circulation was the cause of death. Probably dissolution came as easily and almost without pain.

A laudable desire to invest executions with more and more solemnity and decorum gained ground as they became more rare. As more humane principles were introduced into prison management, greater attention was paid to the capital convicts, and the horrors of their situation while awaiting sentence were as far as possible mitigated and toned down. But there was little improvement in the ceremony itself. There were still untoward accidents occasionally at executions, and even the chief practitioner of recent times, Calcraft, was not always to be trusted to do his fell work efficiently.

Having mentioned Calcraft’s name, I may be permitted to digress for a moment to give a few particulars concerning the last officially appointed hangman of the city of London. After Calcraft’s resignation no successor was really appointed. Marwood, whose name is so familiar with the present generation, had no official status, and was merely an operator selected by the Corporation, and who, on the strength of it, contracted with sheriffs and conveners to work by the job. But Calcraft regularly succeeded Foxen, who followed Botting, and Dennis, the actor in the 1780 riots. Calcraft was born

at Baddow, in Essex, in 1800; he was a shoemaker by trade, and settled in London after his marriage in 1825. The story goes, that about 1828 his attention was drawn early one morning to a man who leant against a lamp-post in Finsbury Square, coughing violently. Calcraft, who, in spite of the dreadful calling he subsequently followed, was always reputed a kindly man, invited the man with the cough to enter a neighbouring house and try a little peppermint for it. The other accepted, and they got into conversation. He told Calcraft that he was Foxen the executioner, and that he was that moment on his way to Newgate to hang a man, but that his cough was getting so much the master of him that he feared he would not be able to carry on his duties much longer. "I have no idea who the sheriffs will get to do the work after me," said Foxen, adding that his assistant, Tom Cheshire, was given to drink, and not to be trusted. "I think I could do that sort of job," said Calcraft, on the spur of the moment. Foxen asked him his name and address, and went away. Calcraft thought no more of what had occurred till the next sessions at the Old Bailey, when the sheriffs sent for him, and offered him the post of executioner for the city of London and Middlesex. He accepted, having at first Tom Cheshire as his assistant, then for a time, when Cheshire was dismissed for drunkenness, a man named Osborne. After that he worked alone.

I cannot find that Calcraft was sworn in when appointed, or any exact information when the old forbidding ceremony ceased to be practised. It was customary to make the executioner take the Bible in his hand, and swear solemnly that he would despatch every criminal condemned to die, without favouring father or mother or any other relation or friend. When he had taken the oath he was dismissed with the words, "Get thee hence, wretch!"

Calcraft's emoluments were a guinea per week, and an extra guinea for every execution. He got besides half-a-crown for every man he flogged, and an allowance to provide cats or birch rods. For acting as executioner of Horsemonger Lane Gaol he received a retaining fee of £5 5s., with the usual guinea for each job; he was also at liberty to engage himself in the country, where he demanded and was paid £10 on each occasion. It was not always easy to get a hangman so cheap, as I have already indicated on a previous page. The onus and responsibility of carrying out the sentence is personal to the sheriff. A good story is told illustrating this. Some wags in Scotland seized Calcraft and kept him in durance the night before the execution.

Meanwhile the convener or sheriff was in despair, expecting that, failing the executioner, he would have to do the job himself. But, fortunately for him, just at the last moment Calcraft was set free.

Calcraft's salary was more than the proverbial "thirteenpence halfpenny—hangman's wages." The origin of this expression dates, it is said, from the time when the Scottish mark, a silver coin bearing the same relation to the Scottish pound that an English shilling does to an English pound, was made to pass current in England. The mark was valued at thirteenpence halfpenny, or rather more than the shilling, which from time immemorial had been the hangman's wages. That very ancient perquisite the convict's clothes was never claimed by Calcraft, and it may be doubted whether he was entitled to it. On one particular occasion, however, he got them. A gentleman whose sins brought him to the gallows at Maidstone wished to do Calcraft a good turn, and sent to his London tailor for a complete new suit, in which he appeared at his execution. He expressly bequeathed them to Calcraft, who was graciously pleased to accept them. On another occasion an importunate person begged Calcraft eagerly to claim his right to the clothes, and give them to him. Calcraft consented, got and bestowed the clothes, only to find that the person he had obliged exhibited them publicly. It may be added that of late years the clothes in which a convict has suffered are invariably burnt. Capital convicts go to the gallows in their own clothing, and not in prison dress, unless the former is quite unfit to be worn.

Calcraft shared the odium which his office, not strangely, has always inspired. But he was admitted into the gaol, which his predecessors were not, and who were paid their wages over the gate to obviate the necessity for letting them enter. To this curious etiquette was due the appointment of an official whose office has long since disappeared, "the yeoman of the halter," whose business it was to provide the rope and do the pinioning, and who was paid a fee of five shillings. They did not dislike Calcraft, however, at Newgate. He was an illiterate, simple-minded man, who scarcely remembered what executions he had performed. He kept no record of them, and when asked questions, referred to the officers of the gaol. His nature must have been kindly. When he came to the prison for his wages his grandchildren often accompanied him, affectionately clinging to his hands; and he owned a pet pony which would follow him about like a dog. In his own profession he was not unskilful, but he proceeded entirely by rule of thumb,

leaving the result very much to chance and the strength of the rope. He was so much in favour of short drops that his immediate successor, Marwood, stigmatized him as a “short-drop” man; Marwood being, on the other hand, in favour of giving a man as much rope as possible. With Calcraft’s method there were undoubtedly many failures, and it was a common custom for him to go below the gallows “just to steady their legs a little;” in other words, to add his weight to that of the hanging bodies. Marwood till latterly seemed to have done his work more effectually, and has been known to give as much as six feet fall. This generally produces instantaneous death, although cases where complete fracture of the spinal cord occurred are said to be rare.

Calcraft served the city of London till 1874, when he was pensioned at the rate of twenty-five shillings per week. The last execution at which he acted was that of Godwin, on the 25th May, 1874.

Marwood, who succeeded him, and who died while these sheets were in the press, was a Lincolnshire man, a native of Horncastle, who first took to the work from predilection, and the idea of being useful in his generation, as he himself assured the writer of these pages. Until the time of his death he kept a small shop close to the church in Horncastle. Over the door, in gilt letters, were the words “Crown Office”; in the window was a pile of official envelopes, ostentatiously displayed, while round about were shoe-strings, boot-laces, and lasts. Marwood, strange to say, followed the same trade as Calcraft. Marwood was proud of his calling, and when questioned as to whether his process was satisfactory, replied that he heard “no complaints.” The strange competition amongst hundreds to succeed Marwood is a strange fact too recently before the public to need mention here. It may, however, be remarked that the wisdom of appointing any regular hangman is very open to question, and must be strongly deprecated on moral grounds, as tending to the utter degradation of one individual. Possibly such changes may be introduced into the method of execution that the ceremony may be made more mechanical, thus rendering the personal intervention of a skilled functionary unnecessary.

Executions long continued to be in public, in spite of remonstrance and reprobation. The old prejudices, such as that which enlisted Dr. Johnson on the side of the Tyburn procession, still lingered and prevented any change. It was thought that capital punishment would lose its deterrent effect if it ceased to be public, and the *raison d’être* of the penalty, which in principle

so many opposed, would be gone. This line of argument prevailed over the manifest horrors of the spectacle. These increased as time passed. The graphic and terrible account given by Charles Dickens of the awful scene before Horsemonger Lane Gaol, at the execution of the Mannings, has already been quoted. Again, the concourse of people collected in front of Newgate to witness the execution, simultaneously, of the five pirates, part of the mutinous crew of the 'Flowery Land,' was greater than on any previous occasion. It was a callous, careless crowd of coarse-minded, semi-brutalized folk, who came to enjoy themselves. Few, if any, showed any feeling of terror, none were impressed with the solemnity, or realized the warning which the sight conveyed. The upturned faces of the eager spectators resembled those of the 'gods' at Drury Lane on Boxing Night; the crowd had come to witness a popular and gratuitous public performance—better than a prize-fight or a play. No notion that they were assisting at a vindication of the law filled the minds of those present with dread. On the contrary, the prevailing sentiment was one of satisfaction at the success of the spectacle. The remarks heard amongst the crowd were of coarse approval. "S'help me, ain't it fine?" one costermonger was heard to exclaim to his companion. "Five of them, all darkies in a row!" The reply evinced equal satisfaction, and the speaker, with a profane oath, declared that he would like to act as Jack Ketch to the whole lot.

To the disgrace of the better-educated and better-bred public, executions could still command the attendance of curious aristocrats from the West End. At Müller's execution there was great competition for front seats, and the windows of the opposite houses, which commanded a good view, as usual fetched high prices. As much as £25 was paid for a first-floor front on this occasion. Never, indeed, had an execution been more generally patronized. This is proved by contemporary accounts, especially one graphic and realistic article which appeared in the 'Times,' and which contributed in no small degree to the introduction of private executions. A great crowd was expected, and a great crowd came. They collected over night in the bright light of a November moon. "There were well-dressed and ill-dressed, old men and lads, women and girls." Rain fell heavily at intervals, but did not thin the concourse. "Till three o'clock it was one long revelry of songs and laughter, shouting, and often quarrelling, though, to do them mere justice, there was at least till then a half-drunken ribald gaiety among the crowd that made them all akin." There were preachers among

the crowd, but they could not get a patient hearing. Then one struck up the hymn of the Promised Land, and the refrain was at once taken up with a mighty chorus—

“Oh, my!
Think I’ve got to die.”

This was presently superseded by a fresh catch—

“Müller, Müller,
He’s the man”;

till a diversion was created by the appearance of the gallows, which was received with continuous yells. As day broke the character of the crowd was betrayed. There were but few women, except of the most degraded sort; the men were mostly young men—“sharpers, thieves, gamblers, betting men, the outsiders of the boxing ring, bricklayers’ labourers, dock workmen, German artisans and sugar-bakers, ... with the rakings of cheap singing-halls and billiard-rooms, the fast young men of London. But all, whether young or old, men or women, seemed to know nothing, feel nothing, to have no object but the gallows, and to laugh, curse, or shout, as in this heaving and struggling forward they gained or lost in their strong efforts to get nearer where Müller was to die.” The actual execution made some impression. The crowd was for a moment awed and stilled by the quiet rapid passage from life to death! But before “the slight slow vibrations of the body had well ended, robbery and violence, loud laughing, oaths, fighting, obscene conduct, and still more filthy language reigned round the gallows far and near. Such too the scene remained with little change or respite till the old hangman (Calcraft) slunk again along the drop, amid hisses and sneering inquiries of what he had had to drink that morning. He, after failing once to cut the rope, made a second attempt more successfully, and the body of Müller disappeared from view.”^[121]

It was preposterous to claim for such a scene as this that it conveyed any great moral lesson, or had any deterring influence. Numbers of humane and thoughtful persons had long been convinced of this. Already the urgent necessity for abolishing public executions had been brought before the House of Commons by Mr. Hibbert, and the question, as part of the whole subject of capital punishment, had been referred to a royal commission in January 1864. Full evidence was taken on all points, and on that regarding

public executions there was a great preponderance of opinion towards their abolition, yet the witnesses were not unanimous. Some of the judges would have retained the public spectacle; the ordinary of Newgate was not certain that public executions were not the best. Another distinguished witness feared that any secrecy in the treatment of the condemned would invest them with a new and greater interest, which was much to be deprecated. Foreign witnesses, too, were in favour of publicity. On the other hand, Lords Cranworth and Wensleydale recommended private executions; so did Mr. Spencer Walpole, M.P. Sir George Grey thought there was a growing feeling in favour of executions within the prison precincts. Colonel (now Sir Edmund) Henderson was strongly in favour of them, based on his experience of them in Western Australia. He not only thought them likely to be more deterrent, but believed that a public ceremony destroyed the whole value of an execution. Other officials, great lawyers, governors of prisons, and chaplains supported this view. The only doubts expressed were as to the sufficiency of the safeguards, as to the certainty of death and its subsequent publication. But these, it was thought, might be provided by the admission of the press and the holding of a coroner's inquest.

Duly impressed with the weight of evidence in favour of abolition, the commission recommended that death sentences should be carried out within the gaol, "under such regulations as might be considered necessary to prevent abuse, and satisfy the public that the law had been complied with." But it is curious to note that there were several dissentients among the commissioners to this paragraph of the report. The judge of the Admiralty Court, the Right Hon. Stephen Lushington, the Right Hon. James Moncrieff, Lord Advocate, Mr. Charles Neate, Mr. William Ewart, and last, but not least, Mr. John Bright declared that they were not prepared to agree to the resolution respecting private executions. Nevertheless, in the very next session a bill was introduced by Mr. Hibbert, M.P., and accepted by the Government, providing for the future carrying out of executions within prisons. It was read for the first time in March 1866, but did not become law till 1868.

The last public execution in front of Newgate was that of the Fenian Michael Barrett, who was convicted of complicity in the Clerkenwell explosion, intended to effect the release of Burke and Casey from Clerkenwell prison, by which many persons lost their lives. Unusual precautions were taken upon this occasion, as some fresh outrage was

apprehended. There was no interference with the crowd, which collected as usual, although not to the customary extent. But Newgate and its neighbourhood was carefully held by the police, both city and metropolitan. In the houses opposite the prison numbers of detectives mixed with the spectators; inside the gaol was Colonel Frazer, the chief commissioner of the city police, and at no great distance, although in the background, troops were held in readiness to act if required. Everything passed off quite quietly, however, and Calcraft, who had been threatened with summary retribution if he executed Barrett, carried out the sentence without mishap. The sufferer was stolid and reticent to the last.

The first private execution under the new law took place within the precincts of Maidstone Gaol. The sufferer was a porter on the London, Chatham, and Dover railway, sentenced to death for shooting the station-master at Dover. The ceremony, which was witnessed by only a few officials and representatives of the press, was performed with the utmost decency and decorum. The fact that the execution was to take place within the privacy of the gloomy walls, a fact duly advertised as completed by the hoisting of the black flag over the gaol, had undoubtedly a solemn, impressive effect upon those outside. The same was realized in the first private execution within Newgate, that of Alexander Mackay, who murdered his mistress at Norton Folgate by beating her with a rolling-pin and furnace-rake, and who expiated his crime on the 8th September, 1868. A more marked change from the old scene can hardly be conceived. Instead of the roar of the brutalized crowd, the officials spoke in whispers; there was but little moving to and fro. Almost absolute silence prevailed until the great bell began to toll its deep note, and broke the stillness with its regular and monotonous clangour, and the ordinary, in a voice trembling with emotion, read the burial service aloud. Mackay's fortitude, which had been great, broke down at the supreme moment before the horror of the stillness, the awful impressiveness of the scene in which he was the principal actor. No time was lost in carrying out the dread ceremony; but it was not completed without some of the officials turning sick, and the moment it was over, all who could were glad to escape from the last act of the ghastly drama at which they had assisted.

Private executions at their first introduction were not popular with the Newgate officials, and for intelligible reasons. The change added greatly to the responsibilities of the governor and his subordinates. Hitherto the public

had seemed to assist at the ceremony; the moment too that the condemned man had passed through the debtors' door on to the scaffold the prison had done with him, and the great outside world shared in the completion of the sacrifice. This feeling was the stronger because all the ghastly paraphernalia, the gallows itself and the process of erecting and removing it, rested with the city architect, and not with the prison officials. Moreover, after the execution, under the old system, the latter had only to receive the body for burial after it had been cut down by the hangman, and placed decently in a shell by the workmen who removed the gallows. Under the new system the whole of the arrangements from first to last fell upon the officers. It was they who formed the chief part of the small select group of spectators; upon them devolved the painful duty of cutting down the body and preparing for the inquest. All that the hangman, whoever he may be, does under the new regime is to unhook the halter and remove the pinioning straps. The interment in a shell filled with quicklime in the passage-way leading to the Old Bailey is also a part of the duty of the prison officials. This strange burial-ground is one of the most ghastly of the remaining "sights" in Newgate. It was sometimes used as an exercising yard, and for the greater security of prisoners it is roofed in with iron bars which gives it, at least overhead, the aspect of a huge cage. Underfoot and upon the walls roughly cut into the stones, are single initial letters, the brief epitaphs of those who lie below. As this burial-ground leads to the adjacent Central Criminal Court, accused murderers, on going to and returning from trial, literally walked over what, in case of conviction, would be their own graves.

The older officers, with several of whom I have conversed, have thus had unusual opportunities of watching the demeanour of murderers both before trial and after sentence. All as a rule, unless poignant remorse has brought a desire to court their richly-merited retribution, are buoyed up with hope to the last. There is always the chance of a flaw in the indictment, of a missing witness, or extenuating circumstances. Even when in the condemned cell, with a shameful death within measurable distance, many cling still to life, expecting much from the intercession of friends or the humanitarianism of the age. All almost without exception sleep soundly at night, except the first after sentence, when the first shock of the verdict and the solemn notification of the impending blow keeps nearly all awake, or at least disturbs their night's rest. But the uneasiness soon wears off. The

second night sleep comes readily, and is sound; many of the most abandoned murderers snore peacefully their eight hours, even on the night immediately preceding execution. All too have a fairly good appetite, and eat with relish, up to the last moment. A few go further, and are almost gluttonous. Giovanni Lanni, the Italian boy who murdered a Frenchwoman in the Haymarket, and was arrested on board ship just as he was about to leave the country, had a little spare cash, which he devoted entirely to the purchase of extra food. He ate constantly and voraciously after sentence, as though eager to cram as many meals as possible into the few hours still left him to live. Jeffrey, who murdered his own child, an infant of six, by hanging him in a cellar in Seven Dials, called for a roast duck directly he entered the condemned cell. The request was not granted, as the old custom of allowing capital convicts whatever they asked for in the way of food has not been the rule in Newgate. The diet of the condemned is the ordinary diet of the prison, but to which additions are sometimes made, chiefly of stimulants, if deemed necessary, by the medical officer of the gaol. The craving for tobacco which so dominates the habitual smoker often leads the convicted to plead hard for a last smoke. As a special favour Wainwright was allowed a cigar the night before execution, which he smoked in the prison yard, walking up and down with the governor, Mr. Sydney Smith.

Wainwright's demeanour was one of reckless effrontery steadily maintained to the last. His conversation turned always upon his influence over the weaker sex, and the extraordinary success he had achieved. No woman could resist him, he calmly assured Mr. Smith that night as they walked together, and he recounted his villanies one by one. His effrontery was only outdone by his cool contempt for the consolations of religion. The man who had made a pious life a cloak for his misdeeds, the once exemplary young man and indefatigable Sunday School teacher, went impenitent to the gallows. The only sign of feeling he showed was in asking to be allowed to choose the hymns on the Sunday the condemned sermon was preached in the prison chapel, and this was probably only that he might hear the singing of a lady with a magnificent voice who generally attended the prison services. During the singing of these hymns Wainwright fainted, but



Execution Shed (1883)

whether from real emotion or the desire to make a sensation was never exactly known. On the fatal morning he came gaily out of his cell, nodded pleasantly to the governor, who stood just opposite, and then walked briskly towards the execution shed, smiling as he went along. There was a smile on his face when it was last seen, and just as the terrible white cap was drawn over it. Wainwright's execution was within the gaol, but only nominally private. No less than sixty-seven persons were present, admitted by special permission of the sheriff. Rumour even went so far as to assert that among the spectators were several women, disguised in male habiliments; but the story was never substantiated, and we may hope that it rested only on the idle gossip of the day.

Many, like Wainwright, were calm and imperturbable throughout their trying ordeal. Catherine Wilson, the poisoner,^[122] was reserved and reticent to the last, expressing no contrition, but also no fear—a tall, gaunt, repulsive-looking woman, who no more shrank from cowardly, secret crimes than from the penalty they entailed. Kate Webster, who was tried at

the Central Criminal Court, and passed through Newgate, although she suffered at Wandsworth, is remembered at the former prison as a defiant, brutal creature who showed no remorse, but was subject to fits of ungovernable passion, when she broke out into language the most appalling. The man Marley^[123] displayed fortitude of a less repulsive kind. He acknowledged his guilt from the first. When the sheriff offered him counsel for his defence, he declined, saying he wished to make none—"the witnesses for the prosecution spoke the truth." During the trial and after sentence he remained perfectly cool and collected. When visited one day in the condemned cell, just as St. Sepulchre's clock was striking, he looked up and said laughingly, "Go along, clock; come along, gallows." He tripped up the chapel-stairs to hear the condemned sermon, and came out with cheerful alacrity on the morning he was to die.

Some condemned convicts converse but little with the warders who have them unceasingly in charge. Others talk freely enough on various topics, but principally upon their own cases. When vanity is strongly developed there is the keen anxiety to hear what is being said about them outside. One was vexed to think that his victims had a finer funeral than he would have. The only subject another showed any interest in was the theatres and the new pieces that were being produced. A third, Christian Sattler, laughed and jested with the officers about "Jack Ketch," who, through the postponement of the execution, would lose his Christmas dinner. When they brought in the two watchers to relieve guard one night, Sattler said, "Two fresh men! May I speak to them? Yes! I must caution you," he went on to the warders, "not to go to sleep, or I shall be off through that little hole," pointing to an aperture for ventilating the cell. On the morning of execution he asked how far it was to the gallows, and was told it was quite close. "Then I shall not wear my coat," he cried; "Jack Ketch shall not have it," being under the erroneous impression that the convict's clothes were still the executioner's perquisite.

Often the convicts give way to despair. They are too closely watched to be allowed to do themselves much mischief, or suicides would probably be more frequent. But it is neither easy to obtain the instruments of self-destruction nor to elude the vigilance of their guard. The man, Bousfield, however, whose execution was so sadly bungled,^[124] made a determined effort to burn himself to death by throwing himself bodily on to the fire in the condemned ward. He was promptly rescued from his perilous condition,

but not before his face and hands were badly scorched. They were still much swollen when he was led out to execution. Miller, the Chelsea murderer, who packed his victim's body in a box, and tried to send it by parcels delivery, tried to kill himself, but ineffectively, by running his head against his cell wall. A few other cases of the kind have occurred, but they have been rare of late years, whether in Newgate or elsewhere.

CHAPTER X.

NEWGATE NOTORIETIES.

Latest records of crimes—Poisoning, revived and more terrible—Palmer's case—His trial at the Central Criminal Court, and demeanour in Newgate—His imitators—Dove—Dr. Smethurst—Catherine Wilson—Dr. Taylor's opinion that poisoning very prevalent—Piracy and murder—The 'Flowery Land'—Arrest of the mutineers—Their trial and sentence—Details of their behaviour while in Newgate—Murder of Mr. Briggs in a railway carriage—How brought home to Müller—Pursuit of murderer and his arrest in New York—Müller's conviction—His protest against justice of sentence—Confesses guilt when rope is actually round his neck—Christian Sattler murders a police Inspector—Latest frauds and robberies—The forgeries of Wagner, Bateman, and others—Principal forger, an aged man, Kerp, escapes arrest—Robbery of Bank of England bank-note paper at Tavistock—Reward offered—Arrests made, followed by expressions which lead to capture of whole gang—Buncher and Griffiths sentenced—Cummings acquitted: his delight—Cummings an adroit and inveterate coiner.

As these records draw to a close, the crimes I chronicle become so much more recent in date that they will be fresh in the memory of most of my readers. Nevertheless, in order to give completeness to the picture I have attempted to draw of crime in connection with Newgate, from first to last, I must make some mention, in this my penultimate chapter, of some of the most heinous offences of modern times.

The crime of poisoning has always been viewed with peculiar loathing and terror in this country. It will be remembered that as far back as the reign of Henry VIII. a new and most cruel penalty was devised for the punishment of the Bishop of Rochester's cook, who had poisoned his master and many of his dependents. Sir Thomas Overbury was undoubtedly poisoned by Lord Rochester in the reign of James I., and it is hinted that James himself nearly fell a victim to a nefarious attempt of the Duke of Buckingham. But secret poisoning on a wholesale scale such as was practised in Italy and France was happily never popularized in England. The well-known and lethal aqua Toffania, so called after its inventress, a Roman woman named Toffana, and which was so widely adopted by ladies anxious to get rid of their husbands, was never introduced into this country. Its admission was probably checked by the increased vigilance at the custom houses, the necessity for which was urged by Mr. Addison, when Secretary of State, in 1717. The cases of poisoning in the British calendars are rare, nor indeed was the guilt of the accused always clearly established. It is quite possible that Catherine Blandy, who poisoned her father at the instigation of her lover, was ignorant of the destructive character of the powders, probably arsenic, which she administered. Captain Donellan, who was convicted of poisoning his brother-in-law, Sir Theodosius Broughton, and executed for it, would probably have had the benefit in these days of

the doubts raised at his trial. A third case, more especially interesting to us as having passed through Newgate, was that of Eliza Fenning, who was convicted of an attempt to poison a whole family by putting arsenic in the dumplings she had prepared for them. The charge rested entirely on circumstantial evidence, and as Fenning, although convicted and executed, protested her innocence in the most solemn manner to the last, the justice of the sentence was doubted at the time. Yet it was clearly proved that the dumplings contained arsenic, that she, and she alone, had made the dough, that arsenic was within her reach in the house, that she had had a quarrel with her mistress, and that the latter with all others who tasted the dumplings were similarly attacked, although no one died.

The crime of poisoning is essentially one which will be most prevalent in a high state of civilization, when the spread of scientific knowledge places nefarious means at the disposal of many, instead of limiting them, as in the days of the Borgias and Brinvilliers, to the specially informed and unscrupulously powerful few. The first intimation conveyed to society of the new terror which threatened it was in the arrest and arraignment of William Palmer, a medical practitioner, charged with doing to death persons who relied upon his professional skill. The case contained elements of much uncertainty, and yet it was so essential, in the interests and for the due protection of the public, that the fullest and fairest inquiry should be made, that the trial was transferred to the Central Criminal Court, under the authority of an Act passed on purpose, known as the Trial of Offences Act, and sometimes as Lord Campbell's Act. That the administration of justice should never be interfered with by local prejudice or local feeling is obviously of paramount importance, and the powers granted by this Act have been frequently put in practice since. The trial of Catherine Winsor, the baby farmer, was thus brought to the Central Criminal Court from Exeter assizes, and that of the Stauntons from Maidstone.

Palmer's trial caused the most intense excitement. The direful suspicions which surrounded the case filled the whole country with uneasiness and misgiving, and the deepest anxiety was felt that the crime, if crime there had been, should be brought home to its perpetrator. The Central Criminal Court was crowded to suffocation. Great personages occupied seats upon the bench; the rest of the available space was allotted by ticket, to secure which the greatest influence was necessary. People came to stare at the supposed cold-blooded prisoner; with morbid curiosity to scan his features

and watch his demeanour through the shifting, nicely-balanced phases of his protracted trial. Palmer, who was only thirty-one at the time of his trial, was in appearance short and stout, with a round head covered rather scantily with light sandy hair. His skin was extraordinarily fair, his cheeks fresh and ruddy; altogether his face, though commonplace, was not exactly ugly; there was certainly nothing in it which indicated cruel cunning or deliberate truculence. His features were not careworn, but rather set, and he looked older than his age. Throughout his trial he preserved an impassive countenance, but he clearly took a deep interest in all that passed. Although the strain lasted fourteen days, he showed no signs of exhaustion, either physical or mental. On returning to gaol each day he talked freely and without reserve to the warders in charge of him, chiefly on incidents in the day's proceedings. He was confident to the very last that it would be impossible to find him guilty; even after sentence, and until within a few hours of execution, he was buoyed up with the hope of reprieve. The conviction that he would escape had taken so firm a hold of him, that he steadily refused to confess his guilt, lest it should militate against his chances. In the condemned cell he frequently repeated, "I go to my death a murdered man." He made no distinct admissions even on the scaffold; but when the chaplain at the last moment exhorted him to confess, he made use of the remarkable words, "If it is necessary for my soul's sake to confess this murder,^[125] I ought also to confess the others: I mean my wife and my brother's." Yet he was silent when specifically pressed to confess that he had killed his wife and his brother.

Palmer was ably defended, but the weight of evidence was clearly with the prosecution, led by Sir Alexander Cockburn, and public opinion at the termination of the trial coincided with the verdict of the jury. Originally a doctor in practice at Rugeley, in Staffordshire, he had gradually withdrawn from medicine, and devoted himself to the turf; but his sporting operations did not prosper, and he became a needy man, always driven to desperate straits for cash. To meet his liabilities, he raised large sums on forged bills of acceptance drawn upon his mother, a woman of some means, whose signature he counterfeited. In 1854 he owed a very large sum of money, but he was temporarily relieved by the death of his wife, whose life he had insured for £13,000. There is every reason to suppose that he poisoned his wife to obtain possession of this sum upon her death. His brother was supposed to have been his next victim, upon whose life he had also effected

an insurance for another £13,000. The brother too died conveniently, but the life office took some exception to the manner of the death, and hesitated to disburse the funds claimed by Palmer. After this Palmer tried to get a new insurance on the life of a hanger-on, one Bates, but no office would accept it, no doubt greatly to Bates's longevity.

Meanwhile the bill discounters who held the forged acceptances, with other promissory notes, began to clamour for payment, and talk of issuing writs. Palmer, alive to the danger he ran of a prosecution for forgery, should the fraud he had committed be brought to light, sought about for a fresh victim to supply him with funds. He fixed upon a sporting friend, Mr. John Parsons Cook, who had been in luck at Shrewsbury races, both as a winner and a backer, whom he persuaded to go and stay at Rugeley in an hotel just opposite his own house. It was there that Cook was first taken ill with violent retchings and vomitings, all dating from visits of Palmer, who brought him medicines and food. Palmer's plan was to administer poison in quantities insufficient to cause death, but enough to produce illness which would account for death. For this purpose he gave, or there was the strongest presumption that he gave, antimony, which caused Cook's constant sickness. Quantities of antimony were found in the body after death. While Cook lay ill, Palmer in his name pocketed the proceeds of the Shrewsbury settling, and so got the money for which he was prepared to barter his soul. The last act now approached, and in order to avoid the detection of this last fraud, Palmer laid his plans for disposing of Cook. He decided to use strychnia, or the vegetable poison otherwise known as *nux vomica*; and one of the many links in the long chain of evidence was an entry in a book of Palmer's to the effect that "strychnia kills by causing tetanic fixing of the respiratory muscles."

The purchase by Palmer of strychnia was proved. The night he bought it, Cook, who had been taking certain pills under medical advice, not Palmer's, was seized with violent convulsions. He had swallowed his pills as usual, at least Palmer had administered them—whether the ordinary or his own pills will never be known, except as may be inferred from the results, which indicate that he had taken the latter. Cook recovered this time; it was probably Palmer's intention that he should recover, wishing to encourage the supposition that Cook was in a bad way. Next night Cook had a second and a more violent attack. That day Palmer had bought more strychnia, and had called in a fresh doctor. The second attack was fatal, and ended in

Cook's death from tetanus. This tetanus, according to the prosecution, was produced by strychnia, and followed the administration of pills by Palmer prescribed nominally by the fresh doctor, for which Palmer had substituted his own. Cook's death was horrible—fearful paroxysms and cramps, ending in suffocation by the tetanic rigour which caught the muscles of the chest.

After Cook's death his stepfather, who was much attached to him, came to Rugeley. He was struck with the appearance of the corpse, which was not emaciated, as after a long disease ending in death; while the muscles of the fingers were tightly clenched, not open, as usual in a corpse. He said nothing, but began to feel uneasy when he found that Cook's betting-book was missing, and that Palmer put it forward that his friend had died greatly embarrassed, with bills to the amount of £4000 out in his name. Palmer too showed an indecent haste in preparing the body for interment, and in obtaining the usual certificate. After this the step-father insisted upon a post-mortem, which was conducted somewhat carelessly. The intestines were, however, preserved and sent for analysis, but it was proved that Palmer tried hard to get possession of the jar containing them, and even sought to upset the vehicle by which they were being conveyed a part of the way to London. The examination of the stomach betrayed the presence of antimony in large quantities, but no strychnia, and it was on the entire absence of the latter that the defence was principally based when Palmer was brought to trial. All the circumstances were so suspicious that he could not escape the criminal charge. He had already been arrested on a writ issued at the instance of the money-lenders, and an action had been commenced against Mrs. Palmer on her acceptances. It came out at once that these had been forged, and the whole affair at once took the ugliest complexion. A government prosecution was instituted, and Palmer was brought to Newgate for trial at the Central Criminal Court. There was not much reserve about him when there. He frequently declared before and during the trial that it would be impossible to find him guilty. He never actually said that he was not guilty, but he was confident he would not be convicted. He relied on the absence of the strychnia. But the chain of circumstantial evidence was strong enough to satisfy the jury, who agreed to their verdict in an hour. At the last moment Palmer tossed a bit of paper over to his counsel, on which he had written, "I think there will be a verdict of Not Guilty." Even after the death sentence had been passed upon him he clung to the hope that the Government would grant him a reprieve. To the

last, therefore, he played the part of a man wrongfully convicted, and did not abandon hope even when the high sheriff had told him there was no possibility of a reprieve, and within a few hours of execution. He suffered at Stafford in front of the gaol.

Palmer speedily found imitators. Within a few weeks occurred the Leeds poisoning case, in which the murderer undoubtedly was inspired by the facts made public at Palmer's trial. Dove, a fiendish brute, found from the evidence in that case that he could kill his wife, whom he hated, with exquisite torture, and with a poison that would leave, as he thought, no trace. In the latter hope he was happily disappointed. But as this case is beyond my subject, I merely mention it as one of the group already referred to. Three years later came the case of Dr. Smethurst, presenting still greater features of resemblance with Palmer's, for both were medical men, and both raised difficult questions of medical jurisprudence. In both the jury had no doubt as to the guilt of the accused, only in Smethurst's case the then Home Secretary, Sir George Cornewall Lewis, could not divest his mind of serious doubt, and of which the murderer got the benefit. Smethurst's escape may have influenced the jury in the Poplar poisoning case, which followed close on its heels, although in that the verdict of "Not Guilty" was excusable, as the evidence was entirely circumstantial. There was no convincing proof that the accused had administered the poison, although beyond question that poison had occasioned the death.

Dr. Smethurst was long an inmate of Newgate, and was tried at the Central Criminal Court. He had all the characteristics of the poisoner—the calm deliberation, the protracted dissimulation, as with unshrinking, relentless wickedness the deadly work is carried on to the end. Smethurst's victim was a Miss Bankes, with whom he had contracted a bigamous marriage. He had met her at a boarding-house, where he lived with his own wife, a person of "shady" antecedents, and whom he left without scruple to join Miss Bankes. The latter seems to have succumbed only too willingly to his fascinations, and to have as readily agreed to marry him, in spite of the existence of the other Mrs. Smethurst. Probably the doctor had told her the story he brought forward when tried for bigamy, namely, that Mrs. Smethurst had no right to the name, but had a husband of her own, one Johnson, alive—a story subsequently disproved. Miss Bankes seems to have counted upon some species of whitewashing, no less than the repudiation of the other marriage, and told her sister as much when they last

met. For some months Smethurst and Miss Bankes lived together as man and wife, first in London, and then at Richmond. She had a little fortune of her own, some £1700 or £1800, and a life-interest in £5000, a fact on which Smethurst's counsel dwelt with much weight, as indicating a motive for keeping her alive rather than killing her. But probably the lump sum was the bait, or perhaps Smethurst wished to return to his temporarily deserted first wife. Whatever the exact cause which impelled him to crime, it seems certain that he began to give her some poison, either arsenic or antimony, or both, in small quantities, with the idea of subjecting her to the irritant poison slowly but surely until the desired effect, death, was achieved. As she became worse and worse, Smethurst called in the best medical advice in Richmond, but was careful to prime them with his facts and lead them if possible to accept his diagnosis of the case. Smethurst was found guilty by the jury, and sentenced to death. But a long public discussion followed, and in consequence he was reprieved. The Home Secretary, in a letter to the Lord Chief Baron, stated that "although the facts are full of suspicion against Smethurst, there is not absolute and complete evidence of his guilt." Smethurst was therefore given a free pardon for the offence of murder, but he was subsequently again tried for bigamy, and sentenced to twelve months' imprisonment.

Catherine Wilson was a female poisoner who did business wholesale. She was tried in April 1862 on suspicion of having attempted to poison a neighbour with oil of vitriol. The circumstances were strange. Mrs. Wilson had gone to the chemist's for medicine, and on her return had administered a dose of something which burnt the mouth badly, but did not prove fatal. Wilson was acquitted on this charge, but other suspicious facts cropped up while she was in Newgate. It appeared that several persons with whom she was intimate had succumbed suddenly. In all cases the symptoms were much the same, vomiting, violent retching, purging, such as are visible in cholera, and all dated from the time when she knew a young man named Dixon, who had been in the habit of taking colchicum for rheumatism. Mrs. Wilson heard then casually from a medical man that it was a very dangerous medicine, and she profited by what she had heard. Soon afterwards Dixon died, showing all the symptoms already described. Soon afterwards a friend, Mrs. Atkinson, came to London from Westmoreland, and stayed in Mrs. Wilson's house. She was in good health on leaving home, and had with her a large sum of money. While with Mrs. Wilson she became

suddenly and alarmingly ill, and died in great agony. Her husband, who came up to town, would not allow a post-mortem, and again Mrs. Wilson escaped. Mrs. Atkinson's symptoms had been the same as Dixon's. Then Mrs. Wilson went to live with a man named Taylor, who was presently attacked in the same way as the others, but, thanks to the prompt administration of remedies, he recovered. After this came the charge of administering oil of vitriol, which failed, as has been described. Last of all Mrs. Wilson poisoned her landlady, Mrs. Soames, under precisely the same conditions as the foregoing.

Here, however, the evidence was strong and sufficient. It was proved that Mrs. Wilson had given Mrs. Soames something peculiar to drink, that immediately afterwards Mrs. Soames was taken ill with vomiting and purging, and that Mrs. Wilson administered the same medicine again and again. The last time Mrs. Soames showed great reluctance to take it, but Wilson said it would certainly do her good. This mysterious medicine Wilson kept carefully locked up, and allowed no one to see it, but its nature was betrayed when this last victim also died. The first post-mortem indicated death from natural causes, but a more careful investigation attributed it beyond doubt to over-doses of colchicum. Dr. Alfred Taylor, the great authority and writer on medical jurisprudence, corroborated this, and in his evidence on the trial fairly electrified the court by declaring it his opinion that many deaths, supposed to be from cholera, were really due to poison. This fact was referred to by the judge in his summing up, who said that he feared it was only too true that secret poisoning was at that time very rife in the metropolis. Wilson was duly sentenced to death, and suffered impenitent, hardened, and without any confession of her guilt.

Although murder by insidious methods had become more common, cases where violence of the most deadly and determined kind was offered had not quite disappeared. I will mention two cases of this class, one accompanied with piracy on the high seas, the other perpetrated in a railway-carriage, and showing the promptitude with which criminals accept and utilize altered conditions of life, more particularly as regards locomotion.

The first case was that of the 'Flowery Land,' which left London for Singapore on the 28th July, 1863, with a cargo of wine and other goods. Her captain was John Smith; the first and second mates, Karswell and Taffir; there were two other Englishmen on board, and the rest of the crew were a

polyglot lot, most of them, as was proved by their subsequent acts, blackguards of the deepest dye. Six were Spaniards, or rather natives of Manilla, and men of colour; one was a Greek, another a Turk; there were also a Frenchman, a Norwegian (the carpenter), three Chinamen, a "Sclavonian," and a black on board. Navigation and discipline could not be easy with such a nondescript crew. The captain was kindly but somewhat intemperate, the first mate a man of some determination, and punishment such as rope's-ending and tying to the bulwarks had to be applied to get the work properly done. The six Spaniards, the Greek, and the Turk were in the same watch, eight truculent and reckless scoundrels, who, brooding over their fancied wrongs, and burning for revenge, hatched amongst them a plot to murder their officers and seize the ship. The mutiny was organized with great secrecy, and broke out most unexpectedly in the middle of the night. A simultaneous attack was made upon the captain and the first mate. The latter had the watch on deck. One half of the mutineers fell upon him unawares with handspikes and capstan-bars. He was struck down, imploring mercy, but they beat him about the head and face till every feature was obliterated, and then, still living, flung him into the sea. Meanwhile the captain, roused from his berth, came out of the cabin, was caught near the 'companion' by the rest of the mutineers, and promptly despatched with daggers. His body was found lying in a pool of blood in a night-dress, stabbed over and over again in the left side. The captain's brother, a passenger on board the 'Flowery Land,' was also stabbed to death and his body thrown overboard.

The second mate, who had heard the hammering of the capstan-bars and the handspikes, with the first mate's and captain's agonized cries, had come out, verified the murderers, and then shut himself up in his cabin. He was soon summoned on deck, but as he would not move, the mutineers came down and stood in a circle round his berth. Leon, or Lyons, who spoke English, when asked said they would spare his life if he would navigate the ship for them to the River Plate or Buenos Ayres. Taffir, the second mate, agreed, but constantly went in fear of his life for the remainder of the voyage; and although the mutineers spared him, they ill-treated the Chinamen, and cut one badly with knives. Immediately after the murder cases of champagne, which formed part of the cargo, were brought on deck and broached; the captain's cabin ransacked, his money and clothes divided amongst the mutineers, as well as much of the merchandise on board. Leon

wished to make every one on board share and share alike, so as to implicate the innocent with the guilty; but Vartos, or Watto, the Turk, would not allow any but the eight mutineers to have anything. The murders were perpetrated on the 10th September, and the ship continued her voyage for nearly three weeks, meeting and speaking one ship only. On the 2nd October they sighted land, ten miles distant; the mutineers took command of the ship, put her about till night-fall, by which time they had scuttled her, got out the boats, and all left the ship. The rest of the crew were also permitted to embark, except the Chinamen, one of whom was thrown into the water and drowned, while the other two were left to go down in the ship, and were seen clinging to the tops until the waters closed over them.

The boats reached the shore on the 4th October. Leon had prepared a plausible tale to the effect that they belonged to an American ship from Peru bound to Bordeaux, which had foundered at sea; that they had been in the boats five days and nights, but that the captain and others had been lost. The place at which they landed was not far from the entrance to the River Plate. A farmer took them in for the night, and drove them next day to Rocha, a place north of Maldonado. Taffir, the mate, finding there was a man who could speak English at another place twenty miles off, repaired there secretly, and so gave information to the Brazilian authorities. The mutineers were arrested, the case inquired into by a naval court-martial, and the prisoners eventually surrendered to the British authorities, brought to England, and lodged in Newgate. Their trial followed at the Central Criminal Court. Eight were arraigned at the same time: six Spaniards, Leon, Blanco, Duranno, Santos, and Marsolino; Vartos the Turk, and Carlos the Greek. Seven were found guilty of murder on the high seas, and one, Carlos, acquitted. Two of the seven, Santos and Marsolino, were reprieved, and their sentences commuted to penal servitude for life; the remaining five were executed in one batch. They were an abject, miserable crew, cowards at heart; but some, especially Lopez, continued bloodthirsty to the last. Lopez took a violent dislike to the officer of the ward in charge of them, and often expressed a keen desire to do for him. They none of them spoke much English except Leon, commonly called Lyons. After condemnation, as the rules now kept capital convicts strictly apart, they could not be lodged in the two condemned cells, and they were each kept in an ordinary separate cell of the newly-constructed block, with the "traps," or square openings in the cell door, let down. A full view of them was thus at all times

obtainable by the officers who, without intermission, day and night patrolled the ward. On the morning of execution the noise of fixing the gallows in the street outside awoke one or two of them. Lyons asked the time, and was told it was only five. "Ah!" he remarked, "they will have to wait for us then till eight." Lopez was more talkative. When the warder went in to call him he asked for his clothes. He was told he would have to wear his own. "Not give clothes? In Russia, Italy, always give chaps clothes." Then he wanted to know when the policemen would arrive, and was told none would come. "The soldiers then?" No soldiers either. "What, you not afraid let us go all by ourselves? Not so in Russia or Spain." The convicts were pinioned one by one and sent singly out to the gallows. As the first to appear would have some time to wait for his fellows, a difficult and painful ordeal, the seemingly most courageous was selected to lead the way. This was Duranno; but the sight of the heaving mass of uplifted, impassioned faces was too much for his nerves, and he so nearly fainted that he had to be seated in a chair. The execution went off without mishap.

In July 1864 occurred the murder of Mr. Briggs, a gentleman advanced in years and chief clerk in Robarts' bank. As the circumstances under which it was perpetrated were somewhat novel,^[126] and as some time elapsed before the discovery and apprehension of the supposed murderer, the public mind was greatly agitated by the affair for several months. The story of the murder must be pretty familiar to most of my readers. Mr. Briggs left the bank one afternoon as usual, dined with his daughter at Peckham, then returned to the city to take the train from Fenchurch Street home, travelling by the North London Railway. He lived at Hackney, but he never reached it alive. When the train arrived at Hackney station, a passenger who was about to enter one of the carriages found the cushions soaked with blood. Inside the carriage was a hat, a walking-stick, and a small black leather bag. About the same time a body was discovered on the line near the railway-bridge by Victoria Park. It was that of an aged man, whose head had been battered in by a life-preserver. There was a deep wound just over the ear, the skull was fractured, and there were several other blows and wounds on the head. Strange to say, the unfortunate man was not yet dead, and he actually survived more than four-and-twenty hours. His identity was established by a bundle of letters in his pocket, which bore his full address: "T. Briggs, Esq., Robarts & Co., Lombard Street."

The friends of Mr. Briggs were communicated with, and it was ascertained that when he left home the morning of the murderous attack, he wore gold-rimmed eye-glasses and a gold watch and chain. The stick and bag were his, but not the hat. A desperate and deadly struggle must have taken place in the carriage, and the stain of a bloody hand marked the door. The facts of the murder and its object, robbery, were thus conclusively proved. It was also easily established that the hat found in the carriage had been bought at Walker's, a hatter's in Crawford Street, Marylebone; while within a few days Mr. Briggs' gold chain was traced to a jeweller's in Cheapside, Mr. Death, who had given another in exchange for it to a man supposed to be a foreigner. More precise clues to the murderer were not long wanting; indeed the readiness with which they were produced and followed up showed how greatly the publicity and wide dissemination of the news regarding murder facilitate the detection of crime. In little more than a week a cabman came forward and voluntarily made a statement which at once drew suspicion to a German, Franz Müller, who had been a lodger of his. Müller had given the cabman's little daughter a jeweller's cardboard box bearing the name of Mr. Death. A photograph of Müller shown the jeweller was identified as the likeness of the man who had exchanged Mr. Briggs' chain. Last of all, the cabman swore that he had bought the very hat found in the carriage for Müller at the hatter's, Walker's of Crawford Street.

This fixed the crime pretty certainly upon Müller, who had already left the country, thus increasing suspicion under which he lay. There was no mystery about his departure; he had gone to Canada, by the 'Victoria' sailing ship, starting from the London docks, and bound to New York. Directly the foregoing facts were established, a couple of detective officers, armed with a warrant to arrest Müller, and accompanied by Mr. Death the jeweller and the cabman, went down to Liverpool and took the first steamer across the Atlantic. This was the 'City of Manchester,' which was expected to arrive some days before the 'Victoria,' and did so. The officers went on board the 'Victoria' at once, Müller was identified by Mr. Death, and the arrest was made. In searching the prisoner's box, Mr. Briggs' watch was found wrapped up in a piece of leather, and Müller at the time of his capture was actually wearing Mr. Briggs' hat, cut down and somewhat altered. The prisoner was forthwith extradited and sent back to England, which he reached with his escort on the 17th September the same year. His trial

followed at the next sessions of the Central Criminal Court, and ended in his conviction. The case was one of circumstantial evidence, but, as Sir Robert Collyer the Solicitor-General pointed out, it was the strongest circumstantial evidence which had ever been brought forward in a murder case. It was really evidence of facts which could not be controverted or explained away. There was the prisoner's poverty, his inability to account for himself on the night of the murder, and his possession of the property of the murdered man. An alibi was set up for the defence, but not well substantiated, and the jury without hesitation returned a verdict of guilty.

Müller protested after sentence of death had been passed upon him that he had been convicted on a false statement of facts. He adhered to this almost to the very last. His case had been warmly espoused by the Society for the Protection of Germans in this country, and powerful influence was exerted both here and abroad to obtain a reprieve. Müller knew that any confession would ruin his chances of escape. His arguments were specious and evasive when pressed to confess. "Why should man confess to man?" he replied; "man cannot forgive man, only God can do so. Man is therefore only accountable to God." But on the gallows, when the cap was over his eyes and the rope had been adjusted round his neck, and within a second of the moment when he would be launched into eternity, he whispered in the ear of the German pastor who attended him on the scaffold, "I did it." While in the condemned cell he conversed freely with the warders in broken English or through an interpreter. He is described as not a bad-looking man, with a square German type of face, blue eyes which were generally half closed, and very fair hair. He was short in stature, his legs were light for the upper part of his body, which was powerful, almost herculean. It is generally supposed that he committed the murder under a sudden access of covetousness and greed. He saw Mr. Briggs' watch-chain, and followed him instantly into the carriage, determined to have it at all costs. His crime under this aspect of it was less premeditated, and less atrocious therefore, than that of Lefroy.

One other curious murder may be added to the two foregoing. Christian Sattler was by birth a German. He had led a wild life; had left his native land and enlisted first in the French army in Algeria, afterwards in the British German Legion raised for the Crimean War. At the disbandment of the force, as he was without resources, he turned his attention to hotel robberies, by which he lived for some years. He at length stole a carpet-bag

containing valuables, and fled to Hamburg. Thither he was pursued by a detective officer, Inspector Thain, who, being unable to obtain his extradition legally, had him inveigled on board an English steamer, where the arrest was made. Sattler was ironed for safe custody, a proceeding which he vehemently resented, and begged that they might be removed, as the handcuffs hurt his wrists. The inspector said that they could not be removed till he reached England. This reply of his contained no promise of immediate release. Sattler probably misunderstood, and he declared that the police officer had broken faith with him, having, moreover, stated that while at sea the captain of the ship was responsible for the security of the prisoner. As Sattler brooded over his wrongs, his rage got the upper hand, and he resolved to wreak it upon Thain. Although manacled, he managed to get a pistol from his chest and load it. The next time Thain entered his cabin he fired at him point-blank, and lodged three bullets in his breast. The unfortunate man survived till he landed, but died in Guy's Hospital. Sattler was tried for murder and convicted; his defence being that he had intended to commit suicide, but that, on the appearance of this officer who had wronged him, he had yielded to an irresistible impulse to kill him.

Sattler was a very excitable although not an ill-tempered man. While in Newgate awaiting trial he frequently tried to justify his murder by declaring that the police officer had broken faith with him. He would shoot any man or any policeman like a dog, or any number of them, who had treated him in that way. His demeanour immediately preceding his execution I have referred to in the last chapter.

Several cases of gigantic fraud, rivalling any already recorded, were brought to light between 1856 and 1873. I propose next to describe the leading features of the most important of these. Another case of long-continued successful forgery was brought to light two years after the convictions of Seward and his accomplices. This conspiracy was cleverly planned, but had scarcely so many ramifications as that of Seward. Its originators were a couple of men, Wagner and Bateman, who had already been convicted of systematic forgery, and sentenced to transportation, but they had been released on ticket-of-leave in 1856. As a blind for their new frauds, they set up as law-stationers in York Buildings, Adelphi, and at once commenced their nefarious traffic. Forged cheques and bills were soon uttered in great numbers, as well as base coin. The police suspecting the house in York Buildings, put a watch on the premises, which they kept up

for more than a year, and thus obtained personal knowledge of all who passed in and out, but without obtaining any direct evidence. At length a man was caught in the act of passing a forged cheque at the Union Bank, and recognized as one of the frequenters of the bogus law-stationers. His arrest led to that of others. Among them was a man named Chandler, formerly a bill discounter by profession, who by degrees, to meet his extravagant expenditure, took to appropriating the bills intrusted to him, and so lost his business, after which he became a clerk to Messrs. Wagner and Bateman. Chandler while in Newgate turned informer, and betrayed the whole conspiracy. Besides his employers, a jeweller named Humphreys was in the "swim," at whose shop in Red Lion Square was discovered a quantity of base gold and silver coins, with all the latest appliances for coining, including those of electroplating; also a furniture dealer and one or two more commonplace rogues. The arch villain was never taken into custody. He, like Saward, was an artist in penmanship. He was a German named Kerp, eighty years of age, who had spent his whole life in imitating other people's signatures, and had acquired the most consummate skill in the practice. His copies were generally pronounced indistinguishable from and as good as the originals. The aged but wary Kerp, the moment the plot was discovered, vanished, and was never more heard of. Much the same plan was adopted by these forgers as by Saward to get their cheques cashed. They advertised for clerks, and employed the most likely of the applicants by sending them to the bank. It was one of these, Glendinning, who had allowed himself to be utilized for some time in this way, whose capture led to the breaking up of the gang. The principals in this conspiracy, Wagner and Bateman, were sentenced to penal servitude for life, the others to twenty and ten years. It was stated in evidence that the monies obtained by these forgeries amounted to £8000 or £10,000, and that the forged cheques which had been presented, but refused, amounted to double the sum. Wagner, after conviction, offered to reveal, for a reward of £3000, a system which had long been in practice of defrauding the Exchequer of vast sums by means of forged stamps. His offer was not, however, accepted.

A more elaborate plot in many ways, more secretly, more patiently prepared than the preceding, or indeed than any in the calendar, was the case of the forgeries upon the Bank of England discovered in 1863, but not before the forged paper had been put in circulation for more than a couple of years. In 1861 a man named Burnett came with his wife and took up his

residence at Whitchurch, Hampshire, at no great distance from Laverstock, where are Messrs. Portal's mills for the manufacture of bank-note paper. Burnett had only just come out of gaol after completing a sentence of penal servitude. His object in visiting Whitchurch was to undermine the honesty of some workman in the mills; and he eventually succeeded, his wife making the first overtures, in persuading a lad named Brown to steal some of the bank paper. Brown took several sheets, and then was detected by Brewer, a fellow-workman of superior grade, who threatened to betray the theft. But Brewer, either before or after this, succumbed to temptation, and stole paper on a much larger scale than Brown. All that was taken was handed over to Burnett, or a "woman in black" whom Brown met by appointment at Waterloo station. To facilitate his operations, Brewer obtained a false master key from Burnett, which gave him access to all parts of the mills, the packing-room included. In this part of the mills a large quantity of bank-note paper was kept at the period of the robbery, and in the states known as "water-leaf" and "sized," which are the penultimate processes of manufacture. One more remains, that of "glazing," without which no paper is issued for engraving. None of the stolen paper was glazed, and this was an important clue to the subsequent discovery of the crime.

Some time in 1862 a large deficiency in the stock of bank paper unglazed was discovered at the mills. Soon afterwards the inspectors of bank-notes at the Bank of England detected the presentation at the bank of spurious notes on genuine paper. The two facts taken in conjunction led to the employment of the police, and the offer of a reward of £1500 for the detection of the offenders. By this time Brown alone had stolen three or four hundred sheets, each containing two notes, many of the sheets suitable for engraving any kind of note from £1000 downwards. The amount of Brewer's abstractions (who was eventually acquitted) was never exactly estimated. Suspicion appears to have rested on Brown, who had left Laverstock, and he was soon approached by the police. Almost directly he was questioned he made a clean breast of the whole affair. The next step was to take the principals, and under such circumstances as would insure their conviction. A watch was set on Burnett, who was followed to the shop of one Buncher, a butcher in Strutton Ground. Buncher was then tracked to North Kent Terrace, New Cross, where a Mr. and Mrs. Campbell resided, with whom he did business in exchanging the false notes. The police

officers now taxed Mrs. Campbell with complicity, and frightened her into collusion. With her assistance on a certain day a couple of bricks were taken out of the wall dividing her front and back parlours; the officers ensconced themselves in the latter, and waited for Buncher's expected visit. He came to complete a sale of forged notes, and he wanted a couple of hundred pounds for what he had. Mrs. Campbell offered him less, and there was an altercation, in the course of which Buncher became very violent, and at length, after using much intemperate language, he left the place in a huff. In the course of his remarks, however, he said, "I am the man that has got all the bank paper; I have £30,000 now, and the Bank of England cannot stop it." This was all the police wanted to know.

They next watched Buncher, and found that he paid frequent visits to Birmingham. They also discovered that through the intermediacy of one Robert Cummings, well known as a reputed coiner, he had been introduced to a man named Griffiths, an engraver and copper-plate printer. Griffiths was an unusually clever and skilful workman, who had devoted all his talent and all his energies for some seventeen years to the fabrication of false bank-notes. On a certain day, the 27th October, 1862, the two were arrested simultaneously; Buncher in London, and Griffiths in Birmingham. Nothing was found in Buncher's premises in Strutton Ground, which were thoroughly searched, but proofs of Griffiths' guilt were at once apparent on entering his work-room. In one corner was a printing-press actually in use, and on it were twenty-one forged Bank of England notes, without date or signature. On the bed were twenty forged ten-pound notes complete and ready for use, and twenty-five five-pound notes. "Mother plates" for engraving the body of the notes lay about, and other plates for various processes. More than this, Griffiths took the police to a field where, in a bank, a number of other plates were secreted. Griffiths afterwards admitted that he had been employed in defrauding the bank since 1846, and the prominent part he played secured for him on conviction the heaviest sentence of the law. This was penal servitude for life, Buncher's sentence being twenty-five, and Burnett's twenty years.

Cummings, who had introduced Buncher to Griffiths, was also tried for being in possession of stolen bank paper for improper purposes. But as there was no independent corroboration of the informer's evidence, according to the custom of the British law, the case was considered not proved, and he was acquitted. On his return to Newgate to be finally

discharged, Cummings jumped up the stairs and fairly danced for joy. But he was not long at large; he was too active an evil-doer, and was perpetually in trouble. Commencing life as a resurrection man, when that trade failed through the change in the law, and no more bodies were to be bought, he devoted his energies to coining and forgery, and in the latter line was a friend and associate of Saward's. One narrow escape he had, however, before he abandoned his old business. A Bow Street officer saw him leaving London in the evening by Camberwell Green, accompanied by two other men. It was well known that they were resurrectionists, and a strict watch was kept at all the turnpike gates on the southern roads leading into London. An officer was placed for this purpose at New Cross, Camberwell, and Kennington gates. Presently "Old Bob" drove up to Camberwell Gate in the same cart in which he had been seen to start. The officers rushed out to detain him. "What have you got here? We must search the cart," they cry. "By all means," replies Bob, and a close investigation follows, without any detection of the corpse concealed. Bob was therefore allowed to pass on. But they had the body, all the same; it had been dressed up in decent clothes and made to stand upright in the cart. With the police officers it had passed muster as a living member of the party.

Cummings was repeatedly "run in" for the offence of coining and uttering bad money, whether coin or notes. His regular trade, followed before he took to the life of resurrectionist, was that of an engraver. He was a notorious criminal, an habitual offender in his own particular line, one who would stick at no trifles to evade detection or escape capture. It is told of "Bob" Brennan, an official specially employed for years by the Mint to watch and prosecute coiners, that he received information that coining was carried on by Cummings and others at a place in Westminster. He went there with a posse of officers and forced his way upstairs to the first floor, where the coiners, unexpectedly disturbed, fell an easy prey. But the police nearly paid the penalty of capture with their lives. Proceeding cautiously down the stairs, they found that the flooring at the bottom had been taken up. Where it had lain was a yawning gulf or trap sufficient to do for the whole body of police engaged in the capture. Cummings was caught shortly afterwards. He was a tall, slender man, with a long face and iron-gray hair. The community of coiners of which he was so notorious a member were a low lot, the lowest among criminals except, perhaps, the 'smashers,' or those who passed the counterfeit money. It was not easy to detect coiners,

or bring home their guilt to them. Those who manufactured and those who passed had no direct dealings with each other. The false coin was bought by an agent from an agent, and dealings were carried on secretly at the "Clock House" in Seven Dials.

The annals of fraudulent crime probably contain nothing which in dramatic interest can compare with the conviction of William Roupell for forgery. As the case must still be well remembered by the present generation, it will be necessary to give here only the briefest summary. William Roupell was the eldest but illegitimate son of a wealthy man who subsequently married Roupell's mother, and had further legitimate issue. William was brought up as an attorney, and became in due course his father's man of business. As such he had pretty general control over his father's estates and affairs. In 1855 he instructed certain solicitors to prepare a deed of gift as from his father, conveying to him estates near Kingston. The old gentleman's signature to this deed of gift was a forgery, but upon this forged and false conveyance William Roupell, who had already embarked upon a career of wild extravagance, obtained a mortgage of £7000. In 1856 the father died. It had been supposed up to this date that he had willed his property, amounting in all to upwards of £200,000, but after the funeral William Roupell produced another and a later will, leaving everything to the widow, and constituting William sole executor. This will was a deliberate forgery.

Five or six years later, William Roupell minutely described how he had effected the fraud. The day his father died he got the keys of his private bureau, opened it, and took out the authentic will. After reading it, and finding this unfavourable to himself, he resolved to carry out his deliberate plan, namely, to suppress it and substitute another. He himself prepared it on a blank form which he had brought with him on purpose. To this fraudulent instrument he appended forged signatures, and in due course obtained probate. As he possessed nearly unbounded influence over his mother, her accession to the property meant that William could dispose of it as he pleased. He embarked forthwith in a career of the wildest extravagance, and ere long he had parted in his mother's name with most of the landed estates. One large item of his expenditure was a contested election at Lambeth, which he gained at a cost of £10,000. No fortune could stand the inroads he made into his mother's money, and in 1862 he was obliged to fly the country, hopelessly and irretrievably ruined.

His disappearance gave colour and substance to evil reports already in circulation that the will and conveyance above referred to were fictitious documents. His next brother, who should have inherited under the authentic will, forthwith brought an ejectment on the possessor of lands purchased on the authority of the forged conveyance and will. The case was tried at Guildford Assizes, and caused intense excitement, the hardship to the holders of these lands being plain, should the allegations of invalidity be made good. The effect of establishing the forgeries would be to restore to the Roupell family lands for which a price had already been paid in all good faith to another, but a criminal member of the family. At first the case was contested hotly, but, to the profound astonishment of every one inside and outside the court, William Roupell himself was brought as a principal witness to clench the case by a confession altogether against himself. He told his story with perfect coolness and self-possession, but in a grave and serious tone. "Every word he uttered was said with consideration, and sometimes with a long pause, but at the same time with an air of the most entire truthfulness and candour." He confessed himself a perjurer in having sworn to the false will, and a wholesale forger, having manufactured no less than ten false signatures to deeds involving on the whole some £350,000.

For these crimes William Roupell was tried at the Central Criminal Court on the 24th September, 1862. He declined to plead, but a plea of "Not Guilty" was recorded. The case was easily and rapidly disposed of. Roupell made a long statement more in exculpation than in his defence. He complained that he had at first been the dupe of others, and admitted that he had too readily fallen astray. But while repudiating the charges made against him of systematic extravagance and immorality, he confessed that his whole life had been a gigantic mistake, and he was ready to make what atonement he could. Mr. Justice Byles, in passing sentence, commented severely upon the commission of such crimes by a man in Roupell's position in life, and passed the heaviest sentence of the law, transportation for life. Roupell received the announcement with a cheerful countenance, and left the dock with evident satisfaction and relief at the termination of a most painful ordeal. Roupell was quiet and submissive while in Newgate, unassuming in manner, and ready to make the best of his position. He carried this character with him into penal servitude, and after enduring the full severity of his punishment for several years, was at length advanced to the comparative ease of a post much coveted by convicts, that of hospital

nurse. His uniform good conduct gained him release from Portland on ticket-of-leave in 1882, just twenty years after his conviction.

A daring and cleverly-planned robbery of diamonds was that of the Tarpeys, man and wife, from an assistant of Loudon and Ryder's, the jewellers in Bond Street. The trick was an old one. The assistant called with the jewels on approbation at a house specially hired for the purpose in the West End, and was rendered insensible by chloroform, after which he was bound and the precious stones stolen. Mrs. Tarpey was almost immediately captured and put on her trial, but she was acquitted on the plea that she had acted under the coercion of her husband. Tarpey was caught through his wife, who was followed, disguised, and with her hair dyed black, to a house in the Marylebone Road, where she met her husband. On Tarpey's defence it was stated that the idea of the theft had been suggested to him by a novel, at a time he had lost largely on the turf. The first plot was against Mr. Harry Emmanuel, but he escaped, and the attempt was made upon Loudon and Ryder.

The last great case of fraud upon the Bank of England will fitly close this branch of the criminal records of Newgate. This was the well and astutely devised plot of the brothers Bidwell, assisted by Macdonell and Noyes, all of them citizens of the United States, by which the bank lost upwards of £100,000. The commercial experience of these clever rogues was cosmopolitan. Their operations were no less world-wide. In 1871 they crossed the Atlantic, and by means of forged letters of credit and introduction from London, obtained large sums from continental banks, in Berlin, Dresden, Bordeaux, Marseilles, and Lyons. With this as capital they came back to England *viâ* Buenos Ayres, and Austin Bidwell opened a *bonâ fide* credit in the Burlington or West End branch of the Bank of England, to which he was introduced by a well-known tailor in Saville Row. After this the other conspirators travelled to obtain genuine bills and master the system of the leading houses at home and abroad. When all was ready, Bidwell first "refreshed his credit" at the Bank of England, as well as disarmed suspicion, by paying in a genuine bill of Messrs. Rothschilds' for £4500, which was duly discounted. Then he explained to the bank manager that his transactions at Birmingham would shortly be very large, owing to the development of his business there in the alleged manufacture of Pullman cars. The ground thus cleared, the forgers poured in from Birmingham numbers of forged acceptances, all of which were discounted

to the value of £102,217. The fraud was rendered possible by the absence of a check usual in the United States. There such bills would be sent to the drawer to be initialled, and the forgery would have been at once detected. It was the discovery of this flaw in the banking system which had encouraged the Americans to attempt this crime.

Time was clearly an important factor in the fraud, hence the bills were sent forward in quick succession. Long before they came to maturity the forgers hoped to be well beyond arrest. They had, moreover, sought to destroy all clue. The sums obtained by Bidwell in the name of "Warren" at the Bank of England were lodged at once by drafts to "Horton," another alias, in the Continental Bank. For these cash was obtained in notes; the notes were exchanged by one of the conspirators for gold at the Bank of England, and again the same day a second conspirator exchanged the gold for notes. But just as all promised well, the frauds were detected through the carelessness of the forgers. They had omitted to insert the dates in certain bills. The bills were sent as a matter of form to the drawer to have the date added, and the forgery was at once detected. Noyes was seized without difficulty, as it was a part of the scheme that he should act as the dupe, and remain on the spot in London till all the money was obtained. Through Noyes the rest of the conspirators were eventually apprehended. Very little if any of the ill-gotten proceeds, however, was ever recovered. Large sums, as they were realized, were transmitted to the United States, and invested in various American securities, where probably the money still remains.

The prisoners, who were committed to Newgate for trial, had undoubtedly the command of large funds while there, and would have readily disbursed it to effect their enlargement. A plot was soon discovered, deep laid, and with many ramifications, by which some of the Newgate warders were to be bribed to allow the prisoners to escape from their cells at night. Certain friends of the prisoners were watched, and found to be in communication with these warders, to whom it was said £100 apiece had been given down as the price of their infidelity. Further sums were to have been paid after the escape; and one warder admitted that he was to have £1000 more paid to him, and to be provided with a passage to Australia. The vigilance of the Newgate officials, assisted by the city police, completely frustrated this plot. A second was nevertheless set on foot, in which the plan of action was changed, and the freedom of the prisoners was to be obtained by means of a rescue from the dock during the trial. An

increase of policemen on duty sufficed to prevent any attempt of this kind. Nor were these two abortive efforts all that were planned. A year or two after, when the prisoners were undergoing their life sentences of penal servitude, much uneasiness was caused at one of the convict prisons by information that bribery on a large scale was again at work amongst the officials. But extra precautions and close supervision have so far proved effectual, and the prisoners are still in custody after a lapse of ten years.

I propose to end at this point the detailed account of the more prominent criminal cases which lodged their perpetrators in Newgate. The most recent affairs are still too fresh in the public mind to need more than a passing reference. Few of the Newgate notorieties of late years show any marked peculiarities; their crimes follow in the lines of others already found, and often more than once, in the calendars. Violent passions too easily aroused prompted the Frenchwoman Marguerite Dixblanc to murder her mistress, Madame Riel, in Park Lane, as Courvoisier, the Swiss, had been tempted to murder Lord William Russell. Greed in the latter case was a secondary motive; it was the principal incentive with Kate Webster, that fierce and brutal female savage who took the life of her mistress at Richmond. Webster, it may be mentioned here, was one of the worst prisoners ever remembered in Newgate—most violent in temper, and addicted to the most frightful language. Webster's devices for disposing of the body of her victim will call to mind those of Theodore Gardelle, of Good, and Greenacre, and Catherine Hayes. Greed in another form led the Stauntons to make away with Mrs. Patrick Staunton, murdering her with devilish cruelty by slow degrees. The judge, Sir Henry Hawkins, in passing sentence characterized this as a crime more black and hideous than any in the criminal annals of the country. But it was scarcely worse than that of Mrs. Brownrigg, or that of the Meteyards, both of whom did their helpless apprentices to death. It was to effect the rupture of an irksome tie that led Henry Wainwright to murder Harriet Lane deliberately and in cold blood. In this case the tie was unsanctified, but it was not more inconvenient than that which urged Greenacre to a similar crime. In cold-blooded premeditation it rivalled that of the Mannings. As in that case, the grave had been dug long in anticipation, and the chloride of lime purchased to destroy the corpse. Henry Wainwright's attempt to get rid of the body was ingenious, but not original, and the circumstances which led to detection were scarcely novel proofs of the old adage that murder will out. Henry Wainwright's

impassioned denial of his crime, even after it had been brought fully home to him, has many parallels in the criminal records. His disclaimer, distinct and detailed on every point, was intended simply for effect. He might swear he was not the murderer, that he never fired a pistol in his life, and that, in spite of the verdict of the jury, "he left the dock with a calm and quiet conscience;" but there was no doubt of his guilt, as the Lord Chief Justice told him, while expressing great regret at his rash assertion. Wainwright's demeanour after sentence has been described in the last chapter. Doubts were long entertained whether Thomas Wainwright, who was convicted as an accessory after the fact, had not really taken an active part in the murder. But a conversation overheard between the two brothers in Newgate satisfactorily exonerated Thomas Wainwright.

Poisoning has still its victims. Christina Edmunds had resort to strychnia, the same lethal drug that Palmer used; her object being first to dispose of the wife of a man for whom she had conceived a guilty passion, then to divert suspicion from herself by throwing it on a confectioner, whose sweetmeats she bought, tampered with, and returned to the shop. The trial of Miss Edmunds was transferred to the Central Criminal Court under Lord Campbell's Act, already referred to. She was found guilty. It will be remembered that she made a statement which led to the empanelling of a jury of matrons, who decided that there was no cause for an arrest of judgment. Kate Webster followed the same course; but these pleas of pregnancy are not common now-a-days. Although sentence of death was passed on Edmunds, it was commuted to penal servitude for life; but she eventually passed into Broadmoor Lunatic Asylum, where she busies herself with water-colour drawing. The still more recent cases of poisoning which have occurred were not connected with Newgate. The mysterious Bravo case, that of Dr. Lamson, and that of Kate Dover unhappily show that society is more than ever at the mercy of the insidious and unscrupulous administration of poisonous drugs.

A case reproducing many of the features of the 'Flowery Land' occurred twelve years later, when the crew of the 'Lennie' mutinied, murdered the captain and mates, sparing the steward only on condition that he would navigate the ship to the Mediterranean. The mutineers were of the same stamp as the crew of the 'Flowery Land'—foreigners, vindictive, reckless, and truculent ruffians, easily moved to murderous rage. The 'Lennie's' men were all Greeks, except one known as French Peter, who was the ringleader,

and who had long been an habitual criminal, a reputed murderer, and certainly an inmate more than once of a French *bagne*. Conviction was obtained through the evidence of the steward and two of the least culpable of the crew. In Newgate the 'Lennie' mutineers were extremely well behaved. Resolute, determined-looking men, their courage broke down in confinement. They paid close attention to the counsels of the archimandrite, and died quite penitent. A story is told of one of them, "Big Harry," the wildest and most cut-throat looking of the lot, which proves that he could be grateful for kindness, and was not all bad. He had steadfastly refused to eat meat on some religious scruples, and for the same reason would not touch soup. He was glad, therefore, to get an extra allowance of bread, and to show his gratitude to the warder who procured this privilege for him, he made him a present. It was his own handiwork—a bird pecking at a flower; the whole manufactured while in the condemned cell of the crumb of bread made into paste. The flower had berries also of bread fixed on stems made from the fibre drawn from the stuffing of his mattress, and the bird's legs were a couple of teeth broken off the prisoner's comb.

Of the lesser criminals, forgers, thieves, swindlers, Newgate continued to receive its full share up to the last. But there were few cases so remarkable as the great ones already recorded. Mr. Bamell Oakley made a rich harvest for a time, and was said at the time of his trial to have obtained as much as £40,000 by false and fraudulent pretences. Messrs. Swindlehurst, Saffery, and Langley cleared a large profit by swindling the Artisans' Dwellings Company; and Madame Rachel passed through Newgate on her way to Millbank convicted of obtaining jewellery under the false pretence of making silly women "beautiful for ever." The greatest *causes célèbres*, however, of recent times were the turf frauds by which the Comtesse de Goncourt was swindled out of large sums in sham sporting speculations. The conviction of the principals in this nefarious transaction, Benson, the two Kurrs, Bale, and Murray, led to strange revelations of dishonest practices amongst the detective police, and was followed by the arraignment and conviction in their turn of Meiklejohn, Druscovich, Palmer, and Froggatt.

CHAPTER XI

NEWGATE REFORMED.

Movement towards prison reform—Pentonville ‘model’ prison built—Extension of the movement—Opposing views as to *silence* and *separation*—Widely different treatment of criminals in various prisons—Mr. Pearson’s committee—His proposed system explained—Attention again attracted to Newgate—Most of the old evils still rampant, and scarcely any enforcement of discipline—Some attempt to exercise supervision, and minor improvements introduced—Scheme of reconstruction by Lord John Russell found impracticable, and Holloway selected for a new city prison—Subsequent reconstruction of Newgate on cellular principle—Committee of House of Lords inquire into whole subject of criminal treatment, and recommend extensive changes, with uniformity of system—Prison Act 1865 embodies most of these recommendations—Finally, an Act passed in 1877 transferring prisons to the Government, and Newgate closed.

THE time at length approached when a radical and complete change was to come over the old city gaol. It was impossible for Newgate to escape for ever the influences pressing so strongly towards prison reform. Elsewhere the spirit had been more or less active, although not uniformly or always to the same extent. There had been a pause in legislation, except of a permissive kind. The 2nd and 3rd Victoria, cap. 56 (1839) laid it down that individuals *might* be confined separately and apart in single cells. By other acts local authorities were empowered to construct new gaols or hire accommodation in the district; but no steps had been taken in Parliament to enforce a better system of discipline, or to insist upon the construction of prisons on the most approved plan. As regards the first, however, Sir James Graham, when Home Secretary in 1843, had appointed a committee of prison inspectors, presided over by the Under Secretary of State, to draw up rules and dietaries, which were then recommended to and generally adopted by the visiting justices all over the kingdom. As regards the second, the Government had set a good example, and in deciding upon the erection of Pentonville prison had embarked on a considerable expenditure in order to provide a model prison for general imitation. The first stone of Pentonville prison was laid on the 10th April, 1840, by the Marquis of Normanby, then Home Secretary, and the prison, which contained five hundred and twenty cells, was occupied on the 21st December, 1842. This building was a costly affair. The site was uneven, and had to be levelled; moreover, the gross expenditure was increased “partly from its being considered necessary, as it

was a national prison, to make a great archway, and to make the character of it more imposing than if it had been situated in the country, and had been an ordinary prison.”^[127] Up to the 21st December, 1842, with the additions made to that date, the total expenditure amounted to nearly £90,000, or about £180 per cell. On the other hand, it must be admitted that this was an experimental construction, and that too strict a limitation of outlay would have militated seriously against the usefulness of the building. Nor must it be overlooked that this, the first model prison, although obtained at a considerable cost, became actually what its name implied. Pentonville has really been the model on which all subsequent prison construction has been based. All prisons at home and abroad are but variations, of course with the added improvements following longer experience, of the pattern originated by the architectural genius of Sir Joshua Jebb. The internal arrangements of the new model were carefully supervised by a body of distinguished men, among which were many peers, Lord John Russell, Mr. Shaw-Lefevre, the Speaker of the House of Commons, Sir Benjamin Brodie, Major Jebb, R.E., and the two prison inspectors, Messrs. Crawford and Russell, with whose names the reader is already familiar. Major, afterwards Sir Joshua Jebb, was the moving spirit among these commissioners, and he is now generally recognized as the originator of modern prison architecture.

The movement thus laudably initiated by the Government soon spread to the provinces. Some jurisdictions, greatly to their credit, strove at once to follow the lead of the central authority. Within half-a-dozen years no less than fifty-four new prisons were built on the Pentonville plan, others were in progress, and the total number of separate cells provided amounted to eleven thousand odd. This list included Wakefield, Leeds, Kirkdale, Manchester, Birmingham, and Dublin. Liverpool was building a new prison with a thousand cells, the county of Surrey one with seven hundred. The cost in each varied considerably, the general average being from £120 to £130 per cell. At Pentonville the rate was higher, but there the expense had been increased by the site, the difficulty of access, and the admitted necessity of giving architectural importance to this the national model prison.^[128] Other jurisdictions were less prompt to recognize their responsibilities, the city of London among the number, as I shall presently show at length. These were either satisfied with a makeshift, and modified existing buildings, without close regard to their suitability, or for a long time did nothing at all. Among the latter were notably the counties of

Cheshire, Lincolnshire, Norfolk, Suffolk, Nottinghamshire, the East and North Ridings of Yorkshire. The south and west of England were also very laggard, and many years were still to elapse before the prisons in these parts were properly reconstituted.

Not less remarkable than this diverse interpretation of a manifest duty was the variety of views as regards the discipline to be introduced in these new prisons. The time was one when thoughtful people who concerned themselves closely with social questions were greatly exercised as to the best system of treating the inmates of a gaol. A new and still imperfectly understood science had arisen, the principles of which were debated by disputants of widely opposite opinions with an earnestness that sometimes bordered upon acrimony. One school were strongly in favour of the continuous separation of prisoners, the other supported the theory of labour in association, but under a stringent rule of silence, with isolation only at night. Both systems came to us from the United States. The difference was really more in degree than in principle, and our modern practice has prudently tried to steer between the two extremes, accepting as the best system a judicious combination of both. But about 1850 the two sides were distinctly hostile, and the controversy ran high. High authorities were in favour of continuous separation. Colonel Jebb preferred it; Messrs. Crawford and Whitworth Russell were convinced that the complete isolation of criminals from one another was the true basis of a sound system of prison discipline. Prison chaplains of experience and high repute, such as Messrs. Field, Clay, Kingsmill, Burt, and Osborne, also advocated it. It was claimed for it that it was more deterrent; that in districts where it was the rule, evil-doers especially dreaded coming under its irksome conditions. Another argument was, that it afforded more hope of the reformation of criminals. The system of associated labour in silence had also its warm supporters, who maintained that under this system prisoners were more industrious and more healthy; that their condition was more natural, and approximated more nearly to that of daily life. Better industrial results were obtained from it, and instruction in trades was easier, and prisoners were more likely to leave gaol with the means of earning an honest livelihood if so disposed. The opposing champions were not slow to find faults and flaws in the system they condemned. Separation was injurious to health, mental or physical, said one side; men broke down when subjected to it for more than a certain period, and it was unsafe to fix this limit above twelve months,

although some rash advocates were in favour of eighteen months, some indeed of two years. The other side retorted that the system of associated labour was most costly, so many officers being required to maintain the discipline of silence; moreover, it was nearly impossible to prevent communication and mutual contamination.

It is scarcely necessary to follow the controversy further. I have only introduced the subject as showing how little as yet the State was impressed with the necessity for authoritative interference. The legislature was content to let local jurisdictions experimentalize for themselves; with the strange, anomalous result, that a thief or other criminal might be quite differently treated according as he was incarcerated on one side or another of a border line. This variety was often extended to all branches of prison economy. There was an absolute want of uniformity in dietaries; in some prisons it was too liberal, in others too low. The amount of exercise varied from one or two hours daily to half the working day. The cells inhabited by prisoners were of very varying dimensions; some were not sufficiently ventilated, others were warmed artificially, and were unwholesomely close. The use of gas or some other means of lighting might be adopted, but more often was dispensed with. In a great number of prisons no provision was made for the education of prisoners, in some others there was a sufficient staff of schoolmasters and instructors. The discipline also varied greatly, from the severely penal to the culpably lax. The greatest pains might be taken to secure isolation, the prisoners might be supervised and watched at every step, and made liable to punishment for a trifling breach of an irksome code of regulations, or they might herd together or communicate freely as in the old worst days. They might see each other when they liked, and converse *sotto voce*, or make signs; or the chances of recognizing or being recognized were reduced to a minimum by the use of a mask.^[129] There was no general rule of employment. Hard labour was often not insisted upon in separate confinement; sometimes it embraced the tread-wheel or the newly-invented instruments known as cranks, which ground air. The alternative between labour or idleness, or the selection of the form of labour, were mere matters of chance, and decided according to the views of the local magistracy. They were approved of and employed at some prisons, at others objected to because they were unproductive, and because the machine was often so imperfect that the amount of effort could not be exactly regulated. Opinions differed greatly with regard to the tread-wheel;

some authorities advocated it as a very severe and irksome punishment, which was yet under full control, and might be made to work corn-mills or prove otherwise productive; other authorities as strongly condemned it as brutalizing, unequal in its operation, and altogether a “deplorable invention.”

This want of uniformity in prison discipline became ere long an acknowledged evil pressing for some remedy, and the question was once more taken up in the House of Commons. In 1849 Mr. Charles Pearson, M.P., moved for a committee to report upon the best means of securing some uniform system which should be “punitive, reformatory, and self-supporting;” but the session was far advanced, and the matter was relegated to the following year. In 1850 Sir George Grey brought forward a new motion to the same effect, which was promptly carried, with the additional instruction to the committee to suggest any improvements. The latter had reference more especially to a proposal emanating from Mr. Charles Pearson himself. That gentleman had come to the conclusion that the ordinary and hackneyed methods of treatment were practically inefficacious, and that a new system of prison discipline should be introduced. His plan was to devote the whole labour of prisoners sentenced to any term between three months and four years to agriculture. District prisons were to be established for this purpose, each of which would be in the heart of a farm of a thousand acres. The prisoners were to cultivate the land and raise sufficient produce for their own support. Mr. Pearson backed up his recommendations by many sound arguments. Field labour, he urged, and with reason, was a very suitable employment; healthful, easily learnt, and well adapted to the circumstances of unskilled labourers. Such excellent returns might be counted upon, that a margin of profit would be left after the cost of the prisons had been defrayed. The scheme was no doubt fascinating, and in many respects feasible; but Mr. Pearson overlooked some points in which a more practical mind would have foreseen difficulty, and perhaps forecasted failure. In his proposal he dwelt much upon the humanizing effects of healthful open-air toil, anticipating the best results from a system which made earnings, and indeed release, dependent upon the amount of work done. That industry might thus be stimulated and encouraged was probable enough, and later experience has fully proved the advantage of a judicious system of gratuities for labour; but Mr. Pearson hardly considered the converse sufficiently, and omitted the fact that he

might have to deal with that persistent idleness which is not an unknown characteristic of the criminal class. The hope of reward might do much, but no system of penal discipline is complete unless it can also count upon the fear of punishment. Mr. Pearson seems to have taken for granted that all prisoners would behave well in his district prisons. On that account he made no provision to insure safe custody, thinking perhaps that prisoners so well disposed would cheerfully remain in gaol of their own accord. But an open farm of a thousand acres would have offered abundant chances of escape, which some at least would have attempted, probably with success. The creation of an expensive staff for supervision, or the still more costly process of walling in the whole farm, would have greatly added to the charges of these establishments.

I have lingered too long perhaps over Mr. Pearson's proposal, but some reference was indispensable to a scheme which marked the growth of public interest in prison affairs, and which was the germ of the new system since admirably developed in the convict prisons of this country. Mr. Pearson and the committee of 1850 have the more claim on our consideration, because, in the inquiry which followed, attention was again attracted to Newgate. The condition of that prison in 1850 may be gathered from the pages of the report. Not much had been done to remedy the old defects; radical improvement was generally considered impossible. The great evil, however, had been sensibly diminished. There was no longer, or at worst but rarely, and for short periods, the same overcrowding. This was obviated by the frequent sessions of the Central Criminal Court, and the utilization of the two subsidiary prisons in Giltspur Street and Southwark. The prison population of Newgate was still subject to great fluctuations, but it seldom rose above two hundred and fifty or three hundred at the most crowded periods, or just before the sessional gaol delivery; and at its lowest it fell sometimes to fifty or sixty. These numbers would have still further decreased, and the gaol would have been almost empty, but for the misdemeanants who were still sent to Newgate at times on long terms of imprisonment, and for the transports, whom the Home Office were often, as of old, slow to remove. The old wards, day rooms and sleeping rooms combined, of which the reader has already heard so much, now seldom contained more than ten or a dozen each. Some sort of decorum was maintained among the occupants in the day-time. Drinking and gaming, the

indiscriminate visitation of friends, and the almost unlimited admission of extra food, these more glaring defects had disappeared.

But reformation was only skin deep. Below the surface many of the old evils still rankled. There was as yet no control over the prisoners after locking-up time; this occurred in summer at eight, but in the winter months it took place at dusk, and was often as early as four or five. The prisoners were still left to themselves till next morning's unlocking, and they spent some fourteen or fifteen hours in total darkness, and almost without check or control. Captain Williams, who was the inspector of prisons for the home district in succession to Messrs. Crawford and Russell, stated in evidence that he was visiting Newgate one night, when he heard a great disturbance in one of the day and sleeping rooms, and on entering it found the prisoners engaged in kicking bundles of wood from one end of the ward to the other. Some attempt at supervision was exercised by the night watchman stationed on the leads, who might hear what went on inside. If any disturbance reached his ears, he reported the case to the governor, who next morning visited the ward in fault, and asked for the culprit. The enforcement of discipline depended upon the want of honour among thieves. Unless the guilty prisoner was given up, the whole ward was punished, either by the exclusion of visitors or the deprivation of fire, sharp tests which generally broke down the fidelity of the inmates of the ward to one another. Later on a more efficacious but still imperfect method of supervision was introduced. Iron cages, which are still to be seen in Newgate, were constructed on the landings, ensconced in which warders spent the night, on duty, and alert to watch the sleepers below, and check by remonstrance or threat of punishment all who broke the peace of the prison.

These disciplinary improvements were, however, only slowly and gradually introduced. Other changes affecting the condition and proper treatment of prisoners were not made until the inspector had urged and recommended them. Thus the wards, which, as I have said, were left in complete darkness, were now to be lighted with gas; and after this most salutary addition, the personal superintendence of night officers, as already described, became possible. The rule became general as regards the prison dress; hitherto clothing had been issued only to such as were destitute or in rags, and all classes of prisoners, those for trial, and those sentenced for short terms or long, wore no distinguishing costume, although its use was admitted, not only for cleanliness, but as a badge of condition, and a

security against escape. Renewed recommendations to provide employment resulted in the provision of a certain amount of oakum for picking, and one or two men were allowed to mend clothes and make shoes. The rules made by the Secretary of State were hung up in conspicuous parts of the prison; more officers were appointed, as the time of so many of those already on the staff was monopolized by attendance at the Central Criminal Court. Another custom which had led to disorder was abolished; prisoners who had been acquitted were not permitted to return to the prison to show their joy and receive the congratulations of their unfortunate fellows. The Corporation seems to have introduced these salutary changes without hesitation. It was less prompt apparently in dealing with structural alterations and improvements. Well-founded complaints had been made of the want of heating appliances in the gaol. The wards had open fires, but the separate cells were not warmed at all. A scheme for heating the whole prison with hot-water pipes, after the system now generally adopted elsewhere, was considered, and abandoned because of the expense.

As to the entire reconstruction of Newgate, nothing had been done as yet. This, with a scheme for limiting the gaol to untried prisoners, had been urgently recommended by Lord John Russell in 1830. His letter to the Corporation, under date 4th June, is an interesting document, and shows that even at that date the Government contemplated the erection of a model prison. Lord John Russell, commenting upon the offer of the Corporation to improve Newgate, provided it was henceforth used only for untried prisoners, suggested that Newgate should be entirely reconstructed, and the new building adopted as a model. The Corporation had agreed to spend £20,000 on alterations, but £60,000 would suffice to reconstruct. Lord John, with great fairness, admitted that the whole of this burthen could not be imposed upon the city, seeing that since the establishment of the Central Criminal Court, Newgate received prisoners for trial from several counties, and he was therefore prepared to submit to Parliament a proposal that half the cost of reconstruction should be borne by public funds. He forwarded plans prepared by the inspectors of prisons, not for blind adoption, but as a guide. This plan was on the principle of cellular separation, a system, according to Lord John Russell, desirable in all prisons, "but in a metropolitan prison absolutely essential." The Corporation in reply demurred rather to accepting strict separation as a rule, feeling that it approached too nearly to solitary confinement. The court was, however,

prepared to consider Lord John Russell's proposal with regard to the cost of rebuilding; but as the plan was "confessedly experimental, for the benefit of the country generally, the amount for which the city should be responsible should be distinctly limited not to exceed a certain sum to be agreed upon." A proviso was also made that the magistrates should continue to exercise full control over the new gaol, "free from any other interference than that of the inspectors on the part of Government."

No doubt wiser counsels prevailed with Lord John Russell, and on a more mature consideration he realized that the limited area of the existing Newgate site, and the costliness of enlarging it, forbade all idea of entirely reconstructing the gaol so as to constitute it a model prison. It would be far better to begin at the beginning, to select a sufficiently spacious piece of ground, and erect a prison which from foundations to roofs should be in conformity with the newest ideas.

The preference given to the Pentonville system destroyed all hopes of a complete reformation of Newgate. But the condition of the great city gaol was evidently considered a reproach by the city authorities, and a year after the opening of the new "model" at Pentonville, a serious effort was made to reconstruct Newgate. In 1845 the Gaol Committee brought forward a definite proposal to purchase ground in the immediate vicinity for the erection of a new gaol. This gaol was nominally to replace the Giltspur Street Compter, the site of which was to be sold to Christ's Hospital, but the intention was of course to embody and absorb old Newgate in the new construction. The proposal made was to purchase some fifty thousand square feet between Newgate, Warwick Lane, and the Sessions House, "the situation having been proved by long experience to be salubrious." But when this suggestion was brought before the court of aldermen, various amendments were proposed. It was urged that the area selected for purchase must be excessively costly to acquire, and still quite inadequate for the city needs. The Home Secretary had laid it down that at least five acres would be indispensable, and such an area it was impossible to obtain within the limits of the city. Now for the first time the Tuffnell estate in Holloway was mentioned. The Corporation owned lands there covering from nineteen to twenty acres. Why not move the city prison bodily into this more rural spot, with its purer air and greater breathing space?

Eventually Holloway was decided upon as a site for the new city prison. The necessary preliminaries took some time, but the contracts for the new

building were completed in 1849, when the works were commenced. The prison was to contain four hundred and four prisoners, and the estimated expenditure was £79,000. It was to accommodate only the convicted prisoners sentenced to terms short of penal servitude, and after its completion the uses of Newgate were narrowed almost entirely to those of a prison of detention. It was intended as far as possible that, except awaiting trial, no prisoner should find himself relegated to Newgate. This principle became more and more generally the rule, although it has never been punctiliously observed. Now and again misdemeanants have found their way into Newgate, and within the last few years one offender against the privileges of the House of Commons.

With the reduction of numbers to be accommodated, there was ample space in Newgate for its reconstruction on the most approved modern lines. In 1857 the erection of a wing or large block of cells was commenced within the original walls of the prison, and upon the north or male side. This block contained one hundred and thirty cells, embracing every modern improvement; it also contained eleven reception cells, six punishment cells, and a couple of cells for condemned criminals. This block was completed in 1859, after which the hitherto unavoidable and long-continued promiscuous association of prisoners came to an end. In 1861 a similar work was undertaken to provide separate cellular accommodation for the female inmates of Newgate, and by the following year forty-seven new cells had been built on the most approved plan. During this reconstruction the female prisoners were lodged in Holloway, and when it was completed, both sides of the prison were brought into harmony with modern ideas. The old buildings were entirely disused, and the whole of the inmates of Newgate were kept constantly in separate confinement.

With the last re-edification of Newgate, a work executed some seven centuries after the first stone of the old gaol was laid, the architectural records of the prison end. Nothing much was done at Newgate in the way of building, outside or in, after 1862. The Act for private executions led to the erection of the gallows shed in the exercising yard, and at the flank of the passage from the condemned cells. The first "glass house," or room in which prisoners could talk in private with their attorneys, but yet be seen by the warder on the watch, had been constructed, and others were subsequently added. But no structural alterations were made from the date first quoted until the time of closing the prison in 1881. But in the interval

very comprehensive and, I think it must be admitted, salutary changes were successively introduced into the management of prisons. Newgate naturally shared in any advantages due to these reforms. I propose, therefore, to refer to them in the concluding pages of this work, and thus bring the history of prison discipline down to our own times.

The last inquiry into the condition and management of our gaols and houses of correction was that made by the Lords' Committee in 1863. The inquiry was most searching and complete, and the committee spoke plainly in its report. It animadverted strongly on "the many and wide differences as regards construction, labour, diet, and general discipline" which existed in the various prisons, "leading to an inequality, uncertainty, and inefficiency of punishment productive of the most prejudicial results." The varieties in construction were still very marked. In many prisons the prisoners were still associated, and, from the want of a sufficient number of cells, the principle of separation was still greatly neglected. Yet this principle, as the committee pointed out, "must now be accepted as the foundation of prison discipline," while its rigid maintenance was in its opinion vital to the efficiency of the gaols. Even where cells had been built they were frequently below the standard size, and were therefore not certified for occupation as was required by law. Great numbers were not lighted at night, and were without means by which their inmates could communicate, in case of urgent necessity, with their keepers. Still greater were the differences with regard to employment. The various authorities held widely different opinions as to what constituted hard labour. Here the tread-wheel was in use, there cellular cranks, or "hard-labour machines." Both, however, varied greatly in mechanism and in the amount of energy they called forth, while the former was intended for the congregate labour of a number, and the latter, as its name implies, imposed continuous solitary toil. At other prisons "shot-drill," the lifting and carrying of heavy round shot, was the favourite method of inflicting penal labour. With these differences were others as opposed concerning industrial occupation. The gaol authorities often gave the highest, possibly undue, importance to the value of remunerative employment, and sought to make profitable returns from prisoners' labour the test of prison efficiency. In this view the committee could not coincide, and it was decidedly of opinion that in all short sentences the hard labour of the tread-wheel, crank, and so forth should be the invariable rule.

In dietaries, again, the same wide diversity of practice obtained. The efforts made by Sir James Graham years before to introduce uniformity in this particular had failed of effect. The Secretary of State's suggested scale of diet had seldom been closely followed. In some places the dietary was too full, in others too meagre. Its constituents were not of the most suitable character. More animal food was given than was necessary. Vegetables, especially the potato, that most valuable anti-scorbutic, was too often omitted. In a word, the value of diet as a part of penal discipline was still insufficiently recognized. The prisons were still far from inflicting the three punishments, hard labour, hard fare, and a hard bed, which Sir Joshua Jebb told the committee he considered the proper elements of penal discipline. It is interesting to note here that the committee of 1863 fully endorsed Sir Joshua's recommendations as regards a "hard bed," and recommended that "during short sentences, or the earlier stages of a long confinement, the prisoners should be made to dispense with the use of a mattress, and should sleep on planks." This suggestion was adopted in the Act of 1865, which followed the committee's report, and of which more directly. Clause 92, Schedule I. of that act authorized the use of plank beds, which were adopted in many prisons. They are now the universal rule, introduced, as was erroneously supposed, by the prison commissioners appointed under the Prison Act of 1877. Their origin it will be seen dates back much further than that.

Beds might well be made hard and their use strictly limited. According to this committee of 1863, beds in the smaller and most carelessly conducted prisons formed a large element in the life of a prisoner. In one gaol fifteen hours were spent in bed out of the twenty-four. This was in keeping with other grave defects and omissions. The minor borough prisons were the worst blot on the still dark and imperfect system. They were very numerous, very imperfect in construction and management, and they were very little required. In them, according to the committee, the old objectionable practices were still in full force. There was unrestrained association of untried and convicted, juvenile with adult prisoners, vagrants, misdemeanants, felons. There were dormitories without light, control, or regulation at night, which warders, dreading assault, were afraid to enter after dark, even to check rioting and disturbance. Prisoners still slept two in a bed. In one prison the bedsteads had been removed lest the prisoners should break them up and convert them into weapons of offence. The prison

buildings were in many places out of repair; other houses often overlooked them. A single officer was the only custodian and disciplinary authority in the gaol. Complete idleness was tolerated; there was neither penal labour nor light employment. The prisoners inter-communicated freely, and exercised the most injurious, corrupting influences upon one another. The total want of administration was very marked, but in one prison it was such that the prisoners' food was supplied daily from the neighbouring inn, and the innkeeper's bill constituted the only accounts kept. The committee might well suggest the abolition of these gaols, or their amalgamation with the larger county establishments in their immediate neighbourhood. Some idea of the comparative uselessness of these small borough prisons was conveyed by some figures quoted by the committee. In 1862 there were in all one hundred and ninety-three gaols in England and Wales; of these, sixty-three gave admittance during the entire year to less than twenty-five prisoners; twenty-two others received between eleven and twenty-five; fourteen received less than eleven and more than six; while twenty-seven received less than six prisoners, and were in some instances absolutely tenantless.

The result of the recommendation of the committee of 1862 was the Prison Act of 1865, the penultimate of such enactments, many of the provisions of which still remain in force. The main object of this act was to compass that uniformity in discipline and treatment generally which had long been admitted as indispensable, and had never as yet been properly obtained. The legislature was beginning to overcome its disinclination to interfere actively or authoritatively with the local jurisdictions, although still very leniently disposed. However, it now laid down in plain language and with precise details the requirements of a good gaol system. The separation of prisoners in cells duly certified by the inspectors was insisted upon, also their constant employment in labour appropriate to their condition. Hard labour of the first and second class was carefully defined. The former, which consisted principally of the tread-wheel, cranks, capstans, shot-drill, was to be the rule for all convicted prisoners throughout the early stages of their detention; while the latter, which included various forms of industrial employment, was the boon to which willing industry extending over a long period established a certain claim. The infliction of punishment more or less uniform was thus aimed at. On the other hand, new and careful regulations were framed to secure the moral and material well-

being of the inmates of the gaols. The law made it imperative that every prison should have a prison chapel, and that daily and Sunday services should be held. The chaplain's duties were enlarged, and the principle of toleration accepted to the extent of securing to all prisoners the ministrations of ministers of their own form of belief. Steps were taken to provide the illiterate with secular instruction. No less close was the care as regards preservation of health. Stringent rules were prescribed for the prison surgeons; every prison was ordered to keep up an infirmary, and the medical supervision was to be strict and continuous. Dietaries were drawn up for adoption on the recommendation of a committee of experts. Baths were provided, ablutions ordered, and all appliances to insure personal cleanliness.

The administration of good government was to be watched over by the local magistracy, certain of whom, styled visiting justices, were elected to inspect the prisons frequently, to examine the prisoners, hear complaints, and check abuses. Under them the governor or gaoler was held strictly responsible. The books and journals he was to keep were minutely specified, and his constant presence in or near the gaol was insisted upon. His disciplinary powers were defined by the act, and his duties, both in





Interior of Chapel (1880).

controlling his subordinates and in protecting the prisoners from petty tyranny and oppression, every one of whom he was to see once every twenty-four hours. But discipline was to be maintained if necessary by punishment, while decency and good order were to be insured by the strict prohibition of gambling and drunkenness. The latter was rendered nearly impossible by the penalties imposed on persons bringing spirituous liquors into the gaol. The old custom, so fruitful of the worst evils, of keeping a tap inside the prison was made illegal. So was the employment of prisoners in any position of trust or authority; they were not to be turnkeys or assistant turnkeys, neither wardens nor yardsman, overseer, monitor, or schoolmaster, nor to be engaged in the service of any officer of the prison.

The Act of 1865 also encouraged and empowered the local authorities to “alter, enlarge, or rebuild” their prisons. They might raise funds for this purpose, provided a certificate for the necessity for the new works was given, either by the recorder, chairman of quarter sessions, or even by a couple of justices. Every facility was promised. The sanction of the

Secretary of State would not be withheld if plans and estimates were duly submitted, and they met with the approval of his professional adviser, the surveyor-general of prisons. The funds necessary would be advanced by the Public Works Loan Commissioners, and the interest might be charged against the county or borough rates. Nor were these the only inducements offered. Where local authorities were indisposed to set their prisons in order, or hesitated to embark upon any considerable expenditure to alter or rebuild, they were at liberty to hire suitable cell accommodation from any neighbours who might have it to spare; the only proviso, that no such contract was valid between one jurisdiction and another unless the Secretary of State was satisfied that the prison it was intended to use came up in all respects to modern requirements.

But the act was not limited to permissive legislation. Its provisions and enactments were backed up by certain penalties. The Secretary of State was empowered to deal rather summarily with “inadequate” prisons, in other words, with those in which there was no separation, no proper enforcement of hard labour, no chapel, infirmary, and so forth. He could in the first place withhold the government grant in aid of prison funds by refusing the certificate to the Treasury upon which the allowance was paid. This he might do on the representation of the inspector of prisons, who was bound to report any deficiencies and abuses he might find at his periodical visits. The Secretary of State might go further. Where the local authority had neglected to comply with the provisions of the 1865 Act for four consecutive years, he could close the “inadequate” prison, by declaring it unfit for the reception of prisoners. His order would at the same time specify some neighbouring and more satisfactory prison which the local authority would be compelled to utilize instead, and with the concurrence of the other authority, and on payment. A few provisos governed these rather extensive powers. It was necessary, for instance, to give due notice when the government grant was to be withdrawn, and with the warning a copy of the particular defects and allegations was to be sent to the local authority. The latter too was to be laid before the House of Commons. In the same way, six months’ notice was required in cases where the closing of a prison was contemplated; but if these conditions were observed, the Secretary of State could deal sharply enough with the defaulting jurisdictions.

Yet the law was seldom if ever enforced. It was practically inoperative as regards the penalties for neglect. It was no doubt as irksome and

inconvenient to the Secretary of State to avail himself of his powers, as it was difficult to bring home the derelictions of duties and evasion of the acts. Too much was left to the inspectors. It was nearly impossible for them to exercise a very close supervision over the whole of the prisons of the country. There were only two of them, and they could not visit each prison more than once in each year, sometimes not oftener than once in eighteen months. The task imposed upon them, tending as it did to the imposition of a fine upon the local authorities, was not a pleasant one, and it is not strange if they did not very frequently hand up the offenders to the reproof and correction of the Secretary of State. As the almost inevitable consequence, while the more glaring defects in prison management disappeared, matters went on after the 1865 Act much the same as they had done before. Districts differed greatly in the attention they paid to prison affairs. In one part the most praiseworthy activity prevailed, in another there was half-heartedness, even apathy and an almost complete contempt for the provisions of the act.

As the years passed, great want of uniformity continued to prevail throughout the prisons of the United Kingdom. The whole question assumed sufficient importance to become a part of the Government programme when Lord Beaconsfield took office in 1874. The Home Secretary in that administration, Mr. (now Sir Richard) Cross, having applied himself vigorously to the task of reorganizing the whole system, became convinced that no complete reform could be accomplished so long as the prisons were left under the jurisdiction of the local authorities. The Prisons Bill of 1876 contemplated the transfer of the prisons to Government. This bill, reintroduced in 1877, became law that year, after which the whole of the prisons, including Newgate, passed under the more direct control of the State. Since then a strong central authority has laboured steadfastly to compass concentration, to close useless prisons, and to insure that uniformity of system which all thoughtful persons had long admitted to be of paramount importance in the administration of prisons. Three years after the advent of the prison commissioners, it was decided that Newgate was an excessively costly and redundant establishment. It was only filled at the periods when the sessions of the Central Criminal Court were in progress; at others an expensive staff was maintained with little or nothing to do. At a short distance stood another prison of detention, that of Clerkenwell, with spare accommodation sufficient to receive all prisoners who were then committed to Newgate. These arguments were

unanswerable. Accordingly, it was ordered by Sir William Harcourt, the present Secretary of State, that Newgate should cease to be used as a regular prison, and it is now, except during sessions or when the gallows is in requisition, practically and for ever closed.



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FOOTNOTES:

[1] Report of the Committee of the House of Commons on the police of the metropolis, 1816.

[2] Sir James Mackintosh on the state of the criminal law.

[3] Wade, p. 1056.

[4] Evidence of Alderman Harmer before Committee on Capital Punishment, 1819.

[5] A remarkable diminution of forgeries at once followed the abolition of the £1 notes.

[6] See post. chap. vii.

[7] "If Dr. Dodd does not suffer the sentence of the law," said Lord Mansfield to the King in Council, "then the Perreaus have been murdered." The Lord Chief Justice held an opinion in common with most reflecting men of that age, that death for forgery was indispensable to protect commercial credit. Lord Campbell, in his 'Lives of the Lords Chief Justice,' states that he heard a Judge say, after passing the death sentence for forgery, "May you find the mercy above which a due regard to the credit of the paper currency of this country forbids you to hope for here."

[8] See vol. i. p. 380.

[9] Knapp and Baldwin's 'Newgate Calendar,' i. 160.

[10] See chap. viii. vol. i.

[11] By an act of William and Mary, £40 was offered for the apprehension and conviction of a highwayman; the same sum, by 6 and 7 William III. cap. 17, for conviction of a coiner or clipper; also, by 5 Anne, cap. 31, for conviction of a burglar or housebreaker. Ten pounds was the reward for the conviction of a sheep-stealer, or of a person uttering or passing away counterfeit money, or fabricating spurious copper coins.

[12] Evidence of John Vickery, a Bow Street runner, before committee on the police of the metropolis, 1816.

[13] The sobriquet of Gentleman Harry was also enjoyed by Henry Simms, a highwayman who frequented the Lewisham and Blackheath roads. On one occasion, when travelling into Northamptonshire on a rather fresh horse, a gentleman who was in a post-chaise remarked to him, "Don't ride so hard, sir, or you'll soon ride away all your estate." "Indeed I shall not," replied Simms, "for it lies in several counties," and dismounting, he challenged the gentleman to stand, and robbed him of a hundred and two guineas.

[14] See *ante*, vol. i. p. 187.

[15] See *ante*, p. 29.

[16] See chapter iii., 'Philanthropy in Newgate.'

[17] See *ante*, vol. i. p. 238, where there is an account of how Williams, Wilkes' publisher, was put in the pillory.

[18] Grant's 'Newspaper Press,' vol. i. 172.

[19] *Ibid.* i. 220.

[20] *Ibid.* i. 220.

[21] In March 1805 the sheriffs of London had been committed to Newgate by the House of Commons for gross partiality in favour of Sir Francis Burdett at the election for Middlesex.

[22] 'State of Prisons in England, Scotland, and Wales,' 1812.

[23] These cabins were partitioned off by a wooden hoarding which went up three parts of the way to the ceiling, and they received all light and air from the top.

[24] See *ante*, vol. i. p. 250.

[25] 'Neild,' p. 425.

[26] *Ibid.*

[27] *Ibid.*

[28] Debtors are still sent to prison (1883) for a fixed term, but only under a warrant of contempt of court. It is in the power of the County Court judge thus to punish all whom he believes can pay, but will not. Nevertheless, numerous cases of hardship still occur. As when a working-man's wife pledges his credit in his absence, makes away with the writs served by the creditor, and ignores judgment obtained. The husband hears first of the affair when arrested for contempt.

[29] The large discretionary powers of these courts created a petty tyranny in a set of standing commissioners.—*Blackstone*.

[30] 'Neild.'

[31] Besides these and other fees paid in prison, there were the charges of the "secondary," who received a shilling per pound for every pound under £100, and sixpence for every pound above that sum. This was called the sheriff's poundage, and often amounted to large sums—as much as £97 odd in one case which is cited by Mr. Neild.

[32] 'Neild,' p. 312.

[33] Neild says in 1803 there were 229 males, 148 females, and 391 children in the gaol.

[34] 1814.

[35] It was so condemned in 1808 on account of its ruinous condition. The debtors were but indifferently lodged, but the common side felons occupied a horrible den styled the Rat Hole, and the women another called the Mouse Hole.

[36] See *ante*, p. 69.

[37] Mr. John Kirby.

[38] Even the felons were better off for food. See p. 104.

[39] See *ante*, p. 68, *et seq.*

[40] See *ante*, p. 57.

[41] Evidence before Committee of House of Commons, 1814.

[42] See *ante*, p. 72.

[43] One lunatic was kept in the state side upwards of six years. He was described as "sometimes a little dangerous," and generally occupied in a room by himself. There were at this time three or four other lunatics (two of them "dangerous") who went at large in the wards on the common side.

[44] See *ante*, vol. i. cap. v.

[45] Cashman was the only one of the Spafields rioters (1816) who was capitally convicted and executed. Four others who were arraigned with him were acquitted by the jury, to the

astonishment of the court. Cashman, who had been a seaman in the Royal Navy, pleaded that he had been to the Admiralty to claim prize-money to the value of £200 on the day of the riot. On his way home, half drunk, he had been persuaded to join the rioters. Cashman's unconcern lasted to the end. As he appeared on the gallows the mob groaned and hissed the Government, and Cashman joined in the outcry until the drop fell.

[46] As to ironing females, see *post*, p. 136.

[47] Visitors were searched at the lodge—the males by a turnkey, the females by a woman retained for the purpose. These officials had orders to strip those they searched if they thought necessary. The examination was seldom of any avail; but on one occasion a wife, who had hopes of compassing her husband's escape, was detected in trying to pass a long rope into the prison. The woman was arrested and committed to Newgate for trial, where her husband already lay cast for highway robbery.

[48] Petworth Prison, built in 1785, and Gloucester Penitentiary, erected in 1791, were the two first gaols established which provided a separate sleeping cell for every prisoner.

[49] Some interesting details are published by the French Prison Society on this head.

[50] How perfunctory was the performance of his duties by the ordinary may be gathered from the following chapter.

[51] See *post*, p. 491.

[52] 'Dr. Forde's Evidence,' p. 56.

[53] 'Memoirs of Mrs. Fry,' i. 312.

[54] The Philanthropic Society is identical with the Farm School at Redhill, one of our most prosperous and best-managed reformatory schools at the present date. Mr. William Crawford, afterwards one of the first inspectors of prisons, was long an active member of the committee during the early days of the Society.

[55] See *ante*, cap. ii.

[56] 'Buxton on Prison Discipline,' 1818.

[57] This was the germ of the Ladies' Committee, which existed down to 1878.

[58] 'Buxton on Prison Discipline,' p. 125.

[59] 'Buxton,' p. 271.

[60] Still in existence, and still deserving of praise.

[61] Stated at length the title is, 'An Inquiry whether crime and misery are produced or prevented by our present system of prison discipline, illustrated by descriptions of various prisons.'

[62] 'Wm. Smith on State of Jails,' 1776, already referred to, vol. i. cap. x.

[63] 19 Charles II. c. 4.

[64] 'Buxton,' p. 23.

[65] In 1823 the society reported that "prisoners for assize at one county gaol are double ironed on first reception, and thus fettered, are at night chained down in bed, the chain being fixed to the floor of the cell, and fastened to the leg fetters of the prisoners. This chain is of sufficient length to enable the prisoners to raise themselves in bed. The cell is then locked, and he continues thus chained down from seven o'clock in the evening till six o'clock next morning. There were but two gaol deliveries in the county for the year, so a prisoner may

continue to be thus treated for from six to eight months, and be then acquitted as innocent.” The double irons for the untried varied in weight from ten to fourteen pounds.

[66] Mr. Buxton, while most loudly inveighing against the foul state of most British gaols, fully exonerates the governors. “None of the grievances represented,” he says in his preface, “are occasioned by the gaolers; that class of men are often subjected to undistinguished abuse; my experience would furnish me with very different language. Without any exception, I have had reason to approve, and sometimes to applaud, their conduct; and I can truly say that of all the persons with whom I have conversed, they are the most sensible of the evils of our present system of prison discipline.”

[67] See *post*, chap. v. The privilege of getting in extra and more luxurious articles of food long survived.

[68] See *ante*, p. 106.

[69] Prisons. ‘Edinburgh Review,’ Feb. 1822.

[70] See *ante*, p. 139.

[71] The greatest variety existed as to the amount of ascension. In one prison a prisoner had to ascend as much as 17,000 feet daily, in others between 6000 and 7000. Women were put on the tread-wheel in those times.

[72] Dance’s Newgate was commenced before Howard’s ‘State of Prisons’ was published, and was very properly condemned as defective by him and others. In the volume from which I am quoting its defects are fully detailed. Everything was sacrificed to the one idea of safe custody. To secure this, the “airing courts were enclosed by lofty impenetrable buildings, by which the general salubrity and ventilation of the interior became materially diminished.” By the arrangement of the courts it was impracticable to preserve a judicious system of separation. No sleeping cells were provided, and, as we know, the prisoners passed the night associated together in crowded rooms. No inspection was possible. On these accounts the Prison Discipline Society were of opinion that Newgate was “particularly objectionable as a model for imitation, ... a remark not deserving the less attention because the exterior of the prison presents a massive and imposing elevation which is calculated to excite impressions in favour of its security and seclusion.”

[73] See *ante*, p. 155.

[74] There were still some notorious exceptions. The most extraordinary neglect prevailed in the county prison at Exeter, which was left year after year in its old disgraceful state, overcrowded, filthy, without chaplain, hospital, dietaries, or proper clothing for prisoners.

[75] Just before sessions the total was generally much higher, and reached at times to nearly 500.

[76] See last chapter of this volume.

[77] This is the French and Belgian practice still. In both those countries a portion of the *pécule*, or prisoner’s earnings, can be spent in the prison canteen in various luxuries of diet.

[78] The Gaol Acts of 1823-4.

[79] ‘Report of P. D. Society, 1827,’ p. 37.

[80] It was the Duke of Richmond, himself the chairman of that committee, who had introduced the bill for the purpose.

[81] See *ante*, p. 131.

[82] Mr. Wakefield's abduction of Miss Turner will be found treated at length in chapter viii. His work on the punishment of death, which deals with Newgate at this time, I shall draw upon largely in the next chapter.

[83] These words were the foundation of the great libel cause of Stockdale *versus* Hansard, which will be remembered as threatening a serious collision between the House of Commons and the administration of the law. Mr. Stockdale, feeling aggrieved at the remarks of the Inspectors of Prisons, brought an action for libel against Messrs. Hansard, who published them. Hansard pleaded justification, and that the report was privileged, being printed by the authority of the House of Commons. Lord Denman, on the bench, dissented, and charged the jury that no such authority could justify a libel, but Hansard obtained a verdict of not guilty. Stockdale then brought a fresh action, and Hansard appealed to the House for protection. A Committee of the House was appointed to inquire into the matter, and it upheld the view that official blue books could not be open to action for libel. This formed the basis of Hansard's defence; but the court would not admit the plea, and cast them in damages. Hansard did not pay, and went on with the publication. A third action was then commenced, on the grounds that the sale of the report was a reiteration of the libel. To this action Hansard would not plead. A fresh declaration was filed by Stockdale, with the damages laid at £50,000; and as Hansard still, under the advice of the House, would not appear, the case again went against him.

Stockdale now sued for his damages in the Sheriffs' Court. The sheriffs, well aware that Messrs. Hansard were backed up by the House of Commons, tried to escape giving a judgment, at least until the House met, but they were ordered by the superior courts to proceed. They accordingly assessed Stockdale's damages at £600, and in liquidation thereof entered into possession of Hansard's premises. The printers once more appealed to the House, which on the first day of the session went into the whole case. On the motion of Lord John Russell, the sheriffs were summoned to the bar of the House for infringing its privileges, and committed to the custody of the sergent-at-arms. Stockdale was also summoned, cross-examined, and committed, but to Newgate. He, notwithstanding his imprisonment, continued to bring action after action; then his attorneys, through whom they were commenced, were summoned to the bar of the House, and also sent to Newgate. Meanwhile the sergent-at-arms, under a writ of Habeas Corpus, had to produce the sheriffs at the court of Queen's Bench; but the judges would not release them, holding that they were legally detained. Much dissatisfaction now began to show itself throughout the country, but the House of Commons would not yield an inch on the question of privilege. The subject was debated night after night, and at last, to settle the matter once for all, Lord John Russell introduced a bill specially intended to protect all parliamentary publications, issued by either House, from any proceedings in any court of law. This was passed in due course, and the privileges of Parliament were upheld.

The sheriffs had already been released from custody on grounds of ill-health. An application was made for the enlargement of Stockdale and his attorneys from Newgate on the passing of the bill, but it was at first rejected. Two months later the application was renewed, and being unopposed, the prisoners were set free.

[84] Prisoners' evidence.

[85] In 1833 a sentence of death was passed on a child of nine, who had poked a stick through a patched-up pane of glass in a shop-front, and thrusting his hand through the aperture, had stolen fifteen pieces of paint, worth twopence. This was construed into house-breaking, the principal witness being another child of nine, who "told" because he had not his share of the paint. The boy was not executed.

[86] These Newgate tokens were circular thin pieces of metal of various sizes. The initials or the names of a loving pair were punched upon them, together with a heart or some symbol of affection; sometimes with a motto, such as 'True for ever,' 'Love for life.' The greatest value

was attached to these tokens by the criminal classes. Those at large constantly wore them round their necks, and treated them as amulets to preserve them from danger and detection.

[87] Lord John Russell, at that time Home Secretary.

[88] See *ante*, vol. i. cap. vi.

[89] Newgate Calendar.

[90] Catnach's 'Street Literature.'

[91] 'A Book for a Rainy Day,' p. 167.

[92] *Ibid.* p. 171.

[93] See *ante*, p. 127.

[94] Governor Wall had held the rank of colonel in the army when serving at Goree.

[95] 'Picturesque Sketches of London,' by Thomas Miller, 1851.

[96] See *ante*, p. 214.

[97] 'The Punishment of Death in the Metropolis.' E. Gibbon Wakefield, p. 139.

[98] It was the Rev. Peter Fenn.

[99] By 32 Henry VIII. cap. 42 (1540), surgeons were granted four bodies of executed malefactors for "anatomyes," which privilege was extended in the following reign.—Haydn, 'Dict. of Dates,' p. 32.

[100] Sir Baptist Hicks also built Campden House, Kensington. In 1628 he was created Baron Hicks and Viscount Campden, with remainder to his daughter's children. She was the wife of Lord Noel, ancestor of the present Earl of Gainsborough.

[101] 'New Monthly Magazine,' 1855, p. 376.

[102] This murder inspired De Quincey's 'Murder as one of the Fine Arts.'

[103] Dymond, 'The Law on its Trial,' p. 57.

[104] Dymond, 'The Law on its Trial,' p. 194.

[105] That of Roderick Maclean, 1882.

[106] See cap. i. p. 7.

[107] It was said that the dinners he gave were of the most sumptuous and *recherché* description. The story goes, that one of his most chosen friends, who attended him to the scaffold, entreated him, as on the brink of the grave, and unable to take anything out of the world with him, to reveal the secret of where some wonderful curaçoa was obtained, for which Fauntleroy's cellar was famous.

[108] See *ante*, p. 102.

[109] The reader will have perceived from the Inspectors of Prisons first report that this hope was still unfulfilled in 1836, twelve years later.

[110] See chap. ii. p. 129.

[111] For abduction. See *post*, p. 302.

[112] At Liverpool, in 1842, there was a case of abduction, and the well-known case of Mr. Carden and Miss Arbuthnot in Ireland occurred as late as 1854.

[113] See vol. i. p. 178.

[114] But not quite. The Warwick Mail was stopped in 1827, and robbed of £20,000 in bank-notes.

[115] That sound and illustrious lawyer, Sir James Stephen, is of opinion that the receiver of stolen goods is one of the greatest of criminals; and in his recently-published history of the Criminal Law he seriously recommends capital punishment for those who have been repeatedly convicted of the offence.

[116] See *ante*, p. 317.

[117] See *ante*, p. 344.

[118] See *ante*, p. 18.

[119] Erected for night watchman.

[120] *i. e.* sentence.

[121] ‘Times,’ Nov. 15, 1864.

[122] See *post*, p. 441.

[123] See *ante*, p. 369.

[124] See *ante*, p. 271.

[125] That of Cook, for which he was tried and sentenced to death.

[126] They have since been repeated, but accompanied by more premeditation, in the case of Lefroy, who murdered Mr. Gould in a first-class carriage on the Brighton line in 1881.

[127] Evidence of Lieutenant-Colonel Jebb, Commons’ Committee, 1850, ii. 50.

[128] None, however, equalled the enormous expenditure incurred at York, where a prison had been built some years previously, under the auspices of Sydney Smith, at a cost of about £1000 per cell.

[129] Prisoners at first greatly dreaded the mask. Mr. Field, in his book on prison discipline, mentions a prisoner on his way to Reading Gaol, soon after the separate system was introduced, who jumped out of the cart at the gaol door and tried to drown himself, handcuffed as he was. His plea when rescued was that he wished to avoid the mask.

Typographical errors corrected by the etext transcriber:

Quaker linendraper=> Quaker linen-draper {pg 8}

A newspaper report of the time describes Fauntleroy “as a well-made=>

A newspaper report of the time describes Fauntleroy as “a well-made
{pg 296}

had commited suicide=> had committed suicide {pg 349}



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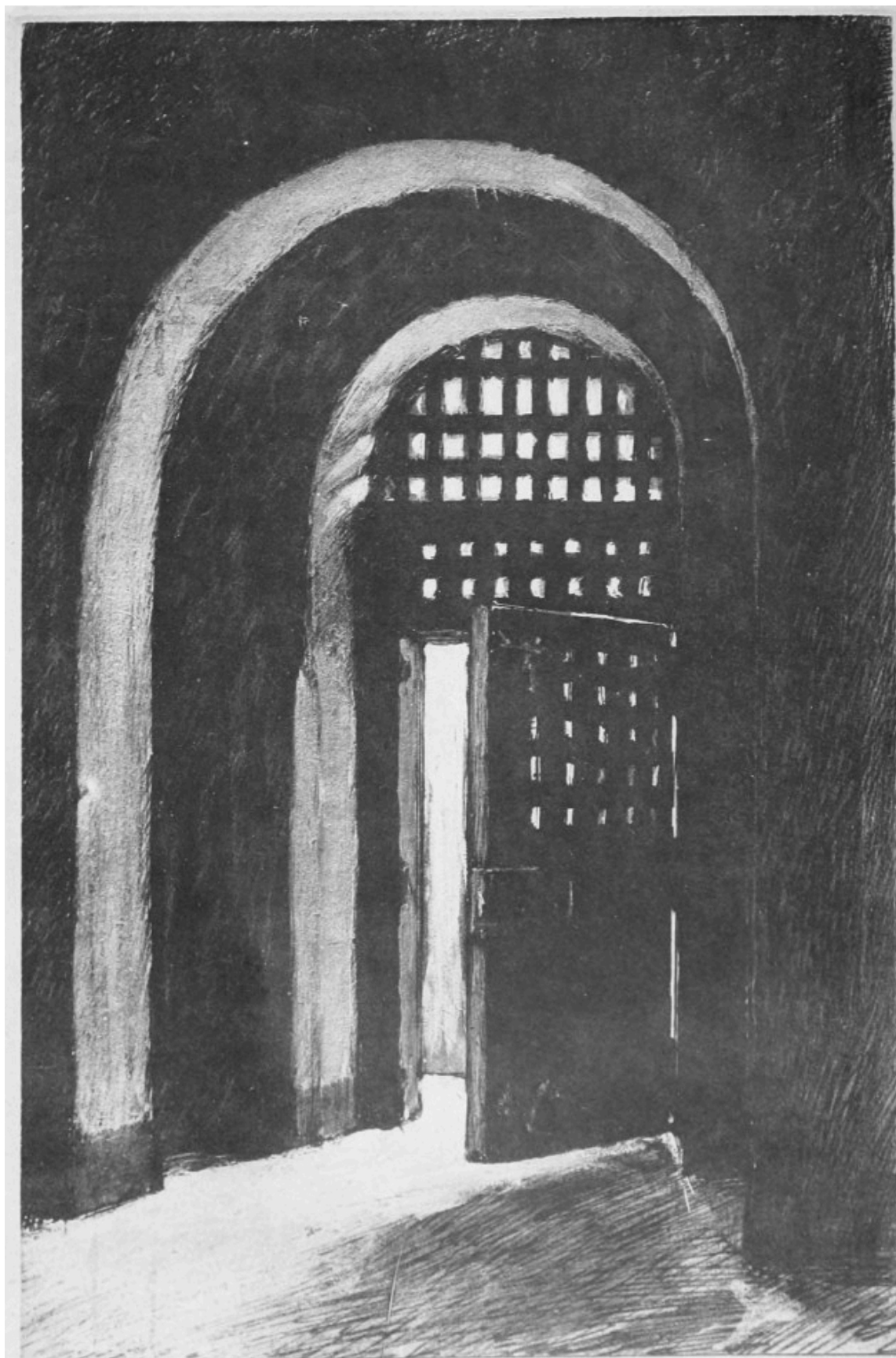
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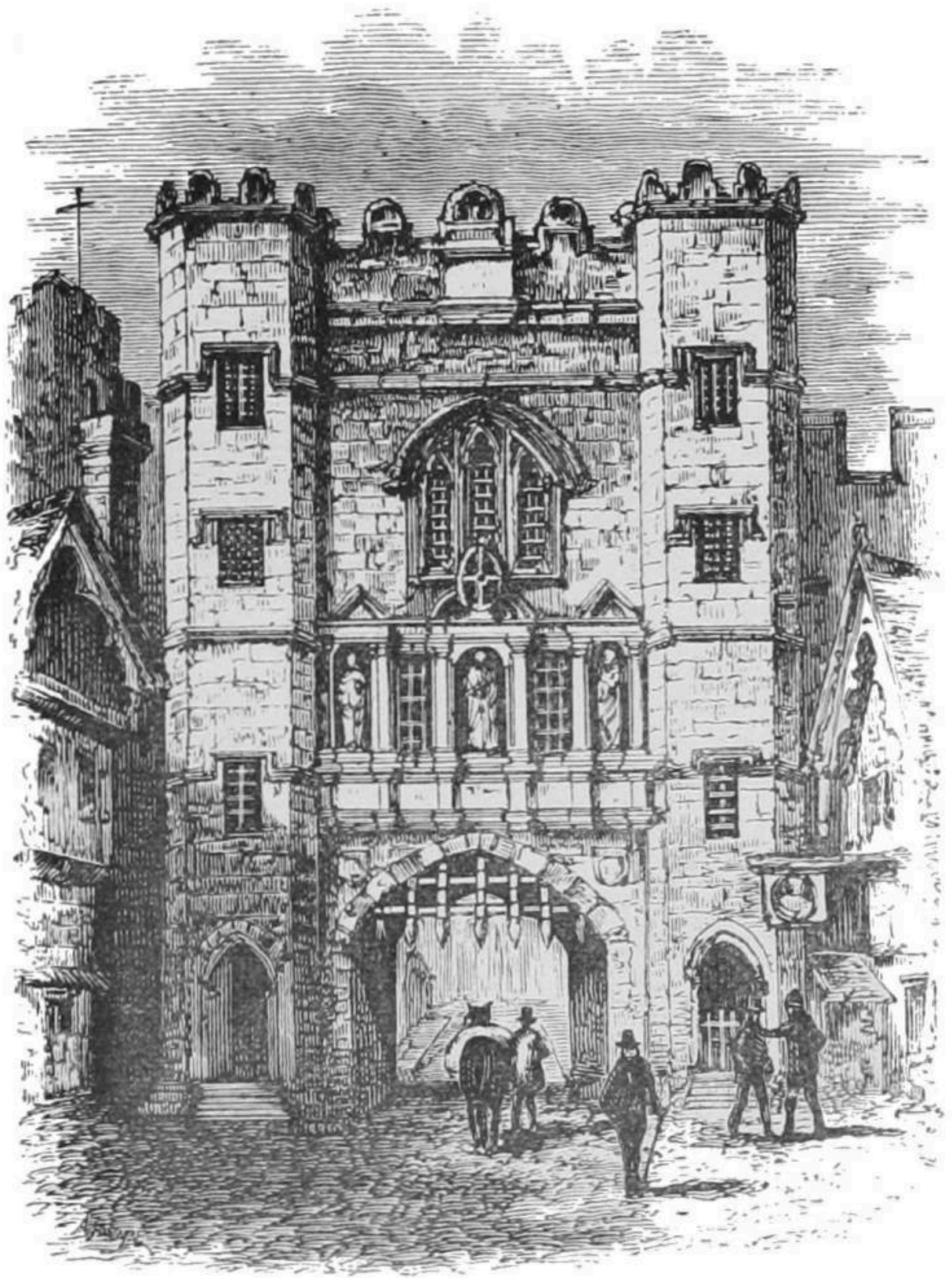
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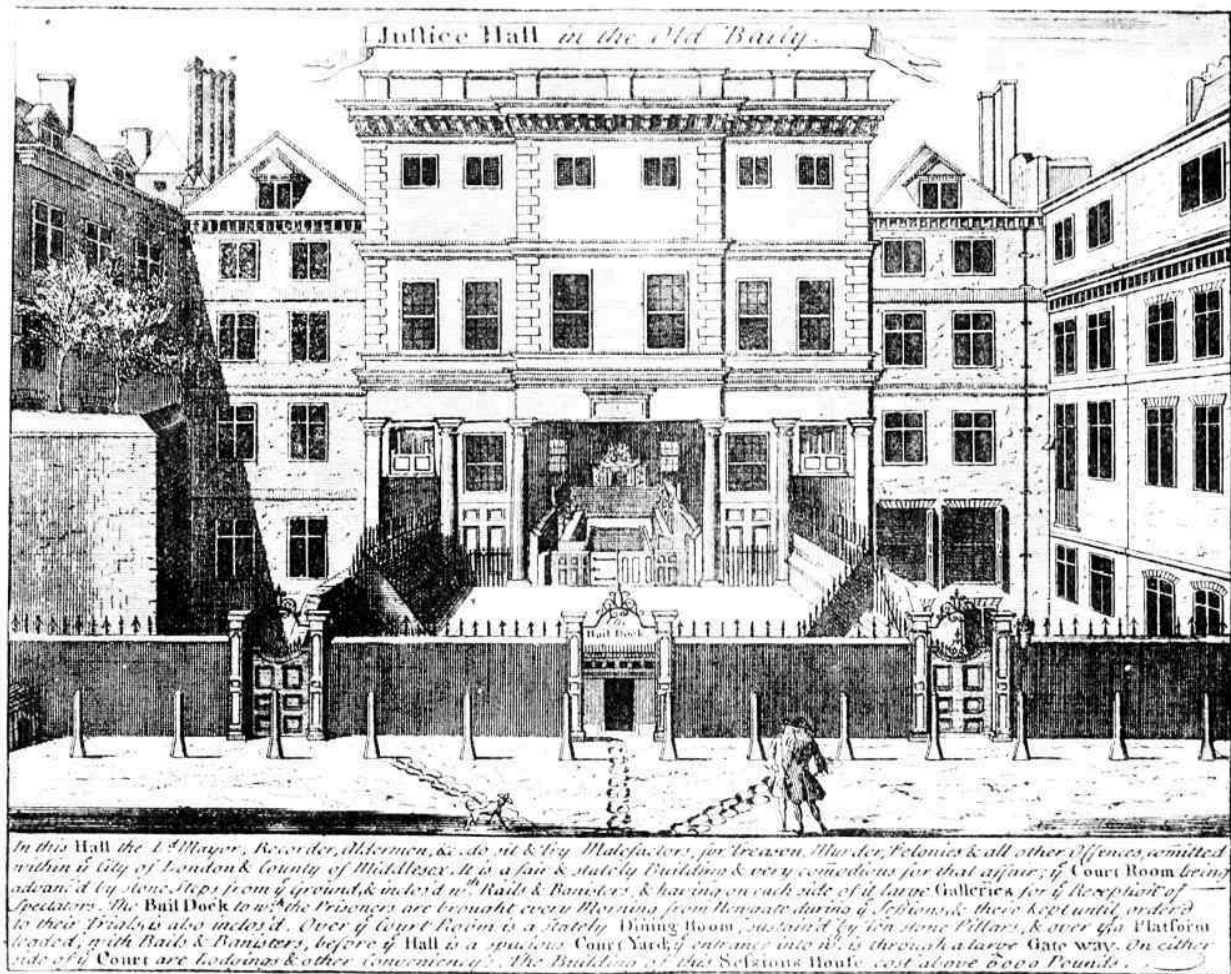
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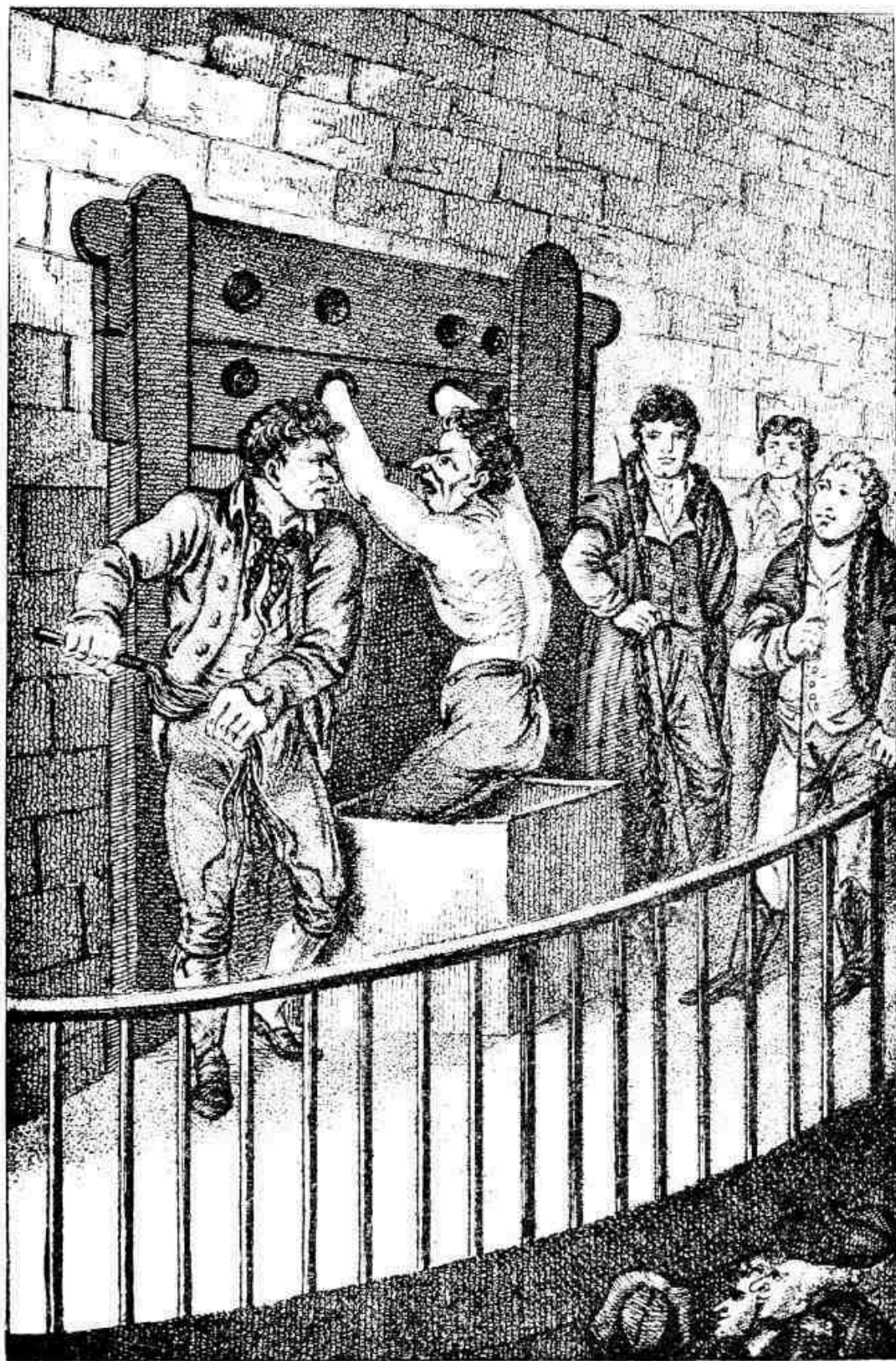
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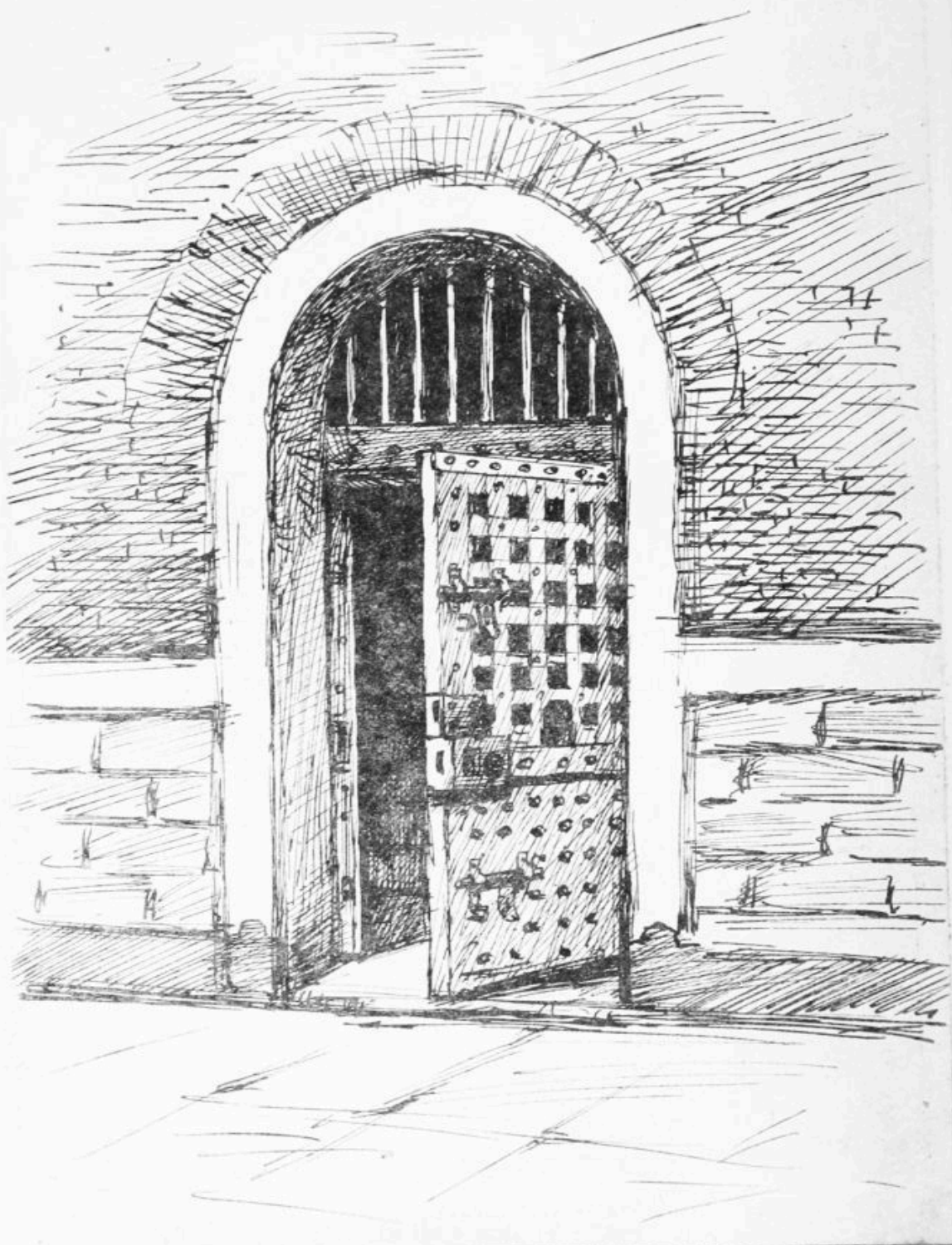
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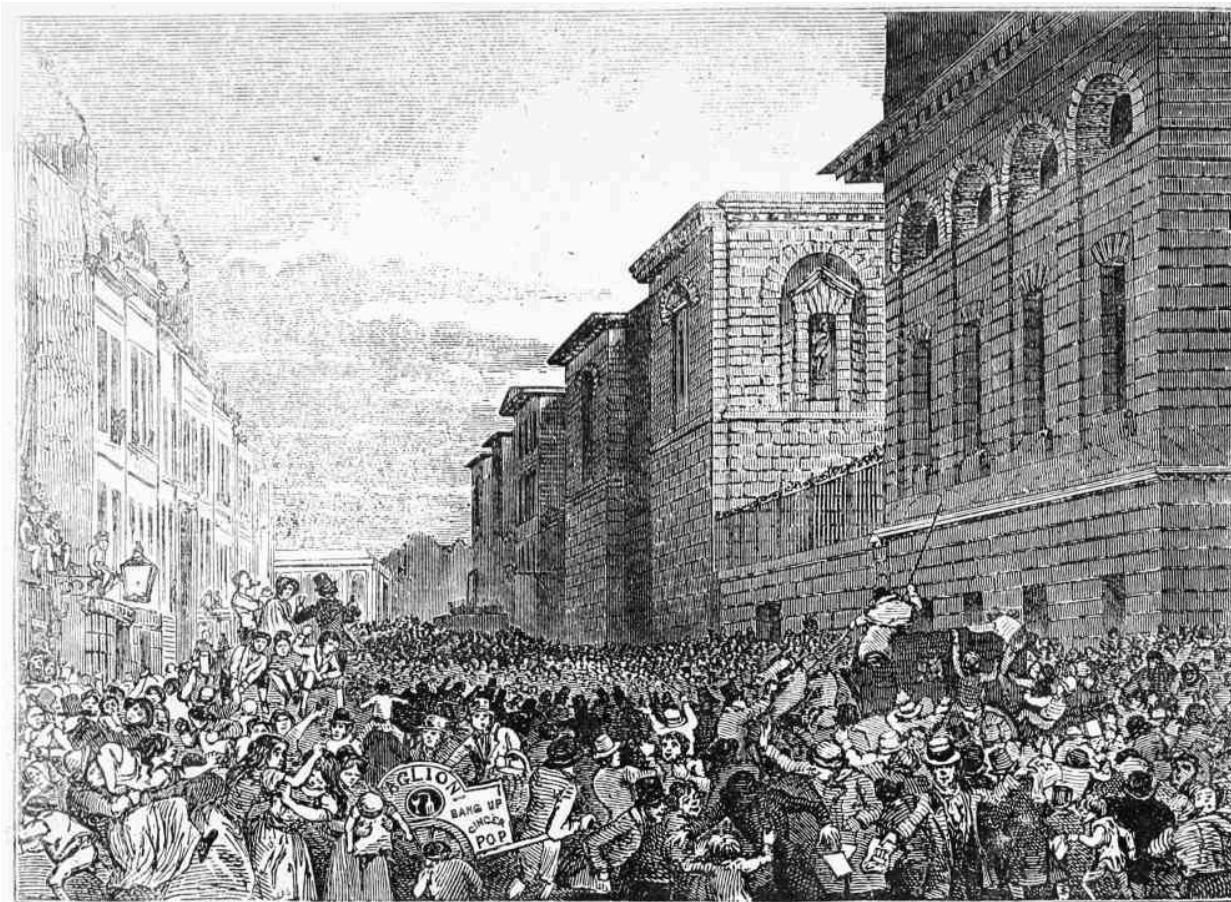


Entrance to Mrs. Fry's Ward.

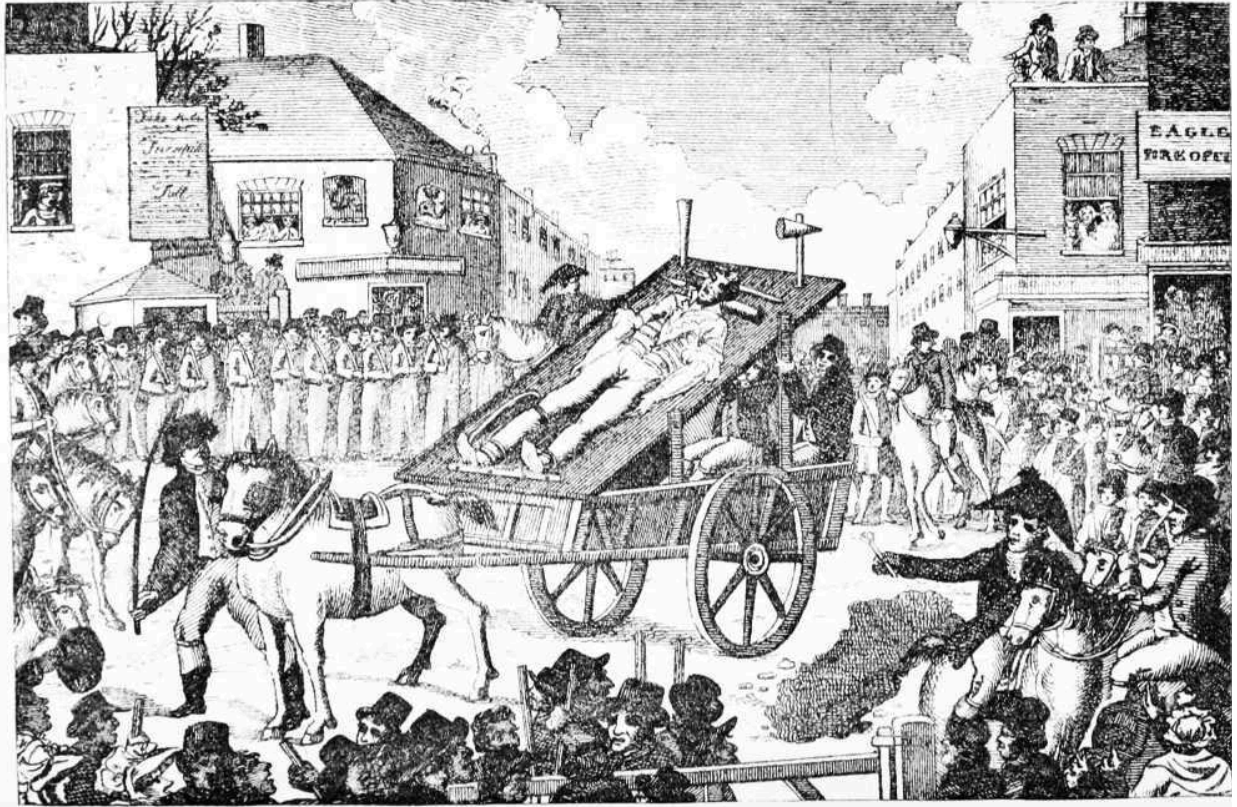
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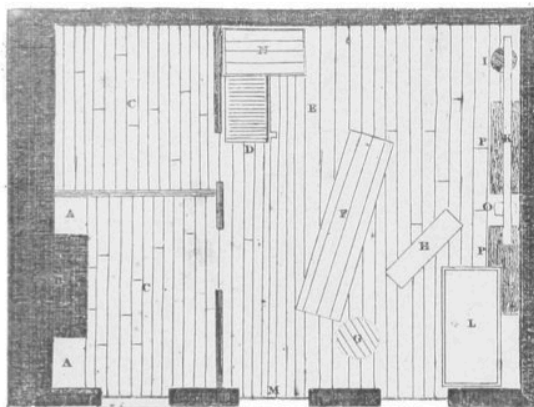
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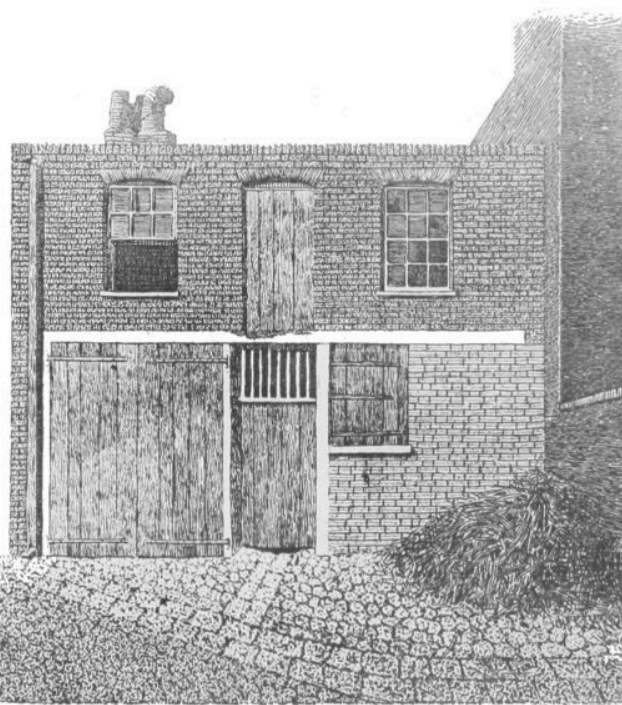


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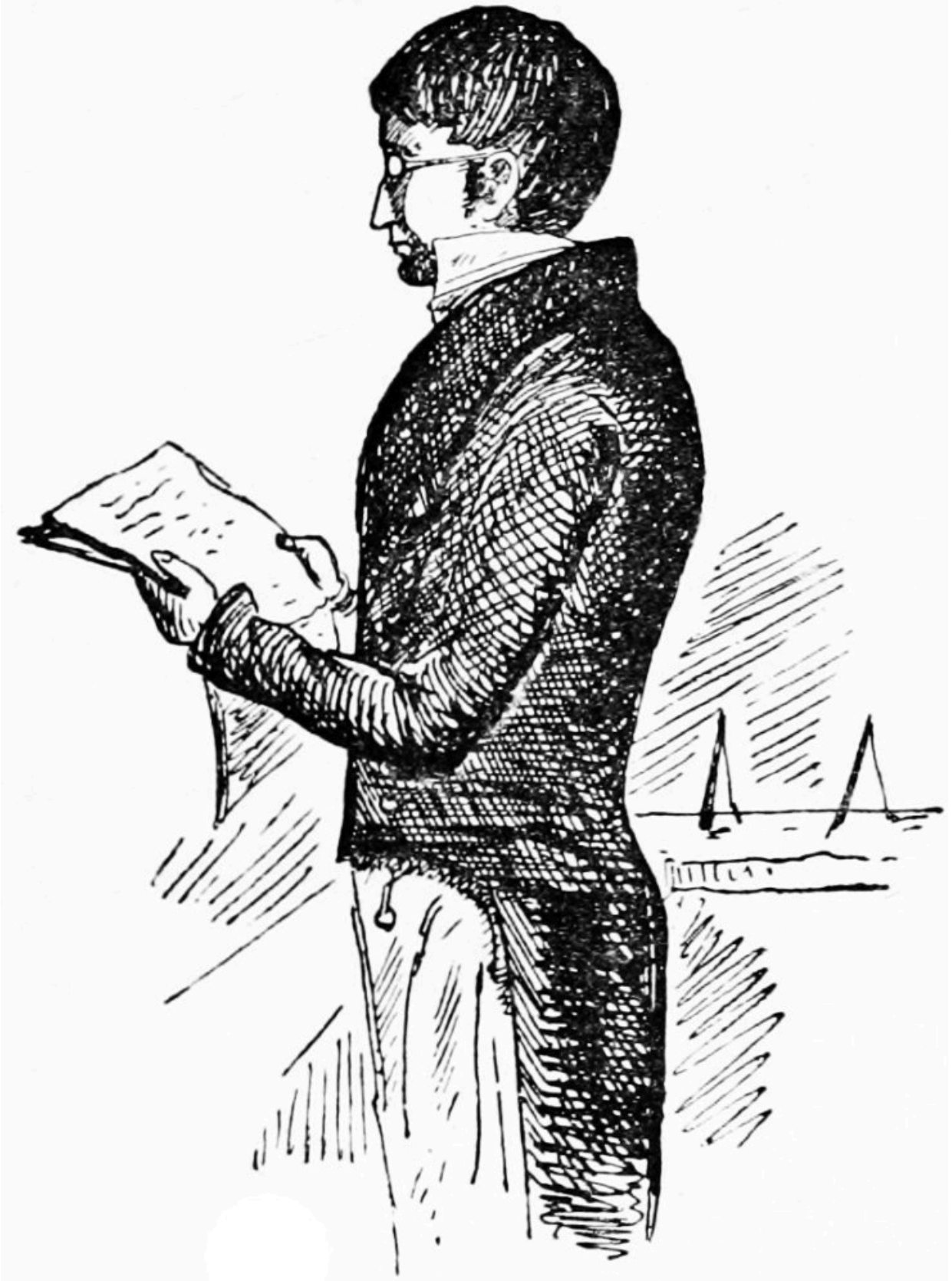
Plan of the Rooms over the Coach House & Stable.

- | | | |
|----------------------------------|--------------------|-------------------------|
| A Cupboard | F Carpenters Bench | K Hummock |
| B Chimney | G Tub | L Hay Left door |
| C Rooms over the Coach House | H Chaff Gutter | M Carpenters Tool Chest |
| D Descending Steps to the Stable | I Corn Measure | N Stone |
| E Smithers Killed | J Plank of Wood | O Aperture for Hay |



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